



DR. BABASAHEB AMBEDKAR

WRITINGS AND SPEECHES

Vol. - 17, Part-I

- Dr. B.R. Ambedkar & his Egalitarian Revolution Struggle for Human Rights.

DR. AMBEDKAR FOUNDATION

MINISTRY OF SOCIAL JUSTICE AND EMPOWERMENT
GOVERNMENT OF INDIA



Babasaheb Dr. B.R. Ambedkar
(14th April 1891 - 6th December 1956)

**DR. BABASAHEB AMBEDKAR
WRITINGS AND SPEECHES**

Volume No. : 17

PART ONE

**DR. B.R. AMBEDKAR AND HIS
EGALITARIAN REVOLUTION**

PART ONE

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MESSAGE

Babasaheb Dr. B.R.Ambedkar, the first Law Minister of Independent India and the Chief Architect of the Indian Constitution, is also remembered and admired as a nationalist, statesman, sociologist, philosopher, anthropologist, historian, economist, jurist, a prolific writer and a powerful orator.

To celebrate Birth Centenary of Babasaheb Dr. B.R.Ambedkar in a befitting manner, a National Centenary Celebrations Committee was constituted during the year 1990-91 with the then Hon'ble Prime Minister as its Chairman. Dr. Ambedkar Foundation was established by the Government of India under the aegis of the then Ministry of Welfare (now Ministry of Social Justice & Empowerment) with the objective to promote Babasaheb's ideals and also to administer some of the schemes which emanated from the Centenary Celebrations.

During these Celebrations, the Ministries and Departments of Government of India and State and Union Territory Governments had organized number of Programmes and had announced various Schemes. The Government of Maharashtra had also organized number of Programmes/Schemes and gave fillip to its project on compilation of Dr. Ambedkar Works viz. 'Dr. Babasaheb Ambedkar Writings and Speeches'. Dr. Ambedkar Foundation was also entrusted with the project of translation and publication of Dr. Ambedkar's Works by Government of Maharashtra, into Hindi and various regional languages. The Foundation also brought English versions of CWBA Volumes and keeping in view the demand for these Volumes (English), they have now been re-printed.

Dr. Ambedkar's writings are relevant today also as they were at the time these were penned. I am sure, the readers would be enriched by his thoughts. The Foundation would be thankful for any inputs or suggestions about these Volumes.

(Dr. Thaawarchand Gehlot)

PREFACE

It is a matter of great happiness that Dr. Ambedkar Foundation, on demand of the readers, is getting the Collected Works of Babasaheb Ambedkar (CWBA) English Volumes on venerable Dr. Ambedkar's contributions re-printing for wider circulation. Dr. Ambedkar not only dedicated his life for ameliorating the conditions of deprived sections of the society but also his views on inclusiveness and *Samajik Samrasta* continue inspiring national endeavour.

Dr. Ambedkar Foundation is deeply indebted to Smt. Rashmi Chowdhary, the then Member Secretary and Joint Secretary in the Ministry of Social Justice and Empowerment for her personal efforts, constant monitoring for setting the stage and giving a shape of this re-printing version of publication, under the guidance of the Chairman, Dr. Ambedkar Foundation and the Hon'ble Minister for Social Justice & Empowerment, Government of India.

It is hoped that the Volumes on Dr. B.R. Ambedkar's contributions will continue to be a source of inspirations for the readers.



(Debendra Prasad Majhi)

Director

Dr. Ambedkar Foundation

New Delhi

“For I am of the opinion that the most vital need of the day is to create among the mass of the people the sense of a common nationality, the feeling not that they are Indians first and Hindus, Mohammedans or Sindhis and Kanarese afterwards, but that they are Indians first and Indians last. If that be the ideal then it follows that nothing should be done which will harden local patriotism and group consciousness.”—(P. No. 66)

—Dr. B. R. Ambedkar

**DR BABASAHEB AMBEDKAR
WRITINGS AND SPEECHES**

**VOL. 17
PART ONE**

**DR. B. R. AMBEDKAR AND HIS
EGALITARIAN REVOLUTION**

**PART ONE
STRUGGLE FOR HUMAN RIGHTS**

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SECTION I

MAHAD SATYAGRAHA

MAHAD SATYAGRAHA* NOT FOR WATER BUT TO ESTABLISH HUMAN RIGHTS

‘The Sun of self-respect had now arisen in the sky and the clouds of oppression had begun to flit away. The Depressed Classes began to look up. And we now come to a momentous event in the life of Dr. B. R. Ambedkar. That event was a march on Mahad. This had its origin in the important resolution of the Bombay Legislative Council moved by S. K. Bole and adopted by the Bombay Government. In pursuance of the Bole resolution passed in 1923 and reaffirmed with a slight change in 1926, the Mahad Municipality had thrown open the Chawdar Tank to the Untouchables. However, the resolution of the Municipality remained a mere gesture in that the Untouchables had not exercised their right owing to the hostility of the caste Hindus.

It was, therefore, decided by the Kolaba District Depressed Classes to hold a Conference at Mahad on March 19 and 20, 1927. The leaders of the Conference had notified Dr. Ambedkar the date of the Conference in the first week of the previous month. Arrangements for the Conference were made with care by Surendranath Tipnis, Subhedar Savadkar and Anantrao Chitre. For the past two months workers and leaders had trodden hills and dales in the vicinity and had roused the Depressed Classes to the importance of the Conference. As a result, boys of fifteen to old men of seventy from far and near plodded distances of over hundred miles with bundles containing pieces of bread hanging from their shoulders and reached Mahad. About ten thousand delegates, workers and leaders of the Depressed Classes from almost all the districts of Maharashtra and Gujarat attended the Conference.

Every care had been taken, every convenience was provided, and every means was adopted to make the Conference a success. Water worth rupees forty was purchased from the Caste Hindus to satisfy the needs of the Conference, for water was not available to the Untouchables at the place of the Conference.

Dr. Ambedkar rose to deliver his presidential address to the half-clad, embarrassed, earnest men and women and began it in his simple, short and forceful sentences. With a strange

*Resisting injustice with soul force.

agitation in his voice he described the conditions of Dapoli where he had received the first rudiments of education and said that one was attracted to the place where one passed one's childhood and the beautiful scenery surrounding it deepened one's love for such a place. He recalled the days of his childhood and said : "There was a time when we, who are condemned as Untouchables, were much advanced, much ahead in education compared with communities other than the advanced classes. This part of the country was then pulsating with the action and authority of our people."

With great earnestness he then delivered a message to his people which echoed throughout the hills, dales and villages of Maharashtra. Declaring that the demilitarisation was one of the causes of their downfall, he said : " The military offered us unique opportunities of raising our standard of life and proving our merit and intellect, courage and brilliance as army officers. In those days Untouchables could also be headmasters of military schools and compulsory primary education in the military camps was very effective and wholesome." "It is nothing less than a betrayal and a treachery," he went on, "on the part of the British to have closed the doors of the army to the Untouchables who had helped them establish the Indian Empire while their home Government was at grips with the French during the Napoleonic War."

Then in an inspiring tone he said : "No lasting progress can be achieved unless we put ourselves through a three-fold process of purification. We must improve the general tone of our demeanour, re-tone our pronunciations and revitalise our thoughts. I, therefore, ask you now to take a vow from this moment to renounce eating carrion. It is high time that we rooted out from our mind the ideas of highness and lowness among ourselves. Make an unflinching resolve not to eat the thrown-out crumbs. We will attain self-elevation only if we learn self-help, regain our self-respect, and gain self-knowledge." He further urged his people to agitate against the Government ban on their entry into the Army, Navy and Police, and impressed upon them the importance of entering Government services and of education. Turning to the question of Mahars, he tweaked their self-respect by telling them

The Historical Chawdar Tank at Mahad



This Conference is held to unfurl the banner of *Equality* and thus may be likened to the National Assembly in France convened in 1789.

— Dr. B.R. Ambedkar

that it was utterly disgraceful to sell their human rights for a few crumbs of bread, and appealed to them fervently to do away with the humiliating, enslaving traditions, to abandon their Vatan and seek forest lands for agricultural pursuits. In conclusion, in a moving tone he said: "There will be no difference between parents and animals if they will not desire to see their children in a better position than their own."

The Conference passed resolutions on important subjects. By one resolution the Conference appealed to the Caste Hindus to help the Untouchables secure their civic rights, to employ them in services, offer food to Untouchable students, and bury their dead animals themselves. Lastly, it appealed to Government to prohibit the Untouchables by special laws from eating carrion, enforce prohibition, provide them with free and compulsory primary education, give aid to the Depressed Classes hostels and make the 'Bole Resolution' a living reality by enjoining upon the local bodies, if necessary, to proclaim section 144 of Indian Criminal Procedure Code at their places, for its enforcement.

On the first day, a few caste Hindu spokesmen, local as well as outsiders, made speeches justifying the rights of the Depressed Classes and promised them help. The Subjects Committee, which met that night, decided, after taking the sense of the leaders of the upper classes who attended the Conference, that the Conference should go in a body to the Chawdar Tank and help the Depressed Classes to establish their right to take water. Next morning the Conference called upon two caste Hindu spokesmen to support the resolution regarding the duties and responsibilities of the Caste Hindus. Excluding the clause regarding inter-caste marriage, they both supported the resolution.

In pursuance of the resolution of the Mahad Municipality which in 1924 had declared to have thrown open its Tank to the Depressed Classes, it was now decided to take water from the Tank and establish the right of the Untouchables. The delegates accordingly began to march peacefully in a body to the Chawdar Tank to assert their right of taking water from the Tank. And now the momentous event, great in its magnitude and far-reaching in its consequences, was taking place. Anti-slavery, anti-caste,

anti-priest. Dr. Ambedkar, who represented the awakened spirit of the Untouchable Hindus, was marching towards the Tank from which the Muslims and Christians took water along with the so-called touchable Hindus, but from which the Untouchable Hindus who worshipped the Hindu Gods, stuck to the same Hindu religion through ages past, were, although their throats parched with thirst, not allowed to take even a drop of water.

Thus, led for the first time in their history by a great leader of their own, the Untouchables were marching to vindicate their rights. They all displayed discipline, energy and enthusiasm. The march wended its way through the streets of Mahad and terminated at the Chawdar Tank. Dr. Ambedkar himself was now standing on the verge of the Tank. Enlightened among the enlightened, the equal of any erudite man on earth, a Hindu of noble aspirations, yet unable even to take water from a public watercourse or to read in a public library in Hindustan, the land of his birth and faith, was now defying the arrogance of the tyrants, exposing the baseness of a people who boasted that their religion treated even animals with forbearance, but who treated their co-religionists worse than cats and dogs.

Dr. Ambedkar took water from the Tank and drank it. The vast multitude of men followed suit and vindicated their right. The processionists then returned peacefully to the pandal.

Two hours after this event, some evil-minded caste Hindus raised a false rumour that the Untouchables were also planning to enter the temple of Veereshwar. At this a large crowd of riffraff armed with bamboo sticks collected at street corners. All orthodox Mahad was up in arms and the whole town at once became a surging mass of rowdies. They said that their religion was in danger, and strangely enough they clamoured that their God, too, was in danger of being polluted ! Their hearts fluttered, their hands shivered, and their faces were ablaze with anger at this humiliating challenge.

Enraged at this misconstrued outrage on their religion and at the thought of defilement of the temple of Veereshwar, the caste Hindus dashed into the pandal of the Depressed Classes Conference. Many of the delegates were at that time scattered in

small groups in the city. Some were busy packing and a few were taking their meals before dispersing for their villages. The majority of the delegates had by now left the town. The rowdies pounced upon the delegates in the pandal, knocked down their food in the dust, pounded the utensils and belaboured some before they knew what had happened. There was utter confusion in the pandal. Up-till now the orthodox had lost their conscience. They now showed signs of losing their senses !

Untouchable children, women and delegates, who were strolling in the streets of Mahad, were frightened at the sudden sweep of this event. Stray individuals amongst them were beaten. They had to run into Muslim houses for shelter. The local Mamlatdar and the Police Inspector, who failed to check the rowdies, saw Dr. Ambedkar in this matter at four O'clock in the evening at the Travellers Bungalow where Dr. Ambedkar and his party were staying during the days of the Conference. "You control others, I will control my people," said Dr. Ambedkar to the officers, and he hurried to the scene with two or three of his lieutenants. In the street a batch of rowdies mobbed him, but he calmly tried to soothe them by telling that there was no desire nor any plan on their part to enter the temple. He went ahead, saw things for himself and returned to the Bungalow. Up to this moment about twenty persons from the Untouchables were seriously wounded. A doctor was sent for. He came. He jeered at them for their "ill-timed" adventure and dressed their wounds !

The rowdies then began patrolling the main streets and assaulting members of the Depressed Classes who were in stray batches on the way to their villages. But the most reprehensible part of their conduct was that they sent messages to their henchmen to punish the delegates of the Conference in their respective villages. In obedience to this mandate assaults were committed on a number of Mahar men and women either before or after they had reached their villages.

Meanwhile, this news of the brutal attack on the delegates spread like wild fire. When Dr. Ambedkar returned to the bungalow, he saw about a hundred men impatiently awaiting his

orders, their eyes literally blazing with fire and their hands itching for retaliation and revenge. Their leader, however, appealed for peace and discipline. There was hushed silence for a while. A word of provocation from Dr. Ambedkar would have turned Mahad into a pool of blood and destruction. The number of delegates still lingering in the town, in the pandal and in the Bungalow together could have easily outnumbered the hooligans and battered down their skulls. Hundreds among the Untouchables were men who had seen, fought, and moved actively in the theatres and battles of the First World War.

But discipline was wonderfully maintained at the behest of their leader. They set their faces against the aggressors. Their struggle was non-violent and constitutional. They did not dream of breaking the law. Thus a more serious riot was averted. At nightfall all the delegates left for their respective villages. Dr. Ambedkar with his lieutenant, Anantrao Chitre, left the bungalow as it was booked by a Government Officer from that evening, and took up his residence in the police station rooms. He completed his inquiry into the riot and returned to Bombay on 23rd March.

Policemen appeared on the scene after the storm was over. They arrested some of the orthodox rowdies as trespassers. Out of the nine orthodox Hindu heroes, five who were found to be most valorous, were, afterwards on June 6, 1927, sentenced by the District Magistrate to four months' rigorous imprisonment. Dr. Ambedkar was not far from truth when he remarked that had not the chief officers in the District been non-Hindus, justice would not have been administered impartially to the Untouchables. Under Peshwa rule, he said, he would have been trampled to death by an elephant. And it was the Peshwa rule under which Untouchables were not allowed to enter the city of Poona during certain hours by day-time, and when they were admitted at other times they had to walk in the city with earthen pots hanging from their necks to spit into."¹

¹: Keer, Pp. 69-71, 73-77.

Mahad Conference-Report By ‘The Bombay Chronicle’

A Conference of the Depressed Classes of the Kolaba District was held at Mahad on the 19th and 20th instants [*i.e.* of March 1927] under the Presidentship of Dr. B. R. Ambedkar, Bar-at-Law. The attendance of the Depressed Classes was over 2,500 and great enthusiasm prevailed. But the work of the Conference was severely marred by a riot, the responsibility for which rests entirely upon the upper class Hindu residents of the town of Mahad. On the first day of the Conference after the President had delivered his address, several Upper Class Hindus addressed the Conference assuring the Depressed Classes that, they were willing to help them in all ways and urging that the Depressed Classes should not cultivate hatred of the Upper Class Hindus. In pursuance of this the Subjects Committee drafted a resolution among others laying down what the Upper Class Hindus should do for the uplift of the Depressed Classes. In the Subjects Committee attention was drawn by some people to the fact that there was a great difficulty at Mahad for the Depressed Classes in obtaining water for drinking purposes and that this difficulty was felt not only by the resident Depressed Classes of Mahad but also by the Depressed Classes from villages who resorted to Mahad for private business or for the purposes of Government work. So great was the scarcity that water worth Rs. 15 had to be bought each day to satisfy the needs of the Conference. The Municipality of Mahad had sometime ago passed a resolution declaring the tanks in the city to be open to the public but as it had not placed a board there, people feared to resort to them. The Subjects Committee, therefore, decided after taking the sense of the upper classes who attended the Conference in this matter, that the Conference should go in body to the Chawdar Tank and help the Depressed Classes in establishing their right to take water.

A False Rumour

When, therefore, the Conference met on the morning of the 20th, and the first resolution which declared what the Upper Classes should do for the Depressed Classes was put before the Conference by members of Depressed Classes the President requested Messrs Purushottam Prabhakar Joshi and Govind

Narayan Dhariya [as representatives of the upper classes] to speak on the resolution. With the exception of one clause in the resolution dealing with inter-marriages they both accepted the resolution. Having thus assured itself that there was general support behind it the Conference when the Session was over, went in body to the said tank. The procession was a most peaceful one and everything passed off quietly. But after about two hours some evil minded leaders of the town raised a false rumour that the Depressed Classes were planning to enter the temple of Vireshwar, whereupon a large crowd of riff raffs, all armed with bamboo sticks were collected. The crowd soon became aggressive and the whole town at once became a surging mass of rowdies who seemed to be out for the blood of the Depressed Classes.

Twenty Wounded

The Depressed Classes were busy in taking their meal before dispersing to their villages. When a large part of them had left the town the rowdies entered the kitchen where the Depressed Classes were taking their food. There would have been a regular battle between the two forces; but the Depressed Classes were held back by their leaders and thus a far more serious riot was averted. The rowdies finding no occasion for provocation began patrolling the main street and assaulting the members of the Depressed Classes who in stray batches were passing along on their way to their villages and committed trespass in the houses of several Depressed Class people and gravely assaulted them. In all, the number of wounded, among the Depressed Classes is supposed to be as large as 20. In this the attitude of the Depressed Classes was commendable whereas the attitude of many of the Upper Classes was unworthy. The Depressed Classes assembled vastly out-numbered the Upper Classes. But as the object of their leaders was to do everything in a non-violent and absolutely constitutional manner they set their faces against any aggression on the part of the Depressed Classes. It speaks a great deal in favour of the Depressed Classes that although the provocation given to them was immense they kept their self-control. The Mahad Conference has shown that the Upper Classes are not willing to allow the Depressed Classes to enjoy such elementary civic rights as taking water from public water-courses.

The most reprehensible part of the conduct of the Upper Caste Hindus in Mahad and Kolaba District was that messages were sent immediately to the different villages asking the upper class people there to punish the delegates of the Conference as soon as they returned to their respective villages. In obedience to this mandate assaults were committed on a number of Mahars returning from the Conference either before or after they reached their villages where the Depressed Classes have the disadvantage of being overwhelmingly out-numbered by the Upper Caste Hindus. The leaders of the Depressed Classes have appealed to the authorities for protection and the District Officials including the D. S. P. are making enquiries on the spot. It must, however, be stated that if the Resident Magistrate had not allowed two precious hours to pass without doing anything the riot would have probably been averted."

"Thus ended the first big, open Conference of the Depressed Classes in Maharashtra and their first public attempt to assert their civic rights. This Conference was a great and momentous event, the opening of an epoch in the history of Hindustan. It was an event which changed both Dr. Ambedkar's personal life and the current of social and national reorganization.

Under the leadership of their saviour, the down-trodden, the dehumanised and dumb millions opened a new chapter in the annals of India. They not only voiced their age-long grievances but also took on themselves energetically to mitigate them. They now summoned up courage and showed the right spirit in standing boldly and shaking off the dust from their feet and faces.

The struggle inaugurated by their educated leaders gripped their minds and enkindled the flame of self-respect and self-elevation. They now smarted under the insults and humiliations inflicted upon them at Mahad. They applied their minds to self-improvement and self-culture as never before. As a result of this Conference, the Untouchables gave up eating carrion, skinning carcasses, and stopped begging for crumbs.

And what happened to the Chawdar Tank that was declared to have been desecrated by the touch of untouchable Hindus ? The orthodox and reactionary Hindus called a meeting at the temple of

Veereshwar to consider the question of the purification of the tank. They had a remedy for purifying any damned and polluted earthly thing. To them a mixture of cow-dung, cow-urine, curd and water was the potent remedy for all manner of pollution. Accordingly water in one hundred and eight earthen pots was taken out from the tank. These pots full of curd, cow-dung, milk and cow-urine were dipped in the tank in the midst of air-rending *Mantras* uttered by Brahmin priests, the elect. It was then declared that water was purified for the use of the caste Hindus. Of course, Mohammadans and Christians had nothing to do with the act or process of purification. For, in their eyes human touch did not pollute water. They used the water of the tank as before without any interruption.*

The news of the so-called purification of the Chawdar Tank lacerated the hearts of the Depressed Classes, and so deep was the wound on Dr. Ambedkar's heart that he grew indignant and decided to launch a *satyagraha* struggle for the vindication of his people's rights. Some feared that this 'impatient' remedy was worse than the disease. Dr. Ambedkar, in a mood of righteous indignation, replied that mere spread of education and exposition of the scriptures would not be able to root out that age-long disease. The disease, he said, was deep-rooted and merely dressing it with bandages of knowledge or ingenuous schemes would not cure it. Deadly diseases required drastic remedies.

Accordingly, it was announced on June 26, 1927, in the *Bahishkrit Bharat* that those members of the Depressed Classes who wanted to wash out the stigma of pollution attached to their whole class by the Mahad Hindus by their act of purification of the Tank, and who wanted to denounce the act of assaults committed on their representatives for having taken water from the Chawdar Tank, should enlist themselves at the office of the

*See Appendices-I, II and III.

Bahishkrit Hitakarini Sabha in Bombay. It was declared that the *satyagraha* struggle was to be launched under the auspices of the said institution.”¹

Police Report of Agitational Programme of Dr. Ambedkar :

I

“The Depressed Classes at Mahad : Protest of Bombay Untouchables against the atrocities inflicted on.....

Bombay City S. B., July 4, 1927.—Under the auspices of the *Bahishkrit Hitakarani Sabha*, a public meeting of the Depressed Classes was held at the Cowasji Jehangir Hall on the evening of July 3 to protest against the hardships inflicted on the Untouchables of Mahad in Kolaba District. Dr. Bhimrao Ramji Ambedkar, Bar-at-Law, presided over an audience of about 1,000 people.

Speeches were made by the president, Ragoba Narayan Vanmali, Mahadeo Abaji Kamli, Sitaram Namdeo Shivtarkar, Nirmal Limbaji Gangavane, Gitanand Brahmachari and Samant Nanji Marwari, condemning the treatment meted out to their brethren in Mahad by the Higher Classes. They decided, in order to carry on a peaceful agitation against this treatment, to enlist volunteers and collect funds. They would first have a conference at Mahad after the *Diwali* holidays and then it would be decided to start *Satyagraha* in order to enforce their rights as citizens. A resolution to this effect was passed.

Another resolution was passed requesting the Government to establish a separate department to deal with the grievances of the Depressed Classes as was done in Madras.

An appeal for funds was made by the speakers and about Rs. 350 were collected. A dozen people consented to become volunteers for the *Satyagraha* movement when it is started.”²

¹ : Keer. Pp. 77, 79, 89-90.

² : Bombay Secret Abstract, dated 16th July 1927.

II

“Satyagraha of Untouchables at Mahad

“At a conference of Mahars, Mangs, Bhangis, etc., held at Mahad in Kolaba District in March last, the delegates were prohibited by orthodox people from using the water of the village tank and the prohibition is reported to have resulted in a criminal case against those who took the law into their own hands. Since this incident there has been some excitement among the Untouchables of Bombay in which Dr. Bhimrao Ramji Ambedkar, Bar-at-Law, has been taking the lead.

In connection with this, a meeting of about a thousand Untouchables was held at Sir Cowasji Jehangir Hall under the presidency of Dr. B. R. Ambedkar on the afternoon of October 30. The president explained the facts which led to the incident at Mahad and which compelled the Untouchables to stand up for the protection of their rights. A resolution was passed by which it was decided to hold a conference at Mahad on December 25 in order to establish their right of using water at the public tank and in the event of any prohibition to launch a *Satyagraha* movement. About Rs. 570 were collected at the meeting. There was also a suggestion from the audience to launch a similar campaign in connection with a temple at Amravati in the middle of November.” ¹

¹ : Source Material Vol. I, P. 13.

III

No. H/3447

dated 22nd December 1927.

“To,
The D. S. P.,
Kolaba, Alibag.

Sir,

Reference.—Para 868 of the B. S. A. current.

In this connection a meeting of the Depressed Classes was held on the night of 21st instant when Dr. B. R. Ambedkar, Bar-at-Law presided over an audience of about 250 people. The President, Sambhaji Santoji Waghmare, Nimandarkar, Kholwadekar and Junnarkar made speeches advising the people to join the *Satyagraha* Movement which is coming off on the 25th instant at Mahad in connection with the prohibition against the Untouchables' use of the water tank.

I have & c.

(Sd.)

D. C. P., S. B.

22nd December 1927.”¹

“Meantime, the Mahad Municipality revoked on August 4, 1927, its resolution of 1924 under which it had declared the Chawdar Tank open to the Depressed Classes. Dr. Ambedkar accepted the challenge and on September 11, at a public meeting in Damodar Hall, Bombay, a committee was formed to devise ways and means to make the struggle for re-establishing the right of the Depressed Classes to the Mahad Tank a success, and to fix the dates and details. Four days afterwards the committee met at Dr. Ambedkar's office and announced December 25 and 26, 1927, as the dates for offering the *satyagraha*.

The day of the proposed Conference and the *satyagraha* at Mahad was drawing near. Mahad began to stir again. The opponents of the struggle held a meeting on November 27, 1927, at the Veereshwar Temple to formulate a plan to flout the attempts of Dr. Ambedkar and the Depressed Classes to take water from

¹: Source Material, Vol. I, Pp. 13-14.

the Chawdar Tank. But owing to the presence of the sympathisers of the Depressed Classes the meeting ended in pandemonium. Some Poona Hindu leaders tried to dissuade the caste Hindus from opposing the struggle, but to no purpose.

The District Magistrate visited Mahad on December 7, and the leaders of both the sides discussed the question with him. He asked the caste Hindus to have recourse to law and refused to issue an order prohibiting the Untouchables from taking water from the Chawdar Tank. The leaders of the orthodox section, therefore, filed a suit against Dr. Ambedkar, Shिवतर्कर and Krishnaji S. Kadam and Ganya Malu Chambhar of Mahad—leaders of the Depressed Classes—on December 12, 1927, in the Civil Court at Mahad and asked for the issue of a temporary injunction. The Court issued a temporary injunction on December 14, against the defendants pending the decision of the suit. Accordingly notices were served on Dr. Ambedkar, Shिवतर्कर and Krishnaji S. Kadam, prohibiting them and all the Depressed Classes or on their behalf these three leaders from going to the Chawdar Tank or from taking water from the Tank until further orders. The orthodox and reactionary forces shrewdly enough forced on Dr. Ambedkar a fight on two fronts. On the one side was standing an indifferent foreign Government and on the other was the caste Hindu section headed by the Orthodox Brahmins.”¹

Text of Temporary Injunction in Chawdar Tank Case

ORDER

“This is an application asking the Court to grant to the applicants a temporary injunction restraining the opponents from going to the Chawdar Tank or taking water therefrom. The applicants have, on 12th 1927, filed in this Court, Regular Suit No. 405 of 1927, for obtaining a Declaration that the said Chawdar Tank is of the nature of private property of the touchable classes only and that the Untouchable Classes have no right to go to that tank nor take water therefrom and also for obtaining a perpetual injunction restraining the Defendants from doing any of these acts.

¹: Keer, Pp. 90 and 97-98.

The applicants, by this application pray that pending the disposal the suit, a temporary injunction may be issued against the Defendants. The application states, among other things, that hundreds of years since the tank has been in the exclusive enjoyment of the touchable classes only, that on 19th March 1927. a number of persons of the Untouchable classes led by Defendant, all of a sudden entered the tank, washed their hands and faces with the water and thus contaminated it, that in consequence of this contamination the touchable classes could not take water from the tank for over 24/25 hours *i.e.* until the water was purified, at a great cost, by performing ceremonies laid down by the Hindu *Shastras*, that great hardship was thus caused to the touchable classes, that the Untouchable classes have issued a manifesto proclaiming their intention of again entering the Tank and taking water therefrom, that if they are allowed to do that, the touchable classes will be debarred by the *Shastras*, from using the water of the Tank, that serious hardship would thus result to them and that if a temporary injunction as asked for is not granted and the Defendants allowed to contaminate the water of plaintiffs even if they finally succeed in the suit would not reap the benefit of the decree.

The application is supported by the affidavits of several persons besides Plaintiff No. 1. Plaintiffs have also produced with exhibit 4, a notice issued by the Municipality against one Divakar Joshi (one of the persons making an affidavit) calling upon him to repair his stone Dhakkas (dams) which adjoined the side of the Chawdar Tank, and also a deed of partition of Dharap family alleged to be more than a hundred years old. This deed contains a reference to the Pal of the tank as being one of the properties partitioned. Both these documents raise a 'Prima facie' presumption of the tank being private property.

The question now is, whether it would be more just to grant a temporary injunction to refuse it. The law regarding temporary injunctions is contained in order 39 of the Civil Procedure Code. Rule of this order is as follows:—Where in any suit it is proved by affidavit or otherwise (a) that any property in dispute in suit, is in danger of being wasted, damaged or alienated by any party to the suit, or wrongfully said in execution of a decree or (b) that the

Defendant threatens, or intends, to remove or dispose of his property with a view to defraud his creditors, the Court may by order grant a temporary injunction. Clause (b) has obviously, no application to the present case. The present case appears to come within clause (a).

Here is a Tank which has, for years since, been in the exclusive enjoyment of the touchable classes. The manifesto issued over the signatures of the Defendant¹ and other also shows that the Untouchable classes were upto now under the impression that they had no right of access to the tank. It thus appears that the tank has been until now in the exclusive enjoyment of the touchable classes. The question now is, whether the ends of justice would be better met by disturbing this old state of things or by allowing it to continue until the rights of the parties have been finally decided.

The principles governing temporary injunctions have been summarised under part 2 of Mulla's Commentary on the Civil Procedure Code, 8th edition page 892. One of these is that the Court must see that there is a bonafide contention between the parties. About this there appears to me to be very little doubt. The second principle is, "on which side, in the event of success, will lie the balance of inconvenience if the injunction does not issue." To me it appears that the balance of inconvenience will lie, and lie very heavily, on the side of the Plaintiffs if an injunction is not issued. The point is so clear that I do not think I need labour it at all.

If the Defendants are allowed to enter the tank and thus (according to the religious notions of the Plaintiffs) contaminate the water and render it unfit for further use, a large section of the population will be put to hardship and inconvenience which will be so severe that only those living in places where there are no copious supply of water, can realise it. On the other hand, the Defendants will not be put to any inconvenience what so ever, if they are asked to forbear from exercising what they consider to be their right, until the first decision to the suit. This course appears to me not only just and equitable, but the only right course under the circumstances in order to maintain the *status quo*, which, it is imperative to do. Vide the remark appearing at I. L. R. 46, Calcutta, page 1030, it is also contended

by the applicants (Plaintiffs) that if a temporary injunction as asked for is not granted and the water of the tank is allowed to be contaminated, irreparable injury would result to the Plaintiffs. Taking into consideration, how sensitive the touchables classes generally are on this point, both on account of their religious susceptibilities, as well as the wide gulf which has existed between the two communities from time immemorial, I am inclined to attach very great weight to this condition. I have no doubt that the spread of education will, in course of time, materially alter these conditions and bring the two communities in a clear and friendly contact with each other and that Untouchability will be a thing of the past. But as things at present stand, I am bound to attach great weight to the sentiment of the applicants who feel that, the injury that will sustain if the water is allowed to be contaminated, will be that it would not admit of being adequately compensated by damages.

Taking all these circumstances into consideration, I think I would be failing in duty if I were not to refuse the injunction prayed for. It is a very painful duty that I am called upon to perform, but the call of duty leaves no room for choice. I therefore order that a temporary injunction as asked for, with notice be issued.

14-12-27.

(Sd.)—G. V. Vaidya ” ¹

On the side of Depressed Classes “Elaborate preparations for holding the Conference were made. As no Hindu landlord allowed the use of his land for the pandal, a site for the Conference was secured with great difficulty from a Muslim. As the local merchants refused to have any dealings with the men connected with the Conference, the Reception Committee had to purchase corn and other materials from out-side, sufficient to last for ten days. Anantrao Chitre managed the work very efficiently. Subhedar Ghatge was entrusted with the food arrangement and maintenance of order and discipline. All the Chief Government Executives of the District gathered at Mahad on December 19. Police were posted on all sides of the Chawdar Tank. Delegates and spectators began to pour in

¹: Khairmode, Vol. 3, Pp. 234—237.

Mahad from December 21. The District Magistrate visited their camp every day to dissuade the delegates from the proposed *Satyagraha*.

With a batch of two hundred delegates and leaders, Dr. Ambedkar left Bombay on the morning of December 24. The next day they got down at noon at Dasgaon, five miles off Mahad. There, with anxious faces, an army of 3,000 *satyagrahis* awaited their leader. When they saw their leader, they greeted him with tumultuous applause.

After the reception, the Police Superintendent handed over a letter from the District Magistrate to Dr. Ambedkar, requesting him to see the District Magistrate at his Mahad office without loss of time. Dr. Ambedkar, with one of his lieutenants, Sahasrabudhe, hurried to his office. The District Magistrate in a swift and soft tone advised, argued and pressed for the postponement of the struggle; but the leader did not see eye to eye with the Chief Executive of the District. It was however, agreed that he should be given an opportunity to address the Conference. In the meanwhile, the procession of the delegates had left Dasgaon and accompanied by police officers, it reached Mahad at half past two in the afternoon, singing songs which were punctuated by sky-rending slogans. The vast crowd entered the pandal amidst shouts of 'Shivaji Maharaj ki Jai'. In the pandal proverbs hanging from pillars displayed inspiring immortal truths. In front of the gate there was a pit.

After his interview with the District Magistrate, Dr. Ambedkar hastened to the pandal and had his lunch in the company of his common followers. He refused to have any special food.

The Conference commenced its proceedings at four-thirty in the evening. Messages from several prominent persons wishing the *satyagraha* success were read out. Then the leader rose to address the Conference amidst deafening cheers, shouts and slogans raised by a mammoth gathering of fifteen thousand people. A majority of them had no clothes to their backs. Their old turbans were torn, their chins were unshaven; but their sunburnt faces shone with a peculiar enthusiasm and hope. The vast audience calmed down, and Dr. Ambedkar began his speech in a low, dignified but forceful voice.”¹

¹ : Keer, Pp. 98-99.

“Dr. Ambedkar’s Plea for Abolition of Social Disabilities

Following is a summary of the Presidential address of Dr. B. R. Ambedkar, M.A., Ph.D., D.Sc., Bar-at-Law, M.L.C.. delivered at the *Satyagraha* Conference at Mahad (District Kolaba) held on the 25th December 1927.

Welcoming the *Satyagrahis* on behalf of the *Satyagraha* Committee, of which he is the president, Dr. Ambedkar reminded them of the unfortunate ending of the Conference held at the same place in March last when a number of their fellow delegates had been ill-treated and assaulted by the so-called Caste-Hindus for committing the offence of drawing the water from a Public Tank named “*Chawdar*”. Nobody prevented the members of the Depressed Classes from using the water of the tank, but some ringleaders took it into their heads to punish the delegates of the Conference after the event and incited the mob to commit assaults on them. Some of the offenders were prosecuted, convicted and sentenced to four months’ imprisonment.

Continuing Dr. Ambedkar said: “Had the caste-Hindus admitted the right of the Depressed Classes to use the tank, this *Satyagraha* would not have been necessary. Unfortunately, however, the Caste-Hindus at this place are obstinate in their attitude and refuse to admit the right of the Depressed Classes to use the Public Tank which is open to persons of all castes including Mahomedans and other non-Hindus. The irony of the situation is that although the cattle owned by the so-called Untouchables are allowed to go, their owners, who are as good human beings as the other people, are prohibited from going to the tank.

The Hindus are known for their humanitarian sentiments and their regard for animal life is proverbial. Some section do not kill even poisonous reptiles. The Hindus maintain a large army of *Sadhus* and able-bodied beggars, and believe that they acquire merit by feeding and clothing them and giving them cash for indulging in luxuries. The Hindu philosophy teaches the doctrine of an all-pervading soul, and the *Geeta* exhorts them to make no distinction between a Brahmin and a Chandal.

The question therefore arises why the Hindus having such traditions of charity and humanity and possessing such grand philosophy should behave so heartlessly towards their fellow human beings and in such unreasonable ways. In the reply to this question lies the real significance of this Conference. The Hindu Community is set in the steel-frame of the caste system, in which one caste is lower than another in social gradation involving particular privileges, rights, inhibitions and disabilities with regard to each caste. This system has created vested interests which depend upon maintaining the inequalities resulting from the system.

The so-called Caste-Hindus are bitterly opposed to the *Panchamas* (person belonging to the fifth class, the Depressed Class) using a public tank not because they really believe that the water will be thereby spoiled or will evaporate if Mahars and others use the tank, but because they are afraid of losing their superiority of caste and of equality being established between the former and the latter. We are resorting to this *Satyagraha* not because we believe that the water of this particular tank has any exceptional qualities, but to establish our natural rights as citizens and human beings.

Struggle for Equality

This Conference is held to unfurl the banner of *Equality* and thus may be likened to the National Assembly in France convened in 1789. Our Conference aims at the same achievement in social, religious, civic and economic matters. We are avowedly out to smash the steel-frame of the caste-system.

Low Aim Is A Crime

Some men may say that this should be satisfied with the abolition of Untouchability only, leaving the caste-system alone. The aim of abolishing Untouchability alone without trying to abolish the inequalities inherent in the caste-system is a very low aim. Let us remember “not failure but low aim is a crime”. Let us probe the evil to its very roots and be not satisfied with mere palliatives to assuage our pain. If the disease is not rightly diagnosed the remedy will be useless and the cure may be postponed.

Not only Untouchability and restrictions regarding intercaste-dining must be removed, but inter-marriages among the Hindus of various castes must be made common. This alone will lead to the establishment of true-equality. Even supposing that the stigma of Untouchability is wiped out, what will be the status of the present Untouchables. At the most they will be treated as '*Shudras*'. And what are the rights of the '*Shudras*'? The '*Smrities*' treat them as mere zealots and the '*Smrities*' are the guides of the caste Hindus in the matter of gradations in the caste system. Are you willing to be treated as '*Shudras*'? Are you willing to accept the position of zealots? Are you prepared to leave your fate in the hands of the upper class?

Self-Help

That the caste-system must be abolished if the Hindu Society is to be reconstructed on the basis of equality, goes without saying. Untouchability has its roots in the caste-system. They cannot expect the *Brahmins* to rise in revolt against the caste-system, because that system confers on them certain special privileges and they will not willingly give up their privileged position and the present supremacy in the hierarchy of Hinduism as based on *Smrities*. It would be too much to expect them to resign all their privileges as the '*Samurais*' of Japan did. Also we cannot rely upon the Non-Brahmins and ask them to fight our battle. Many of them are still enamoured of the caste-system and are tools in the hands of the Brahmins, and most of these others who resent the supremacy of the Brahmins are more interested in levelling down the Brahmins than in levelling up the suppressed classes. They too want a class of people on whom they can look down and have the satisfaction of not being quite the under-dogs of the Society. This means that we ourselves must fight our battles, relying on ourselves. We are the most downtrodden classes in the country. Services in the army, police and public offices are practically closed to us. We are debarred from following a number of trades and professions and we have been reduced to utter economic helplessness. All this is due to the Untouchability and the lowest social position to which we have been relegated. Should we fail to assert our rights as human beings and citizens we shall have to remain fallen forever.

A Real Service to the Nation

Ours is a movement which aims at not only removing our own disabilities, but also at bringing about a social revolution, a revolution that will remove all man-made barriers of caste by providing equal opportunities to all to rise to the highest position and making no distinction between man and man so far as civic rights are concerned. If we achieve success in our movement to unite all the Hindus in a single caste we shall have rendered the greatest service to the Indian nation in general and to the Hindu community in particular. The present caste-system with its invidious distinction and unjust dispensations is one of the greatest sources of our communal and National weakness. Our movement stands for strength and solidarity; for equality, liberty and fraternity. We wish to carry on our movement as peaceful as we can. However, our determination to remain non-violent will to a large extent depend upon the attitude of our opponents. We are not the aggressors and our oppressors for generations should accuse us of aggression a strange thing. We refuse to be controlled and bound by the ‘*Shastras*’ and ‘*Smrities*’ composed in the dark ages and base our claims on justice and humanity.”¹

Thereafter “Mr. G. N. Sahastrabuddhe, a Brahmin, read extracts from *Manusmriti* those portions which related to the treatement to be meted out to the *Sudras*.

Burn Manusmriti

The first resolution passed ran as follows :—

Taking into consideration, the remarks in the *Manusmriti* and such other books which are most vulgar and which most flagrantly violate the human rights, this meeting condemns them emphatically and as an expression of that condemnation resolves to burn them and makes the following declaration of rights to form the basis of reconstruction of Hindu Society.

The declaration stated that all Hindus should be considered as one of *varna* and should be recognised and called as such and law should be enacted prohibiting the use of class words as Brahmin, Kshatriya etc.

¹ : The Indian National Herald, dated 28th December 1927.

A place at Mahad where Manusmriti was burnt



The bonfire of *Manusmriti* was quite intentional. We made a bonfire of it because we view it as a symbol of injustice under which we have been crushed across centuries.

—Dr. B. R. Ambedkar

Another resolution urged that a competitive examination be held for the admission of persons to the Hindu priesthood and that licenses be issued only to the successful candidates.

The speeches were mainly denunciations of Brahmins and Brahminism. Mr. Mandlik asked permission to address the meeting but the President refused permission.

Mr. D. V. Pradhan, a touchable also supported the burning of the *Smriti*.

The ceremony of burning the *Smriti* * then took place and the conference concluded for the day.”¹

“The bonfire of the *Manusmriti* by Dr. Ambedkar and his followers on 25th December 1927, anticipated this age. While speaking of bonfire of *Manusmriti*; Dr. Ambedkar in an interview with T. V. Parvate in 1938, said “The bonfire of *Manusmriti* was quite intentional. We made a bonfire of it because we view it as a symbol of injustice under which we have been crushed across centuries. Because of its teaching, we have been ground down under despicable poverty and so we made the clash, staked all, took our lives in our hands and performed the deed.”²

“The Collector, the Superintendent of Police and 100 armed police were present. In the night *harikirtan* composed by an “Untouchable” and hitting at Brahmins was enthusiastically sung.

Collector's Letter

Second day's proceedings of the Conference began on the morning of the 26th. Dr. Ambedkar read a letter from the Collector which said that it was the desire of Government that the “Untouchables” should obey the injunction of the Civil Court. Government were always sympathetic to the cause of the Untouchables and were willing to advance their cause in every lawful way and help them to establish their right of access to places of public utility. But, in view of the temporary injunction granted, Government were helpless and desired that the Untouchables should not embark on *Satyagraha* at this moment.

* Manusmriti.

¹: The Indian National Herald, dated 31st December 1927.

²: Parvate, Pp. 58-59.

The whole Conference converted itself into Subjects Committee when Dr. Ambedkar reviewed the whole situation and advised the delegates to embark on *Satyagraha* against the Civil Court's injunction provided the delegates were prepared for the consequences of their action and to undergo imprisonment and other sufferings in a cheerful and voluntary manner.

The sense of the Conference was strongly in favour of the advice to embark on *Satyagraha* immediately and the President had difficulty in getting a hearing for any speaker who was for postponement of *Satyagraha*.

More Than 3,000 Volunteers Sign Pledge

Dr. Ambedkar then suggested that to gauge correctly the intensity of feeling, those delegates who were in favour of *Satyagraha* should be asked to give their consent in writing for practising *Satyagraha*. Accordingly, the registration of delegates willing to practice *Satyagraha* was commenced and within one hour, 3,884 delegates had registered their names as ready to offer *Satyagraha*.

The Collector was informed that the Conference was in favour of *Satyagraha* on hearing which the Collector expressed a desire to address the Conference personally.

Collector Addresses Conference

The *Satyagraha* Conference assembled at 5-30 p.m. when Mr. Hood, the Collector, accompanied by the Superintendent of Police attended the Conference. The Collector addressed the meeting in Marathi. Mr. Hood said: "I know why you have all gathered in this Conference. I know also that if I advised you to defer *Satyagraha* you would all very much regret it as you have been preparing for this for the last three months. You all, however, know that the Bombay Legislative Council has passed a resolution to the effect that the "Depressed" Classes be admitted to the public tanks and schools and that the Bombay Government have instructed accordingly and have also advised the Local Board to do the same. The Government are quite willing, Mr. Hood said to admit them to the tank but 10 days ago there has taken place a new development. The touchables have filed a suit against the "Untouchables" contending that the tank was a private one and a temporary injunction has been granted in their favour.

“I am speaking to you as the Collector of the district and I wish to assure you on behalf of the Government that the Government are on the side of “Untouchables” and to tell you that the Government and I, are your friends. I regret very much to see that some of you intend to offer *Satyagraha* by disobeying the order of the court. This action, I consider, will be very harmful, I advise you to prepare your case and fight it constitutionally and legally. I sincerely hope that the decision may be in your favour.”

Mr. Jawalkar who had come in the morning said he had come to the Conference to deliver the message of the Non-Brahmin party namely that the “Untouchables” should obey the injunction of the court and offer *Satyagraha* after the decision of the court.

Subhedar Ghatge and other speakers said they had come there to offer *Satyagraha* against the touchables and not against the Government.”¹

“The Collector was then led by Dr. Ambedkar out of the pandal. Till seven in the evening, speaker after speaker supported the launching of *Satyagraha*, and those who uttered discordant notes were booed and heckled. Dr. Ambedkar again adjourned the discussion till the next morning.

At night the chief men gathered together, held discussions and decided to postpone the struggle in view of the case pending before the court, but it was also decided to march in procession winding its course around the tank. Accordingly, this decision was notified to the District Magistrate.

On the morning of December 27, Dr. Ambedkar rose to withdraw the first resolution on the struggle and to move another resolution amidst breathless silence, asking the Conference to postpone the struggle. He was on the horns of a dilemma. It was now the psychological moment to curb the enthusiasm of the delegates and pin it down. He tactfully began to deal with the critical situation. He said in an appealing tone to the delegates, who had by now grown restless and frantic: “You are a brave people. The people who are prepared to lay down their lives for the vindication of their just rights are sure to prosper. But the

¹: The Indian National Herald, dated 31st December 1927.

moment now has come when you should think twice before you strike the blow. You know well that the *Satyagraha* movement started by Gandhi,” he proceeded, “was backed up by the people as it was against a foreign domination. Our struggle is against the mass of Caste Hindus and naturally we have little support from outside. Taking these facts into consideration. I feel, we should not antagonise the Government and put it on the side of our opposition. It is not beneficial either.”

“Do not suppose,” asserted the leader, “that if you postpone the issue humiliation will be its concomitant. As regards my position, I assure you I am prepared to face the three-fold danger-breaking of an order, being charged with a breach of rules governing the conduct of a lawyer and the possibility of imprisonment. My brothers,” he softly concluded, “you rest assured that a postponement of this struggle will not mean that we have given up the struggle. The fight will go on till we establish our claims to this Tank.”¹

Satyagraha postponed

As a result of deliberations, the following resolution was adopted :—

“Taking into consideration the fact that the touchable classes of Mahad by obtaining a temporary injunction from the Civil Court at the last hour against the “Depressed” Classes bring them into conflict with the Government which had yesterday morning resolved to offer *Satyagraha* have after listening to the Collector and after taking into consideration the assurance given by him in the open Conference that the Government have every sympathy for the Depressed Classes in the struggle for equal rights resolved that *Satyagraha* be postponed till the decision of the Civil Court.”²

¹ : Keer, Pp. 102-103.

² : The Indian National Herald, dated 31st December 1927.

“The Conference agreed. The delegates immediately formed themselves into a procession and started volunteers with slogans, boards and placards were pacing slowly. The procession reached the Tank and took its round. And what were the Caste Hindus doing? The streets were deserted. They had shut their houses and the Orthodox Hindus were wriggling with excruciating venom in their hearts. After one hour and a half, the procession returned to the pandal about noon without any mishap.” ¹

“DR. AMBEDKAR AT RAIGARH

“Untouchables” Bathe in Ganga Sagar Tank

A correspondent writing under date January 5 in “*Kolaba-Samachar* of Pen, says” After the conclusion of the *Satyagraha* Conference Dr. Ambedkar proceeded to Raigarh, the famous fortress and the capital of Shivaji, in company of about a hundred Untouchables. He encamped in the Raigarh *Dharmashala* and the watchmen of that place, one Yesu Shedge, a Mahratta by caste and maintained by the *Dharmashala* Committee, looked after the requirements of the visitors. He asked them not to touch the waters of the Gangasagar Tank. He suggested that if they wanted to take bath, they could do so in another tank nearby, specially built for the Untouchables. Dr. Ambedkar and others, however, “defiled” the waters of the “Gangasagar.”

The correspondent adds that this has led to great excitement among the Mahrattas of the Raigarh valley, most of whom are *sepoys* in the army, the valley being a good recruiting field.” ²

Comments

“Commenting editorially on this episode, “*Kolaba-Samachar*” in its issue for January 7 refers to the methods followed by Dr. Ambedkar pointing to a suggestion made in its columns that Government should see its way to prosecute Dr. Ambedkar and his followers. The paper sets its face against the suggestions on the ground that Indians must do as much as possible to settle their own quarrels and should never invite Government of their own accord, to interfere.” ³

¹ : Keer P. 104.

² : The Bombay Chronicle dated 12th January 1928.

³ : Kolaba-Samachar, dated 7th January 1928.

“Maharashtra’s Mind

For some weeks past Dr. Ambedkar and the *Satyagraha* Conference of Untouchables at Mahad have been the subject of much adverse comment not only in the Orthodox Hindu Press but also in journals that are definitely committed to the removal of Untouchability. Most of the Marathi journals came under the second variety and may generally speaking be divided into three classes, *viz*, N. C. O., Responsivist and Non-Brahman. The principal points that these journals make in their attacks against Dr. Ambedkar and his friends are (1) his alleged excess of burning the *Manusmriti*, and (2) his alleged acquiescence in the Kolaba Collector’s order to stop *Satyagraha*. In the whole controversy there are many other charges and countercharges made against either party, but they are not very material. Dr. Ambedkar has now published in “*Bahishkrit-Bharat*” quite a lengthy account of the Conference and met the charges made against him. He does not fight shy of the first accusation against him and defends it by saying that in as much *Manusmriti* ordains and sanctifies the age-long oppression and exploitation of the Untouchable Hindus by the so-called High-Class Hindus, this main source of present day Hindu law deserves to be burnt. While meeting the second charge, Dr. Ambedkar takes the wind out of the sails of his opponents when he states that no gagging order was ever passed against and therefore there never arose any question of disobeying it. All that he did, he was persuaded to postpone the *Satyagraha* to a later day by the Collector of Kolaba and he did entirely in the interests of the *Satyagrahis* and the Untouchables. He leaves perfect liberty to his critics to say anything against him on this distinct ground.”¹

“ The case, Hindu versus Untouchables regarding ownership of Chawdar Tank was fixed for hearing on 12th January 1928 in the Court of Second Class Sub-Judge; Mahad. Dr. B. R. Ambedkar started preparation for pleading the case. He wrote a letter on 24th January 1928 to Advocate Markand Dattatraya Vaidya to

¹: The Bombay Chronicle, dated 27th February 1928.

obtain certain documents and also to attend the Court. He specifically asked Mr. Vaidya to obtain a copy of an affidavit filed by a Brahmin priest namely Mr. Pandurang Bhaskar Shashtri Palaye on 30th January 1928 in favour of Dr. B. R. Ambedkar and other quoting the various quotations from the scriptures. The letter is as under :

BHIMRAO R. AMBEDKAR
M. A., Ph. D., D. Sc,
Bar-at-law
Member, Legislative Council.
Bombay.

Damodar Hall, Parel
Bombay, 12
24-1-28

My dear Vaidya,

I am (in) receipt of your letter of the 12th. I notice that the Court is anxious to have the injunction order argued earlier i.e., before the 5th Feb. Well, I propose to come on Thursday the 2nd of Feb. to argue the matter.

I am sending herewith forms of affidavits which you will please prepare in due form and have them declared in time. You may find some difficulty in getting a Mahomedan butcher (I must have a butcher) to make the affidavit. But if you will see the police Sub-Inspector of Mahad and request him on my behalf, I am sure he will oblige you a copy of an affidavit by a Brahmin priest supporting us which will be declared here.

Give sufficient notice to the Defts, in time of the date and also give them copies of affidavits, so that they would have no cause for complaint. Give my regards to Surba. Let me have your reply by Monday the 30th of January at the latest, informing me if everything is ready for the 2nd of Feb.

With my very best regards I am,

Yours sincereley
Sd/-B. R. Ambedkar”¹

¹ : Khairmode, Vol. 3, Pp. 239, 244, 245.

Following is the article by P. R. Lele about Mahad Satyagraha—

“Untouchables will renew Satyagraha

The Untouchable's *Satyagraha* of the famous *Chawdar Tank* of Mahad had to suspend their *Satyagraha* in view of a temporary injunction granted by the Sub-Judge of Mahad restraining Dr. B. R. Ambedkar and others from taking water out of that tank. At that time i.e. December last they had to rest satisfied with holding a Conference and giving emphatic expression in several ways to their resentment against the tyranny of Caste-Hindus.

The delegates and visitors of that Conference organised a huge procession and impressed their strength on the minds of the tyrants. Thereafter Dr. Ambedkar with a select party went round the Mahad Taluka and even to the Raigarh Fort. About his visit to Raigarh, I refrain from saying anything inasmuch as Dr. Ambedkar is contemplating or probably has started legal proceedings against certain papers which are alleged to have given misleading reports.

The tour of this party created a sensation in Mahad Taluka, as a repercussion of which even Mussalmans of a certain villages in the vicinity certain papers who are alleged to have given misleading reports.

Interim Injunction Dissolved

Now the Sub-Judge of Mahad has dissolved the interim injunction. I have not got a copy of the judgement on the interlocutory notice but have definite information that it is a considered and pretty long one.

The Judge has hinted that he was misled when he granted the interim injunction and has virtually expressed sorrow for having been instrumental to what may be called the continuation of an insult and a sore. More than this must not at this stage be said as the main case is still subjudice. For the time, however, this is a distinct victory of a just cause. The assertion of civil rights by the so-called Untouchables can now be made without involving the risk of being jammed in between the judiciary on the one side and the orthodoxy on the other.

In the great *Guruka Bagh* struggle there was at least the wholehearted and unanimous sympathy of the public with the Sikh *Satyagrahis*. In the Mahad affair it was not so. The leaders of the Orthodox Hindus refused to listen to the words of advice of the bosses of Poona or even of the *Hindu Sabhawalas*. Those same leaders though discomfited and repulsed, would not take up a strong attitude in favour of the Mahar *Satyagrahis* when it came to the actual assertion of rights. What had to be postponed can now be taken up again.

The Next Campaign

And it is going to be taken up again, this time with far less risk and far greater chances of success. After the return of Dr. Ambedkar, who had been to Mahad for the case, after delivering his well-informed budget criticism, a public meeting was held in the Damodar Thakarsey Hall, Parel, on Sunday 26th instant.

Dr. Ambedkar in a lucid speech explained the situation as it existed on that day and told his followers to consider the earliest date on which to launch the campaign again. The meeting was attended by more than a thousand members of the Depressed Classes. The hall was packed and on the dais were a few Caste-Hindu Friends of the so-called Untouchables besides a majority of prominent members of the latter classes.

The majority of speeches were by these and were full of sincerity and devotion to their leader Dr. Ambedkar. One of the speakers spoke with the greatest impression because he was amongst those who were assaulted by Caste-Hindus sometime in March last when the first attempt was made to take water from the now famous tank.

At that time it was recklessly circulated that hides were washed in the tank and this assaulted gentleman being a cobbler by caste the story was taken up and a wanton assault was perpetrated on him. As another speaker explained water was actually drawn by him and the assault went vicariously to that other gentleman, whose name is Rajbhoj and who was humourously called Bhoj Raja. One could clearly see life in the meeting of Sunday last.

Within A Month

To see them and to say they were Untouchables would be absurd. All the same in the eyes of the orthodox they were so. They have not only to cure themselves of Untouchability but have to uplift the orthodox who are immersed in the slough of prejudice. Their struggle is an essentially patriotic and essentially human struggle.

With such a huge dead weight the nation cannot rise. So long as equal elementary rights are not conceded and assured to them, Hinduism shall stand shackled and manacled. In asserting their rights and in raising themselves, these warriors of the so-called Untouchable classes are raising the country and the Hindu religion. Dr. Ambedkar is now busy organising the next campaign in right earnest. It has been decided to start it within a month probably on the Hindu New Year's Day when every Hindu house-holder flies a flag. The leaders of these Depressed Classes propose to fly their flag of "equal human rights to all" on that day and, God willing, they will do it." ¹

This is an article by D. V. Pradhan about Mahad *Satyagraha*—

“TRIUMPH OF JUSTICE

When in March last, Dr. Ambedkar led the Untouchables to the Chawdar Tank at Mahad, the orthodox section of the Caste Hindus lost their sleep, appetite and all over the "Sacrilege" and mercilessly belaboured the poor unsupported Untouchables while they were returning from the tank. Soon after, criminal proceedings were taken against the rowdies and they were punished for disturbing the public peace. Every effort was made by these so-called "Protectors" of the religion to oppose the Untouchables from coming near the tank and they were encouraged in their action by the orthodox press. It was to assert their right of ordinary human privileges, the Untouchables launched the *Satyagraha* Movement, and in December last, a conference of about 10,000 assembled and unanimously resolved to march on to the tank. But the Orthodox Caste Hindus who smelt this resolve

¹ : The Indian National Herald, dated 28th February 1928.

by their nose got a temporary injunction from the sub-judge of Mahad against the Untouchables using the tank of the ground that it was the private property of one Mr. Chowdhari and the touchable classes. Having secured this respite from the authorities, the touchables thought that they had gained the upper hand at the expense of the Government and the Untouchables. Dr. Ambedkar at once saw through the game, but decided to postpone *Satyagraha* till the civil suit was disposed of. The suit came for hearing on 23rd February 1928 before Mr. Vaidya, the sub-Judge of Mahad, and Dr. Ambedkar by his lucid exposition not only got the injunction cancelled but also convinced the judge the *bona-fide* of their right to use the public tank. Since the ban has been removed, the tank is now to be open for public use as per the resolution of the Bombay Legislative Council.

***Satyagraha* to be Launched**

Now, in a public meeting held on Sunday the 26th February, in Bombay, attended by about 2,000 people, it was resolved to relaunch the *Satyagraha* at Mahad. The *Satyagraha* Committee is meeting shortly, and the exact date will be announced shortly.

Those who are following and studying the Untouchable Movement in this part of the country under the leadership of Dr. Ambedkar can very safely and boldly say that the movement is cosmopolitan in character. It is not simply for the opening of the tank for public use, but a movement of this kind with its manifold activities is directly paving the way for the evolution of the national movement for asserting their ordinary privileges of citizenship. It was only recently that Dr. Ambedkar announced his intention to open khadi centres for the Untouchables and thus help the great constructive programme blessed by Mahatmaji, with Khaddar on body and *Satyagraha* in mind against all evils, this movement is bound to succeed.

One word to my friends. As every good movement has to pass through various stages of obstacles and it will have to meet the friendly foes as well open foes-of whom the former are more dangerous-so also this *Satyagraha* has to face all the obstacles put on the way and come out triumphant at last. I only appeal to my friends that in facing these hardships from friends or foes, they

should not lose under any circumstances their courage, patience and perseverance but carry on the struggle to the successful end in all humility by peaceful and non-violent means.

May God give the strength to my suffering brethren and wisdom to the cast Hindus.”¹

Sub-Judge, Mahad, dissolved Mahad injunction—

Chawdar Tank-No Private Property Magistrate Regrets Grant of Injunction

“I cannot conclude this order without expressing my regret at the inconvenience and hardship caused to the defendants by the injunction granted by me, temporary though it was, and at having been instrumental in heaping one more wrong upon a community already labouring under the most cruel and unjust social wrongs. I dissolve the injunction issued by me”. So said the Sub-Judge while dissolving the injunction against Dr. Ambedkar and others.

It will be remembered that Dr. Ambedkar and others who went to offer *Satyagraha* at Mahad in the matter of taking water from the famous Chawdar tank were prevented from doing so by the injunction granted by Mr. G. V. Vaidya, Sub-Judge, Mahad, as applied for by Mr. Pandurang Raghunath Dharap and others, who claimed that the tank concerned was their private property. It is understood that Dr. Ambedkar and others, as also a number of caste Hindu people have decided to offer *Satyagraha* again. Probably they may restart the campaign on the first day of the Hindu New Year, i.e. about three weeks after, as the injunction against them has now been dissolved on the ground that the said tank is “Government municipal property.”

Why Injunction was granted

Delivering judgment of February 23rd the Sub-Judge observes. “The injunction had been granted on the *prima facie* presumption that the *Chawdar Tank* in suit was of the nature of private property. I have now to see whether on the evidence that is now produced for Defendants, that presumption stands or not. That presumption has, in my opinion, been strongly rebutted by the evidence now placed by the Defendants before me.”

¹ : The Bombay Chronicle, dated 2nd March 1928.

While examining the evidence, the sub-judge relies on copies of extracts from Revenue Records and certain other documents like applications from several people to the Municipality for special use of the water of the tank and definitely expresses the view. "All these papers strongly go to prove that the Chawdar Tank in suit is Government Property vesting in the Municipality and not private property of particular individuals as alleged by the Plaintiffs."

Conclusive Evidence

Continuing the judge says : "The presumption that the tank in suit is Municipal property is further strengthened by the fact that in the embankment of the tank, there are slabs of stones in two places bearing inscriptions engraved on them. On the application of Defendant's pleader, a Commissioner was appointed to visit the place and in the presence of the Court and the pleaders for both sides, to make facsimile of these inscriptions. This was done in the presence of the Court and Messrs Joshi and Sathe for Plaintiffs and Mr. Vaidya for the Defendants. Slab marked serial No. 2 bears a clear inscription of the words Municipality Mahad 1899 engraved in Marathi. On slab No. 1 some words are clearly visible while the others appeared to have been tampered with by some one and this tampering appeared to be quite fresh.

Plaintiff's Slender Case

As against all this evidence, plaintiffs rely upon the deed of partition (Ex. 45) of the Dharap family. In the face of all the evidence above referred to the mere fact that years ago, some members of the Dharap family effected, as between themselves a partition of the embankment in front of their house, does not signify much nor does the notice Ex. 44 given by the Municipality to one Diwakar Joshi to repair the embankments built by him in front of his house, as they were in a dilapidated condition and were rendering the water of the tank insanitary, signify much. It in no way constitutes an admission of Plaintiffs' right to the tank itself.

“No Special Preserve”

Whatever may be the final decision of the suit on its merits, I am, for the present, thoroughly satisfied, that the *Chawdar Tank* in suit is Government Municipal property and not the private property of particular individuals as alleged by Plaintiffs. The question then is whether plaintiffs have a right to exclude Defendants from enjoyment thereof. The answer is obviously “No”. In the case of such property there cannot be any reservation in favour of a particular class of community, and the Defendants have as much a right to its enjoyment as the Plaintiffs have. No question of irreparable injury therefore arises. In this case the property being Municipal property and the Defendant having as much a right to use it as the Plaintiffs, their exercise of that right cannot be said to cause any injury to Plaintiffs.

Lame Arguments of Plaintiffs’ Counsel

It is argued for the Plaintiffs by their learned pleader Mr. Virkar that on their own admission, the Defendants have not up to now enjoyed the use of the tank in suit. But, when once it is shown that the property is not private but public and open to all members of the public, the mere non-user of the tank by the Defendants during howsoever long a term of years cannot in any way derogate from their title. I am satisfied from the evidence produced before me that the tank in suit is not the private property of the Plaintiffs, but that it is Government Municipal property, and the Defendants have as much a right to its enjoyment as the Plaintiffs have and that any interference with the exercise of such right would be wholly illegal.

I cannot conclude this order without expressing my regret at the inconvenience and hardship caused to the Defendants by the injunction granted by me, temporary though it was, and at having been instrumental in heaping one more wrong upon a community already labouring under the most cruel and unjust social wrongs. I dissolve the injunction issued by me.” ¹

¹: The Bombay Chronicle, dated 3rd March 1928.

Following is the Police Report of the meeting held at Bombay after dissolution of injunction—

“Untouchables and Satyagrah at Mahad

A public meeting of the Depressed Classes was held at Damodar Thakersey Hall on February 26th when G. N. Sahasrabudhe presided over an audience about 500 people.

Dr. B. R. Ambedkar, who was the principal speaker, said that as the Sub-Judge of the Mahad Court had dissolved the interim injunction against him and the *Satyagraha* Party, he would leave the question of resuming *Satyagraha* to the discretion of the *Satyagraha* Committee of Bombay.

Views expressed by “Indian National Herald” after cancellation of injunction—

“COMMON HUMAN RIGHTS

The Sub-Judge of Mahad having dissolved the temporary injunction issued by him against Dr. Ambedkar and other leaders of the Depressed Classes, the latter, it is understood, propose to assert their civic right to draw water from the public tank at Mahad. When in March last members of the Depressed Classes, who had previously met in a conference at the place, attempted to approach the tank they were roughly handled by the “higher” Caste Hindus, a few Chamars sustaining severe injuries. The leaders of these “higher” Caste Hindus then sought an injunction under section 144 Cr. P. C. from the District Collector, on the ground that the attempt of the “Untouchables” to take water from the tank, in contravention of the existing customary ban on them would spell danger to public peace.

The Collector, refused to take any action. They then applied to the Sub-Judge and succeeded in obtaining from him a temporary injunction against the leaders of the “Untouchables” and consequently the contemplated *Satyagraha* and march to the tank in a body with a view to draw water from it in defiance of the “Higher” Castes, had to be abandoned. Now, however the Sub-Judge has dissolved the injunction, declaring himself satisfied from the evidence that “any interference with the exercise of such

right would be wholly illegal.” That the so-called Higher Castes have absolutely no legal right to prevent any member of the public, from drawing water from a tank which is not private property and which they themselves must be fully aware is a Municipal Tank, would be admitted by any man; who is not blinded by caste prejudices. If the local Municipal authorities had any doubts in the matter the same has been set at rest by the resolution of the Bombay Legislative Council passed in September 1926, declaring that all Municipal Tanks, wells and *Dharmashalas* should be thrown open to all classes of public without any distinction. It is inconceivable that any section of the community, because of their own notions of personal “superiority” in point of caste, should be entitled to prevent any other section from benefiting from the amenities provided from public funds. Such a notion deserves to be knocked on the head, not only in the interests of the oppressed and suppressed classes, but also, and much more, in the interests of the so-called superior classes themselves. Such treatment of fellow beings besides being wholly iniquitous and unjustifiable is bound to have very undesirable consequences for the “Higher” Castes, for sooner or later the oppressed classes must come by the rights, human, civic and political, so long unjustly denied to them and then their exacerbated feelings might lead them to turn the tables on their former oppressors.

The alienation of the sympathy of a section of the Depressed Classes towards the national movement ought also to be a sufficient warning against the perpetuation of the present deplorable conditions. Let us hope that when in a few days Dr. Ambedkar and his fellow castemen proceed to Mahad to assert their right to draw water from the public tank there, not only will there be no opposition, but a cordial welcome will await them from the “Caste” Hindus. Such a consummation would go a long way to heal the wounds cruelly inflicted on their fellowmen.”¹

¹ : The Indian National Herald, dated 6th March 1928.

Mahad Satyagraha changed the social attitudes of some Caste Hindus. Following is one of the examples—

**“Do away with Castes
All Caste Dinner in Bombay**

An all caste dinner was held under the auspices of the Samaj-Samata-Sangh (Social-Equality-League) on the 5th instant in the Damodar Thakersey Hall, Parel.

About 150 persons of different castes including 50 so-called Untouchables attended the dinner. Mr. D. V. Naik, Editor of the *Brahman-Brahmanetar*, and vice-president of the League, welcomed the guests saying that such dinners were organised by the League to be away with caste barriers that separated and disintegrated the Indian nation in general and Hindu society in particular. It was only through free intercourse and inter dining, he added, that the evils of the caste system would be destroyed, and that a new society based on equal status would be developed. They had all gathered there, he proceeded, not on account of inevitable necessity (*Apad-Dharma*), but with a definite purpose and full knowledge and determination to break the intolerable shackles of the rigid system which disapproved and prohibited such sanctions of love and brotherhood.

The League under the able guidance of its learned President Dr. Ambedkar, he assured, the guests, would always welcome and help those who would, with unique courage in both hands, come forward to free themselves and the nation from the present inhuman caste-ridden society.

Mr. A. B. Kolhatkar, the Editor of the *Sandesh* eulogised the work of the League, pointing out the significance of such functions. He said the Hindu society was like a clock of sand where the Brahmins till then had the upper hand but now the time had come when they should ungrudgingly make room for the other castes and especially for the so-called Untouchables. He further believed that if the present abuses of all sorts—political, social and religious were to be eradicated, that could only be done through the instrumentality of a new Shivaji, to be born among the so-called Untouchables.

Mr. V. B. Karnik, the Secretary of the Bombay Maharashtra Youth Mandal drew attention to a resolution passed by it, aiming at the abolition of the iniquitous system of castes and the differences made on grounds of religion and sect by organising inter-caste dinners and encouraging inter-caste marriages and promised that the Mandal would always give its whole-hearted support to the League, which was already in the field in such national work.

Mr. M. R. Menon, said that he had come there to wish Godspeed to Dr. Ambedkar in the righteous work he had undertaken of procuring for the the so-called Untouchables the most elementary human right of drinking water from a public tank at Mahad.”¹

“In spite of Government Resolution, Untouchables were not allowed to draw water in 1932, the Bombay Government instituted a Committee consisting of Symington, I. C. S., and Zakeria Maniyar, to inquire into the condition of the Depressed Classes in the Nasik District. One of the chapters of the report revealed that in that District there were as many as eleven hundred District Local Board wells from which the Untouchables were not allowed to draw water in spite of the Government Resolution of 1923.”²

In the mean time a legal struggle in between Caste Hindus and Depressed Classes was going on in various Courts. Following is the abstract of these incidents.

“Appeal Heard in Thana District Court

Thana, March 20.

Mr. B. N. Sanjana, District Judge, Thana, heard to-day an appeal filed by Pandurang Waman dharap and others of Mahad against the judgement of Mr. Vaidya, Subordinate Judge, Mahad, dissolving an interim injunction granted by him previously against the Mahad Untouchables for bidding them from using the *Chawdar Tank*.

¹ : The Indian National Herald, dated 15th March 1928.

² : Keer, P. 197.

The District Judge passed orders granting a interim injunction restraining the respondents, from using the declaratory suit filed by the touchables in the Mahad Civil Court.”¹

“Kolaba, March 3.—The Bombay Chronicle of March 2, published the following :—“A meeting was held on Sunday, February 26, in Bombay, attended by about 2,000 people. It was resolved to re-launch the *Satyagraha* at Mahad. The *Satyagraha* Committee is meeting shortly and the exact date will be announced shortly.”²

“*Satyagraha* at Mahad : Re-starting of.....

Vide para 309. Kolaba, March 17.—There has been several reports lately that the Mahad *Satyagraha* is to be re-launched on March 22; but this has been personally denied by Dr. Ambedkar who has promised to give a fortnight notice before re-launching it.”³

“488. Vide para 52, Kolaba, March 24.—In the appeal against the order of the Sub-Judge, Mahad, regarding the Chawdar Tank, the District Court, Thana, has passed an order prohibiting an Untouchables from entering the Tank, pending the final decision of the suit regarding the Tank.”⁴

The Sub-Judge of Mahad Hon. V. R. Saraf gave judgement in favour of the respondents Dr. B. R. Ambedkar and others on 8th June 1931, since the appellants caste Hindus could not prove their ownership of the tank. Thus Chawdar Tank was declared as public and open to the Untouchables also.

The Caste Hindu Appellants preferred an appeal against the Judgement in the District Court of Thana. The Second Assistant Judge Hon. S. M. Kokani decided the case in favour of the Respondents Dr. B. R. Ambedkar and others on 30th January 1933.

¹ : The Indian National Herald, dated 22nd March 1928.

² : Bombay Secret Abstract dated 17th March 1928, para, 309.

³ : Bombay Secret Abstract dated 31st March 1928, para, 428.

⁴ : Bombay Secret Abstract dated 7th April 1928.

Thereafter the Caste Hindu Appellants again preferred an appeal in the Hight Court, Bombay. This case lingered for four years. Lastly Justic Broomfield and Justice Wadia rejected Caste Hindus' appeal on 17th March 1937 since they could not prove their ownership of land of Chawdar Tank.

The Judgement of the High Court, Bombay reads as under :

“APPEAL No. 462 OF 1933 FROM APPELLATE
DECREE

Narhari Damdoar Vaidya; and the others

(Original Plaintiffs Nos. 2 to 6).....Appellants.

versus

Dr. Bhimrao Ramji Ambedkar, Member of Joint Parliamentary Committee, London; and others.

(Original Defendants).....

Respondents.

Second Appeal against the decision of S. M. Kaikini, Esquire, Second Assistant Judge at Thana in Appeal No. 32 of 1931.

Mr. V. B. Virkar for the Appellants,

Counsel Mr. S. V. Gupte, with Mr. B. G. Modak for Respondent No. 1.

17th March 1937

Coram :—Broomfield N. J. and Wadia J. J.

Oral Judgement Per Broomfield N. J.:—

The appellants, on behalf of the caste Hindus of the town of Mahad, sued the respondents, who represented the so-called ‘Untouchables’ for a declaration that the Chawdar Tank near the town belongs to them and that they alone have a right to use It and the respondents are not entitled to use it, and for an injunction against the respondents not to use it. The claim to ownership is not now persisted in and it is conceded that, as found by the trial court, the tank belonged to Government under the provisions of Section 37 of the Land Revenue Code and has now vested in the Municipality of Mahad under Section 50 of the District

Municipalities Act. It is also conceded now that the caste Hindus are not entitled to exclusive user of the tank as against all the world, since Mohamedans may and do use it. It is contended nevertheless that the appellants have the right to use it themselves and to exclude the 'Untouchables' from it, and this right is said to be based on immemorial custom.

The Trial Judge found that the plaintiffs have proved a longstanding custom (he does not describe it as immemorial) of using the tank water to the exclusion of the 'Untouchables.' He held however that the custom conferred no legal right upon the plaintiffs because 'mere user of a public tank by one class and non-user by another would not clothe the class making the user with any legal rights or rights of ownership.' On appeal, the Assistant Judge confirmed the finding that the caste Hindus have not proved that they have any legal right to exclude the 'Untouchables.' He has relied to some extent on a judgement of Sir Sadashiv Ayar V. Vaithilinga, a case not reported apparently in the authorised reports but to be found in 1913 Mad. W. N. 247 and 18 Indian cases 979; but his main reason seems to be that he held that the custom is not shown to be immemorial.

The Chawdar Tank is a small lake or large pool; between four and five acres in extent, on the outskirts of the town. It is surrounded on all sides by municipal roads beyond which are houses occupied by caste Hindus (and a very few Mohamedans), and the owners of these houses also own in many cases strips of land on the edge of the tank, *ghats* or flights of steps to get to the water and the masonry embankments along the sides. There are no houses of 'Untouchables' anywhere near. It is not known how old the tank is, except that it is admittedly not less than 250 years old. There is no evidence as to its origin. It is not even clear that it is artificial. The Trial Judge took the view that it was 'a natural excavation in the bed of the earth, of course repaired and remodelled by human agency.' If this is so—and the point was not disputed in the argument before us—it is probably many centuries old. The water supply comes from the monsoon and a few natural springs. The population of the town Mahad is between seven and eight thousand, of whom less than 400 are 'Untouchables.' The Municipality was established in 1865, but

there is no evidence available, at any date on the record of this case, as to the early history of the town or as to the time when the side was first inhabited.

The Plaintiffs have examined a number of witnesses, many of them old inhabitants, whose evidence may be said to have established that within the period of living memory the tanks has been used exclusively by the Caste Hindus (and a few Mohamedans) and has never been used by the 'Untouchables'. It is in fact admitted that the latter never used it, before the year 1927, when a campaign against the doctrines of 'Untouchability' was carried out by defendant No. 1, and some of the 'Untouchables' went and drank water as a protest. They were assaulted and beaten by the caste Hindus and there were criminal prosecutions which led to the present suit. As there is no record of any attempt having been made by the 'Untouchables' to use the tank before that, there is no evidence of any positive acts of exclusion. What is provided is user by one party and absence of user by the other. This was due, no doubt to any accidental causes but, to the mutual acceptance of the doctrine of 'Untouchability' which until recent years was not openly challenged.

The learned Assistant Judge comments on the fact that there is no evidence of the exclusion of the 'Untouchables' in pre-British times, nothing to show that the exclusion of exclusive user was in force in the days of the Maratha rule or the Musalman rule. It is of course not always necessary to produce evidence going back beyond the memory of living persons. On proof of enjoyment for a period, even less than that, the Courts have frequently felt justified in holding, in the absence of evidence, to the contrary that a custom has existed from time immemorial. Nor, of course, is it necessary in case of this kind to have evidence of positive acts of exclusion of one party by the other. There could be no such evidence as long as the enjoyment of the caste Hindus was not challenged, and it would not be likely to be challenged as long as the doctrine of 'Untouchability' prevailed and was accepted. But a custom proved to have existed during the period of living memory can only be presumed to have existed from before the period of legal memory in case where conditions may be assumed to have been permanent and stable so that it is reasonable to infer

that what has happened during the period covered by the evidence has also happened from time immemorial. This is where the plaintiffs' case in our opinion breaks down. As long as conditions were at all similar, as long as the houses of the Caste Hindus have surrounded the tank, (which is not necessarily very long as the tank is on the outskirts of the town and the land around it would not likely be occupied until after considerable expansion of the original settlement) it may be safely presumed that the practice was the same as at present. It would not be safe to presume, however, that conditions have been similar for a period long enough to establish the alleged custom. The Konkan has had a chequered history, even in comparatively modern times, and to suppose that the Caste Hindus have been in a position to exercise exclusive control over this large natural reservoir situated as it is, from time immemorial, would be contrary to reasonable probability.

In this connection some of the observation of Sir Sadashiv Ayar in *Mariappa V. Vaithilinga* are very instructive. He cites a saying of Manu; 'Waters are pure as long as a cow goes to quench her thirst in and they have a good scent, colour and taste,' and he points out that the *Shastric* writings 'Make a distinction between rivers, tanks and other receptacle which are more easily contaminated and where purification by time, atmospheric conditions and movement of the water is much more difficult.' The learned Judge suggests that the dictates of the Hindu religion would not require any elaborate precautions against the pollution of water in a large open tank, and he was dealing with a tank in a village site considerably smaller than the Chawdar Tank at Mahad. The doctrine of 'Untouchability' therefore does not appear to go far enough to lend very much support to the appellants' case and it is doubtful whether any attempt would be made to secure exclusive user of the water until such time as the tank came to be surrounded by the houses of the caste Hindus.

This is the only case to which our attention has been drawn dealing with a claim to exclude 'Untouchables' from the use of a watering-place of this description. The temple-entry cases, e. g. *Anandrav N. Shankar*, (1883) I. L. R., 7 Bom. 323, and *Sankaralinga V. Rajeswara*, (1908) I. L. R., 31 Mad. 236, P. C,

are not really on all fours. In such case long practice acquiesced in by the other castes and communities may naturally give rise to a presumption of dedication to the exclusive use of the higher castes, and may throw upon the 'Untouchables' the burden of proving that they are among the people for whose worship a particular temple exists. No such presumption of a lawful origin of the custom can be said to arise here.

We therefore agree with the learned Assistant Judge that the appellants have not established the immemorial custom which they allege. Had they succeeded on this point it might have been necessary to consider whether the custom were unreasonable or contrary to public policy (though strictly speaking, it was not pleaded in the lower courts). It would certainly have been necessary to consider the legal effect of the vesting of the Chawdar Tank in the Municipality, and the question whether in any case the appellants could be granted any relief in this suit in which the legal owner is not a party. But as it is not necessary to decide these questions in the view we take of the case, and as they have not been very fully or effectively argued, we prefer to express no opinion.

Appeal dismissed with costs.

The seal of the
High Court at
Bombay.

By order of the Court
Sd/- R. S. Bavdekar,
Registrar
Sd/-

High Court Appellate
Side certified copy
Bombay.

For Deputy Registrar”
the 28th day of June 1960.¹

The words of Dr. B. R. Ambedkar that “Lost rights are never regained by begging, and by appeals to the conscience of the usurpers, but by relentless struggle” have been proved by Mahad *Satyagraha*.—Editors.

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¹ : Khairmode, Vol. 3, Pp. 258-263.

SECTION II

DR. AMBEDKAR—MAHATMA GANDHI MEETINGS

1

I HAVE NO HOMELAND

In the third week of July 1931, the names of the delegates to the second session of the Round Table Conference were announced. Dr. B. R. Ambedkar and Mahatma Gandhi were invited to attend the Conference in London. It was not decided as yet whether Mahatma Gandhi would attend the Round Table Conference. Naturally all eyes were focussed on Manibhuvan at Bombay where Mahatma Gandhi was staying. Gandhiji wanted to sound Dr. Ambedkar as to his demands. So Gandhi wrote Ambedkar,

“Dr. Mr. Ambedkar,

I would come to see you to-night at 8 p.m. if you can spare that time. I would gladly come over to your place if it is inconvenient for you to come.

Bombay :

Yours Sincerely

6-8-31.

M. K. Gandhi.” ¹

“Dr. Ambedkar had just arrived from Sangli, and was running a temperature. He wrote in reply that he would himself go to Gandhi at eight O’Clock that night. But in the evening the temperature soared to 106; so Dr. Ambedkar sent a message that he would come after the fever abated.

Subsequently, Ambedkar went to meet Gandhi on August 14, 1931 at Manibhuvan, at two in the afternoon. A batch of his lieutenants, Deorao Naik, Shivtarkar, Pradhan, Bhaurao Gaikwad and Kadrekar accompanied him. When Dr. Ambedkar was shown in to the third floor, Gandhi was busy talking with his partymen and eating some fruits. The Doctor and his party bowed to Gandhi and sat on a blanket.

In the characteristic way which Gandhi observed in dealing with non-Muslim and non-European leaders and representatives, he did not look at first for a while at Dr. Ambedkar and kept chatting with Miss Slade and others. Dr. Ambedkar’s men now feared that a little more indifference on the part of Gandhi, a

¹ : Ratnakar Ganvir, Ambedkar-Gandhi: Teen Mulakhathi (Marathi), P. 9.

collision would follow. Just then Gandhi turned to Ambedkar whom he saw for the first time, and, after formal question, he switched on to the main topic.

GANDHI : Well, Doctor, what have you to say in the matter ?

AMBEDKAR : You called me to hear your views. Please tell me what you have to say. Or you may please ask me some questions and I shall answer.

GANDHI : (*with a staring look at Ambedkar*): I understand that you have got some grievances against me and the Congress. I may tell you that I have been thinking over the problem of Untouchables ever since my school days—when you were not even born. You may perhaps be knowing what enormous amount of efforts I had put in to incorporate this problem in the programme of the Congress and make it a plank of the Congress platform. The Congress leaders opposed it on the plea that it was a religious and social question and as such it should not be mixed with political ones. This is not all. The Congress has spent not less than rupees twenty lakhs on the uplift of the Untouchables. And it is really surprising that men like you should offer opposition to me and to the Congress. If you have to say anything to justify your stand, you are free to do so.

AMBEDKAR : It is true, Mahatmaji, that you started to think about the problem of Untouchables before I was born. All old and elderly persons always like to emphasize the point of age. It is also true that because of you the Congress Party gave recognition to the problem. But let me tell you frankly that Congress did nothing beyond giving formal recognition to this problem. You say the Congress spent more than rupees twenty lakhs on the uplift of the Untouchables. I say it was all waste. With such a backing I could have effected an astounding change in the outlook and economic conditions of my people. And in that event it would have been imperative for you to see me long before. But I tell you that the Congress is not sincere about its professions. Had it been sincere, it would have surely made the removal of Untouchability a condition, like the wearing of khaddar, for becoming a member of the Congress. No person who did not employ Untouchable women or men in his house, or rear up an

Untouchable student or take food at home with an Untouchable student at least once a week should have been allowed to be a member of the Congress. Had there been such a condition, you could have avoided the ridiculous sight where the President of the District Congress Committee was seen opposing the temple entry of the Untouchables !

You might say that Congress wanted strength and therefore it was unwise to lay down such a condition. Then my point is that Congress cares more for strength than for principles. This is my charge against you and the Congress. You say the British Government does not show a change of heart. I also say that the Hindus have not shown a change of heart in regard to our problem, and so long as they remain adamant we would believe neither the Congress nor the Hindus. We believe in self-help and self-respect. We are not prepared to have faith in great leaders and Mahatmas. Let me be brutally frank about it. History tells that Mahatmas, like fleeting phantoms, raise dust, but raise no level. Why should the Congressmen oppose our movement and dub me a traitor ?

Dr. Ambedkar now grew animated. His face flushed and eyes glowed. He paused for a moment and then continued in a bitter, indignant tone.

AMBEDKAR : Gandhiji, I have no homeland.

GANDHI : (*taken aback and cutting him short*) : you have got a homeland, and from the reports that have reached me of your work at the Round Table Conference, I know you are a patriot of sterling worth.

AMBEDKAR : You say I have got a homeland, but still I repeat that I am without it. How can I call this land my own homeland and this religion my own wherein we are treated worse than cats and dogs, wherein we cannot get water to drink ? No self-respecting Untouchable worth the name will be proud of this land. The injustice and sufferings inflicted upon us by this land are so enormous that if knowingly or unknowingly we fall a prey to disloyalty to this country, the responsibility for that act would be solely hers. I do not feel sorry for being branded as a traitor ;

for the responsibilities of our action lie with the land that dubs me a traitor. If at all I have rendered any national service as you say, helpful or beneficial, to the patriotic cause of this country, it is due to my unsullied conscience and not due to any patriotic feelings in me. If in my endeavour to secure human rights for my people, who have been trampled upon in this country for ages, I do any disservice to this country, it would not be a sin; and if any harm does not come to this country through my action, it may be due to my conscience. Owing to the promptings of my conscience I have been striving to win human rights for my people without meaning or doing any harm to this country.

The atmosphere turned grim. Faces changed colour. Gandhi was growing restless. He wanted to give a turn to Dr. Ambedkar's talk. Just then Dr. Ambedkar asked him the most pertinent question which was the object of the interview.

AMBEDKAR : Everybody knows that the Muslims and the Sikhs are socially, politically and economically more advanced than the Untouchables. The first session of the Round Table Conference has given political recognition to the Muslim demands and has recommended political safeguards for them. The Congress has agreed to their demands. The first session has also given recognition to the political rights of the Depressed Classes and has recommended for them political safeguards and adequate representation. According to us that is beneficial to the Depressed Classes. What is your opinion ?

GANDHIJI : I am against the political separation of the Untouchables from the Hindus. That would be absolutely suicidal.

AMBEDKAR (*Rising*): I thank you for your frank opinion. It is good that I know now where we stand as regards this vital problem. I take leave of you.*

Dr. Ambedkar left the hall, his face beaming with a fiery resolve to fight out the issue with all his might and to win human rights for his down-trodden people.

* The Navyug—Ambedkar Special Number, 13 th April 1947.

The interview thus ended in a grim atmosphere. Gandhi was the boss of Indian politics, the dictator, the uncrowned king of the Indian masses, who were dazed and electrified by his dynamic actions. To answer Gandhi back was to incur permanent displeasure and to create undying bitterness. And that too a Hindu leader doing it was a thing beyond Gandhi's imagination ! But the die was cast. The spark of opposition was ignited. The interview sounded the beginning of a war between Gandhi and Ambedkar.

It is, however, surprising to note here that Gandhi thought that Ambedkar was not a Harijan. Till he went to London he thought he was some Brahmin who took deep interest in Harijans and therefore talked intemperately.*

Following is the press report of the meeting.

“Dr. Ambedkar Sees Mr. Gandhi

Dr. Ambedkar, leader of the Depressed Classes, saw Mr. Gandhi on Friday afternoon. He tried to impress on Mr. Gandhi his point that the Congress had not so far done anything tangible for the Depressed Classes and that Mr. Gandhi was under a delusion in imagining that the Depressed Classes were solidly behind him as the representative of the people. Mr. Gandhi did not admit that the Congress had not done anything or was not doing anything for the Depressed Classes. Dr. Ambedkar eventually left without convincing Mr. Gandhi or being convinced by him.”¹

“Dr. Ambedkar on Mr. Gandhi's Folly

Dr. B. R. Ambedkar, the Depressed Classes delegate, who had a frank talk with Mr. Gandhi on the previous day about his attitude towards the Depressed Classes, interviewed by a representative of *The Times of India*, said : “To place the interests of Bardoli above those of India and refuse on that account to go to England to take part in the deliberations of the Round Table Conference seems to me to be the height of folly. To bother about the petty tyrannies of village officers and to be unmindful of the bigger problem, the settlement of which will enable us to exercise control on those very officers, is a thing which I cannot understand.”

* The Diary of Mahadeo Desai, Vol. I, Navajivan Publishing House, P. 52.

¹ : The Times of India, dated 15th August 1931.

Dr. Ambedkar was somewhat sure about particular reply which Mr. Gandhi had given him in an interview on the previous day. He said he had asked Mr. Gandhi in anticipation of his going to the R, T. C. whether he was prepared to accept the decision of the Conference that the Depressed Classes should be given political recognition in the new constitution and like other minorities, should be given political safeguards and adequate representation in the legislatures. Dr. Ambedkar complained that Mr. Gandhi refused to uphold that view and said that if he went to the Round Table Conference he would tell them that the conference might do what they liked, but in his opinion the suggestion was absolutely suicidal so far as the Depressed Classes were concerned.”¹

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¹. The Times of India, dated 17th August 1931.

WHY I SHOULD BE PROUD OF THAT RELIGION.....

“At the Ballard Pier, Dr. B. R. Ambedkar received a telegram from Gandhi asking him to see the latter in Yeravda Jail. Dr. Ambedkar wired back to Gandhi that he would see him on his return from Delhi. The next day Dr. Ambedkar received a wire from Dr. Ba Maw of Rangoon which said : “Burma anti-separatist leaders proceeding to Delhi next week to meet Indian leaders during the Assembly session. They are anxious to discuss Burma constitutional situation with you and other leaders. We, therefore, request you to meet the deputation in Delhi on 4th and 5th February. Kindly wire your Delhi address to enable us to get in touch with you there. Reply U Chit Hlaing, 80, Hermitage Rd., Rangoon,—U Chit Hlaing and Dr. Ba Maw.” Several congratulatory messages were received in Dr. Ambedkar’s office from all quarters of the country. One of them was from the Thiya Yuvajan Samaj of Ernakulam, congratulating their great leader gratefully on the bold fight he gave at the Round Table Conference for the rights and liberties of the Depressed Classes and the people of the Native States.

Immediately Dr. Ambedkar left Bombay for Delhi to attend the informal meeting of delegates to the Round Table Conference convened by the Viceroy. After his return from Delhi, he wired to Gandhi that he would be able to see him on the 4th February. Gandhi informed Dr. Ambedkar by wire on February 3 : “Wire just received tomorrow 12-30 will suit—Gandhi.” It is clear that Dr. Ambedkar could not meet the Burma delegation in Delhi as he wanted to see Gandhi in Yeravda Jail on February 4, 1933.

Accompanied by S. N. Shrivastkar, Dolas, Upasham, Kowly, Ghorpade and Keshavrao Jedhe, Dr. Ambedkar entered Yeravda Jail at 12-30, on February 4. In a happy mood Gandhi got up and welcomed the visitors. After a while, the conversation turned to the question of temple entry. Gandhi requested Dr. Ambedkar to lend his support to Dr. Subbarayan’s Bill and that of Ranga Iyer. Dr. Ambedkar flatly refused to have anything to do with

Subbarayan's Bill, since the Bill did not condemn Untouchability as a sin. It only said that if a referendum favoured the temple entry, temples should be thrown open to the Depressed Classes, but said nothing of their right to worship the deity in the temples.

He told Gandhi that the Depressed Classes did not want to be *Shudras* in the order of the caste system and added that he honestly could not call himself a Hindu. Why, he asked, he should be proud of that religion which condemned him to a de-graded position. If that system was to continue, he had no use of the benefits of the temple entry.

Gandhi said that according to him the caste system was not a bad system. He continued : "Let the touchable Hindus have an opportunity to expiate their sins and purify Hinduism. Do not be indifferent to this question. *Sanatanists* and Government would take advantage of this. If this reformation takes place, the Untouchables would rise in society."

Dr. Ambedkar differed from Gandhi. He was convinced that if the Untouchables made progress in the economic, educational and political fields, temple entry would follow automatically." ¹

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¹ : Keer, Pp. 226-227

WHAT MORE GANDHI EXPECTED FROM THE SANATANISTS ?

“Dr. B. R. Ambedkar decided to sound Gandhi on the question of the panel and primary elections of the Depressed Class candidates in the light of the coming constitution of India. He was in a hurry to make preparations for his departure to London. Yet he had to attend meetings, to attend courts or dispose of the cases, to make arrangements for domestic affairs, and to select books. Accompanied by Mr. More, Shinde, Gaikwad and Chavan, he saw Gandhi on April 23, 1933 in Yeravda Jail. Gandhi and Ambedkar sat in chairs under the mango tree and Mahadev Desai sat nearby with a note book and pencil.

At first Dr. Ambedkar said that the method of panel would be expensive and told Gandhi that candidates from the Depressed Classes, who would contest the general election, should have secured at least 25 per cent of the votes of the Depressed Classes in the primary election. Gandhi replied that he would give consideration to the matter and would inform him about his reaction to his London address. Gandhi, then, gave a bunch of flowers to Dr. Ambedkar and diverted the conversation to the question of removal of Untouchability and said that the *Sanatanists* were decrying him (Gandhi) as a devil, Daitya. Dr. Ambedkar asked Gandhi what more he expected from the *Sanatanists* ! Gandhi caught the thread and said that the leader of the Depressed Classes himself was not pleased with his work. In the end Gandhi asked Ambedkar about the date of his return from London. Dr. Ambedkar replied that it would be about August 1933. Gandhi wished Dr. Ambedkar *bon voyage* and the interview ended.”¹

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¹. Keer, P. 238.

TO TAKE LEGAL STEPS AGAINST HIGH CASTE HINDUS WHO HARASSED UNTOUCHABLES

“Talk with Dr. Ambedkar

“Dr. B. R. Ambedkar and members of his group had a lengthy talk with Mahatma Gandhi at Mani Bhuvan on Saturday, the 16th June 1934 morning on the question of the progress of the *Harijan Movement* has done since Gandhiji launched the campaign against Untouchability.

Gandhiji, it appears, told the deputationists that his tour in more than 200 villages had impressed him with the fact that the movement against Untouchability was making rapid progress and the evil is slowly dying away.

Dr. Ambedkar is stated to have a different view from this view and said that Gandhiji’s presence in a village or place, created an abnormal atmosphere as the presence of a saint or *sadhu* would do, and people temporarily forget the difference. Gandhi was, therefore, not in a position to judge the exact situation.

He is also stated to have suggested to Gandhiji that the *Harijan* Board should render financial assistance to *Harijans* to take legal steps against High Caste Hindus who harassed the former.

Gandhiji is stated to have replied that persuasion was the best method of removing the evil and that the question of giving legal aid would have to be considered by the Board.

One of the members of the deputation is stated to have asked Gandhiji whether the *Harijan* Board would be in existence after August 7 ? upto which time Gandhiji is under a vow to take part only in non-political activities. The same member asked Gandhiji, if he had received any divine inspiration as to his future action.

Gandhiji replied that he had received none so far and restored, “If you want you can as well receive inspiration from God.”

Ambedkar Deputation

The members of the Deputation led by Dr. Ambedkar who met Mahatma Gandhi on Saturday were :—

Mr. G. V. Naik

Dr. P. G. Solanki

Mr. Amritrao Khambe, and

Mr. Baburao Gaikwad.”¹

¹: The Bombay Chronicle, dated 17th June 1934.

SECTION III

**ROLE OF DR. B. R. AMBEDKAR IN
BRINGING THE UNTOUCHABLES ON
THE POLITICAL HORIZON OF INDIA AND
LAYING A FOUNDATION OF INDIAN
DEMOCRACY**

ROLE OF DR. B. R. AMBEDKAR IN BRINGING THE UNTOUCHABLES ON THE POLITICAL HORIZON OF INDIA AND LAYING A FOUNDATION OF INDIAN DEMOCRACY

“In the Government of India Act of 1919, there was a provision which had imposed an obligation on his Majesty’s Government to appoint at the end of ten years a Royal Commission to investigate into the working of the Constitution and report upon such changes as may be found necessary. Accordingly, in 1928 a Royal Commission was appointed under the Chairmanship of Sir John Simon. Indians expected that the Commission would be mixed in its personnel. But Lord Birkenhead who was then the Secretary of State for India was opposed to the inclusion of Indians and insisted on making it a purely Parliamentary Commission. At this, the Congress and the Liberals took great offence and treated it as an insult. They boycotted the Commission and carried on a great agitation against it. To assuage this feeling of opposition it was announced by His Majesty’s Government that after the work of the Commission was completed representative Indians would be assembled for a discussion before the new constitution for India is settled. In accordance with this announcement representative Indians were called to London at a Round Table Conference with the Representatives of Parliament and of His Majesty’s Government.”¹

“In order to ease the troubled situation in India, the British Government decided to re-examine and revise the Act of 1919. So it announced the appointment of the Indian Statutory Commission better known as the Simon Commission after Sir John Simon, its Chairman. The Commission consisted of two Peers and four Commoners to work under Sir John Simon, who was a great Parliamentarian, and it was declared that the proposals framed in the light of this Commission’s recommendations would be submitted to a Joint Select Committee at Westminster before which Indian witnesses would be examined.

¹ : Writings and Speeches Vol. 9, P. 40

The Simon Commission came on its first visit, and landed at Bombay on February 3, 1928, to commence the work of re-examination of the Indian problem as declared in the Act of 1919. Its non-Indian character offered an affront to almost all Indian parties. The Congress Party decided to boycott the Commission at every stage and in every form. So, on its arrival, the Simon Commission was greeted with black flags, curses and placards with the slogan "Go back, Simon!" Congressmen staged hostile demonstrations on a nation-wide scale, and the police had to open fire at some places. This black welcome was also extended later to the Commission during its second visit in the winter of 1928-29.

Meanwhile, the All Parties Conference convened by the Congress Party met in February and later in May 1928, and appointed a Committee under Pandit Motilal Nehru to draft a *Swaraj* Constitution for India. The Nehru Committee worked from June to August 1928 and drafted a Constitution.*

It mainly aimed at closing the Muslim breach. As regards the Depressed or Suppressed Classes, the Nehru Report said: "In our suggestions for the Constitution we have not made any special provision for the representation of the 'Depressed' Classes in the legislatures. This could only be done by way of special electorates or by nomination." But as these two methods were considered harmful and unsound, the Committee said that they were not going to extend either principle. They observed that their Declaration of Rights would be a panacea for all the ills affecting the Depressed Classes.** The attitude of the Congress Party towards the problem of the Untouchables will be clearer when one notices that the Congress Working Committee issued invitations to all prominent Muslim, Parsi, Christian, Sikh, Anglo-Indian organisations and even the

* For comment by Dr. B. R. Ambedkar, see editorial of 'Bahishkrit Bharat' dated 18th January 1929—Editors.

** All Parties Conference Report, 1928, Pp. 59-60.

Non-Brahmin institution and the Dravida Mahajana Sabha, but not to the Depressed Classes Institute led by Dr. Ambedkar or for that matter any Depressed Class Institution. It may be recalled that ten years before this Dr. Ambedkar had given evidence before the Southborough Commission.

To co-operate with the Simon Commission the Central Government appointed a Committee for all British India, and every Legislative Council elected its Provincial Committee to work with the Simon Commission. On the Bombay Provincial Committee was selected Dr. Ambedkar along with other Members by the Bombay Legislative Council on August 3, 1928.

The proceedings and tours of the Simon Commission lit up the Indian political firmament, and along with other forces it brought to the front the force, intellect and vitality of Dr. Ambedkar.

Eighteen Depressed Class Associations gave evidence before the Commission and placed their memorandum before it. Sixteen of them pleaded for Separate Electorates for the Depressed Classes. On behalf of the Bahishkrit Hitakarini Sabha Dr. Ambedkar submitted a memorandum to the Simon Commission demanding Joint Electorate with reservation of seats for the Depressed Classes.*

The Madras Central Adi-Dravida Mahajana Sabha demanded nomination for the Depressed Classes. The Bombay Provincial Non-Brahmin Party in its memorandum recommended Separate Electorate and reserved seats for the Depressed Classes. The Muslim League reiterated its demands for separation of Sind, creation of a new Province in the N. W. F., Separate Electorate for Muslims and residuary power for the Provinces in the federal constitution.

On October 23, 1928, the Simon Commission, the Central Committee and the Bombay Provincial Committee examined Dr. Ambedkar in Poona.** The British Labour leader, Major Atlee,

*See Writings and Speeches, Vol. 2. Pp. 429, 458.

** *Ibid*, Pp. 459-89.

who later became the Prime Minister of Britain, was a member of the Simon Commission. Attlee asked Dr. Ambedkar some pertinent question in the course of the Doctor's examination.

The work of the Simon Commission continued till the winter. The Provincial Committees were also drafting their own reports. The Committee appointed by the Bombay Legislative Council to co-operate with the Simon Commission after hearing both official and non-official evidence relating to the constitutional problem, submitted later their report on May 7, 1929.*

Dr. Ambedkar, who fundamentally differed with the Committee, did not sign that report and submitted a separate report containing his own views and recommendations on May 17, 1929.* Referring to the demand for the separation of Karnatak, he said he was opposed to the separation of Karnatak from the Bombay Presidency because "the principle of one language one province is too large to be given effect to in practice. The number of provinces that will have to be carved out if the principle is to be carried to its logical conclusion shows in my opinion its unworkability". "For I am of the opinion," declared the patriot in Dr. Ambedkar, "that the most vital need of the day is to create among the mass of the people the sense of a common nationality, the feeling not that they are Indians first and Hindus, Mohammedans or Sindhis and Kanarese afterwards, but that they are Indians first and Indians last. If that be the ideal then it follows that nothing should be done which will harden local patriotism and group consciousness."

As regards the separation of Sind which had assumed tremendous significance in those days, he said it was a sectional demand, a part of a large scheme designed to make the communal majority of the Muslims a political majority in five provinces. "The scheme," he warned the nation, "is neither so innocent nor so bootless as it appears on the surface." He asserted that the motive that lay behind the scheme was undoubtedly a dreadful one involving the maintenance of justice

* See Writings and Speeches, Vol. 2. Pp. 315-401.

and peace by retaliation and had stemmed from the principle that the best way of keeping peace was to be prepared for war. To support his conclusions he quoted the address delivered to the Muslim League Session at Calcutta by the Gandhian nationalist Muslim leader, Maulana Azad, in which the Muslim leader said : “There would be nine Hindu Provinces as against five Muslim Provinces and whatever treatment Hindus accorded to the Muslims in the nine provinces, Muslims would accord the same treatment to the Hindus in the five provinces. Was not this a great gain ? Was not a new weapon gained for the assertion of Muslim rights?” This is a searchlight on the Gandhian nationalist Muslim leaders.

Dr. Ambedkar then dealt with the Muslim demand for Separate Electorates. He described how different people in Europe lived under a common Government in proximity of each other without objecting to a common electorate. He observed : “It does not seem to be sufficiently known that India is not the only country where the Mohammedans are in a minority. There are other countries in which they occupy the same position. In Albania, the Mohammedans form a very large community. In Bulgaria, Greece and Rumania they form a minority and in Yugoslavia and Russia they form a large majority. Have the Mohammedan communities there insisted upon the necessity of separate communal electorates ? As all students of political history are aware, the Mohammedans in these countries have managed without the benefit of Separate Electorates : nay, they have managed without any definite ratio of representation assured to them. The Mohammedan case in India, therefore, overshoots the mark in my opinion and fails to carry conviction.” The communal representation, he said, was so fundamentally wrong that to give in to sentiment in its case would be to perpetuate an evil.

Dr. Ambedkar further said: “Although I am for securing special representation for certain classes, I am against their representation through Separate Electorates. Territorial Electorates and Separate Electorates are the two extremes which

must be avoided in any scheme of representation that may be devised for the introduction of a democratic form of Government in this undemocratic country. The golden mean is the system of joint electorates with reserved seats. Less than that would be insufficient, more than that would defeat the ends of good Government.”

The report, viewed in the context of principles, theories and personalities then prevailing, was as rationalistic as it was patriotic. It had both a balance and a ballast. When it was published, it derived spontaneous eulogy from Dr. Ambedkar’s inveterate foes, obstinate critics and the hostile press. Dr. Ambedkar was found overnight to be a great politician, a great patriot, a diamond in the abysmal coal-mine of the Untouchables, a statesman of rare gift. Like a meteor and a mentor, he emerged as one of the great political minds of his generation. Thus this Report bound him to the active destinies of his country! It will be a sure guide to historians.”¹

As stated above Dr. B. R. Ambedkar had submitted his separate report containing his own views and recommendation. The Summary of Recommendation is below :

“SUMMARY OF RECOMMENDATIONS

SECTION I

There should be no separation of Karnatak or Sind from the Bombay Presidency.

SECTION II

Chapter 1.—There should be complete responsibility in the Provincial executive subject to the proviso that if members of the Legislature resolve to make it a reserved subject effect shall be given to their resolution.

¹ : Keer, Pp. 114-117, and 121-23.

Chapter 2.—Under no circumstances should the executive be made irremovable. There shall be no communal representation in the executive. Ministers should be amenable to courts of law for illegal acts. The constitution should provide for the impeachment of Ministers. There should be joint responsibility in the executive. The executive should be presided over by a Prime Minister and not by the Governor.

Chapter 3.—The Governor should have the position of a constitutional head. He should have no emergency powers.

SECTION III

Chapter 1.—There should be adult franchise.

Chapter 2.—The Legislature should be wholly elective. All class and Communal Electorates should be abolished except for Europeans. Reserved seats should be provided for Mohamedans, Depressed Classes and Anglo-Indians and to the Non-Brahmins only if the franchise continues to be a restricted one.

Chapter 3.—The Legislature should consist of 140 members. Of these Mohamedans should have 33 and the Depressed Classes 15. The under-representation of certain districts and the over-representation of others should be rectified on the basis of population. There should be a Committee to adjust seats between different classes and interests. The requirement of a residential qualification for a candidate should be removed.

Chapter 4.—Lucknow Pact is not a permanent settlement and cannot prevent consideration of the question arising out of it afresh and on their own merits.

Chapter 5.—There should be no second chamber in the Province.

Chapter 6.—The Legislature should have the power of appointing and removing the President, of defining its privileges and regulating its procedure Sections 72D and 80C of the Government of India Act should be removed from the Statute.

The Legislature should have the power to move “a motion of no confidence”. The Legislature should have the power to alter the constitution subject to certain conditions.

SECTION IV

Chapter 1.—There should be Complete Provincial Autonomy. The division of functions between Central and Provincial should be reconsidered with a view to do away with the control of Central Government now operating through the system of previous sanction and subsequent veto.

Chapter 2.—Within the limits fixed by the functions assigned to the Provincial Government the relations between that Government and the Home Government should be direct and not through the medium of the Central Government. Section 2 of the Government of India Act should be deleted as it obscures the position of the Crown in relation to the governance of India.

SECTION V

There should be a distinct Provincial Civil Service and the Secretary of State should cease altogether to perform the function of a recruiting agency. His functions regarding the Services may be performed by a Provincial Civil Service Commission or by an officer acting conjointly with the Public Service Commission of India. Indianisation of Services should be more rapid. Its pace should vary with the nature of the different departments of State. Indianisation should be accompanied by a different scale of salary and allowances. In the course of Indianisation of the services arrangement should be made for the fulfilment of claims of the backward classes.”¹

17th May 1929

Dr. B. R. AMBEDKAR

¹ : Writings and speeches, Vol. 2, Pp. 400-01.

“At long last the report of the Simon Commission came out in May 1930. The Commission disregarded the meaning and aim of Indian nationalism and its forces. It recommended a continuation of Separate Electorate in Indian elections far in want of any agreed pact among the Indian political parties: It was the opinion of the Commission that the Nehru Report was not an agreed solution.”¹

In order to discuss the future political Constitution of India the Government decided to hold Round Table Conference at London. It was necessary that the Depressed Classes must at the critical juncture assert themselves and make it clear to the power that be as to what safeguards and guarantees the future Constitution of India must contain for the protection of their civic rights. With this view it was decided in consultation with Dr. B. R. Ambedkar to bring out people from the different provinces of India together for the purpose of the discussion. Accordingly the All India Depressed Classes Congress was convened at Nagpur under the Presidentship of Dr. B. R., Ambedkar on 8th/9th August 1930. On 8th August 1930 Dr. Ambedkar spoke of the Indian problem in the context of British Imperialism or world affairs keeping in view the safeguards and guarantees to be provided to the Depressed Classes in the proposed Constitution of India.

“As declared, the British Government convened a Round Table Conference in London consisting of the representatives of India, the British Government and the British Political parties to frame a Constitution for India with a view to satisfying the demands of the people of India.

The Round Table Conference consisted of eighty-nine Members, out of which sixteen were representatives of the three British parties, fifty-three Indian Members of the delegation representing various interests except the non-co-operating Congress, and twenty of the Indian States. Amongst the invitees were thirteen eminent Hindu liberal leaders including Sir Tej Bahadur Sapru, M. R. Jayakar, Sir Chimanlal Setalvad, Srinivas

¹ : Keer, P. 139.

Sastri and C. Y. Chintamani. Representing the Muslims, were H. H. the Aga Khan, Sir Muhamed Shafi, Mohomed Ali Jinnah, and Fazlul Huq, while Sardar Ujjal Singh represented the Sikhs, Dr. B. S. Moonje, the Hindu Mahasabha, K. T. Paul, the Indian Christians, Rulers of Alwar, Baroda, Bhopal, Bikaner, Kashmir, Patiala and Sir Akbar Hydari, Sir C. P. Ramaswamy Aiyar, Sir Mirza Ismail represented the Indian States. Sir A. P. Patro and Bhaskarrao V. Jadhav represented other interests; Dr. Ambedkar and Rao Bahadur Srinivasan represented the Depressed Classes. Dr. Ambedkar received the invitation to the Round Table Conference through the Viceroy on September 6, 1930. The Round Table Conference was indeed a great event in the history of both India and England. But to the Untouchables in particular it was an epoch-making event in their history; for, it was at this Conference that they were being invested along with other Indians with the right to be consulted in the framing of the Constitution for India. Their voice was to echo for the first time in the history of two thousand years, and more so in the governance of their Motherland.

Dr. Ambedkar left Bombay for London on October 4, 1930, by the s.s. *Viceroy of India*. The atmosphere in the country was not congenial to his departure. The whole country was in a turmoil. Congressmen hated, abused and cursed those leaders who co-operated with the British Government in solving the Indian problem in their own honest way. The situation was so tense and fraught with danger that Dr. Ambedkar wrote from Aden, on October 8, to Shrivtarkar, his secretary and trusted lieutenant, that he was very anxious for their safety. He warned them to be on their guard in their walks and talks and to avoid all work at night. He asked him to lock the office of the party with an iron bar across it and to watch the movements of a certain Depressed Class leader in Bombay who was at loggerheads with their organization.

Dr. Ambedkar found the political atmosphere in England much sympathetically inclined to the problem of the Depressed Classes. On his arrival, he immediately began to contact Britain's important political party bosses in connection with the problem of the Depressed Classes. Yet he was anxious to know

by cable from India about the new list of the members nominated to the Bombay Legislative Council and about the judgment of the Court on the Chawdar Tank Case.

The curtain was raised on November 12, 1930. Keen interest was evinced by the British public in the opening of the Round Table Conference. Approaches to the House of Lords, the avenue of the Conference, were thronged by spectators. His Majesty the King-Emperor appeared. Inaugurating the Conference, he said: "More than once the Sovereign has summoned historic assemblies on the soil of India, but never before have British and Indian statesmen and Rulers of Indian States met, as you now meet, in one place round one table, to discuss the future system of Government for India and seek agreement for the guidance of my Parliament as to the foundations upon which it must stand." The King-Emperor concluded by expressing a hope: "May your names go down to history as those of men who served India well". After the King-Emperor had withdrawn from the House, Ramsay MacDonald was unanimously elected Chairman of the Round Table Conference. A labour leader and author of *The Government of India*, he expressed Britain's determination to solve the Indian problem, and said that they were at the birth of a new history.

The Round Table Conference was not a Constituent Assembly entrusted with the work of drafting a Constitution. It was a gathering of Indian and British statesmen who were not to take decisions by votes. The sense of the Conference on the main issues which came up before it for consideration was to be ascertained and noted.

The venue of the Conference thereafter shifted to St. James' Palace. During the course of a general discussion which took place from 17th November to 21st November, Sapru, Jayakar. Moonje, Jinnah, the Maharaja of Bikaner and Dr. Ambedkar made very sincere and impressive speeches. In his lucid and appealing style the guide, friend and philosopher of the Conference, Sir Tej Bahadur Sapru, said: "India wants and is determined to achieve, a status of equality—equality with all the three members of the British Commonwealth—an equality which will give it a Government not merely responsive to, but responsible to the popular voice."

The Maharaja of Bikaner identified himself and the princely order with the aspirations of British India and declared that the Princes were prepared to federate of their own free will with self-governing Federal British India. This was a surprise to all. This declaration of Federation was also endorsed by the Maharaja of Patiala and the Nawab of Bhopal.

The Muslim Members welcomed an All-India Federation : but with great vigour they pressed for a status for the North-West Province equal to that of the other Provincial units of British India and for the creation of a separate province of Sind.

Jayakar, in his deep and sweet flow of speech, asked for a declaration of Dominion Status, and added: "If you give India Dominion Status today, in the course of a few months the cry of independence will die of itself. If, on the other hand, we return empty-handed from our labours in the Conference, it will be the surest way of raising in volume and in intensity this demand for independence."

Dr. Moonje, following the Maharaja of Patiala, refuted all the arguments of Lord Peel and told the Conference how the British Government had crushed Indian shipping, cotton and other industries. He added that the British belief that they would put down the National Movement of Civil Disobedience by a display of force was erroneous ; the time had passed.

N. M. Joshi pleaded for more rights for the labourers in the new constitution. Sir Mirza said that the future constitution should be based on federal basis. Sir C. P. Ramaswami Iyer opined that the future constitution should be worth living under. Then, after two or three speakers, rose a man, stout, sober and confident, with scintillating eyes and tight lips. Arisen from the lowest rung to the height by dint of his mental and moral force alone, he sat there in the assembly of the princes and potentates, legal celebrities and great brains representing great thrones, jahagirs, institutions and interests. He represented the poorest of India's poor who were half-fed, half-nude and dumb ! What would he say now ? How would he say it ? There was in the Assembly the prince who had financed his education. There was one amongst them who was

his teacher in the school. All eyes were rivetted upon the speaker. He was not the least agitated. He knew his mind; he knew what to say and how to say it. Except the Premier MacDonald and Joshi none from that August Assembly had seen poverty in its crudest and ugliest form. There were highlights in the Conference, Pundits and literateurs, but he was the only leader who had attained the highest degree in the academic world, the Doctorate in Science. This man was Dr. Ambedkar, the leader of the suppressed humanity in India.

At the outset, Dr. Ambedkar declared that in speaking before the Conference, he was placing the viewpoint of one-fifth of the total population of British India—a population as large as the population of England or France—which was reduced to a position worse than that of a serf or a slave. He then declared to the surprise of all that the Untouchables in India were also for replacing the existing Government by a Government of the people, for the people and by the people. He said that this change in the attitude of the Untouchables to British rule in India was surprising and a momentous phenomenon. And justifying his stand, he observed with a rise in his voice and a glow in his eyes : “ When we compare our present position with the one which it was our lot to bear in Indian society of pre-British days, we find that, instead of marching on, we are marking time. Before the British, we were in the loathsome condition due to our Untouchability. Has the British Government done anything to remove it ? Before the British, we could not draw water from the village well. Has the British Government secured us the right to the well ? Before the British, we could not enter the temple ? Can we enter now ? Before the British, we were denied entry into the Police Force. Does the British Government admit us into the force ? Before the British, we were not allowed to serve in the Military. Is that career now open to us ? To none of these questions can we give an affirmative answer. Our wrongs have remained as open sores and they have not been righted, although 150 years of British rule have rolled away.”

“Of what good is such a Government to anybody?” he asked the Conference. At this the British representatives looked at one another. There was a stir among the Indian representatives. “It was a Government,” continued Dr. Ambedkar, “which did realize that the capitalists were denying the workers a living wage and decent conditions of work and which did realize that the landlords were squeezing the masses dry, and yet it did not remove social evils that blighted the lives of the down-trodden classes for several years. Although it had,” he proceeded, “the legal powers to remove these evils, it did not amend the existing code of social and economic life, because it was afraid that its intervention would give rise to resistance.” He threrefore, declared: We must have a Government in which the men in power will give their undivided allegiance to the best interests of the country. We must have a Government in which men in power, knowing where obedience will end and resistance will begin, will not be afraid to amend the social and economic ‘code of life which the dictates of justice and expediency so urgently call for.”

Dr. Ambedkar upheld the demand for Dominion Status, but expressed doubts as to whether the Depressed Classes would be heir to it unless the political machinery for the new constitution was of a special make. While making that constitution, it should be noted, he observed, that the Indian society which was formed with an ascending scale of reverence and a descending scale of contempt and was a gradation of castes, gave no scope for the growth of the sentiment of equality and fraternity, and the intelligentsia which came of the upper strata and conducted political movements had not shed its narrow particularism of castes. Hence he asserted: “We feel nobody can remove our grievances as well as we can, and we cannot remove them unless we get political powers in our own hands. I am afraid the Depressed Classes have waited too long for time to work its miracle!”

Referring to the Indian deadlock, he recalled the memorable words of Edmund Burke whom he called the greatest teacher of political philosophy that “the use of force is but temporary”

Concluding his brilliant speech, he sounded a great warning to the British Government and to those who were engaged in the "battle of wits" in the Conference : I am afraid it is not sufficiently realized that in the present temper of the country, no constitution will be workable which is not acceptable to the majority of the people. The time when you were to choose and India was to accept is gone, never to return. Let the consent of the people and not the accident of logic be the touchstone of your new constitution, if you desire that it should be worked." * #

The fearless tone and the bold criticism in the speech had a wonderful effect upon the Conference. The frankness and fearlessness with which Dr. Ambedkar lucidly put the facts before the Conference impressed the delegates immensely, and they congratulated him on his brilliant speech. It created a good impression upon the British Premier. The *Indian Daily Mail* described this speech as one of the finest bits of oratory during the whole Conference. One man in the Conference was extremely pleased with his speech. He returned to his kingly residence full of admiration, satisfaction and high appreciation; and with joyful tears in his eyes, he told his princely wife that their efforts and the money they had spent on the speaker of the day were all realised. It was an achievement, a glorious success ! This admirer was nobody else than His Highness the Maharaja of Baroda who invited Dr. Ambedkar to a special dinner given by him in London to his choice friends. It was a strange freak of destiny that Gaekwad and Ambedkar should meet after years of estrangement in a melodramatic situation.

The effect of this powerful speech of Dr. Ambedkar was tremendous on the newspapers also. The English newspapers and pressmen devoted their attention to the leader of the Depressed Classes and English statesmen, like Lord Sydenham, O'Dwyer and others, who had bitterly criticized Dr. Ambedkar's Nagpur speech in the *Spectator*, were now thoroughly convinced that Dr. Ambedkar was a nationalist; and so they began to whisper

* Indian Round Table Conference, 1930-31, Proceedings Pp. 123-29.

#Speeches of Dr. B. R. Ambedkar in R.T.C. See Dr. Babasaheb Ambedkar Writings and Speeches Vol. 2—Editors.

that he also was one of the revolutionary leaders of India. Some of the English statesmen confidentially asked A. B. Latthe whether Dr. Ambedkar belonged to the revolutionary camp. And this inquiry on the part of the British statesmen was not unexpected. It may be recalled how the British secret police had taken a full search of Dr. Ambedkar when he landed in Britain, in 1917 from America.

During the early period of the Conference, there was an attempt made by the Liberal leaders—Sapru, Sastri and Satalvad, to reach an agreement with the Muslim delegates on the communal question. The Hindu delegates held meetings at the residence of Sir Cowasji Jehangir under the Chairmanship of Sastri to discuss the possibility of a compromise with the Muslim delegates. Moonje and Jayakar expressed the view that such a settlement would be possible after the grant of Dominion Status. The Liberal leaders—Jayakar, Moonje and Ambedkar held parleys with the Nawab of Bhopal, the Aga Khan, Jinnah and others at the residence of the Nawab of Bhopal, but the talks broke down over the Muslim demand for separation of Sind which was solidly opposed by Moonje and Jayakar. Besides, the Muslim leaders were not prepared to grant the same proportion of reserved seats to the Hindus and Sikhs in Muslim majority Provinces as they asked for themselves in others Provinces.

After the general discussion in the plenary session, the Conference appointed nine sub committees and Dr. Ambedkar found himself a Member of almost all the important subcommittees except the Federal Structure Committee. He served on the Minorities Sub-Committee, the Provincial Sub-Committee and the Services Sub-Committee with the great luminaries from India and England. In the course of the discussion on the report of the Provincial Sub-Committee, Dr. Ambedkar supported Chintamani's view that it was absolutely unnecessary and undesirable to have a Second Chamber in any province in India.

While the report of the Defence Committee was being discussed, Dr. Ambedkar pleaded that the recruitment to the Army should be upon to all Indians consistently with the considerations of efficiency and the possession of the necessary qualifications.

The most important work Dr. Ambedkar did to achieve his goal was the preparation of the Declaration of Fundamental Rights, safeguarding the cultural, religious and economic rights of the Depressed Classes. He prepared the scheme with great labour and statesmanship, and submitted it to the Minorities Subcommittee for being included in the future constitution of India. The title of the scheme was : ‘A Scheme of Political Safeguards for the Protection of the Depressed Classes in the Future Constitution of a self-governing India.’¹

The text of the Memorandum alongwith its background framed by Dr. B. R. Ambedkar is as follows—Editors.

“On the 12th November 1930, His late Majesty King George V formally inaugurated the Indian Round Table Conference. From the point of view of Indians the Round Table Conference was an event of great significance. Its significance lay in the recognition by His Majesty’s Government of the right of Indians to be consulted in the matter of framing a constitution for India. For the Untouchables it was a landmark in their history. For, the Untouchables were for the first time allowed to be represented separately by two delegates who happened to be myself and Dewan Bahadur R. Srinivasan. This meant that the Untouchables were regarded not merely a separate element from the Hindus but also of such importance as to have the right to be consulted in the framing of a constitution for India.

The work of the Conference was distributed among nine Committees. One of these Committees was called the Minorities Committee to which was assigned the most difficult work of finding a solution of the Communal question. Anticipating that this Committee was the most important committee the Prime Minister, the late Mr. Ramsay Mac Donald, himself assumed its chairmanship. The proceedings of the Minorities Committee are of the greatest importance to the Untouchables. For, much of what happened between the Congress and the Untouchables and which has led to bitterness between them will be found in the proceedings of that Committee.

1 : Keer, Pp. 144-153.

When the Round Table Conference met the political demands of communities other than the Untouchables were quite well known. Indeed the Constitution of 1919 had recognized them as statutory minorities and provisions relating to their safety and security were embodied in it. In their case the question was of expanding those provisions or altering their shape. With regard to the Depressed Classes the position was different. The Montagu-Chelmsford report which preceded the Constitution of 1919 had said in quite unmistakable terms that provision must be made in the Constitution for their protection. But unfortunately when the details of the Constitution were framed, the Government of India found it difficult to devise any provisions for their protection except to give them token representation in the legislatures by nomination. The first thing that was required to be done was to formulate the safeguards deemed necessary by the Untouchables for their protection against the tyranny and oppression of the Hindus. This I did by submitting a Memorandum to the Minorities Committee of the Round Table Conference. To give an idea of the safeguards that were formulated by me, I reproduce below the text of the Memorandum:—

A Scheme of Political Safeguards for the Protection of the Depressed Classes in the Future Constitution of a self-governing India, submitted to the Indian Round Table Conference.

The following are the terms and conditions on which the Depressed Classes will consent to place themselves under a majority rule in a self-governing India.

Condition No 1:

EQUAL CITIZENSHIP

The Depressed Classes cannot consent to subject themselves to majority rule in their present state of hereditary bondsmen. Before majority rule is established then emancipation from the system of Untouchability must be an accomplished fact. It must not be left to the will of the majority. The Depressed Classes must be made free citizens entitled to all the rights of citizenship in common with other citizens of the State.

(A) To secure the abolition of Untouchability and to create the equality of citizenship, it is proposed that the following fundamental right shall be made part of the Constitution of India.

FUNDAMENTAL RIGHT

"All subjects of the State in India are equal before the law and possess equal civic rights. Any existing enactment, regulation, order, custom or interpretation of law by which any penalty, disadvantage, disability is imposed upon or any discrimination is made against any subject of the State on account of Untouchability shall, as from the day on which this Constitution comes into operation, cease to have any effect in India."

U.S.A. Constitution amendment XIV and Government of Ireland Act 1920, 10 & 11 Geo. V. Ch. 67. Sec. 5 (2).

(B) To abolish the immunities and exemptions now enjoyed by executive officers by virtue of Sections 110 and 111 of the Government of India Act 1919 and their liability for executive action be made co-extensive with what it is in the case of a European British Subject.

This is so in all Constitutions. See Prof. Keith's remarks in Cm. 207, p.56.

Condition No. 11 :

FREE ENJOYMENT OF EQUAL RIGHTS

It is no use the Depressed Classes to have a declaration of equal rights. There can be no doubt that the Depressed Classes will have to face the whole force of orthodox society if they try to exercise the equal rights of citizenship. The Depressed Classes therefore feel that if these declarations of rights are not to be mere pious pronouncements, but are to be realities of everyday life, then they should be protected by adequate pains and penalties from interference in the enjoyment of these declared rights.

(A) The Depressed Classes therefore propose that the following sections should be added to Part XI of the Government of India Act 1919, dealing with Offences, Procedure and Penalties:—

(i) *Offence of Infringement of Citizenship.*

U.S. Statutes At Large. Civil Rights protection Acts of April 9, 1868, and of March 1, 1875—passed in the interest of the Negroes after their emancipation.

“Whoever denies to any person except for reasons by law applicable to persons of all classes and regardless of any previous condition of Untouchability the full enjoyment of any of the accommodations, advantages, facilities, privileges of inns, educational institutions, roads, paths, streets, tanks, wells and other watering places, public conveyances on land, air or water, theatres or other places of public amusement, resort or convenience whether they are dedicated to or maintained or licensed for the use of the public shall be punished with imprisonment of either description for a term which may extend to five years and shall also be liable to fine.”

(B) Obstruction by orthodox individuals is not the only menace to the Depressed Classes in the way of peaceful enjoyment of their rights. The commonest form of obstruction is the social boycott. It is the most formidable weapon in the hands of the Orthodox Classes with which they beat down any attempt on the part of the Depressed Classes to undertake any activity if it happens to be unpalatable to them. The way it works and the occasions on which it is brought into operation are well described in the Report of the Committee appointed by the Government of Bombay in 1928 “to enquire into the educational, economic and social condition of the Depressed Classes (untouchables) and of the Aboriginal Tribes in the Presidency and to recommend measures for their uplift.” The following is an extract from the same :—

Depressed Classes and Social Boycott

“102. Although we have recommended various remedies to secure to the Depressed Classes their rights to all public utilities we fear that there will be difficulties in the way of their exercising them for a long time to come. The first difficulty is the fear of open violence against them by the Orthodox Classes. It must be noted that the Depressed Classes form a small minority in every village, opposed to which is a great majority of the orthodox who are bent on protecting their interests and dignity from any supposed invasion by the Depressed Classes at any cost. The danger of prosecution

by the Police has put a limitation upon the use of violence by the orthodox classes and consequently such cases are rare.

“The second difficulty arises from the economic position in which the Depressed Classes are found to-day. The Depressed Classes have no economic independence in most parts of the Presidency. Some cultivate the lands of the Orthodox Classes as their tenants at will. Others live on their earnings as farm labourers employed by the Orthodox Classes and the rest subsist on the food or grain given to them by the Orthodox Classes in lieu of service rendered to them as village servants. We have heard of numerous instances where the Orthodox Classes have used their economic power as a weapon against those Depressed Classes in their villages, when the latter have dared to exercise their rights, and have evicted them from their land, and stopped their employment and discontinued their remuneration as village servants. This boycott is often planned on such an extensive scale as to include the prevention of the Depressed Classes from using the commonly used paths and the stoppage of sale of the necessities of life by the village Bania. According to the evidence sometimes small causes suffice for the proclamation of a social boycott against the Depressed Classes. Frequently it follows on the exercise by the Depressed Classes of their right to the use of the common-well, but cases have been by no means rare where a stringent boycott has been proclaimed simply because a Depressed Class man has put on the sacred thread, has bought a piece of land, has put on good clothes or ornaments, or has carried a marriage procession with the bridegroom on the horse through the public street.

“We do not know of any weapon more effective than this social boycott which could have been invented for the suppression of the Depressed Classes. The method of open violence pales away before it, for it has the most far reaching and deadening effects. It is more dangerous because it passes as a lawful method consistent with the theory of freedom of contact. We agree that this tyranny of the majority must be put down with a firm hand, if we are to guarantee the Depressed Classes the freedom of speech and action necessary for their uplift.”

In the opinion of the Depressed Classes the only way to overcome this kind of menace to their rights and liberties is to make social boycott an offence punishable by law. They are therefore bound to insist that the following sections should be added to those included in Part XI, of the Government of India Act 1919, dealing with offences, Procedure and Penalties.

I. OFFENCE OF BOYCOTT DEFINED

(i) *A person shall be deemed to boycott another who—*

This and the following legal provisions are bodily taken from Burma Anti-Boycott Act, 1922, with a few changes to suit the necessities of the case.

(a) *refuses to let or use or occupy any house or land, or to deal with, work for hire, or do business with another person, or to render to him or receive from him any service, or refuses to do any of the said things on the terms on which such things should commonly be done in the ordinary course of business, or*

(b) *abstains from such social, professional or business relations as he would, having regard to such existing customs in the community which are not inconsistent with any fundamental right or other rights of citizenship declared in the Constitution ordinarily maintain with such person, or*

(c) *in any way injures, annoys or interferes with such other person in the exercise of his lawful rights.*

II. PUNISHMENT FOR BOYCOTTING

Whoever, in consequence of any person having done any act which he was legally entitled to do or of his having omitted to do any act which he was legally entitled to omit to do, or with intent to cause any person to do any act which he is not legally bound to do or to omit to do any act which he is legally entitled to do, or with intent to cause harm to such person in body, mind, reputation or property, or in his business or means of living, boycotts such person or any person in whom such person is interested, shall be punished with imprisonment of either description which may extend to seven years or with fine or with both.

Provided that no offence shall be deemed to have been committed under this Section, if the Court is satisfied that the accused person has not acted at the instigation of or in collusion with any other person or in pursuance of any conspiracy or of any agreement or combination to boycott.

III. PUNISHMENT FOR INSTIGATING OR PROMOTING A BOYCOTT

Whoever—

(a) publicly makes or publishes or circulates a proposal for, or

(b) makes, publishes or circulates any statement, rumour or report with intent to, or which he has reason to believe to be likely to, cause or

(c) in any other way instigates or promotes the boycotting of any person or class of persons, shall be punished with imprisonment which may extend to five years, or with fine or with both.

Explanation.—An offence under this section shall be deemed to have been committed although the person affected or likely to be affected by any action of the nature referred to herein is not designated by name or class but only by his acting or abstaining from acting in some specified manner.

IV. PUNISHMENT FOR THREATENING A BOYCOTT

Whoever, in consequence of any person having done any act which he was legally entitled to do or of his having omitted to do any act which he was legally entitled to omit to do, or with intent to cause any person to do any act which he is not legally bound to do, or to omit to do any act which he is legally entitled to do, threatens to cause such person or any person in whom such person is interested, to be boycotted shall be punished with imprisonment of either description for a term which may extend to five years or with fine or with both.

Exception :—It is not boycott

(i) to do any act in furtherance of a bona fide labour dispute,

(ii) to do any act in the ordinary course of business competition.

N.B.—All these offences shall be deemed to be cognizable offences.

*Condition No. III**PROTECTION AGAINST DISCRIMINATION*

The Depressed Classes entertain grave fears of discrimination either by legislation or by executive order being made in the future. They cannot therefore consent to subject themselves to majority rule unless it is rendered impossible in law for the legislature or the executive to make any invidious discrimination against the Depressed Classes.

It is therefore proposed that the following Statutory provision be made in the constitutional law of India :—

“It shall not be competent for any Legislature or executive in India to pass a law or issue an order, rule or regulation so as to violate the rights of the Subjects of the State, regardless of any previous condition of Untouchability, in all territories subject to the jurisdiction of the dominion of India,

(1) to make and enforce contracts, to sue, be parties, and give evidence, to inherit, purchase, lease, sell, hold and convey real and personal property,

(2) to be eligible for entry into the civil and military employment and to all educational institutions except for such conditions and limitations as may be necessary to provide for the due and adequate representation of all classes of the subjects of the State.

(3) to be entitled to the full and equal enjoyment of the accommodations, advantages, facilities, educational institutions, privileges of inns, rivers, streams, wells, tanks, roads, paths, streets, public conveyances on land, air and water, theatres, and other places of public resort or amusement except for such conditions and limitations applicable alike to all subjects of every race, class, caste, colour or creed,

(4) to be deemed fit for and capable of sharing without distinction the benefits of any religious or charitable trust dedicated to or created, maintained or licensed for the general public or for persons of the same faith and religion,

(5) to claim full and equal benefit of all laws and proceedings for the security of person and property as is enjoyed by other subjects regardless of any previous condition of Untouchability and be subject to like punishment, pains and penalties and to none other.

*Condition No. IV**ADEQUATE REPRESENTATION IN THE
LEGISLATURES*

The Depressed Classes must be given sufficient political power to influence legislative and executive action for the purpose of securing their welfare. *In view of this they demand that the following provisions shall be made in the electoral law so as to give them—*

- (1) *Right to adequate representation in the Legislatures of the Country, Provincial and Central.*
- (2) *Right to elect their own men as their representatives—*
 - (a) *by adult suffrage, and*
 - (b) *by separate electorates for the first ten years and thereafter by joint electorates and reserved seats, it being understood that joint electorates shall not be forced upon the Depressed Classes against their will unless such joint electorates are accompanied by adult suffrage.*

N.B.—Adequate Representation for the Depressed Classes cannot be defined in quantitative terms until the extent of representation allowed to other communities is known. But it must be understood that the Depressed Classes will not consent to the representation of any other community being settled on better terms than those allowed to them. They will not agree to being placed at a disadvantage in this matter. In any case the Depressed Classes of Bombay and Madras must have weightage over their population ratio of representation, irrespective of the extent of representation allowed to other minorities in the Provinces.

*Condition No. V**ADEQUATE REPRESENTATION IN THE SERVICES*

The Depressed Classes have suffered enormously at the hands of the high caste officers who have monopolized the Public Services by abusing the law or by misusing the discretion vested in them in administering it to the prejudice of the Depressed Classes and to the advantage of the Caste Hindus without any regard to justice, equity or good conscience. This mischief can only be avoided by

destroying the monopoly of caste Hindus in the Public Services and by regulating the recruitment to them in such a manner that all communities including the Depressed Classes will have an adequate share in them. For this purpose the Depressed Classes have to make the following proposals for statutory enactment as part of the constitutional law :—

- (1) There shall be established in India and in each Province in India a Public Service Commission to undertake the recruitment and control of the Public Services.
- (2) No member of the Public Service Commission shall be removed except by a resolution passed by the Legislature nor shall he be appointed to any office under the Crown after his retirement.
- (3) It shall be the duty of the Public Service Commission, subject to the tests of efficiency as may be prescribed,
 - (a) *to recruit the Services in such a manner as will secure due and adequate representation of all communities, and*
 - (b) *to regulate from time to time priority in employment in accordance with the existing extent of the representation of the various communities in any particular service concerned.*

Condition No. VI

REDRESS AGAINST PREJUDICIAL ACTION OR NEGLECT OF INTERESTS

In view of the fact that the Majority Rule of the future will be the rule of the orthodox, the Depressed Classes fear that such a Majority Rule will not be sympathetic to them and that the probability of prejudice to their interests and neglect of their vital needs cannot be overlooked. It must be provided against particularly because, however adequately represented the Depressed Classes will be in a minority in all legislatures. The Depressed Classes think it very necessary that they should have the means of redress given to them in the Constitution. It is therefore proposed

that the following provision should be made in the Constitution of India :—

British North America Act, 1867. sec. 93. *“In and for each Province and in and for India it shall be the duty and obligation of the Legislature and the Executive or any other Authority established by Law to make adequate provision for the education, sanitation, recruitment in Public Services and other matters of social and political advancement of the Depressed Classes and to do nothing that will prejudicially affect them.*

“(2) Where in any Province or in India the provisions of this section are violated an appeal shall lie to the Governor-General in Council from any act or decision of any Provincial Authority and to the Secretary of State from any act or decision of a Central Authority affecting the matter.

“(3) In every such case where it appears to the Governor-General in Council or to the Secretary of State that the Provincial Authority or Central Authority does not take steps requisite for the due execution of the provisions of this Section then and in every such case, and as far only as the circumstances of each case require the Governor-General in Council or the Secretary of State acting as an appellate authority may prescribe, for such period as they may deem fit, take remedial measures for the due execution of the provisions of this section and of any of its decisions under this Section and which shall be binding upon the authority appealed against.

Condition No. VII

SPECIAL DEPARTMENTAL CARE

The helpless, hapless and sapless condition of the Depressed Classes must be entirely attributed to the dogged and determined opposition of the whole mass of the orthodox population which will not allow the Depressed Classes to have equality of status or equality of treatment. It is not enough to say of their economic condition that they are poverty-stricken or that they are a class of landless labourers, although both these statements are statements of fact. It has to be noted that the poverty of the Depressed Classes is due largely to the social prejudices in consequence of which many an occupation for earning a living is closed to them. This is a fact which differentiates the position of the Depressed Classes from that of the ordinary caste labourer and is often a source of trouble between the two. It has also to be borne in mind that the forms of tyranny and oppression practised against the Depressed Classes are

very various and the capacity of the Depressed Classes to protect themselves is extremely limited. The facts, which obtain in this connection and which are of common occurrence throughout India, are well described in the Abstracts of Proceedings of the Board of Revenue of the Government of Madras, dated 5th Nov. 1892, No. 723, from which the following is an extract:—

“134. There are forms of oppression only hitherto hinted at which must be at least cursorily mentioned. To punish disobedience of Pariahs, their masters—

- (a) Bring false cases in the village court or in the criminal courts.
- (b) Obtain, on application, from Government waste lands lying all round the paracheri, so as to impound the Pariahs' cattle or obstruct the way to their temple.
- (c) Have mirasi names fraudulently entered in the Government account against the paracheri.
- (d) Pull down the huts and destroy the growth in the backyards.
- (e) Deny occupancy right in immemorial sub-tenancies.
- (f) Forcibly cut the Pariahs' crops, and on being resisted, charge them with theft and rioting.
- (g) Under misrepresentations, get them to execute documents by which they are afterwards ruined.
- (h) Cut off the flow of water from their fields.
- (i) Without legal notice, have the property of sub-tenants attached for the land-lords' arrears of revenue.

“135. It will be said there are civil and criminal courts for the redress of any of these injuries. There are the courts indeed; but India does not breed village Hampdens. One must have courage to go to the courts; money to employ legal knowledge, and meet legal expenses; and means to live during the case and the appeals. Further most cases depend upon the decision of the first court; and these courts are presided over by officials who are sometimes corrupt and who generally, for other reasons, sympathize with the wealthy and landed classes to which they belong.

“136. The influence of these classes with the official world can hardly be exaggerated. It is extreme with natives and great even with Europeans. Every office, from the highest to the lowest, is stocked with their representatives, and there is no proposal affecting their interests but they can bring a score of influence to bear upon it in its course from inception to execution.”

There can be no doubt that in view of these circumstances the uplift of the Depressed Classes will remain a pious hope unless the task is placed in the forefront of all governmental activities and unless equalization of opportunities is realized in practice by a definite policy and determined effort on the part of Government. *To secure this end the proposal of the Depressed Classes is that the Constitutional Law should impose upon the Government of India a statutory obligation to maintain at all times a department to deal with their problems by the addition of a section in the Government of India Act to the following effect:—*

“1. Simultaneously with the introduction of this Constitution and as part thereof there shall be created in the Government of India a Department to be in charge of a Minister for the purpose of watching the interests of the Depressed Classes and promoting their welfare.

“2. The Minister shall hold office so long as he retains the confidence of the Central Legislature.

“3. It shall be the duty of the Minister in the exercise of any powers and duties conferred upon him or transferred to him by law, to take all such steps as may be desirable to secure the preparation, effective carrying out and co-ordination of measures preventative of acts of social injustice, tyranny or oppression against the Depressed Classes and conducive to their welfare throughout India.

“4. It shall be lawful for the Governor-General—

- (a) to transfer to the Minister all or any powers or duties in respect of the welfare of the Depressed Classes arising from any enactment relating to education, sanitation, etc.*
- (b) to appoint Depressed Classes welfare bureaus in each province to work under the authority of and in co-operation with the Minister.*

*Condition No. VIII**DEPRESSED CLASSES AND THE CABINET*

Just as it is necessary that the Depressed Classes should have the power to influence governmental action by seats in the Legislature so also it is desirable that the Depressed Classes should have the opportunity to frame the general policy of the Government. This they can do only if they can find a seat in the Cabinet. The Depressed Classes therefore claim that in common with other minorities, their moral rights to be represented in the Cabinet should be recognized. With this purpose in view *the Depressed Classes propose* that in the Instrument of Instructions an obligation shall be placed upon the Governor and the Governor General to endeavour to secure the representation of the Depressed Classes in his Cabinet.”¹

“Dr. Ambedkar despatched some copies of this Declaration of Fundamental Rights to his followers in India, asked them to hold meetings in different cities in support of the demands presented to the Minorities Sub-Committee by the Depressed Class representatives, and instructed them to send copies of the resolutions to Ramsay MacDonald, stating that those demands were the irreducible minimum for willing co-operation of the Depressed Classes : otherwise they would not consent to any constitution for self-government. Accordingly, a number of wires poured into the office of the British Premier from all parts of India.”²

Similarly, the provisions for a settlement of the communal problem put forward jointly by Muslims, Depressed Classes, Indian Christians, Anglo-Indians and Europeans in the form of memorandum, was submitted to the Minorities Committee. The text of memorandum reads as follows : Editors.

¹ : Proceedings of the Sub-Committee No. III (Minorities) Pp. 168-176.

² : Keer, P. 153.

“Provisions for a settlement of the communal problem put forward jointly by Muslims, Depressed Classes, Indian Christians, Anglo-Indians and Europeans

CLAIMS OF MINORITY COMMUNITIES

1. No person shall by reason of his origin, religion, caste or creed be prejudiced in any way in regard to public employment, office of power or honour, or with regard to enjoyment of his civic rights and the exercise of any trade or calling.

2. Statutory safeguards shall be incorporated in the Constitution with a view to protect against enactments of the Legislature of discriminatory laws affecting any community.

3. Full religious liberty, that is, full liberty of belief, worship observances, propaganda, associations and education shall be guaranteed to all communities subject to the maintenance of public order and morality.

No person shall merely by change of faith lose any civic right or privilege, or be subject to any penalty.

4. The right to establish, manage and control, at their own expense, charitable, religious and social institutions, schools and other educational establishments with the right to exercise their religion therein.

5. The Constitution shall embody adequate safeguards for the protection of religion, culture and personal law, and the promotion of education, language, charitable institution of the Minority Communities and for their due share in grants-in-aid given by the State and by the self-governing bodies.

6. Enjoyment of civic rights by all citizens shall be guaranteed by making any act for omission calculated to prevent full enjoyment an offence punishable by law.

7. In the formation of Cabinets in the Central Government and Provincial Governments, so far as possible, members belonging to the Musalman community and other minorities of considerable number shall be included by convention.

8. There shall be Statutory departments under the Central and Provincial Government to protect Minority Communities and to promote their welfare.

9. All communities at present enjoying representation in any Legislature through nomination or election shall have representation in all Legislatures through Separate Electorates and the minorities shall have not less than the proportion set forth in the Annexure but no majority shall be reduced to a minority or even an equality. Provided that after a lapse of ten years it will be open to Muslims in Punjab and Bengal and any minority communities in any other Provinces to accept Joint Electorates, or Joint Electorates with reservation of seats, by the consent of the community concerns. Similarly after the lapse of ten years it will be open to any minority in the Central Legislature to accept Joint Electorates with or without reservation of seats with the consent of the community concerned.

With regard to the Depressed Classes no change to Joint Electorates and reserved seats shall be made until after 20 years' experience of Separate Electorates and until direct adult suffrage for the community has been established.

10. In every Province and in connection with the Central Government a Public Service Commission shall be appointed, and the recruitment to the Public Services, except the proportion, if any, reserved to be filled by nomination by the Governor-General and the Governors, shall be made through such Commission in such a way as to secure a fair representation to the various communities consistently with the considerations of efficiency and the possession of the necessary qualifications. Instructions to the Governor-General and the Governors in the Instrument of Instructions with regard to recruitment shall be embodied to give effect to this principle, and for that purpose, to review periodically the composition of the services.

11. If a Bill is passed which, in the opinion of two-thirds of the members of any Legislature representing a particular community affects their religion or social practice based on religion, or in the case of fundamental rights of the subjects if one-third of the members object, it shall be open to such members to lodge their objection thereto, within a period of one month of the Bill being passed by the House, with the President of the House who shall forward the same to the Governor-General or the Governor, as the

case may be, and he shall thereupon suspend the operation of that Bill for one year, upon the expiry of which period he shall remit the said Bill for further consideration by the Legislature. When such Bill has been further considered by the Legislature and the Legislature concerned has refused to revise or modify the Bill so as to meet the objection thereto, the Governor-General or the Governor, as the case may be may give or withhold his assent to it in the exercise of his discretion, provided further that, the validity of such Bill may be challenged in the Supreme Court by any two members of the denomination affected thereby on the grounds that it contravenes one of their fundamental rights.

SPECIAL CLAIMS OF MUSALMANS

A. The North-West Frontier Province shall be constituted a Governor's Province on the same footing as other Provinces with due regard to the necessary requirements for the security of the Frontier.

In the formation of the Provincial Legislature the nomination shall not exceed more than 10 per cent of the whole.

B. Sind shall be separated from the Bombay Presidency and made a Governor's Province similar to and on the same footing as other Provinces in British India.

C. Musalman representation in the Central Legislature shall be one-third of the total number of the House, and their representation in the Central Legislature shall not be less than the proportion set forth in the Annexure.

SPECIAL CLAIMS OF THE DEPRESSED CLASSES

A. The Constitution shall declare invalid any custom or usage by which any penalty or disadvantage or disability is imposed upon or any discrimination is made against any subject of the State in regard to the enjoyment of civic rights on account of Untouchability.

B. Generous treatment in the matter of recruitment to Public Service and the opening of enlistment in the Police and Military Service.

C. The Depressed Classes in the Punjab shall have the benefit of the Punjab Land Alienation Act extended to them.

D. Right of Appeal shall lie to the Governor or Governor-General for redress of prejudicial action or neglect of interest by any Executive Authority.

E. The Depressed Classes shall have representation not less than set forth in the Annexure.

SPECIAL CLAIMS OF THE ANGLO-INDIAN COMMUNITY

A. Generous interpretation of the claims admitted by Sub-Committee No. VIII (Services) to the effect that in recognition of the peculiar position of the community special consideration should be given to the claim for public employment, having regard to the maintenance of an adequate standard of living.

B. The right to administer and control its own educational institutions, *i.e.*, European education, subject to the control of the Minister.

Provisions for generous and adequate grants-in-aid and scholarships on the basis of present grants.

C. Jury rights equal to those enjoyed by other communities in India unconditionally of proof of legitimacy and descent and the right of accused persons to claim trial by either a European or an Indian Jury.

SPECIAL CLAIMS OF THE EUROPEAN COMMUNITY

A. Equal rights and privileges to those enjoyed by Indian-born subjects in all industrial and commercial activities.

B. The maintenance of existing rights in regard to procedure of criminal trials, and any measure or bill to amend, alter or modify such a procedure cannot be introduced except with the previous consent of the Governor-General.

Agreed by—

HIS HIGHNESS THE AGA KHAN (Muslims),

DR. AMBEDKAR (Depressed Classes),

RAO BAHADUR PANNIR SELVAM (Indian Christians),

SIR HENRY GIDNEY (Anglo-Indians),

SIR HUBERT CARR (Europeans).

ANNEXURE

REPRESENTATION IN LEGISLATURES

Figures in brackets=Population basis 1931 figures and depressed percentages as per Simon Report.

Stength of Chamber	Hindus		Total	Muslims	Christians	Sikhs	Anglo-Indians	Tribal etc.	Europeans
	Caste	Depressed							
Census ALL India (1931)									
		(47.5)	(19)*	(66.5)	(21.5)				
Upper	.. 200	101	20	121	67	1	6	1	4
Lower	.. 300	123	45	168	100	7	10	3	12
		(48.9)	(13.4)	(62.3)	(34.8)				
Assam	.. 100†	38	13	51	35	3	..	1	10
		(18.3)	(24.7)	(43)	(54.9)				
Bengal	.. 200	38	35	73	102	2	..	3	20
		(67.8)	(14.5)	(82.3)	(11.3)				
Bihar and Orissa	100	51	14	65	25	1	..	1	5

* Represents percentage in Governor's Provinces of British India.

† Population figures exclude Tribal Areas.

ANNEXURE—contd.

REPRESENTATION IN LEGISLATURES

Figures in brackets=Population basis 1931 figures and depressed percentages as per Simon Report.

Strength of Chamber	Hindus		Total	Muslims	Christians	Sikhs	Anglo-Indians	Tribal etc.	Europeans
	Caste	Depressed							
Bombay	200	88	(68)	(8)	(76)	(20)			
				28	116	66	3	..	13
On Sind being separated weightage of Musalmans in Bombay to be on the same footing as to the Hindus in the N.W.F.P.									
C.P.	100	58	(63.1)	20	(23.7)	(86.8)	(44)		
						78	15	1	2
						(86.7)	(7.1)	..	(3.7)
Madras	200	102	(71.3)	40	(15.4)	(86.7)	30	4	8
						142	14	..	2
						(28.6)	(56.5)	(13)	
Panjab	100	14	(15.1)	10	(13.5)	(28.6)	51	20	2
						24	1.5	..	
						(84.5)	(14.8)		
U.P.	100	44	(58.1)	20	(26.4)	(84.5)	30	1	3
						64	2	..	

Sind and N.W.F.P. Weightage similar to that enjoyed by the Musalmans in the Provinces in which they constitute a minority of the population shall be given to the Hindu minority in Sind and to the Hindu and Sikh minorities in the N.W.F.P.

Explanatory Memorandum to the said Memorandum

1. The suggested details for community representation have not been agreed by the Hindus or the Sikhs, but the full representation claimed by the latter in the Central Legislature is provided for.

2. The proposed distribution of seats for the different minorities constitutes a whole scheme and the detailed proposals cannot be separated one from another.

3. This distribution of seats follows the principle that in no case is the majority community to be reduced to the position of a minority of even equality.

4. No representation is provided for Commerce, Landlords, Industry, Labour, etc. It being assumed that these seats are ultimately communal and that communities desiring special representation for these interests may do so out of the communal quota.

5. The allowance of 33½ per cent representation to Muslims in the Central Legislature is based on the assumption that 26 per cent shall be from British India and at least 7 per cent by convention out of the quota assigned to the Indian States.

6. In the Punjab the suggested common sacrifice by the Muslims, Caste Hindus and the Depressed Classes, would permit of a weightage of 54 per cent, being given to the Sikhs, giving them representation of 20 per cent, in the Legislature.

7. The proposals may be taken as being acceptable to well over 115 millions of people, or about 46 per cent of the population of India.” *

The British Premier tried in his own way to bring the Indian delegates to a frame of mind for a settlement. The Premier's daughter gave a party to choice delegates. The Maharaja of Baroda,

*This appeared as appendix III in the original proceeding of the Federal Structure Committee and Minorities Committee, Pp. 1394-99.

Dr. Ambedkar, Sir Mirza Ismail, Jinnah, Tambe and few others attended it. The British Premier took some of the delegates to his country home at Chequers. They had a talk there relating to the Indian problem, but there, too, they could not come to a settlement.

The Minorities Sub-Committee submitted its report to the Conference. The last paragraph of that report recorded that “the Minorities and Depressed Classes were definite in their assertion that they could not consent to any self-governing constitution of India unless their demands were met in a reasonable manner.”

Like Joshi, Jadhav and Paul, Dr. Ambedkar dissented from the proposals of the Franchise Sub-Committee as in their opinion the proposals were inadequate, and they pleaded for immediate introduction of adult franchise. In the written speech, which he could not make for want of time, Dr. Ambedkar warned the British Government that it would be betraying the Depressed Classes if by limiting the franchise the Labour Government left them to the mercy of those who had taken no interest in their welfare.

Such was his sincerity and devotion to the problem and to the welfare of his people that Dr. Ambedkar worked day and night, sought interviews, gave interviews, supplied information, and even addressed a meeting of some Members of the British Parliament to acquaint them fully with the problem of the Untouchables. He took every opportunity of contributing articles to foreign journals, of issuing statements to the foreign press and of addressing meetings in London with the sole object of exposing the intolerable humiliations and unbelievable suffering under which the Depressed Classes were groaning in India for ages. In appeal after appeal to the Press he said that the cause of the Untouchables in India needed the support of the enlightened world. He, therefore, urged that it was the sacred duty of the people at large to help the solution of their problem on the basis of humanity!

The result was that the world came to know for the first time that the fate of the Untouchables in India was worse than that of the Negroes in America. The appeal moved some of the British leaders and consequently a deputation consisting of some Members

of the British Parliament such as Miss Eleanor, Miss Ellen, Norman Angle and a few others, waited on Lord Sankey and pleaded for investing the Depressed Classes with franchise, and for removing their disabilities. Lord Sankey promised that in their proposed political set-up they would be placed with the other classes and masses of India. Some of the British papers, however were hostile to Dr. Ambedkar because he said, "I do not oppose the move for Dominion Status" * He said that he, too did not mind their indifference or opposition to his cause.

Dr. Ambedkar's profound study, great industry and conquering intellect created a tremendous impression upon the delegates and the British statesmen. He inspired respect as well as hatred in different circles. The *Indian Daily Mail* reporter observed: "Dr. Ambedkar pointed out that he had a mandate to see that no responsible Government was established, unless it was at the same time, accompanied by a truly representative Government. He voiced a fear that the proposed form of Government would be one of the masses by the classes and his protest found much echoing sympathy in the Labour and Liberal Parties of Great Britain."

After recording the reports of the different Sub-Committees, the Round Table Conference adjourned on January 19, 1931. This was followed by a debate on India in the House of Commons. During the course of the debate, one voice echoed the grievances of the Depressed Classes. It was Issac Foot who was a man of broader sympathies. Referring to the disabilities of the Untouchables, he said, "If we do not establish safeguards for their protection, their blood may cry out against us. If I had any advice to give to future Governors, it will be 'Let your main concern be for these people.' They may be defenceless now, but one day they will be strong. As there is justice upon the earth, there is no bank

* Dr. Ambedkar's letter 19th December 1930.

that can keep back for ever the accumulated sufferings of these people. The real test of the progress of India twenty years hence will be 'what have you done for these people ?' This speech was an eloquent tribute to Dr. Ambedkar's ceaseless work in London.

Before leaving London, Dr. Ambedkar expressed his opinion on the work of the Round Table Conference in a letter to his secretary Shrivastkar that although he was in two minds as to the outcome of the Conference, he was confident that it had laid the foundation of the self-government of India. Viewed in this light the Conference was a success. Yet viewed from another angle, he observed that the foundation had more of sand than mortar.* Hence the foundation was not strong enough. But so far as the rights of the Depressed Classes were concerned, it was a tremendous success, he added.

The notable contribution of this session of the Round Table Conference to Indian political thought was the evolution of the conception of a United India. Another solid outcome was the definite emergence of the Depressed Classes in the political picture of India, and more important was the brilliant and moving exposition of their insufferable conditions by Dr. Ambedkar before the bar of world opinion. Owing to disagreement on the question of seats, which the different communities sought to secure in the proposed legislatures, and on the system of election whether separate or joint electorates with reserved seats should be employed, the Conference was adjourned. Besides, it must have been thought that taking any vital decision at that time was like reckoning without hosts ; for Congress, the major political party of India, had not participated in the proceedings. Dr. Ambedkar left for India, embarking at Marseilles on February 13, 1931.”¹

* Dr. Ambedkar's letter, 21st January 1931.

¹ :Keer, Pp. 154-157.

“DEPRESSED CLASSES AND FUTURE CONSTITUTION

Dr. B. R. Ambedkar, who also arrived in Bombay on Friday the 27th February 1931 morning was given an enthusiastic reception at Ballard Pier by a *battalion of the Ambedkar Seva Dal* Interviewed by a representative of *The Times of India* he made the following statement:” The Round Table Conference is to my mind a triumph of statesmanship. It would be an idle pretence to say that there are no defects in the Constitution as outlined by the Conference, but in my opinion they are not of a vital character. Even assuming the contrary to be the truth there is yet time and opportunity for all those who believe in a peaceful solution of the Indian problem to step in and improve the framework. My greatest disappointment arises from the fact that the Constitution as outlined by the Conference is most undemocratic in as much as it is based on a very restricted franchise. It is a great pity that Mr. Gandhi, judging from the reports of his pronouncement on the results of the Conference, seems to have entirely lost sight of this aspect of the Constitution and is laying stress on elements which, I venture to think, are the most trivial and the most transient. Those of us who represented the Depressed Classes and labour fought for adult suffrage and although we failed, because all other parties played false to their position as signatories to the Nehru Report. I for one have been living in the hope that when Mr. Gandhi comes to lay down his terms of settlement he will see to it that the Constitution to which he will be a party will be a thoroughly democratic one.

If Mr. Gandhi fails us in our efforts to secure political power to the common man and woman in India, I would not hesitate to call his act as the greatest betrayal of trust and his campaign of civil disobedience as the worst exploitation of the masses for the service of the classes. In view of the fact that Mr. Gandhi’s political philosophy is not known to many it may be advisable for those leaders of the masses who count themselves among his followers and disciples to ask from him a declaration of his views on the question of adult suffrage before they give him any further support in his campaign of civil disobedience.”

The Minority Problem

“The most important problem is, of course, the minority problem. Without a solution of this problem there can be no liberty for India. Unfortunately the Conference failed to solve this problem. But a solution must be found before any further steps can be taken in the direction of political reform. He does not seem to have been realised in India that the Conference has virtually made the grant of political power dependent upon an agreed solution of the majority problem. Regarding the question of the Depressed Classes whom Mr. R. M. Srinivasan and myself represented at the Conference, I am glad their place in the future Constitution of India is secure and their disabilities will be non-existent”¹.

“Just at this time the names of the delegates to the second session of the Round Table Conference were announced in the third week of July. Dr. Ambedkar, Sastri, Saprti, Jayakar, Setalvad, Malaviya, Sarojini Naidu, Gandhi, Mirza Ismail, Jinnah, Ramaswami Mudaliar and others were invited to attend the Conference in London. Dr. Ambedkar was purposely dropped out from the Federal Structure Committee at the first session of the Round Table Conference. His patriotic mind and his fearless advocacy for the common man and democracy had given the Britishers an offence. But this time he was selected on the Federal Structure Committee, which was vitally connected with the drafting of the new Constitution for India.

Congratulations were showered from all quarters of India and even from England on Dr. Ambedkar. Newspapers from the opposite camp also began to appreciate his patriotism, his love for democracy and his anxiety for the welfare of the common man. The *Kolaba Samachar*, a district paper of note, which was hostile to him in matters of social reforms, expressed a debt of gratitude to Dr. Ambedkar for the patriotic service he had rendered to the country in the Chirner Trial. It recalled his services at the time of the visit of the Simon Commission and at the first session of the Round Table Conference ; and it added that Dr. Ambedkar was a true patriot and would fight to break the shackles of the country and help Others do so at the second session of the Round Table Conference.”².

¹ : The Times of India, dated 28th February 1931.

² : Keen P. 163.

The *Indian Daily Mail*, in its issue dated 21st July 1931, congratulating the Doctor upon his nomination to the Federal Structure Committee, paid a glowing tribute to Dr. Ambedkar.

It said : "I congratulate Dr. Ambedkar upon his invitation. Dr. Ambedkar made a tremendous impression at the Round Table Conference and his speech at the opening session was one of the finest bits of oratory delivered during the whole Conference. His final attitude to the Sankey report was that of 'one who does not approve but also who does not object. ' He pointed out that he had a mandate to see that no responsible Government was established unless it was at the same time, accompanied by a truly representative Government. He voiced a fear that the proposed form of Government would be one of the masses by the classes, and his protest found much echoing sympathy in the Labour and Liberal Party of Great Britain. On the other hand Dr. Ambedkar will not play the old fashioned minority game. He is a patriot and is vitally interested in securing self-government. In the future discussions, which will centre round the franchise of the senate and" the Federal Assembly, this brilliant representative of the Depressed Classes is certain to play a most important part."¹.

The Sunday Chronicle in its issue dated 26th July 1931. under the initials A.T.T., appreciating the services of Dr. B. R. Ambedkar as a true nationalist, said ; "One of the delegates nominated to the Federal Structure Committee is my friend Dr. Ambedkar. When he was in London last year attending the R.T.C. I saw a good deal of him. At heart a true nationalist he had to put up a stem fight against the persuasive coquetry of the British diehards who are anxious to win him over to their side and at the same time his task was made more difficult by his anxiety to retain his brother delegate Rao Bahadur Srinivasan within the Nationalist fold. At the Chesterfield Gardens, time and again, he complained that Sir Tej Bahadur was giving more to the Princes in the process of give and take. But he admitted that Sir Tej had to manouvre through a very difficult situation."².

¹: Reprinted, Ganvir, Ambedkar-Gandhi : Teen Mulakhati, (Marathi) Pp.6-7.

²: Ibid. Pp. 7-8.

“The Kesari and several other news-papers expressed satisfaction at the nomination of Dr. Ambedkar. Congratulating the Doctor and N. M. Joshi, the Journal of the Servants of India Society observed : “Being drawn from the humble ranks of the society. one representing the labour classes and the other Depressed Classes, they are necessarily strangers to ‘high politics’ as they are understood in this country. They have the simple faith of the simple folk whose cause they have espoused, and they will not be deterred by the superior smile of the eminent personages surrounding them, from insisting on the literal application of certain principles which they have been taught to hold as inviolable.” A little before this the London representative of the *Free Press Journal*, a leading nationalist daily in Bombay, in his reply to Miss Mayo had eulogised the services which Dr. Ambedkar had rendered at the first session of the Round Table Conference, and said that Dr. Ambedkar was a fearless, independent and patriotic-minded leader whose fearlessness was unbearable to both Hindus and Muslims, and that his opening speech at the first session of the Round Table Conference was the best speech in the whole proceedings of the Conference.

It was not decided as yet whether Gandhi would attend the Round Table Conference. Naturally all eyes were focussed on Manibhuvan at the Malabar Hill in Bombay, owing to the mysterious suspense created by Gandhi’s stagecraft and statecraft. In the bustle and hurry Gandhi wanted to sound Ambedkar as to his demands. So Gandhi wrote to Ambedkar on August 6, 1931, informing him that he would come to see the latter at eight o’clock that night if Dr. Ambedkar could spare the time. Gandhi added that he would gladly come over to Dr. Ambedkar’s residence, if it was inconvenient to Dr. Ambedkar to come to him.”¹.

Accordingly the meeting between Ambedkar and Gandhi was held on August 14, 1931, at Manibhuvan, at two in the afternoon.

“SEGREGATING UNTOUCHABLES

Dr. Ambedkar, the Depressed Classes leader, who saw Mr. Gandhi before he sailed by the *Mooltan* to take part in the Round Table Conference, is said to have told the Mahatma a few hometruths

¹ :Keer;Pp. 163-64.

about the insincere attitude of the Congress towards the grievances of Untouchables. What *can* the poor Mahatma do when the whole country simply believes in Untouchability ?”¹

The next day was Saturday, August 15, 1931. Almost all the Round Table Conference delegates were to sail for London by the *S. S. Mooltan*. The Ballard Pier at Bombay presented a picturesque appearance on the day. From princes to paupers all soils of people were present at the Pier. Friends, admirers, followers and devotees assembled to wish *bon voyage* to their Princes and heroes. One leader who received a great ovation as soon as he got down from the car was Dr. Ambedkar. Over two thousand volunteers had collected on the road outside and greeted him as he arrived at the Mole Station with shouts of “Dr. Ambedkar ki jai” and “Long live Dr. Ambedkar ”.²

“On boardship Dr. Ambedkar came across Sir Prabhashankar Pattani, who asked him about the outcome of the latter’s interview with Gandhi. Sir Prabhashankar told Dr. Ambedkar that as he had left the hall in the middle of the interview, he was not in the know of its outcome or end. Dr. Ambedkar, who got the clue from the strange note in the voice of the Knight, asked him why he had left the hall in the middle. The Knight said bitingly that according to Hindu scriptures a gentleman should quit the place where a detractor reviled a good man, if the hearer could not cut out the tongue of the detractor on the spot. Dr. Ambedkar was all the more tickled by the growing insensible temper of the Knight and, without any sign of irritation on his face, asked him what punishment was prescribed by Pattani’s Hindu scriptures for a rank hypocrite and an abject flatterer. At this crack of the whip Pattani got wild and asked Dr. Ambedkar what he meant by such a brutal attack. Dr. Ambedkar replied that he meant what the knight understood and added that Gandhi should be freed from the grip of abject flatterers like him. The Police Commissioner, Wilson, intervened, and a further scene was averted. The Knight must have left a wiser man. Indeed, the world would be no less benefited, if all its great men turn introspective and get themselves rid of the flattering functions of men surrounding them !

¹ : The Times of India, dated 18th August-1931.

² : Keer:Pp. 168-169.

Sarojini Naidu and Malaviya, who were to go by the same steamer, cancelled their passages, as Gandhi had not yet decided about his departure. In the interview which Dr. Ambedkar gave on the steamer he referred to Gandhi's refusal to go the Round Table Conference and said it was the height of folly to place the interests of Bardoli above those of India. "to bother about petty grievances and to be unmindful of bigger problem the settlement of which will enable him to exercise control over those very officers is a thing which I cannot understand."

Ambedkar was now deeply thinking of Gandhi's decision to oppose his demands. So he sent a message to his people in India through his secretary to hold meetings to denounce the attitude of Gandhi towards their claims. From Suez he wrote another letter to Shvtarkar asking him to send copies of the Memorandum which he had submitted to the Minorities Sub-Committee of the first session of the Round Table Conference. He also asked him to send with Rao Bahadur R. Srinivasan the leather bag which he had left behind.

On the steamer, Jayakan the Maharaja of Rewa and other leaders expressed their satisfaction at the imposing sight of the Samata Seva Dal of the Depressed Classes. Shaukat Ali was glad; Dr. Moonje was pleased and even expressed his hidden joy that in spite of the failure of the Hindu Mahasabha to raise such a disciplined volunteer corps, there was one organization of the Untouchable Hindus to stand face to face with the Muslim volunteers ! Moonje even congratulated Dr. Ambedkar on his being the leader of the Untouchables, who were conscious enough to know Dr. Ambedkar's services to their cause, and added that they were not indifferent and ungrateful, like the Caste Hindus, who knew not their benefactors !

On reaching London on August 29, Dr. Ambedkar was down with influenza and suffered terribly from vomiting and diarrhoea. The illness sapped his energy, so much so that he wrote to Shvtarkar that his health was on the brink of a crisis. From Monday, September 7, he began to feel better but weakness still lingered. All the time he advised Shvtarkar not to utter a word about his illness to his wife. One thing weighed on his mind. Defeated at the Mahad Sub-judge's Court the Orthodox

Hindus had appealed to the District Court at Thana, and the judgment of the District Judge at Thana was due. He asked Shivtarkar to inform him about it as soon as it was delivered.

In the meanwhile, Gandhi, Vallabhbhai Patel, Jawaharlal Nehru and Sir Prabhashankar Pattani met the Viceroy at Simla where the differences were patched up, and Gandhi left for Bombay to catch the earliest steamer to go to London. Gandhi, alongwith Sarojini Naidu, Pandit Mataviya, and his party, sailed for England on August 29, and reached London on September 12, 1931,

The second session of the Round Table Conference commenced on September 7, 1931. This time the personnel of the Conference was enlarged by including a few more delegates such as Sir Muhamed Iqbal, the Muslim League President : Dr. S. K. Dutta. the Christian representative ; G. D. Birla, the great financier ; Pandit Malaviya, a *Sanatani* reformer ; Sarojini Naidu, the Nightingale of India ; and Sir Ali Imam. The outstanding feature of this session was the presence of Gandhi's enigmatic personality. The first session of the R. T. C. was 'Hamlet' without the Prince of Denmark !

Shortly before the Conference met, a change had come over-Britain. The Labour Government was replaced by a National Government, the Prime Minister, Ramsay MacDonald, remaining in the saddle as before. The Secretary of State for India, Wedgwood Benn, was replaced by Sir Samuel Hoare. Conservative leaders like Churchill vehemently opposed the proposed transfer of power to India.

The main work of the Round Table Conference was to be done in the Federal Structure Committee and the Minorities Committee. The Conference was to re-examine and amplify the reports prepared by the corresponding Committees of the first session of the Round Table Conference. Mahatma Gandhi made his first speech in the Conference on September 15, 1931, in the Federal Structure Committee. He claimed that the Congress represented all Indian interests and classes. He told the Conference that the Congress represented the Muslims because it had Muslims as Presidents and Muslims as members of its

Working Committee. It represented the Depressed Classes because removal of Untouchability was a plank on the political platform of the Congress. Gandhi told the Princes that Congress stood for States also inasmuch as “even now the Congress had endeavoured to serve the Princes of India by refraining from any interference in their domestic and internal affairs”. The Congress represented women, Gandhi observed, because Congress had Dr. Annie Besant and Sarojini Naidu as Presidents. And because he was the sole representative of the Congress, it followed that he was the sole representative of the Indian nation !

Dr. Ambedkar sensed from this speech of Gandhi in what direction the wind was blowing. Dr. Ambedkar made his first speech in the Federal Structure Committee on the same day. He told the Princes that the Federal Structure Committee could not blindly give to the State what they wanted. This put the Maharaja of Bikaner on his legs, and he replied that nor could the States sign a blank cheque either. Dr. Ambedkar, emphasizing his point, said that before a State was allowed to join the Federation, it must prove that it had the necessary resources and the capacity to give its citizens a civilized life, and the main condition laid down by Dr. Ambedkar was that the States’ representatives to the Federal Assembly should be chosen by election and not by nomination. It was his confirmed opinion that nomination made the Executive irresponsible to the Legislature giving a false appearance to the outside world that the Legislature was working normally on the basis of a majority rule. He added that the principle of nomination was against the principle of responsible Government. As regards the demand of the landlords for special representation, he said that they should not be given special representation as they sided with the orthodox, and thereby defeated the ends of freedom and progress. Obviously, this was the first and best speech made in defence of the rights of the States’ people.

These strong views gave a shock to the Princely Order, the landlords and their benefactors, who favoured the view of the Princes that their representatives to the Federal Assembly should be selected by nomination. The result was that every speaker devoted some part or other of his speech to refuting or supporting Dr. Ambedkar’s speech as a majority of them thought that his views were radical and revolutionary.

The next day Gandhi expressed his views that the Round Table Conference delegates were not the chosen ones of the nation, but chosen ones of the British Government. Not that Gandhi was not aware of this before his departure to London. But he now began to twit the delegates. Regarding Dr. Ambedkar's views on States' representation on the Federal Legislatures, Gandhi said that while his sympathies were, broadly speaking, with Dr. Ambedkar, his reason was wholly with Gavin Jones and Sir Sultan Ahmed, who echoed the views of the Princely Order. Gandhi favoured the proposal for Federation, but supported the standpoint of the Princes as against the States' people, saying: "Here we have no right, in my humble way, to say to the States what they should do and what they shall not do !"

Gandhi then turned to the pivotal problem that was haunting the delegates. He referred to the problem of special representation claimed by the different communities, and said: "The Congress has reconciled itself to special treatment of the Hindu-Muslim-Sikh tangle. There are sound historical reasons for it, but the Congress will not extend that doctrine in any shape or form. I listened to the list of special interests. So far as the Untouchables are concerned, I have not yet quite grasped what Dr. Ambedkar has to say, but of course, the Congress will share the onus with Dr. Ambedkar of representing the interests of the Untouchables. The interests of the Untouchables are as dear to the Congress as the interests of any other body or of any other individual throughout the length and breadth of India. Therefore, I would most strongly resist any further special representation."

This was nothing but a declaration of war, Ambedkar observed, by Gandhi and by the Congress against the Untouchables. "With this declaration by Mr. Gandhi," he added, "I knew what Mr. Gandhi would do in the Minorities Committee which was the main forum for the discussion of this question."

On September 18 Ambedkar rose and asked Gandhi in the Federal Structure Committee whether the views placed by Gandhi regarding the Federal Legislature and the formation of the Federal Executive were his own or those of the Congress. When Diwan Bahadur, Ramaswami Mudaliar stated that the public servants,

who constituted the Political Department, were as conscientious and fair as any other body of public servants anywhere in India or outside. Dr. Ambedkar at once asked him why then he wanted responsible Government at all if that was so. In his speech Pandit Malaviya pleaded for patience and courtesy to be shown to the Princes and observed that had Government utilized all resources and spent sufficient money on promoting primary education among the people, he was sure the words Depressed Classes would have been a matter of history by that time. Dr. Ambedkar at once pointed out his own case and said that in spite of his education he was still an Untouchable. In the course of his speech Sir Akbar Hydari, while replying to Dr. Ambedkar, said : "Speeches like those of Dr. Ambedkar, if I may say so, do not sufficiently appreciate the realities of the situation." Upon this Dr. Ambedkar answered back : "I have never been guilty of not appreciating realities."

While discussing the formation of the Federal Constitution, nobody referred to the time-limit for initiation of Federation. It was Dr. Ambedkar who lifted the veil by saying : "I do not know that there would be any British Indian who would like to put the establishment of responsible Government in cold storage untill the Princes make up their minds to enter into the Federal Government of India."

During these discussions in the Federal Structure Committee there were flashes, exchanges of views, reviews of the constitutional history of the world and ideas about Free India. Dr. Ambedkar's speeches on those topics were full of information, interest and valuable suggestions. The politician, the barrister, the constitutionalist, the professor, the defender of the downtrodden millions and the friend of the States people profoundly impressed the Conference with different facets of his erudition.

By now the third week of September 1931 was over. The Minorities Committee was to commence its work on September 28. On the eve of this session, Gandhi's son, Devdas Gandhi, saw Dr. Ambedkar at his residence, and an interview was fixed between Gandhi and Dr. Ambedkar at the residence of Sarojini Naidu between 9 and 12 p.m. Accordingly, Dr. Ambedkar saw

Gandhi and placed his cards on the table. But Gandhi did not open his mind and said that he would consent to Dr. Ambedkar's demands if others agreed.

The Minorities Committee met for the first time on September 28, 1931. The Premier admitted that the problem of minorities in India had baffled them all. He observed that some of the delegates had suggested that Government should arbitrate as the delegates themselves had failed to agree, but he opined that the arbitration would probably be unacceptable to some of them. Upon this the Aga Khan said that Mahatma Gandhi was going to see the Muslim delegates that night and so he asked for an adjournment. Seconding the Aga Khan, Malaviya wished that the general discussion might stand over.

Dr. Ambedkar was in the know of the secret talks that were going on between the Muslim leaders and Gandhi regarding the Hindu-Muslim agreement. So referring to the motion for adjournment, he said : "As far as the Depressed Classes are concerned, we have already presented our case to the Minorities Sub-Committee last time. The only thing which remains for me to do is to put before this Committee a short statement suggesting the quantum of representation which we want in different Legislatures."

He himself had heard with great pleasure, Dr. Ambedkar continued, that further negotiations were going to take place for the settlement of the communal issue. He further observed: "But I would like to make this matter absolutely plain at the start. Those who are negotiating ought to understand that they are not plenipotentiaries at all; that whatever may be the representative character of Mr. Gandhi or the Congress people, they certainly are not in a position to bind us—certainly not. I say that most emphatically in this meeting." And concluding his speech with a warning, he said : "I want to say most emphatically that whoever claims weightage and whoever is willing to give that weightage he must not give it—he cannot give it—out of my share." Upon this the Chairman, MacDonald said : "Dr. Ambedkar's position has been made absolutely clear, in his usual splendid way. He has left no doubt at all about it."*

* Proceedings of Federal Structure Committee & Minorities Committee, p. 527.

On October 1 Mahatma Gandhi again asked for a week's adjournment. He told the Committee that he was being closeted with Muslim leaders of various groups. At this Dr. Ambedkar got up and said that he did not wish to create any difficulty in arriving at such a settlement, but wanted to know whether or not the Depressed Classes would be represented on that formal Committee. Gandhi replied in the affirmative. Dr. Ambedkar thanked Gandhi for this, and turning to the delegates, explained: "Mahatma Gandhi told us on the first day that he spoke in the Federal Structure Committee that as a representative of the Indian National Congress he was not prepared to give political recognition to any community other than the Muslims and the Sikhs. He was not prepared to recognize the Anglo-Indians, the Depressed Classes and the Indian Christians. I do not think that I am doing any violence to etiquette by stating in this Committee that when I had the pleasure of meeting Mahatma Gandhi a week ago and of discussing the question of the Depressed Classes with him and when we, as Members of the other minorities, had the chance of talking with him yesterday in his office, he told us in quite plain terms that the attitude that he had taken in the Federal Structure Committee was his full and well-considered attitude."

Dr. Ambedkar, then thundered that if the Depressed Classes were not going to be recognized in the future constitution of India, as was done by the Minorities Sub-Committee during the first session of the Round Table Conference, he would neither join that particular Committee nor whole-heartedly support the proposition for adjournment. Sir Herbert Carr, Dr. Dutt and others welcomed the adjournment.

The discussions between Gandhi and the Muslim leaders went on for a week. The newspapers declared that the discussions had reached an encouraging stage. It was reported that Gandhi had conceded to the Muslims their fourteen points, accepted that the residuary powers be vested in federating provinces, allowed the Muslims majority in the Punjab and in Bengal, and had offered the Muslims a blank cheque. The talks, however, failed on the Sikh-Muslim question.

On October 8 Gandhi announced, with deep sorrow to the Minorities Committee, his utter failure in securing an agreed solution of the communal question through informal conversations amongst and with the representatives of different groups. He said that the causes of failure were inherent in the composition of the Indian Delegation, and that they were almost all not elected representatives of the parties or groups whom they were presumed to represent nor were those whose presence was absolutely necessary for an agreed solution. He, therefore, moved for an adjournment of the meeting *sine die*. Dr. Ambedkar took up the challenge and stood to reply to Gandhi. He said that Gandhi was guilty of a breach of understanding according to which it was agreed the previous night that none of the delegates was to make any speech or any comment that would cause exasperation.

Dr. Ambedkar's vitriolic tone began to rise. He thundered: "What distaubs me, after hearing Mr. Gandhi, is that instead of confining himself to his proposition, namely, that the Minorities Committee should be adjourned *sine die*, he started casting reflections upon the representatives of the different communities who are sitting round this Table. He said that the delegates were the nominees of Government, and that they did not represent the views of their respective communities for whom they stood, we cannot deny the allegation that we are nominees of the Government, but speaking for myself, I have not the slightest doubt that even if the Depressed Classes of India were given the chance of electing their representatives to this Conference, I would all the same, find a place here. I say therefore, that whether I am a nominee or not, I fully represent the claims of my community. Let no man be under any mistaken impression as regards that."

The Mahatma has been claiming, "Dr. Ambedkar proceeded" that the Congress stands for the Depressed Classes, and that the Congress represents the Depressed Classes more than I or my colleagues can do. To that claim I can only say that it is one of the many false claims which irresponsible people keep on making although the persons concerned with regard to those claims have been invariably denying them.* Dr. Ambedkar thereupon showed how he had

* Proceedings of Federal Structure Committee & Minorities Committee, p. 534.

received from the farthest Untouchable corner of India—from the places which he had never visited and from the men he had never seen—telegrams supporting the stand taken by him. He then told the Committee that either the Committee should solve the problem or the British Government should undertake its solution. In his utter disappointment and fear he said that the Depressed Classes were not anxious about the transfer of power under the present circumstances, but if the Government wanted to transfer power, it should be accompanied by such conditions and by such provisions that the power should not find itself into the hands of a clique, into the hands of the oligarchy, or into the hands of a group of people whether Mohammedans or Hindus; the solution should be such that the power should be shared by all communities in their respective proportions.

The Prime Minister appealed to the Delegates not to attribute causes to any method by which they had been elected or to their own personal shortcomings. He asked them to face the facts and asked them whether the problem existed in India or not. The speech of the Premier was rather pungent in tone and some called it ingrate, full of bitter sideshafts against Gandhi.

Dr. Ambedkar's vigorous propaganda did not stop here. He wrote from London, on October 12, a letter to *The Times of India* throwing light on the whole episode. "We are, however, reliably informed," he wrote, "that in carrying his negotiations with our Muslim friends, Mr. Gandhi demanded that as one of the conditions for his accepting their fourteen points, they should oppose the claims of the Depressed Classes, and the smaller minorities." "To say in public," Dr. Ambedkar observed with his caustic ruthlessness, "I will agree if all others agree, and then to set out to work in private to prevent others from so agreeing by buying off those who are willing to agree, is, in our opinion, a piece of conduct unbecoming a Mahatma and to be expected only from an inveterate opponent of the Depressed Classes. Mr. Gandhi is not only not playing the part of a friend of the Depressed Classes, but he is not even playing the part of an honest foe."

In his letter home Dr. Ambedkar foretold that the Round Table Conference would end in a fiasco, and in his opinion Gandhi was responsible for that failure. According to Dr. Ambedkar, Gandhi's partiality, discriminating conduct in solving the problem of the minorities, his equivocal manner of dealing, his absolute disregard for the other representatives, the insults he inflicted upon them—all these qualities did not help Gandhi to solve the problem tactfully, Dr. Ambedkar further observed that Gandhi's diabolical way of playing one community against another was now quite clear ! His undemocratic mental set-up, Dr. Ambedkar concluded, had given a rude shock to a man like Harold Laski, and Congress leaders, like Vithalbhai Patel, were murmuring disapproval of Gandhi's mishandling the situation !

Gandhi's hostility to the demands put forth by Dr. Ambedkar had wide repercussions and reaction in the quarters of the Untouchables all over India. The All-India Depressed Classes Conference, under the presidentship of Rao Bahadur M. C. Rajah, at its Gurgaon session, declared that Gandhi was misrepresenting the case of the Untouchables, and strongly denounced the claim made by Gandhi that the Congress had been taking care of the Untouchables from the beginning and had championed the cause of the Untouchables. "I say," said Rajah, the President of the Conference, "that these statements are untrue."

The Conference supported the demands put forth by Dr. Ambedkar and declared that no constitution would be acceptable to the Depressed Classes which did not include in it the system of Separate Electorates for the Depressed Classes. Messages requesting Dr. Ambedkar not to put faith in Gandhi and in the Congress were sent to Dr. Ambedkar in hundreds by the Depressed Classes leaders and associations from all parts of India, and by public meetings and conferences held at Tinnevely, Robertson (Madras), Lyallpur, Karnal, Chidambaram, Calicut, Banaras, Kolhapur, Yeotmal, Nagpur, Chanda, Kanpur, Kamptee, Belgaum, Dharwar, Nasik, Hubli, Ahmedabad, Tuticorin, Colombo and at several other places.

These vociferous cablegrams demonstrated who was the real representative of the Depressed Classes. Gandhi, no doubt received a few cables, but they were insufficient to meet the queries which Gandhi was pestered with in his talks and discourses at

different places in London. Such was the powerful effect of Dr. Ambedkar's fighting propaganda that Gandhi was really nonplussed, and his assumed guardianship of the Untouchables lay exposed !

This exposure became more pronounced at this juncture by the temple entry movement launched by the Depressed Classes in India, at Nasik and at Guruvayur. The revival of *Satyagraha* at Nasik gained a tremendous momentum. Five thousand volunteers poured in Nasik. Dr. Ambedkar's devoted lieutenant, Bhaurao Gaikwad, Depressed Classes leaders like Rankhambe, Patitpavandas and trusted lieutenant Deorao Naik, fought out the struggle, exposing the Orthodox Hindus and the pretended sincerity of the Hindu leaders in their true perspective. The shame was so carping that Dr. Moonje appealed from London to the Hindus not to deny these civic and religious rights to their kith and kin at their own peril. The gates of the Kalaram Temple were closed as was done during the previous *Satyagraha*.

Dr. Ambedkar was happy over this timely support from his people in exposing the caste Hindu behaviour. He sent a message to his people from London.*

The Nasik *Satyagraha* was carried on with unique enthusiasm and determination. Mass meetings were held, and big procession were taken out. Several volunteers and leaders were arrested. They bravely courted imprisonment and faced jail. The News in the *London Times* about these arrests and the developments of the *Satyagraha* added to the weight of Dr. Ambedkar's say.

After the clash with Gandhi, Dr. Ambedkar took part in the discussions on the Fiscal system which was adumbrated by the Sub-Committee for the Federal Government. He made a very thought-provoking and illuminating speech on the composition of the Federal Court in which, Jinnahh, Jayakar, Lord Sankey and

* See Pp 192-193, of this part.

Lord Lothian, too, took much interest, and he was asked to clarify some of his points.

In spite of this heavy work, Dr. Ambedkar was very busy giving private interviews and explanations, issuing statements and counter-statements and making speeches at different institutions in London in support of his stand at the Round Table Conference. His speech at the Institution of International Affairs proved very effective in demolishing Gandhi's platform. Those who were puzzled by Gandhi's extreme opposition to the demands of the Depressed Classes ran to Dr. Ambedkar to seek clarification of his stand. Miss Muriel Lester, with whom Gandhi was staying, saw Dr. Ambedkar who explained his standpoint to her. A common friend of Ambedkar and Gandhi invited both the leaders to tea and tried to reconcile them. Ambedkar admitted that Gandhi had done work for the uplift of the Untouchables in his humanitarian way and was striving to abolish Untouchability : but they differed fundamentally on the question.

By the end of October 1931 elections were held in Britain and the Tories came into power. As regards the defeat of the Labour Government, Dr. Ambedkar said that their programme was too scientific to be understood by the labourer and average Britisher. In one of his letters Dr. Ambedkar said that the Depressed Classes leaders, who supported Gandhi, did not understand that Gandhi was opposed not only to the Special Electorate but also to the Special Representation for the Depressed Classes : otherwise the problem would have been solved long before.”¹

In addition to the first memorandum submitted to the Minorities Sub-Committee at the first session of the Conference, the supplementary Memorandum dated 4th November 1931 was submitted Jointly by Dr. B. R. Ambedkar and Rao Bahadur R. Shrinivasan. The Supplementary Memorandum reads as follows:—Editors.

1: Keer, Pp. 169-181.

**“Supplementary Memorandum on the Claims of the
Depressed Classes for Special Representation
By Dr. Bhimrao R. Ambedkar and
Rao Bahadur R. Srinivasan**

In the Memorandum that was submitted by us last year dealing with the question of political safeguards for the protection of the Depressed Classes in the Constitution for a self-governing India, and which forms Appendix III to the printed volume of Proceedings of the Minorities Sub-Committee, we had demanded that Special Representation of the Depressed Classes must form one of such safeguards. But we did not then define the details of the Special Representation we claimed as being necessary for them. The reason was that the proceedings of the Minorities Sub-Committee came to an end before the question was reached. We now propose to make good the omission by this supplementary memorandum so that the Minorities Sub-Committee, if it comes to consider the question this year, should have the requisite details before it.

I. EXTENT OF SPECIAL REPRESENTATION

A. Special Representation in Provincial Legislature—

- (i) In Bengal, Central provinces, Assam, Bihar and Orissa, Punjab and the United Provinces, the Depressed Classes shall have representation in proportion to their population as estimated by the Simon Commission and the India Central Committee.
- (ii) In Madras, the Depressed Classes shall have twenty two percent representation.
- (iii) In Bombay—
 - (a) In the event of Sind continuing to be a part of the Bombay Presidency the Depressed Classes shall have sixteen per cent representation.
 - (b) In the event of Sind being separated from the Bombay Presidency the Depressed Classes shall enjoy the same degree of representation as the Presidency Muslims, both being equal in population.

B. Special Representation in the Federal Legislature—

In both Houses of the Federal Legislature the Depressed Classes shall have representation in proportion of their population in India.

RESERVATIONS

We have fixed this proportion of representation in the Legislatures on the following assumptions:—

(1) We have assumed that the figures for the population of the Depressed Classes given by the Simon Commission (Vol. I. P.40) and the Indian Central Committee (Report, P. 44) will be acceptable as sufficiently correct to form a basis for distributing seats.

(2) We have assumed that the Federal Legislature will comprise the whole of India, in which case the population of the Depressed Classes in Indian States, in Centrally Administered Areas, and in Excluded Territories, besides their population in Governor's Provinces, will form very properly an additional item in calculating the extent of representation of the Depressed Classes in the Federal Legislature.

(3) We have assumed that the administrative area of the Provinces of British India will continue to be what they are at present.

But if these assumptions regarding figures of population are challenged as some interested parties threaten to do, and if under a new census over which the Depressed Classes can have no control, the population of the Depressed Classes shows a lower proportion, or if the administrative areas of the Provinces are altered, resulting in disturbing the existing balance of population, the Depressed Classes reserve their right to revise their proportion of representation and even to claim weightage. In the same way, if the All-India Federation does not come into being, they will be willing to submit to readjustment in their proportion of representation calculated on that basis in the Federal Legislature.

II. METHOD OF REPRESENTATION

1. The Depressed Classes shall have the right to elect their representatives to the Provincial and Central Legislatures through Separate Electorates of their voters.

For their representation in the upper House of the Federal or Central Legislature, if it is decided to have indirect election by

members of the Provincial Legislatures, the Depressed Classes will agree to abandon their right to Separate Electorates so far as their representation to the Upper House is concerned subject to this: that in any system of proportional representation arrangement shall be made to guarantee to them their quota of seats.

2. Separate Electorates for the Depressed Classes shall not be liable to be replaced by a System of Joint Electorates and reserved seats, except when the following conditions are fulfilled:—

- (a) A referendum of the voters held at the demand of majority of their representatives in the Legislatures concerned and resulting in an absolute majority of the members of the Depressed Classes having the franchise.
- (b) No such referendum shall be resorted to until after twenty years and until universal adult suffrage has been established.

III. NECESSITY OF DEFINING THE DEPRESSED CLASSES

The representation of the Depressed Classes has been grossly abused in the past inasmuch as persons other than the Depressed Classes were nominated to represent them in the Provincial Legislatures, and cases are not wanting in which persons not belonging to the Depressed Classes got themselves nominated as representative of the Depressed Classes. This abuse was due to the fact that while the Governor was given the power to nominate persons to represent the Depressed Classes, he was not required to confine his nomination to persons belonging to the Depressed Classes, since nomination is to be substituted by election under the new constitution, there will be no room for this abuse. But in order to leave no loophole for defeating the purpose of their Special Representation we claim—

(i) That the Depressed Classes shall not only have the right to their own Separate Electorates, but they shall also have the right to be represented by their own men.

(ii) That in each Province the Depressed Classes shall be strictly defined as meaning persons belonging to communities which are subjected to the system of Untouchability of the sort

prevalent therein and which are enumerated by name in a schedule prepared for electoral purposes.

IV. NOMENCLATURE

In dealing with this part of the question we would like to point out that the existing nomenclature of Depressed Classes is objected to by members of the Depressed Classes who have given thought to it and also by outsiders who take interest in them. It is degrading and contemptuous, and advantage may be taken of this occasion for drafting the new constitution to alter for official purposes the existing nomenclature. We think that they should be called "Non-Caste Hindus", "Protestant Hindus", or "Non-Conformist Hindus" or some such designation, instead of "Depressed Classes". We have no authority to press for any particular nomenclature. We can only suggest them, and we believe that if properly explained the Depressed Classes will not hesitate to accept the one most suitable for them.

We have received a large number of telegrams from the Depressed Classes all over India supporting the demands contained in this Memorandum."*

"While the session was going on, His Majesty the King-Emperor gave a reception to the Indian Delegates on November 5. It was arranged that a few Members should speak at the party. Gandhi was present bareheaded. He was clad in his customary loin-cloth and wore sandals. The king-Emperor asked Dr. Ambedkar about the condition of the Untouchables in India, and when he heard the harrowing tales from Dr. Ambedkar who narrated them with his flowing heart, eloquent eyes and scintillating face, he shuddered. The king-Emperor then inquired of Dr. Ambedkar cordially about his father and the place of his education, and how he had achieved academic eminence." ¹

*: For previous memorandum see. Appendix to Proceedings of the Minorities Sub-Committee of the First Session of the Conference. This Supplementary Memorandum dated 4th November 1931 is printed as Appendix VII in the original proceedings at Pp. 1409-11.

¹: Keer, p. 181.

“When the British Premier saw that there was no unanimous solution to the Minorities problem, he asked all the Members of the Minorities Committee to sign a requisition authorising him to settle the communal problem and to pledge themselves to accept his decision. Gandhi signed this pledge along with other Members. Dr. Ambedkar did not sign this requisition as he believed in the justice of his demands. The Prime Minister then adjourned the Conference on December 1. Just before this requisition Dr. Ambedkar had a talk with Gandhi at the residence of Sir Mirza Ismail. Gandhi suggested a novel method to win the support of Dr. Ambedkar. He said that if the Untouchable candidates failed in the general election held on the basis of joint electorates without reservation of seats, the Depressed Classes should prove their *bona fides* in a Court of Law.”¹

After the adjournment of the 2nd Round Table Conference, various Comments were made by the different people and the press. The Comments are as follows :

“Mr. T. A. Raman a well known Journalist from India was travelling back to India. One of the fellow passenger told Mr. T. A. Raman that if he even murdered anybody it would be Dr. Ambedkar”² ‘Subodha Patrika’ weekly in its issue dated 15th November 1931 said :

“We fail to understand Mahatma Gandhi’s stand with respect to the demands of the Depressed Classes. To say the least, it is unreasonable and extremely irritating. If there is any community that needs the fullest protection it is that of the Untouchable classes. The Muslims and the Sikhs are well protected and ‘Their avowed fears as a contemporary puts it’ are but a mask for winning a privileged position in the commonwealth. Now we ask, is it right for Mahatmaji to yield to the false claims of the stronger communities and turn down the Untouchable ? It is no use quibbling ; if Mahatma Gandhi’s attempts to solve the communal problem have been futile so far, he is to blame also. Unpalatable though Dr. Ambedkar’s outbursts may be, they are intelligible, if not well-grounded. It is no use taking shelter behind the so-called Congress mandate which is to all practical purposes, as elastic as Gandhiji would like to have it. We feel that the Congress has been

¹ : Keer, Pp. 190-191.

² : *Ibid.* P. 183.

tinkering with the removal of Untouchability, Why, otherwise, we ask that the Nehru Committee was not made to include as much as a representative of the Depressed Classes ?”

“If any firm decision on the problem of minorities is going to take time and therefore freedom is also being delayed, then initially provincial autonomy would be acceptable. This was how Gandhiji without consultation of his friends conveyed his acceptance to the British Prime Minister. The disclosure of this private conversation raised a storm among Indian delegates. Dr. Sapru, Jaykar representing Progressive Hindus and Dr. Munje, Malviya etc. representnting Hindu Mahasabha were also terror-stricken. They tried to verify Gandhiji’s statements. Induial Yagnik, who was a Brahmin and had long association with Gandhiji, had gone to London as special reporter of Sunday Advocate’. He wrote in the ‘Sunday Advocate’ dated 6th December 1931 thus :

‘Gandhi Accepts provincial Autonomy. But I venture to state that Gandhi has already delivered himself bound hand and foot into the kindly arms of the British rulers. I referred somewhat casually last week to Gandhi’s secret pact with Lord Lothian to agree to provincial autonomy as a first instalment of the new scheme of self-government for India. Of course, Gandhi had shrewdly hedged this agreement with the condition that representative of the self-governing Provinces and States should eventually be invited to form a Constituent Assembly which would be authorised to draft the new Federal Constitution for India. I understand that Government naturally did not agree to this condition. But they shrewdly seized on this agreement of Gandhis’, and gave it as wide a currency as possible of course, in an unofficial manner. Of course moderate politicians like Tej Bahadur Sapru and Mr. Jaykar were awfully enraged on hearing of these conversations and engaged in a very hot tussle with Gandhi. Mr. Jaykar, I am told, was particularly wild with the Congress plenipotentiary, and Gandhi is reported to have hotly replied that he was quite free to do what he liked, and he was perfectly sure of getting the Congress to agree to what ever he pleased. When the matter leaked out, however into the press, Gandhi naturally did his best to wriggle out of this secret understanding as Government had of course not agreed to the condition which formed an integral part of his agreement. But if you read between the lines of the special interview that Gandhi

gave to the News Chronicle on this subject, you would be quite convinced that Gandhi, while expressing his desire for the immediate establishment of 'independence'—which amounts of course to partnership with Britain and the maintenance of the imperialistic link with India, he practically gives himself away by admitting—though more by implication than explicitly in so many words—the substantial difficulties in the immediate inauguration of a Federal Constitution in India.”¹

Dr. B. R. Ambedkar left London, and embarking at Marseilles, on January 15, 1932, reached Bombay on January 29.

“Dr. B. R. Ambedkar has prepared a set of answers to the questionnaire issued by the Franchise Committee and copies of the same are being circulated among various individual members and mushroom associations of the Depressed Classes community. Space has been left at the beginning of every paragraph to fill up the blanks with the names of the Association, or individuals.

Stereotyped Replies

The hundreds of the Stereotyped replies to the questionnaire circulated repeat.

“The (the blank space is to be filled up by the name of the Association) is of opinion that the Depressed Classes cannot secure representation in the general electorates. Much less can they secure representatives of their own choice. Even if there was adult suffrage. The reasons are as follows :—

“(a) In every territorial constituency the Depressed Classes are in minority of the population and will be a minority of voters in the electorate much too small to win a seat for themselves.”

“(b) Owing to social prejudices no voter of the Higher Caste will vote for the Depressed Classes candidates.”

“(c) On the other hand owing to economic dependence on the higher castes and the religious and social influence of the Higher Classes voters may be led to vote for a high caste

¹ : Ganvir, Ambedkar Gandhi : Teen Mulakhathi, Pp. 22-23.

candidates as against a candidate of his own Class. No Depressed Class man has ever been elected to the Council, on the support of High Castes.”¹

“Dr. Ambedkar immediately left for Delhi to take part in the proceedings of the Franchise Committee headed by Lord Lothian. On his way to Delhi, he was enthusiastically received at every station by the Depressed classes; especially the functions held at Nasik, Igatpuri, Deolali, Manmad, Bhusaval and Jhansi stations were colourful and imposing.

In the early days of February the Franchise Committee visited Bihar. The Depressed Classes greeted Dr. Ambedkar with great enthusiasm at every place. The Committee then moved to Calcutta *via* Patna. Depressed Class leaders of his persuasion, while giving evidence before the Franchise Committee, supported the scheme of separate electorates as they feared that in the System of Joint Electorates with reserved seats the candidates of the Depressed Classes would be at the mercy of the majority of electorates, and in order to win their votes they would have to pander to their prejudices, or there would be every possibility of the seats being occupied by the stooges of the majority community. It was observed by many leaders of the Depressed Classes that if the Joint Electorates were to work successfully, that pre-supposed broad-mindedness on the part of the majority community. It was their view that such a favourable atmosphere did not exist then.”²

“Letter to Mr. Gavai

In the mean time, in this regard Dr. B. R. Ambedkar wrote a letter to Mr. G. A. Gavai, M.L.C., General Secretary, All-India Depressed Classes Association. The letter is as follow—

Patna, February 13

I was expecting you at Lucknow and also at Patna and was wondering why you had not turned up at either of these places till I got your letter. I am sorry to read that your illness preventing you from making the trip.

¹: The Bombay Chronicle, 23rd February 1932.

²: Keer, Pp. 194-195.

I am sending you a copy of the Memorandum containing my views which I am sending you for your information. You will notice from the last paragraph in the Memorandum that our Committee 'cannot' and therefore your Committee 'cannot' discuss the communal question. The Prime Minister's letter and the Questionnaire issued by the Committee makes this clear and Chairman of our Committee has given a ruling on this question both at Delhi and Lucknow which is in accord with this view. Therefore you must tell your 'Committee' that they cannot discuss this question and if they insist, you should refuse to discuss it."

"Change of Views

Your separate minute instead discussing Separate Vs. Joint Electorates should simply say that you refuse to discuss it because it is outside the terms of the Committee. I know your Association has got a Questionnaire. There is just one thing I must point out. I was shocked to find that Mr. Rajah has changed his opinion and is now advocating Joint Electorates. I hope your Association will not follow him in this policy which is suicidal in every way. But if it does then you must lake the consequences of a permanent breach between us and a war 'amongst' ourselves which I am trying to avoid at any cost. So don't persist in it. I am glad to have the assurance that you won't do anything without my knowledge and consent. I have written out a detailed set of answers to the Franchise Questionnaire. I will send you a copy as soon as they are typed.

I am sending a statement of my answers to the Questionnaire for your use and also a copy of the revised Questionnaire. You will see that the Communal question is altogether eliminated." ¹

"Now another trouble brewed for Dr. Ambedkar. Dr. Moonje made a pact with M. C. Rajah on the basis of reserved seats and joint electorates. Rajah submitted to the British Premier his memorandum telegraphically giving details of his pact with Dr. Moonje. This pact put Dr. Ambedkar in an awkward position. It may be recalled that it was Rajah who had cabled to

¹ : The Bombay Chronicle, dated 7th April 1932.

Dr. Ambedkar and supported his demand for Separate Electorates, saying that Gandhi evidently did not know their woes, and therefore he had tried to force Joint Electorates down the unwilling throats of the Depressed Classes. Originally, the Rajah Party stood for Joint Electorates with reserved seats. But he changed sides. Rajah was the only Depressed Class Member in the Central Assembly, and he was not invited to the Round Table Conference. Perhaps grieved at this omission from the Round Table Conference, or greatly perturbed by Gandhi's professed claim to represent the Depressed Classes, he had dropped the idea of Joint Electorates and insisted on Separate Electorates. And now he reverted to the original demand.”¹

“Misleading Information

Mr. Gavai has taken an early opportunity to issue the following statement to members of Depressed Classes. Certain misleading information is being circulated to you that the Indian Franchise Committee cannot discuss the question of the system of electorates with individuals or associations that submit memoranda to it on behalf of the Depressed Classes. This is very misleading. For in the questionnaire sent by the Committee under the item representation of Depressed Classes in paper 2, it is clearly stated what specific proposals would one make to secure representation of the community in the legislature.

Those Model Answers

Moreover, I would suggest that our associations would be well advised to send in their own views with reference to their own provinces irrespective of model answers prepared by others. In view of coming changes in the Constitution of India as declared by the Prime Minister on 1st of December 1931 that complete provincial autonomy will be given to provinces. It is very necessary that our community, should also keep pace with the times and so we should reconsider the decision which we had arrived at before the statement of the Prime Minister referred to above.”²

¹: Keer, Pp. 195-196.

²: The Bombay Chronicle, dated 27th February 1932.

“The Franchise Committee met at the Viceregal Lodge. Dr. Ambedkar, on behalf of the Depressed Classes, pleaded for the incorporation in the Indian Penal Code or in the future constitution, of a punishment for the instigation or promotion of boycott against the Depressed Classes which prevented them from the free enjoyment of the fundamental rights. The Franchise Committee accepted the suggestion.

When the news of the Rajah-Moonje pact was out, the Bengal and Assam Depressed Class leaders denounced Rajah for his swing to the System of Joint Electorates with reserved seats, and supported the demands put forth by Dr. Ambedkar. M. B. Malik, M.L.A., President, Bengal Depressed Class Association ; the President, U.P. Adi-Hindu Association ; the President, All-Assam Depressed Class Association ; the President, Adi-Dharma Mandal, Punjab ; the President, Depressed Class Aid Society, Delhi ; all denounced Rajah and endorsed the demands put forth by Dr. Ambedkar.

It was in April 1932 that the Nasik Satyagraha entered its third stage, and its leaders Bhaurao Gaikwad and Rankharnbe were arrested. News about their arrest was wired to Dr. Ambedkar the same day, *i.e.* the April 14, 1932. The extreme opposition of Chintamani, Bakhale and Tambe, the Hindu Members of the Franchise Committee, to the demand of the Depressed Classes for Separate Electorates had created bad blood between them and Dr. Ambedkar. They were not even on speaking terms with Dr. Ambedkar. Amid such tense atmosphere Dr. Ambedkar informed his secretary that he was sorry he could not deal with two situations at the same time. He was of the opinion that the problem of political rights was more important than the problem of temple entry ; and therefore it was unwise and dangerous to deviate from that work to which he had devoted himself heart and soul.

In a letter written from Simla, Dr. Ambedkar said that it was very imperative to see the British Premier in London before the latter gave his decision on the communal issue. He, therefore, asked his trusted lieutenants to see whether it was possible to collect money for the proposed voyage without disclosing the reasons. He had also written to the Aga Khan, who was then in London, seeking his

advice in the matter and asking him about the possibility and possible date of the Premier's decision on the communal issue. In another letter written during the same week, Dr. Ambedkar poured his disgust upon the Hindu Members of the Franchise Committee and said that he hated their frame of mind which allowed them to be self-centred and aggressive inside their own camp and cowardly and yielding outside. He wrote that he was utterly disgusted with their selfish and thoughtless attitude and that he would try to keep himself away from Hindu Society. He was working under mental and physical pressure. In addition, he was suffering from diarrhoea.

In April the Bengal Namashudra Association held its 14th Annual Session at the Albert Institute Hall, Calcutta, under the presidentship of Dr. Kalicharan Mandal. The session unanimously endorsed Dr. Ambedkar's demands. Denounced the newspapers which unjustly criticized Dr. Ambedkar's stand, and declared that the Congress attitude to their problem was unsympathetic and impractical.

The Franchise Committee finished its business on May 1, 1932; but, as Lord Lothian desired to have some discussion with him on some vital points, Dr. Ambedkar stayed for a day or two more. The Franchise Committee drafted its report giving detailed proposals on which to face the revision of Franchise, and distribution and demarcation of the constituencies for the new legislatures, Central and Provincial. As Dr. Ambedkar differed from the Hindu Members of the Committee, he submitted to the Committee a separate note. One of the most important decisions of the Committee was on the exact definition of the term Depressed Classes. The Indian Legislature Committee in its decision in 1916, Sir Henry Sharp, the Educational Commissioner under the Government of India, and the Southborough Franchise Committee had all grouped the Depressed Classes with the aboriginals or Hill Tribes, Criminals or with others, but now the Lothian Franchise Committee said that they were of the opinion that the term should be applied only to those who were Untouchables. This was clearly Dr. Ambedkar's victory as he had insisted in his note to the Committee that the test of Untouchability "must be applied in its notional sense as Untouchability in its literal sense has ceased to obtain."¹

¹: Keer Pp. 196-198

On May 26 Dr. Ambedkar left for England to see the British Prime Minister and other Cabinet Ministers before the decision on the communal issue was announced. He left by the Italian steamer, ss. *Conte Roso*. The news about his departure was kept a closely guarded secret as he had enjoined upon his men not to divulge it to anybody. Still a representative of the Bombay Chronicle screwed it out of some source and cast a revealing light upon Dr. Ambedkar's new move. Dr. Ambedkar travelled first class, carried very little luggage, and expected to return by the end of August 1932.

It was true that the sudden change in Rajah's attitude worried Dr. Ambedkar much, and the Lothian Committee's findings also were not much favourable to him. He thought that this was the moment which came once in an age. He therefore resolved to do his utmost and to stake his all. He was confident that his presence in London would add weight to his demands. In the letters written home, on his way to London, he expressed poignant anxiety for the safety of his press which, he feared, the thoughtless Caste Hindus from the Congress camp might burn down. He instructed Shrivastavkar to procure a new room and to remove the boxes of new books or to keep them in safety elsewhere. All the while the thought of the safety of his books haunted his mind. Dr. Ambedkar reached London on June 7, 1932. In a week he saw every big British official and all Cabinet Ministers in connection with his mission and pleaded his case with heart and soul. He presented to the British Cabinet a representation consisting of twenty-two typed pages. But he could not say anything just then about the outcome of his efforts. He said that discussions were held and decisions were taken at a very high level; and it was in the air that the Depressed Classes in the Provinces of Bombay, Madras and C.P. would get Separate Electorates. By June 14 he had done everything possible to achieve his end and wanted to return. But, as some of his supporters wished him to prolong his stay, he decided to stay for a month more for convalescing in a German Sanatorium conducted by Dr. Moller at Dresden, so that he could run to London if necessary. Dr. Ambedkar was in need of money. The indefinite period of his stay was causing him worry in matters of health and expense. So he asked Shrivastavkar to make some arrangements for a remittance, if possible.

By the middle of July, Dr. Ambedkar recovered his health, left Dresden, and stayed for a week in Berlin which was then witnessing the emergence of Hitler. From Berlin he wrote that he would travel to Vienna and catch the steamer Gange at Venice. But this time, he said, he should not be worried with the formalities of a reception and welcome. Such is human nature. One pines for what one has not got. When Dr. Ambedkar left for foreign lands, during his student days, no one took note of his departure and arrival. But since the days of the Round Table Conference his departure and arrival had been made the occasions for public send-offs and receptions by thousands of his devotees as well as by pressmen. Dr. Ambedkar arrived in Bombay on August 17.”¹

“On the 17th August 1932 the decision of the British Prime Minister on the communal question, was announced. That part of the decision which relates to the Untouchables is produced below :—

Communal Decision by His Majesty's Government 1932.

In the statement made by the Prime Minister on 1st December last on behalf of His Majesty's Government at the close of the second session of the Round Table Conference, which was immediately afterwards endorsed by both Houses of Parliament, it was made plain that if the communities in India were unable to reach a settlement acceptable to all parties on the communal questions which the Conference had failed to solve, His Majesty's Government were determined that India's constitutional advance should not on that account be frustrated, and that they would remove this obstacle by devising and applying themselves a provisional scheme.

2. On the 19th March last His Majesty's Government, having been informed that the continued failure of the communities to reach agreement was blocking the progress of the plans for the framing of a new Constitution, stated that they were engaged upon a careful re-examination of the difficult and controversial questions which arise. They are now satisfied that without a decision of at least some aspects of the problems connected with the position of minorities under the new Constitution, no further progress can be made with the framing of the Constitution.

¹: Keer Pp. 202-204.

3. His Majesty's Government have accordingly decided that they will include provisions to give effect to the scheme set out below in the proposals relating to the Indian Constitution to be laid in due course before Parliament. The scope of this scheme is purposely confined to the arrangements to be made for the representation of the British Indian communities in the Provincial Legislatures, consideration of representation in the Legislature at the Centre being deferred for the reason given in paragraph 20 below. The decision to limit the scope of the scheme implies no failure to realize that the framing of the Constitution will necessitate the decision of a number of other problems of great importance to minorities, but has been taken in the hope that once a pronouncement has been made upon the basic questions of method and proportions of representation the communities themselves may find it possible to arrive at *modus vivendi* on other communal problems, which have not received the examination they require.

4. His Majesty's Government wish it to be most clearly understood that they themselves can be no parties to any negotiations which may be initiated with a view to the revision of their decision, and will not be prepared to give consideration to any representation aimed at securing the modification of it which is not supported by all the parties affected. But they are most desirous to close no door to an agreed settlement should such happily be forthcoming. If, therefore, before a new Government of India Act has passed into law, they are satisfied that the communities who are concerned are mutually agreed upon a practicable alternative scheme, either in respect of any one or more of the Governors' Provinces or in respect of the whole of the British India, they will be prepared to recommend to Parliament that the alternative should be substituted for the provisions now outlined.

5. Members of the "Depressed Classes" qualified to vote will vote in a general constituency. In view of the fact that for a considerable period these classes would be unlikely, by this means alone, to secure any adequate representation in the Legislature, a number of special seats will be assigned to them as shown in the table. These seats will be filled by election from special

constituencies in which only members of the "Depressed Classes" electorally qualified will be entitled to vote. Any person voting in such a special constituency will, as stated above, be also entitled to vote in a general constituency. It is intended that these constituencies should be formed in selected areas where the Depressed Classes are most numerous, and that, except in Madras, they should not cover the whole area of the Province.

In Bengal it seems possible that in some general constituencies a majority of the voters will belong to the Depressed Classes. Accordingly, pending further investigation, no number has been fixed for the members to be returned from the Special Depressed Class Constituencies in that Province. It is intended to secure that the Depressed Classes should obtain not less than 10 seats in the Bengal Legislature.

The precise definition in each Province of those who (if electorally qualified) will be entitled to vote in the Special Depressed Class Constituencies has not yet been finally determined. It will be based as a rule on the general principles advocated in the Franchise Committee's Report. Modification may, however, be found necessary in some Provinces in Northern India where the application of the general criteria of Untouchability might result in a definition unsuitable in some respects to the special conditions of the Province.

His Majesty's Government do not consider that these Special Depressed Classes Constituencies will be required for more than limited time. They intend that the Constitution shall provide that they shall come to an end after 20 years if they have not previously been abolished under the general powers of electoral revision referred to in paragraph 6." ¹

"According to this Award, the Depressed Classes were granted separate seats in the Provincial Assemblies and the right of double vote under which they were to elect their own representatives and to vote also in the general constituencies.

The next day, after his arrival, Dr. Ambedkar wrote a very important letter to Sir Samuel Hoare asking him to clear the meaning of the last part of the paragraph nine of the Award as there was some doubt about it among some of the members of the Depressed Classes. He further wrote that it was impossible for him to make the Depressed Classes accept the Award with the

¹: Writings and Speeches Vol. 9, Pp. 79-82.

proviso attached to it, and concluded his letter by saying that “pending the arrival of your reply I will try to hold the storm of indignation that is bursting over my head from the Depressed Classes from all parts of India from bursting in public.”¹

Dr. B. R. Ambedkar has issued the following statement from Bombay, on Tuesday the 23rd August 1932, on the Communal Award :—

“No one expected the Communal Award to be everything to everybody and I myself was prepared for some variations in the proposals made by me and my Colleague Rao Bahadur Srinivasan at the Round Table Conference on behalf of the Depressed Classes. But the Communal Award has ruthlessly scaled down their representation in the Provincial Legislatures to quite insignificant proportions. The result is that the Communal Award creates positive grievances by refusing to them adequate representation.

“I see no justification for this enormity. What has, however, shocked me most is the denial of the right to representation to the Depressed Classes of the Punjab. Knowing as I do the conditions of the Depressed Classes in that Province, I have no hesitation in saying that comparatively speaking their social condition is really worse than that of their fellows in other Provinces of Northern India. Their case for Special Representation was the strongest.

“What reasons His Majesty’s Government had for depriving this most deserving class of their seat, I am unable to see unless it be to satisfy the claims of the most turbulent and vociferous sections in that Province. This injustice becomes most flagrant when it is realized that the Indian Christians and the Anglo-Indians without a tithe of the population of the Depressed Classes and without any shadow of social grievances have been provided for with special seats two for the former and one for the latter. These injustices I fear will make the All-India Depressed Classes Federation which is to consider the question averse to the acceptance of the award.”²

¹ : Keer, P.204.

² : The Free Press Journal, dated 24th August 1932.

Back to India Gandhi was arrested on January 4. Gandhi had not given up his fight for tying the Untouchable Hindus to the caste Hindus in politics. In early March, he informed the British Cabinet from Yeravda Jail that he would resist with his life the separation of the Untouchable Hindus from the Caste Hindus. And when the Communal Award was declared, granting Separate Electorates to the Untouchables, he declared his resolve to fast unto death if the separate electorates for the Depressed Classes were not abolished. Yet on principle, he had no word to say against Separate Electorates being conceded to the Christians, Muslims and Sikhs.

On one more count Gandhi's resort to a fast unto death against the grant of Separate Electorates to the Depressed Classes was not justifiable either." ¹

In this regard, Dr. Ambedkar said,

"Mr. Gandhi found that his threat had failed to have any effect. He did not care that he was a signatory to the requisition asking the Prime Minister to arbitrate. He forgot that as a signatory he was bound to accept the award. He started to undo what the Prime Minister had done. He first tried to get the terms of the Communal Award revised. Accordingly, he addressed the following letter to the Prime Minister:—

YERAVDA CENTRAL PRISON,

August 18, 1932.

DEAR FRIEND,

"There can be no doubt that Sir Samuel Hoare has showed you and the Cabinet my letter to him of 11th March on the question of the representation of the Depressed Classes. That letter should be treated as part of this letter and be read together with this.

"I have read the British Government's decision on the representation of minorities and have slept over it. In pursuance of my letter to Sir Samuel Hoare and my declaration at the meeting of the Minorities Committee of the Round Table Conference on

¹: Keer, Pp. 204-05

13th November, 1931, at St. James' Palace, I have to resist your decision with my life. The only way I can do so is by declaring a perpetual fast unto death from food of any kind save water with or without salt and soda. This fast will cease if during its progress the British Government, of its own motion or under pressure of public opinion, revise their decision and withdraw their scheme of communal electorates for the Depressed Classes, whose representatives should be elected by the general electorate under the common franchise, no matter how wide it is.

"The proposed fast will come into operation in the ordinary course from the noon of 20th September next, unless the said decision is meanwhile revised in the manner suggested above.

"I am asking the authorities here to cable the text of this letter to you so as to give you ample notice. But in any case, I am leaving sufficient time for this letter to reach you in time by the slowest route.

"I also ask that this letter and my letter to Sir Samuel Hoare already referred to be published at the earliest possible moment. On my part, I have scrupulously observed the rule of the jail and have communicated my desire or the contents of the two letters to no one, save my two companions, Sardar Vallabhbhai Patel and Mr. Mahadev Desai. But I want, if you make it possible, public opinion to be affected by my letters. Hence my request for their early publication.

"I regret the decision I have taken. But as a man of religion that I hold myself to be, I have no other course left open to me. As I have said in my letter to Sir Samuel Hoare, even if His Majesty's Government decided to release me in order to save themselves from embarrassment, my fast will have to continue. For, I cannot now hope to resist the decision by any other means ; and I have no desire whatsoever to compass my release by any means other than honourable.

"It may be that my judgment is warped and that I am wholly in error in regarding Separate Electorates for the Depressed Classes as harmful to them or to Hinduism. If so, I am not likely to be in the right with reference to other parts of my philosophy of life. In that case, my death by fasting will be at once a penance for my error and a lifting of a weight from off these numberless men and women who have childlike faith in my wisdom. Whereas if my judgment is right, as I have little doubt it is, the contemplated step is but due to the fulfilment of the scheme of life which I have tried for

more than a quarter of a century, apparently not without considerable success.

I remain,
your faithful friend,
M. K. Gandhi.”¹

This proves the contradiction of Mahatma Gandhi with regard to question of Depressed Classes.

Meanwhile Sardar Vallabhbhai Patel met Gandhiji in Yerwada Jail on September 6, 1932 and discussed the issue with him.*

“As was natural, Gandhi’s announcement threw the country into a state of consternation. Public appeals were made to Gandhi and the Government, statements were issued to the Press, and prayers were offered. Leaders like Dr. Rajendra Prasad said that Hinduism was on its trial. There was confusion and nervous strain in all Hindu circles; not because the caste Hindus and their leaders felt ashamed of their cruelty to the Depressed Classes, but because the life of their political hero, their political liberator, was at stake. The traditional tragic trend in the character of the Hindus got the upper hand and they got panicky.

Pandit Malaviya declared from Simla his intention to hold a conference of Hindu leaders in Bombay on September 19 to resolve the deadlock and save the life of the Mahatma, and informed Dr. Ambedkar about it by wire. For to save the life of the Mahatma it was necessary to alter the British Premier’s Award, and to amend it, it was necessary to get the approval of Dr. Ambedkar who had wrested these privileges for the Depressed Classes. Naturally, all eyes turned to Dr. Ambedkar as a man of the moment. It was a cruel irony of fate that the leaders and the Press that had refused to recognise Dr. Ambedkar as the leader of the Depressed Classes were now compelled to recognise his leadership of and spokespersonship for the Depressed Classes. He now became the cynosure of the whole country.

Dr. Ambedkar knew the significance and magnitude of the crisis arisen out of Gandhi’s fast unto death. Gandhi had hurled a most dangerous and fatal weapon at him. He prepared himself for repelling the weapon. He had an interview with the Governor of Bombay in Poona.”²

The hurried departure of Dr. B. R. Ambedkar, the champion of Separate Electorates, from Bombay to Poona on Sunday morning to interview the Governor of Bombay, on the eve of the Conference

¹ Writings and Speeches, Vol. 9, Pp. 82-83.

² Keer, Pp. 205-206.

* See appendix-IV

convened in Bombay today to persuade the representative of the "Depressed Classes" to give up the scheme of Separate Electorates and save Mahatma Gandhi's life has caused considerable speculation in the city.

The Doctor left for Poona in the morning and after a long conversation with the Governor of Bombay returned to Bombay in the evening.

"Will you attend tomorrow's Conference?" asked our representative.

To this question Dr. Ambedkar stated that beyond the telegraphic communication that he had received from Pandit Malaviya he had received no formal invitation for the Conference up to now but if he received an invitation he would by all means attend the Conference.

In a statement, issued in the evening Sunday the 11th September 1932, Dr. Ambedkar reiterates his conviction that Separate Electorates are in the interests of "Depressed Classes" and repeats that Mahatma Gandhi must first put forward his proposals to enable the Doctor then to play his own cards."¹

"I do not care these political stunts." declared Dr. B. R. Ambedkar.

"This threat of Mr. Gandhi." he continued, "to starve himself to death is not a moral fight but only a political move. I can understand a person trying to negotiate with his political opponent on equal terms by giving him credit for honesty, but I will never be moved by these methods."

"My decision stands and if Mr. Gandhi wants to fight with his life for the interests of the Hindu Community the Depressed Classes also will be forced to fight with their lives to safeguard their interests.

In reference to the view expressed by Mr. M. C. Rajah, that if Dr. Ambedkar would agree to give up his demand for Separate Electorates and accepted Joint Electorates with reservation of seats the situation could be saved. Dr. Ambedkar said that he would not agree to it." ²

Mr. Gandhi wrote a letter addressed to the Government of Bombay on 15th September 1932 showing the reasons as to why he had

¹: The Bombay Chronicle dated 11th September 1932. (Issue may be of 12th September 1932.—Editors.)

²: The Bombay Chronicle, dated 14th September 1932.

taken the decision to go on a fast unto death. The said letter was sent to the press for publication on 21st March 1932. In the said letter he said;

“My fast has a narrow application. The Depressed Classes question being predominantly a religious matter, I regard it as specially my own by reason of life-long concentration on it. It is a sacred personal trust which I may not shirk.”¹

In this regard Dr. Ambedkar, clarifying his position, wrote a letter to The Times of India, the letter is as follows—

To the Editor of “The Times of India”,

Sir,

I am surprised to read in to-day’s newspaper that some eight public meetings are to be held under the auspices of the Emergency Committee in different parts of the City to pass a resolution asking the public to compel the British Government to change their policy regarding the Communal Award in so far as it affects the Depressed Classes. The obvious object of this resolution is to mobilise public opinion against the special arrangement provided in the Premier’s Award for the representation of the D. C.

Since Mahatma Gandhi declared his resolve of self-immolation over this question, negotiations have been going on between some prominent Hindu leaders and myself, I was invited to attend a meeting of the Emergency Committee yesterday evening which I did. During the time I was at the meeting no reference was made to any such programme or any such resolution having been contemplated to be placed at public meeting. Had the draft resolution been brought to my notice at yesterday’s meeting, I would have certainly objected not only to the wording of the resolution but also to the very idea of holding any public meetings pending the outcome of the negotiations that are proceeding. In fact, it was understood that no propaganda of any kind was to be carried on by either party. This consideration prevented me from holding meetings or starting propaganda in favour of the Communal Award, in spite of a lot of pressure from the members of my party.

¹: Khairmode, Vol.5, P. 26

These public meetings which the Emergency Committee proposes to hold and the resolution to be moved, but a provocative challenge to me and to my party. Those who have been carrying on negotiations with me cannot carry on their propaganda against me and at the same time hope for an amicable settlement as the result of the negotiations. It must be either negotiations or straight fight. Both cannot go together. If the other party insists on their right to carry on propaganda, they will have no right to blame me if my party also decided to carry on propaganda against them.

B.R. AMBEDKAR.

Bombay, September 18, 1932.”¹

“On the eve of the Conference of the Hindu leaders, Dr. Ambedkar issued a statement to the Press in which he said : “So far as I am concerned, I am willing to consider everything, though I am not willing to allow the rights of the Depressed Classes to be curtailed in any way. It is no use holding a conference in a vacuum or discussing things without any specific data.” He frankly related this to a deputation of the Depressed Classes from Ahmedabad, and also in his interview with the Indian multi-millionaire, Seth Walchand Hirachand. He told them that Gandhi could have discussed his proposal with the British Premier ; since he was not putting forth any proposal, he alone was to blame.

Visitors, leaders and friends began to call upon Dr. Ambedkar. One of such early visitors was Thakkar who had served with him on the State Committee. He came to talk the matter over. Dr. Ambedkar to whom time was knowledge and a precious thing said that he was very busy studying an important criminal case and therefore asked Thakkar how much time he would require. Thakkar replied that he would require an hour or so. Dr. Ambedkar said that he would give five minutes. Thakkar asked for more. The interview ended with an algebraic brevity, and Dr. Ambedkar went in. Thakkar, however, saw Dr. Ambedkar again the next day. A furious campaign was launched against Dr. Ambedkar.” ²

¹ : The Times of India of 19th September 1932.

² : Keer: Pp. 206-07.

On the eve of the Conference of the Hindu leaders i.e. on 19th September 1932, Dr. B. R. Ambedkar issued another statement to the Press. Following is the full text of the Statement.—Editors.

“I need hardly say that I was astounded to read the correspondence between Mahatma Gandhi, Sir Samuel Hoare and the Prime Minister,* which was published recently in the Papers, in which he has expressed his determination to starve himself unto death” till the British Government of its own accord or under pressure of public opinion revise their opinion and withdraw their scheme of communal representation for the Depressed Classes. The unenviable position in which I have been placed by the Mahatma’s vow of self-immolation can easily be imagined.

It passes my comprehension why Mr. Gandhi should stake his life on an issue arising out of the communal question which he, at the Round Table Conference, said was one of a comparatively small importance. Indeed to adopt the language of those of Mr. Gandhi’s way of thinking the communal question was only an appendix to the book of India’s constitution and not the main chapter. It would have been justifiable if Mr. Gandhi had resorted to this extreme step for obtaining independence for the country on which he was so insistent all through the R. T. C. debates. It is also a painful surprise that Mr. Gandhi should single out Special Representation for the Depressed Classes in the Communal Award as an excuse for his self-immolation. Separate Electorates are granted not only to the Depressed Classes, but to the Indian Christians, Anglo-Indians, Europeans as well as to the Mohamedans and the Sikhs. Also Separate Electorates are granted to land-lords, labourers and traders. Mr. Gandhi had declared his opposition to the Special Representation of every other class and creed except the Mohamedans and the Sikhs. All the same Mr. Gandhi now ellooses to let every body else, except the Depressed Classes retain the Special Electorates given to them.

* See, Writings and Speeches, Vol. 9, Pp. 77-87.

The fears expressed by Mr. Gandhi about the consequences of the arrangements for the representation of the Depressed Classes are in my opinion purely imaginary. If the nation is not going to be split up by Separate Electorates to the Mohamedans and the Sikhs, the Hindu Society cannot be said to be split up if the Depressed Classes are given Separate Electorates. His conscience is not aroused if the nation is split by the arrangements of Special Electorates for classes and communities other than the Depressed Classes.

I am sure many have felt that if there was any class which deserved to be given special political rights in order to protect itself against the tyranny of the majority under the *Swaraj* constitution, it was the Depressed Classes. Here is a class which is undoubtedly not in a position to sustain itself in the struggle for existence. The religion to which they are tied, instead of providing for them an honourable place brands them as lepers not fit for ordinary intercourse. Economically it is a class entirely dependent upon the High-Caste Hindus for earning its daily bread with no independent way of living open to it. Not only every path of progress is closed to them by reason of the social prejudices of the Hindus but there is a definite attempt all throughout the Hindu Society to bolt every possible door so as not to allow the Depressed Classes any opportunity to rise in the scale of life. Indeed it would not be an exaggeration to say that in every village the caste Hindus, however divided among themselves, are always in a standing conspiracy to put down in a merciless manner any attempt on the part of the Depressed Classes who form a small and scattered body of an ordinary Indian citizen.

In these circumstances it would only be fair for all right minded persons admit that for a community so handicapped, some share of statutory political power is a paramount necessity to succeed in the struggle for life and to protect itself against organized tyranny.

I should have thought that a well-wisher of the Depressed Classes would have fought tooth and nail for securing to them as much political power as might be possible in the new Constitution. But the Mahatma's ways of thinking are strange

and are certainly beyond my comprehension. He not only does not endeavour to augment the scanty political power which the Depressed Classes have got under the Communal Award, but on the contrary he has staked his very life in order to deprive them of what little they have got. This is not the first attempt on the part of the Mahatma to completely dish the Depressed Classes out of political existence. Long before there was the Minorities Pact, the Mahatma tried to enter into an agreement with the Muslims in order to defeat the claims of the Depressed Classes. He offered to the Muslims all the 14 claims which they had put forth on their behalf, and in return asked them to join with him in resisting the claims for Social Representation made by me on behalf of the Depressed Classes.

It must be said to the credit of the Muslim delegates, that they refused to be party to such a black act, and saved the Depressed Classes from what might as well have developed into a calamity for them as a result of the combined opposition of the Mohamedans and Mr. Gandhi.

I am unable to understand the ground of hostility of Mr. Gandhi to the Communal Award. He says that the Communal Award has separated the Hindu Community. On the other hand Dr. Moonje, a much stronger protagonist of the Hindu cause and a militant advocate of its interests, takes a totally different view of the matter. In the speeches which he has been delivering since his arrival from London, Dr. Moonje has been insisting that the Communal Award does not create any separation between the Depressed Classes and the Hindus. Indeed, he has been boasting that he has defeated me in my attempt to politically separate the Depressed Classes from the Hindus. I am sure that Dr. Moonje is right in his interpretation of the Communal Award although I am not sure that the credit of it can legitimately go to Dr. Moonje. It is therefore, surprising that Mahatma Gandhi, who is a Nationalist, and not known to be a communalist, should read the Communal Award in so far as it relates to the Depressed Classes in a manner quite contrary to that of a communalists like Dr. Moonje. If Dr. Moonje does not sense any separation of the Depressed Classes from the Hindus in the Communal Award the Mahatma ought to feel quite satisfied on that score.

In my opinion the Communal Award should not only satisfy the Hindus, but also satisfy those individuals among the Depressed Classes such as Rao Bahadur Rajah, Mr. Baloo or Mr. Gavai who are in favour of Joint Electorates. Mr. Rajah's fulminations in the Assembly have amused me considerably. An intense supporter of Separate Electorates and the bitterest and the most vehement critic of caste Hindu tyranny, now professes faith in the Joint Electorates and love for the Hindus. How much of that is due to his natural desire to resuscitate himself from the oblivion in which he was cast by his being kept out of the Round Table Conference and how much of it is to his honest change of faith, I do not propose to discuss.

The points on which Mr. Rajah is harping by way of criticism on the Communal Award are two; One is that the Depressed Classes have gained lesser number of seats than they are entitled to on the population basis, and the other is that the Depressed Classes have been separated from the Hindu fold.

I agree in his first grievance, but when the Rao Bahadur begins to accuse those who represented the Depressed Classes at the R. T. C. for having sold their rights, I am bound to point out what Mr. Rajah did as a member of the India Central Committee. In that Committee's report the Depressed Classes were given in Madras 10 seats out of 150; in Bombay 8 seats out of 114; in Bengal 8 seats out of 200; in U. P. 8 seats out of 182; in Punjab 6 seats out of 150; in Behar and Orissa 6 out of 150; in C. P. 8 out of 125 and in Assam 9 seats for the Depressed Classes and the indigenous and primitive races out of 75. I do not wish to overburden this statement by pointing out how this distribution compares with the population ratio. But there can be no doubt that this meant a terrible under-representation of the Depressed Classes. To this distribution of seats Mr. Rajah was a party. Surely, Mr. Rajah, before he criticises the Communal Award and accuses others, should refresh his memory of what he accepted as Member of the Indian Central Committee on behalf of the Depressed Classes without any protest. If the population ratio of representation was to him a natural right of a Depressed Classes and its full realisation was a necessity for their protection, why did not Mr. Rajah insist upon it in the Central Committee when he had an opportunity to do so?

As to his contention that in the Communal Award, the Depressed Classes have been separated from the caste Hindus, it is a view to which I cannot subscribe. If Mr. Rajah has any conscientious objection to Separate Electorates, there is no compulsion on him to stand as a candidate in the Separate Electorates. The opportunity to stand as a candidate in the General Electorate as well as the right to vote in it are there, and Mr. Rajah is free to avail himself of the same. Mr. Rajah is crying at the top of his voice to assure to the Depressed Classes that there is a complete change of heart on the part of the Caste Hindus towards the Depressed Classes. He will have the opportunity to prove that fact to the satisfaction of the Depressed Classes, who are not prepared to take his word by getting himself elected in the General Constituency. The Hindus who profess love and sympathy for the Depressed Classes, will have also an opportunity to prove their bona-fides by electing Mr. Rajah to the legislature.

The Communal Award, therefore, in my opinion satisfied both those who want Separate Electorates and those who want Joint Electorates. In this sense it is already a compromise and should be accepted as it is. As to the Mahatma, I do not know what he wants. It is assumed that although the Mahatma is opposed to the system of Separate Electorates he is not opposed to the system of Joint Electorates and Reserved Seats. That is a gross error. Whatever his views are to-day, while in London he was totally opposed to any system of Special Representation for Depressed Classes whether by Joint Electorates or by Separate Electorates. Beyond the right to vote in a General Electorate based upon Adult Suffrage, he was not prepared to concede anything to the Depressed Classes by way of securing their representation in the legislatures. This was the position he had taken at first. Towards the end of the R. T. C. he suggested to me a scheme which he said he was prepared to consider. The scheme was purely conventional without any constitutional sanction behind it and without any single seat being reserved for the Depressed Classes in the Electoral Law.

The scheme was as follows :—

Depressed Class candidates might stand in the General Electorate as against other High-Caste Hindu candidates. If any Depressed Class candidate was defeated in the election he should file an election petition and obtain the verdict that he was defeated because he was an Untouchable. If such a decision was obtained, the Mahatma said he would undertake to induce some Hindu members to resign and thus create a vacancy. There would be then another election in which the defeated Depressed Class candidate or any other Depressed Class candidate might again try his luck as against the Hindu candidates. Should he be defeated again he should get similar verdict that he was defeated because he was an Untouchable and so on "*adinfinitum*." I am disclosing these facts as some people are even now under the impression that the Joint Electorates and Reserved Seats would satisfy the conscience of the Mahatma. This will show why I insist that there is no use of discussing the question until the actual proposals of the Mahatma are put forth.

I must, however, point out that I cannot accept the assurances of the Mahatma that he and his Congress will do the needful. I cannot leave so important a question as the protection of my people to conventions and understandings. The Mahatma is not an immortal person, and the Congress, assuming it is not a malevolent force, is not to have an abiding existence. There have been many Mahatmas in India whose sole object was to remove Untouchability and to elevate and absorb the Depressed Classes; but every one of them has failed in his mission. Mahatmas have come and Mahatmas have gone. But the Untouchables have remained as Untouchables.

I have enough experience of the pace of reform and the faith of Hindu reformers in the conflicts that have taken place at Mahad and Nasik, to say that no well-wisher of the Depressed Classes will ever consent to allow the uplift of the Depressed Classes to rest upon such treacherous shoulders. Reformers who in moments of crisis prefer to sacrifice their principles rather than hurt the feelings of their kindred, can be of no use to the Depressed Classes.

I am therefore bound to insist upon a Statutory Guarantee for the protection of my people. If Mr. Gandhi wishes to have the Communal Award altered, it is for him to put forth his proposals and to prove that they give a better guarantee than has been given to us under the Award.

I hope that the Mahatma will desist from carrying out the extreme step contemplated by him. We mean no harm to the Hindu Society when we demand Separate Electorates. If we choose Separate Electorates we do so in order to avoid the total dependence on the sweet will of the caste Hindus in matters affecting our destiny. Like the Mahatma we also claim our right to err, and we expect him not to deprive us of that right. His determination to fast himself unto death is worthy of a far better cause. I could have understood the propriety of the Mahatma contemplating such extreme step for stopping riots between Hindus and Mohamedans or between the Depressed Classes and the Hindus or for any other national cause. It certainly cannot improve the lot of the Depressed Classes. Whether he knows it or not the Mahatma's act will result in nothing but terrorism by his followers against the Depressed Classes all over the country.

Coercion of this sort will not win the Depressed Classes to the Hindu fold if they are determined to go out. And if the Mahatma chooses to ask the Depressed Classes to make a choice between Hindu faith and possession of political power I am quite sure that the Depressed Classes will choose political power and save the Mahatma from self-immolation. If Mr. Gandhi coolly reflects on the consequences of his act I very much doubt whether he will find this victory worth having. It is still more important to note that the Mahatma is releasing reactionary and uncontrollable forces, and is fostering the spirit of hatred between the Hindu Community and the Depressed Classes by resorting to this method and thereby widening the existing gulf between the two. When I opposed Mr. Gandhi at the R. T. C. there was a hue and cry against me in the country and there was conspiracy in so-called nationalist press to represent me as a traitor to the nationalist cause, to suppress correspondence coming from my side and to boost the propaganda against my party by publishing exaggerated reports of meetings and conferences, many of which

were never held. "Silver bullets" were freely used for creating divisions in the ranks of the Depressed Classes. There have been also a few clashes ending in violence.

If the Mahatma does not want all this to be repeated on a larger scale, let him for God's sake, reconsider his decision and avert the disastrous consequences. I believe the Mahatma does not want this. But if he does not desist, in spite of his wishes these consequences are sure to follow as night follows the day.

Before concluding this statement, I desire to assure the public that although I am entitled to say that I regard the matter as closed I am prepared to consider the proposals of the Mahatma. I however, trust the Mahatma will not drive me to the necessity of making a choice between his life and the rights of my people. For I can never consent to deliver my people bound hand and foot to the Caste Hindus for generations to come."¹

"The declaration of the fast unto death by Mr. Gandhi made the people learn more about the condition of the Untouchables and opened their eyes for a while to the passions that were seething in the bosom of the Untouchables. The people, the Press and patriots were roused to a realisation that there was a blot on their society. There was an endless talk about Dr. Ambedkar in every political party, in every social circle and in every religious institution. He was flooded with telegrams and letters, some threatening his life, some appealing to his conscience, and some supporting his stand.

As declared, the Conference of the Hindu leaders was held amidst this tense situation at the spacious Hall of the Indian Merchants' Chamber on September 19, 1932, under the presidentship of Pandit Madan Mohan Malaviya. Dr. Ambedkar and Dr. Solanki were seated just near the President's chair. Rajah and Dr. Moonje came to the Hall arm-in-arm."²

Among those present were : Rajendraprasad, C. Rajgopalachari, Pandit Kunzaru, T. Prakasham, Dr. Chauthiram, Swami Satyanand, Mr. Aney, G. A. Gawai, Mr. Shivraj, Mr. Jagannathan, Mr. Dharmalingam, Mr. Mandal, Sir Chunnilal,

¹ : Janata, dated 24th September 1932.

² : Keer, P. 208.

Hirachand Walchand, Sir Setalwad, Sir Madgaonkar, Sir Purushottamdas, Shri Deodhar, Mr. Natrajan, Rao Bahadur Vaidya, Dr. Deshmukh, Dalvi, Subhedar, Seth Birla, Mr. Karandikar, Dr. Savarkar, Shivatarkar, P Balu, Nikalje, Kamaia Nehru, Perani Captain, Moshon Captain, Sau. Awantikabai Gokhale, Mrs. Annapurnabai Deshmukh, Ratanben Mehta, Miss Natrajan.

In order to save the life of Mahatma Gandhi, Pandit Madan Mohan Malviya, the President of the meeting suggested that a solution acceptable to both the sides should be found out.

On the request of Pandit Malviya, Dr. B. R. Ambedkar rose to speak. He stated his views in a candid manner. He said,

“Looking at the objective of this Conference, I do not feel the need of calling such a Conference. In order to oppose our demands, Mahatma Gandhi has started fast unto death. It is natural that everybody would like to save the valuable life of Mahatma Gandhi. But Gandhiji should have put some concrete alternative proposal before staking his life. Having considered the present situation, I feel that without any clear alternative proposal from Gandhiji, all efforts towards negotiations would be in vain. And to be frank, there is nothing left to be decided. Unless we know what really is in the mind of Gandhiji, all the repeatative deliberations of this Conference are not going to yield any result. To whatever length this Conference may deliberate I am not in a position to find any solution before I know what really is in the mind of Gandhiji and I tell you bluntly that I am not at all bound to proposals coming from the convenors of this conference or any of the leaders, I shall consider the opinion only of Mahatma Gandhi. Unless I know his proposal how can I give my opinion? Bring his proposal first and then I shall think over it. And I make it clear in the beginning itself that any proposal from Gandhiji should be brought by the representatives of the caste Hindus from among you and that I shall not accept any proposal brought forward by an Untouchable leader on behalf of Gandhiji. I shall not sacrifice the rightful demands of my people just in order to save the life of Mahatma Gandhi.”¹

Here, this Conference adjourned for the day.

¹: Janata, dated 24th September 1932.

“On Monday, September 20, 1932 at 12 O’clock noon Mahatma Gandhi started his fast unto death. A committee was formed to have negotiations in the matter. The committee consisted of Sir Tejbahadur Sapru, Bar. Jaikar. Pandit Madan Mohan Malviya, Mathuradas Wasanji as representatives of the high Caste Hindus. Dr. B. R. Ambedkar was invited for the meeting. In the Conference Sir Chunnilal put forward the following views on behalf of Mahatma Gandhi before the Committee members.

They were :

1. Mahatma Gandhi opposed to the decision of awarding Separate Electorates for the Untouchables.

2. He is not fully agreeable to the Joint Electorates as well as for the reserved seats. However, he would not object if the All Hindu Conference at Mumbai would take a specific decision for the reserved seats but it would not mean that he necessarily agrees with it. If at all any fact is agreed upon he may probably give his consent.

Dr. Ambedkar rose to speak after listening the proposals of Mahatma Gandhi. His speech was really very forceful and touching to the heart. He said,

“Today in the negotiations in this difficult situation, I am in more strange position than all others. Unfortunately, in these peaceful negotiations I appear to be acting as villain for the protection of just demands of my people. I am willing to suffer to any extent in order to get fulfilled the just demands of my people.

I tell you I shall not deter from my pious duty, and betray the just and legitimate interests of my people even if you hang me on the nearest lamp-post in the street. The question faced today is not to be solved by succumbing to emotions, but by constitutional means as it involves the countless brethren who

have been suffering in the slavery for ages. Adherence only to conscience will not be of any help here. Looking at the nature of the proposal of Mahatma Gandhi, it will take some more time to think. However this Conference, through a resolution should convey to Mahatma Gandhi to postpone his fast for 10-12 days.

But the President Pandit Madan Mohan Malviya stated that it would not be possible in any circumstances. Consequent upon this Dr. Ambedkar did not agree to give up the Communal Award.”¹

“The Conference then adjourned till two in the afternoon, next day, the 21st September. But immediately the leading members of the Conference went to Birla House and there Sir Tej Bahadur Sapru evolved a scheme of Primary and Secondary elections for the reserved seats. According to it the Depressed Classes themselves were to select for every seat a panel of not less than three candidates and then out of those three chosen candidates one was to be selected by the Joint Electorate of the Caste Hindus and the Depressed Classes.” ²

“After a lengthy discussion, Dr. Ambedkar said that there could be a settlement provided the additional concessions in regard to the Award were given to make good the loss which would be caused due to giving up the Award. The representatives of the Congress assured that they would think over the proposal. Pandit Malviya suggested to form a small committee in this regard. Accordingly the Committee consisting of Tej Bahadur Sapru, Barister Jaikar, Pandit Malviya, Mathuradas Wasanji and Dr. Ambedkar was formed and these names were ‘intimated to the Conference.

Accordingly Dr. Ambedkar prepared the charter of demands and put up before the Committee at 10 p.m. on 20th September 1932 in Birla Bhavan. The text of the same is as follows.”³

¹: Janata, dated 1st October 1932.

²: Keer, P. 209.

³: Janata, dated 1st October 1932.

The Charter of demands made on the eve of Mahatma Gandhi's fast

“Part One :—Representation in the Legislature.

(A) The Depressed Classes shall have the following number of seats in the provincial Legislatures :—

		As per award
Madras	 30 out of 215	18
Bombay	 16 out of 200	10
Bengal	 50 out of 250	10
Punjab	 10 out of 175	9
U. P.	 40 out of 228	12
Behar & Orissa	 20 out of 175	7
C. P & Berar	 20 out of 112	10
Assam	 11 out of 108	4

(B) The method of election to those seats shall be by Joint Electorates and Reserved seats, provided that for the first ten years in 18 single constituencies in Madras, in 10 single Constituencies in Bombay, Central Provinces and Bengal, in 4 single Constituencies in Assam, in 7 single constituencies in Behar and Orissa, in 5 single constituencies in Punjab and in 12 single constituencies in U. P. there shall be held before the General Election a Primary Election of the voters of the Depressed Classes for electing 2 persons to constitute a panel who thereafter shall contest on behalf of the Depressed Classes in the Joint Electorate.

After Ten years

(C) After the first 10 years the system of Primary Election shall cease to be in operation and all seats without exception shall continue to be filled by direct election on the system of Joint Electorates and Reserved Seats.

(D) The right of the Depressed Classes to Special Representation through Joint Electorates and Reserved Seats shall be continued to them for a further period of 15 years. After the said period the matter shall be settled on the basis of referendum to the voters of the Depressed Classes.

(E) The right of the Depressed Classes to Special Representation in both Houses of the Central Legislature shall be recognised on a population ratio on the same terms and in the same manner as is provided for in the case of the Provincial Legislatures.

(F) There shall be Adult Suffrage at least for the Depressed Classes. The franchise of the Depressed Classes shall be the same for the Provincial and the Central Legislatures.

Part Two : Local Boards

1. The Depressed Classes shall be allowed representation in all the Provinces in all Municipalities, Local Boards, District and Taluka, Village Unions, School Boards of Panchayats and any Local Body now existing or to be constituted in the future on the population basis.

2. In all Public Services, Central and Local, the Depressed Classes shall be guaranteed appointments according to their population ratio as a minimum subject to qualifications as may be laid down for the same. Provision shall be made for reaching the quota by relaxing the statutory rules that may be in existence in matters other than educational qualifications.

3. In every province out of the Educational Grant a sum equivalent to the population ratio of the Depressed Classes in that province shall be ear-marked as a minimum for providing educational facilities to the Depressed Classes.

4. There shall be a provision in the Constitution allowing the Depressed Classes the right to Appeal to the Governor and the Viceroy for any neglect of their interest in the matter of education, sanitation, recruitment in Public Services, etc., on the same terms and in a manner provided in the Constitution of Canada, Section 93.”¹

“Sir Tej Bahadur Sapru evolved a Supreme of Primary and Secondary electors for the reserved seats. Thereupon Dr. Ambedkar said that he would consult his colleagues and come back within two hours with his proposal—Dr. Ambedkar returned at night and told them that he would accept the proposal, but demanded a much larger number of seats than the British Premier’s Award had given them.”

¹: Janata, dated 24th September 1932.

“The leaders accepted his suggestion; and Jayakar, Sapru, Birla, Rajagopalachari and Dr. Rajendra Prasad left for Poona by the midnight train on Tuesday.

On September 21 Gandhi was removed at noon to the courtyard just near the entrance of Yeravda Jail, and Sardar Patel and Gandhi’s Secretary Pyarelal were allowed to sit near his cot. At noon Sapru telephoned to Dr. Ambedkar from Poona asking him to come to Poona immediately.”¹

“Dr. Ambedkar in the interview with the *Times of India*, before leaving for Poona on Wednesday the 21st September 1932 said: “I have received a message from Poona telling me that Mr. Gandhi wishes to see me and Mr. Rajah with regard to the proposal which I submitted to the Committee appointed by the Conference last night”.

“I have accepted the invitation but I have made it clear that I will have nothing to do in the way of negotiation with Mr. Rajah and his party, and if Mr. Gandhi wishes to talk with them, he should do so separately. My reason for saying this is that the dispute is really between me and my party on the one hand and Mr. Gandhi on the other”.

“Besides I do wish to mark my emphatic disapproval of the policy of the Congress and the Hindu Mahasabha of creating leaders for the Depressed Class for their own purposes and by there own propaganda and then trying to foist them on the Depressed Classes. In this there is nothing personal against Mr. Rajah. I am starting to-night.”

Another Visit to Yeravda

Sir Tej Bahadur Sapru and Mr. Jayakar who arrived in Poona by train visited Mr. Gandhi on Wednesday in the jail at 7-30 a.m. and remained in Conference with him until after 10 a.m. On leaving they said that they anticipated returning again tomorrow morning.

¹: Keer. P210.

A Statement issued after the interview says :—

The deputation consisting of Sir Tej Bahadur Sapru, Mr. Jayakar, Mr. Rajagopalachari, Babu Rajendra Prasad and Mr. G. D. Biria had a long interview with Mr. Gandhi this morning when they explained to him the scheme which had been evolved at yesterday's consultations. The interview proved to be quite hopeful, but Mr. Gandhi reserved his final opinion until he had held further consultations in the matter with friends including Dr. Ambedkar and Mr. M. C. Rajah.

The deputationists are, therefore, staying behind at Poona for another day. Sir T. B. Sapru, with whom the scheme originated, was very hopeful that it would be acceptable to Mr. Gandhi and that thus a solution of the problem would be found. The deputationists found Mr. Gandhi well and quite cheerful.”¹

“Dr. Ambedkar left by the midnight train.* On the same day Rajah and Malaviya, too, left Bombay for Poona.

On Thursday morning, i.e. on 22nd September 1932, Gandhi had a talk with Dr. Rajendra Prasad and Rajagopalachari and said he did not like that election to some of the reserved seats should be both by primary and secondary election system and to some only by Joint Electorates. He said the primary and secondary election system should be applied to all seats alike. This was related to Dr. Ambedkar at the National Hotel. Again the atmosphere became heated. Some of the leaders suggested that in the meanwhile they should send a cable to the British Premier requesting him to cancel the Separate Electorates for the Depressed Classes.”²

On the same day “at 9 A.M. Sir Tejbahadur Sapru and Bar. Jaikar met Dr. Ambedkar at National Hotel and apprised him about the above facts.”³

“But Dr. Ambedkar stoutly and pointedly told them that he would be prepared to lose separate electorates which the British Premier had invested them with, provided he was given a concrete

¹ : The Times of India, dated 22nd September 1932.

²: Keer, P. 210.

³ : Janta, 1st October 1932.

* Dr. Ambedkar was accompanied by Dr. Sotanki—Editors.

picture of the substitutes and added that he was not a man to run after a mirage. The atmosphere of dullness gave place to grim despair. At noon Jayakar, Sapru and Malaviya saw Gandhi in the Jail. They were followed by P. Baloo and Rajah, who promised Gandhi that they would secure an agreement that would satisfy him.

Late in the evening Dr. Ambedkar, accompanied by Jayakar, Birla, Chunilal Mehta and Rajagopalachari, went to meet Gandhi in the jail. It was the gravest political crisis. When the party entered the prison court, Gandhi was lying on a white iron-cot with a jail mattress on it, under the thick shade of a low mango tree, and Sardar Patel and Sarojini Naidu sat near Gandhi. Near the cot were bottles of water, sodabicarb and salt.

When Dr. Ambedkar approached the cot, there was an echoless silence and a breathless eagerness. Would the entangling silence move Dr. Ambedkar? Jayakar had foretold that Dr. Ambedkar's intransigence would collapse when he saw Gandhi. Would the entrancing sadness in the atmosphere deepened by the twilight inveigle Dr. Ambedkar? Dr. Ambedkar was now in the presence of the enveloping personality of Gandhi who had cast his spell on powerful men and drowned them in the flood of his magnetic mysticism. Amidst the fierce whirlwind raging outside the jail and the entangling silence prevailing inside, Dr. Ambedkar was calm and collected. A lesser man would have been buried alive in such a cyclone of happenings. Dr. Ambedkar loved his people more than his life and cared more for the happiness of his people than for his own.

Gandhi was weak. He lay in his bed. The talk began. Sapru narrated to Gandhi the whole story. Malaviya put the Hindu point of view. Then in a soft, slow flow Dr. Ambedkar began. He said in a low voice:"¹

"Mahatmaji, you have been very unfair to us." "It is always my lot to appear to be unfair," replied Gandhi, "I cannot help it."

¹:Keer, Pp. 210-12.

The interview was protracted and Dr. Ambedkar did most of the talking, while Gandhi lay weak and still in his bed. "I want my compensation," Dr. Ambedkar urged repeatedly. "I am with you in most of the things you say," assured Gandhi, "but you say you are interested in my life."

Dr. Ambedkar :— "Yes, Mahatmaji, I am. And if you devote yourself entirely to the welfare of the Depressed Classes, you would then become our hero."

Gandhi :— "Well, if you are interested in my life, you know what you have got to do to save that life. Your position, from what you tell me, is like this. You want adequate price and compensation before you can agree to forgo what you have already secured under the Premier's decision. You say that the double system of voting proposed by you gives sufficient scope to the other party to rise, while the seats to be filled under the Panel System are designed to satisfy the aspirations of your group. What worries me, however, is this. Why do you propose the Panel System only for some seats? Why do you not propose it for all the seats? If the panel system is good for one section, it should be good even for the whole of the Depressed Classes. That is how I regard the question. You are 'Untouchable' by birth, but I am now going to make, what might appear as an astounding claim for a man in my position, I am an 'Untouchable' by adoption, and as such more of an 'Untouchable' in mind than you. Any scheme that is really good should subserve the interests not of this group or of that, but of the Depressed Class as a whole. That is the criterion by which I judge this scheme. My first suggestion to you is that, if the Panel System is good for any section of the Depressed Classes, it should be extended to all the Depressed Class seats. I cannot stand the idea that your community should either in theory or in practice be separated from me. We must be one and indivisible. As I have told the other friends, I feel no difficulty in accepting your scheme of electing a panel for a few seats. I want to make a present of it to you for all the seats. I confess I do not like the scheme as it stands. It will divide your community, and would give my life to prevent that, just as I am giving my life to prevent the disruption of the whole Hindu Community. (Epic Fast Pp. 209-210)" ¹

¹ : Reprinted, Khairmode, Vol. 5-Pp. 45-46.

“Dr. Ambedkar accepted Gandhi’s suggestion. The interview ended, and the leaders started to settle other details regarding the number of men in the panel, number of total seats in the provincial assemblies, duration of the primary system, duration of the reserved seats and distribution of posts.”¹ (The Epic Fast. Pp. 209-10).”

When Dr. Ambedkar and Dr. Solanki saw Mr. Gandhi, they were accompanied by most of the leaders then present in Poona.

“Friday, the 23rd September, dawned. For hours hot discussions raged over the number of candidates required to make the panel. Then there was the question of seats. Dr. Ambedkar demanded 197 seats in the Provincial Assemblies and the leaders reduced the number to 126. Negotiations dragged on. Hours rushed by. After ten hours of discussion, some points were referred to Gandhi and he upheld Dr. Ambedkar’s points. But still the negotiations seemed to break down on the question of duration of primary election and referendum to decide the duration of reserved seats. Dr. Ambedkar said that the system of Primary Election should terminate at the end of ten years; but he insisted that the question of reserved seats should be settled by referendum of the Depressed Classes at the end of further fifteen years. The leaders’ opinion was that the evil of reserved seats and separation would be perpetuated by making its removal dependent upon the will of the Depressed Classes. Dr. Ambedkar’s insistent demand for a referendum at the end of twenty-five years created a furore among the caste Hindu circles. Dr. Ambedkar frankly told them that he refused to believe that Untouchability would be no more in the next twenty years or so, and therefore he said that faced with the sword of Damocles, the Caste Hindus would be compelled to change their inhuman attitude to the Untouchables” ²

“ ... Dr. Ambedkar desired Gandhi to agree to a referendum of ten years. Gandhi was slightly better and he spoke very slowly but deliberately. “Your logic is irrefutable,” he said. “But let the referendum be at the end of five years. Surely, five years is a sufficient period to prove the bona-fides of the Caste

¹ : Keer, P. 212.

² : Keer, Pp. 212-213.

Hindus. But if you insist on postponing the referendum further, I would begin to suspect that what you want is not to test the bona fides of the Caste Hindus but time only to organize the Depressed Classes for an adverse referendum.” He made an impassioned appeal for mutual trust, confidence, and goodwill. He described how from the age of twelve, his whole being had rebelled against the very idea of regarding any fellow human being Untouchable and how since then he had led a ceaseless crusade against the evil. “You have a perfect right to demand cent per cent security by the statutory safeguards,” he told Dr. Ambedkar, “But, from my fiery bed, I beg of you not to insist upon the right. I am here to-day to ask for a reprieve for my Caste Hindu brethren. Thank God, their conscience has been roused. If you proceed to wrest from them cent per cent security by the statutory means, then it will interrupt the process of heart-cleansing and self-purification that is fast taking place among them. The particular injustice, for a while, to the Untouchables might be checked, but the taint in Hinduism would remain. After all, Untouchability is but a symptom of that deep-seated taint. And, if Hinduism is not completely purged of it, it will assert itself again and again in various ways and continue to poison our entire social and political fabric. I entreat you, therefore, not to deprive Hinduism of a last chance to make a voluntary expiation for its sinful past. Give me the chance of working among the Caste Hindus. That is but fair. If you ask for ten or fifteen years, then it is no chance at all. Hindus must give a good account of themselves within five years or not at all. For me, therefore, the five-year limit of referendum is an absolute matter of conscience. There should be a referendum, but not at the end of any period longer than five years. Tell your friends that I am adamant on this point. I may be a despicable person, but when truth speaks through me I am invincible. “(Epic Fast, Pp. 211—212).”¹

“The interview ended, and leaders started to settle other details regarding the number of men in the panel, number of total seats in the Provincial Assemblies, duration of the primary system, duration of reserved seats and distribution of posts.” “This meeting took place at the residence of Raja Bahadur Shivrul Motilal.”

¹: Reprinted. Khairmode, Vol. 5, Pp. 47-48.

“It was now four in the evening. News came in that Gandhi’s health had taken a serious turn, and he was fast losing strength. Gandhi’s son, Devdas Gandhi, with tears in his eyes, described the condition of his father to Dr. Ambedkar and entreated him not to hold over the agreement by pressing for a referendum. At last it was decided to refer this matter to Gandhi. Ambedkar with selected leaders saw Gandhi in the jail at nine o’clock that night. Gandhi approved of the idea of referendum, but said it should take place after five years. Gandhi’s voice had now sunk to a whisper. The Jail Doctors intervened and stopped further conversation. The leaves of the mango tree above refused to move. It was a breathless silence. The visitors had to return. Dr. Ambedkar was not prepared to give up his point. His will-power was on the strain. Letters threatening his life came in showers.” ¹

Here is one such letter :

“Dr. Ambedkar,

If you do not accept to Mahatma Gandhi’s demand within four days, your life will be in danger. If you want to save your life, you should accept Gandhiji’s demand and help ending his fast immediately. This is a warning to you. If you do not give up your vehemence, you will be killed.”

Signed by Haribhai K. Bhat,
A member and worker of BPEE” ²

Murderous looks were cast at him in the street, and some of the leaders insanely reviled him behind his back.”

Further, a secret plan to kill Dr. Ambedkar by some youth from touchable classes of Poona was reported by ‘Janata’ (24-9-32, P. 8), thus:

“Dr. Ambedkar’s life in danger !

Secret Meeting of Poona students Murder threat”

Poona, Dt. 23-9-32, 8 P. M.

¹:Keer,P.213.

²: Janata, dated 1st October 1932.

(By Special Reporter of Janata)

“Two days are over. Negotiations are continuously going on. Various experiments of pressurising Dr. Ambedkar are going on. The students following the Gogate cult which had shot at the Governor, are known to be secretly planning. It is also being said that if Dr. Ambedkar is removed from the scene, things would settle and Gandhiji’s life would be saved. When Dr. Ambedkar was informed of this, he laughed at it. Probably his fearless laugh indicated that he was not afraid of such a death. However, the local Untouchable community is worried about the safety of Dr. Ambedkar and they are keeping an alert. Even if there happens a slightest injury to Dr. Babasaheb Ambedkar, there would be a grave situation. Thousands of Untouchable youth would be ready to make any sacrifice for him. All are feeling a concern that there should not be such a violent end to Gandhiji’s oath.” ¹

“The leaders who went to see Mahatmaji at 9-30 p.m. came out after a comparatively short while looking exhausted but cheerful. Dr. Ambedkar was heard to remark “Gandhiji is on my side.”

“The leaders are meeting again in conference at 8 o’clock on Saturday morning and will see Gandhiji shortly afterwards. Prevalent opinion is that complete agreement is now within reach. And unless a miraculous piece of ill-luck intervenes, Saturday noon must enable Poona to flash out the happy news of a definite settlement.

Differences on questions of major importance have almost been surmounted and have been reduced to an almost theoretical difference on the question of a referendum of the Depressed Classes at a distant future date. It is considered likely that the leaders may agree to a referendum to be taken after 10 years.

¹: Janata, dated 24th September 1932.

Among the points agreed upon are stated to be the following :—

1. A panel of 4 for election to each seat.
2. A single vote.
3. The total number of seats in all Provincial Councils to be reserved for Depressed Classes would be between 150 to 155 as against 71 allowed by the Communal Award.

The Conference, which had met at Pandit Malaviya's place, early in the morning, after a non-stop sitting of over thirteen hours, came to an end at 9-30 p. m., after which Pandit Malaviya, Sjt. C. Rajagopalachari, Mr. Jayakar, Dr. Sapru, Dr. Ambedkar and others left hurriedly for Yeravda jail.

The Conference attracted anxious crowds at Malaviyaji's place. Even when the leaders rose at 9-30 p. m., no hope of settlement to-night was entertained.

Leaders are racing against time, and lunch after dinner today went side by side with discussions.

While they looked serious and absorbed earlier, boisterous laughter was heard emanating from behind the walls in the evening.

The Conference of caste Hindus and Depressed Class Leaders commenced at 9 o'clock this morning at Malaviya's residence behind closed doors. The Conference, it is understood, covered much ground and came to a settlement on questions of panel for election, and basis of representation except in the United Provinces, though the final word on the matter is still unsaid.

Regarding panels, it is stated that a panel of four has been fixed as against Dr. Ambedkar's understood demand for two and Gandhiji's suggestion for five.

To anxious queries by pressmen late in the evening, Dr. Sapru replied : "discussions are so far satisfactory, and we propose to sit through it even in the night."

Dr. Ambedkar after the Conference stated :—

“The situation is hopeful. Differences of crucial character are few, and there are chances of agreement. Gandhiji is feeling weak owing to the fast but carried on the conversation with us for over fifteen minutes.” ¹

“On Saturday morning discussions were resumed. The question of the total number of seats was decided by granting 148 seats to the Depressed Classes in the Provincial Assemblies, and it was also decided that 10 per cent of the seats of the Hindus from British India in the Central Assembly should be given to the Depressed Classes. And then discussion was held for hours on the question of referendum which baffled the solution as before. As nobody would agree to Dr. Ambedkar’s demand, he thought it proper to see Gandhi once again in the matter. So, accompanied by Dr. Solanki and Rajagopalachari, he went to Gandhi. Gandhi told Ambedkar that his logic was irrefutable; but he said mere statutory guarantee would not root out the disease. He, therefore, entreated Ambedkar to give a last chance to Hinduism to make a voluntary expiation for its sinful past and added that there should be a referendum but not at the end of any period longer than five years. “Five years or my life,” said Gandhi with a tone of finality.

Returning to the place of discussion, Dr. Ambedkar said that he was not prepared to yield on the point of the period of referendum which should be, he averred, not less than ten years. After an hour or so they decided to make the agreement without the condition of referendum attached to it! Rajagopalachari explained it to Gandhi in the jail at three in the afternoon. Gandhi said it was excellent and gave his consent. Rajagopalachari returned posthaste to 1, Ramkrishna Bhandarkar Road, Shivalal Motilal’s Bungalow, and amidst rejoicings announced that Gandhi had blessed the agreement. It took them no time to draft the agreement. Amidst an atmosphere of joviality, freshness and chat, the agreement was signed at five in the evening on Saturday, 24th September, and it went down to history as the Poona Pact.

¹: The Free Press Journal, dated 24th September 1932.

On behalf of the Depressed Classes, Dr. Ambedkar signed it; and on behalf of the caste Hindus, Pandit Madan Mohan Malaviya signed it.”¹

“Text of Poona Pact

The following is the text of the agreement:—

(1) There shall be seats reserved for the Depressed Classes out of the general electorate seats in the Provincial Legislatures as follows :

Madras 30; Bombay with Sind 15; Punjab 8; Bihar and Orissa 18; Central Provinces 20; Assam 7; Bengal 30; United Provinces 20; Total 148.

These figures are based on the total strength of the Provincial Councils, announced in the Prime Minister’s decision.

(2) Election to these seats shall be by Joint Electorates subject, however, to the following procedure :

All the members of the Depressed Classes, registered in the General Electoral Roll in a constituency, will form an Electoral College, which will elect a panel of four candidates belonging to the Depressed Classes for each of such reserved seats, by the method of the single vote; the four persons getting the highest number of votes in such primary election, shall be candidates for election by the General Electorate.

(3) Representation of the Depressed Classes in the Central Legislature shall likewise be on the principle of Joint Electorates and reserved seats by the method of primary election in the manner provided for in Clause 2 above, for their representation in the Provincial Legislatures.

(4) In the Central Legislature, eighteen per cent of the seats allotted to the General Electorate for British India in the said legislature shall be reserved for the Depressed Classes.

(5) The system of primary election to a panel of candidates for election to the Central and provincial legislatures, as hereinbefore mentioned, shall come to an end after the first ten years, unless terminated sooner by mutual agreement under the provision of Clause 6 below.

¹: Keer, Pp. 213—214.

(6) The system of representation of the Depressed Classes by reserved seats in the Provincial and Central legislatures as provided for in Clauses 1 and 4 shall continue until determined by mutual agreement between the communities concerned in the settlement.

(7) Franchise for the Central and Provincial Legislatures for the Depressed Classes shall be as indicated in the Lothian Committee Report.

(8) There shall be no disabilities attaching to any one on the ground of his being a member of the Depressed Classes in regard to any elections to local bodies or appointment to the Public Services. Every endeavour shall be made to secure fair representation of the Depressed Classes in these respects, subject to such educational qualifications as may be laid down for appointment to the Public Services.

(9) In every province out of the educational grant, an adequate sum shall be earmarked for providing educational facilities to the Members of the Depressed Classes.”¹

“Before signing the pact, the representatives of Untouchables from Madras insisted that they would not allow Rao Bahadur Rajah and his followers to sign the pact. And, if at all they were allowed, Dr. Ambedkar and his followers would not sign the pact. Accordingly Dr. Ambedkar and his followers signed the Pact. Thereafter Dr. Ambedkar was requested to make arrangement to obtain the signatures of Mr. Rajah and his followers. After lengthy discussions, it was decided that they would be allowed to sign the pact at the end of the document and in their individual capacities. Accordingly they signed. But it was a matter of great surprise that although Mr. Rajah had to sign at the end of the document, he interpolated his signature in between the signatures of Jaikar and Sapru.”²

¹: Writings and Speeches, Vol. 9, Pp. 88—89.

²: Janata, dated 1st October 1932.

“Signatories to Poona Pact, 24-9-1932, (Epic Fast, Pp. 153-154)

(1) Madan Mohan Malaviya	(12) B. S. Kamat
(2) Tej Bahadur Sapru	(13) G. K. Deodhar
(3) M. R. Jayakar	(14) A. V. Thakkar
(4) B.R. Ambedkar	(15) R. R. Bakhale
(5) Shrinivasan	(16) P. G. Solanki
(6) M. C. Rajah	(17) P. Baloo
(7) C. V. Mehta	(18) Govind Malaviya
(8) C. Rajagopalachari	(19) Devdas Gandhi
(9) Rajendra Prasad	(20) Biswas
(10) G. D. Birla	(21) P. N. Rajbhoj
(11) Rameshwar Das Birla	(22) Gavai G. A.
	(23) Shankarlal Bankar

While signing the pact, “Rajagopalachari was so much overjoyed that he exchanged his fountain-pen with Dr. Ambedkar.

The following signatures were added in Bombay at the final sitting of the Hindu Conference on September 25 :—

(1) Lallubhai Samaldas	(10) P. Kodand Rao
(2) Hansa Mehta	(11) N. V. Gadgil
(3) K. Natarajan	(12) Manu Subhedar
(4) Kamakoti Natarajan	(13) Avantikabai Gokhale
(5) Purushottamdas Thakurdas	(14) K. J. Chitalia
(6) Mathuradas Vassanji	(15) Radhakant Malaviya
(7) Walchand Hirachand	(16) A. R. Bhatt
(8) H.N. Kunzru	(17) Colam
(9) K. G. Limaye	(18) Pradhan” ¹

¹: Reprinted, Khairmode, Vol. 5, Pp. 56—57.

Immediately the contents of the Pact were cabled to the British Cabinet, wired to the Viceroy, and also handed over to the Secretary of the Bombay Governor by each party separately, and next morning the leaders returned to Bombay to ratify the Pact. At 2 p. m. the leaders held a meeting at the Indian Merchants' Chamber Hall.”¹

While reporting the meeting called for confirmation of Poona Pact, “The Bombay Chronicle” wrote, Pandit Madan Mohan Malaviya was in chair. He, in his speech thanked all those who helped in materialising the Poona Pact. He specially thanked Dr. Ambedkar without whose help emergence of Poona Pact would have been difficult. Now the entire responsibility is on the shoulders of Hindus to bring the pact in practice.

Sir Tej Bahadur Sapru, Sjt. Rajgopalachari spoke on this occasion. Mr. Mathuradas, Vissonji Khimji moved the resolution.

Mr. Mathuradas Vissonji Khimji moved the resolution ratifying the Poona Pact.”²

At this meeting the following resolution was passed :—

“This Conference confirms the Poona agreement arrived at between the leaders of the Caste Hindus and Depressed Classes on September 24, 1932, and trusts that the British Government will withdraw its decision creating Separate Electorates within the Hindu Community and accept the agreement in full. The Conference urges that immediate action be taken by Government so as to enable Mahatma Gandhi to break his fast within the terms of his vow and before it is too late. The Conference appeals to the leaders of the communities concerned to realize the implications of the agreement and of this resolution and to make earnest endeavour to fulfil them.

“This Conference resolves that henceforth, amongst Hindus, no one shall be regarded as an Untouchable by reason of his birth, and that those who have been so regarded hitherto will have the same right as other Hindus in regard to the use of public wells, public schools, public roads, and all other public

¹: Keer, P. 214.

²: The Bombay Chronicle, dated 26th September 1932.

institutions. This right shall have statutory recognition at the first opportunity and shall be one of the earliest Acts of the *Swaraj* Parliament, if it shall not have received such recognition before that time.

“It is further agreed that it shall be the duty of all Hindu leaders to secure, by every legitimate and peaceful means, an early removal of all social disabilities now imposed by custom upon the so-called Untouchable Classes, including the bar in respect of admission to temples.”¹

Mr. Sapru said, “Dr. Ambedkar faught and fought valiantly for the cause which he represented and he promised to be a good fighter in the future life of the country.

Speaking in support of the resolution confirming the Poona Pact Dr. B. R. Ambedkar who was greeted with cheers when he rose, declared :

“I believe it is no exaggeration for me to say that no man a few days ago was placed in a greater dilemma than I was. There was placed before me a difficult situation in which I had to make a choice between two difficult alternnatives.

There was the life of the greatest man in India to be saved. There was also for me the problem to try and safeguard the interests of community which I was in my humble way trying to do at the Round Table Conference according to my light. I am happy to be able to say that it has become possible through the co-operation of all of us to find a solution so as to save the life of the Mahatma and at the same time consistent with such protection as is necessary for the interests of the “Depressed” Classes in the future. I think, in all these negotiations a large part of the credit must be attributed to Mahatma Gandhi himself. I must confess that I was immensely surprised, when I met him, that there was so much in common between him and me. (cheers)

In fact, any disputes whenever they were earned to him and Sir Tej Bahadur Sapru has told you that the disputes that were carried to him were of a very crucial character. I was astounded to see that the man who held such divergent views from mine at

¹: Writings and Speeches, Vol. 9, P. 103.

the Round Table Conference came immediately to my rescue and not to the rescue of the other side. I am very grateful to Mahatma for having extricated me from what might have been a very difficult situation.

My only regret is why did not Mahatma take this attitude at the Round Table Conference? If he had shown the same consideration to my point of view, it would not have been necessary for him to go through this ordeal. However, these are things of the past. I am glad that I am here now to support this resolution.

Since the question has been raised in the newspapers as to whether this Agreement will have the support of the whole "Depressed" Classes community, I should like to make it clear that so far as I am concerned and so far as the party which stands with me is concerned and I am sure I am also speaking for the other friends who are present here that we will stand by the Agreement. Let there be no doubt about this.

Our only concern is this, whether the Hindu Community will abide by it. (voices : Oh yes, we will) We feel that the Hindu Community unfortunately is not an integral whole but, if I may say so, a federation of small communities. I hope and trust that the Hindus on their side will look upon this document as sacrosanct and work in an honourable spirit.

There is just one thing that I would like to say. I am very much obliged to all friends who took part in the negotiations, but I should like particularly to mention Sir Tej Bahadur Sapru and Mr. C. Rajagopalachari. Without Sir Tej Bahadur probably it, would have been difficult to carry through many of the points. I must confess that as the result of my experience of him for the last two years at the Round Table Conference that if there is any man in India who is above all communal prejudice it is Sir Tej Bahadur. His sense of fairness and justice is always a relief to all the minorities who hanker for securing some safeguards in the new Constitution.

I must also mention my friend Rajagopalchari. He came to our rescue when we were almost at a breaking-point, and had it not been for his ingenuity probably the Agreement would not

have come into being. I must also thank Pandit Malaviya for the courtesy and forbearance that he showed in the hot exchange of words and acrimonious debates that went on during all these negotiations.

The change that has been brought about in the Communal Award has been brought about by the insistence of the view that Separate Electorates are injurious to the national interests. I must confess that I remain unconvinced of that argument. I can quite understand that for a majority representation Separate Electorates are harmful but I still remain unconvinced that for minority representation Separate Electorates are an evil.

I do not believe that Joint Electorates are going to be the final solution for the problem of absorbing the "Depressed" Classes in the Hindu Community.

Any electoral arrangement, I believe, cannot be a solution of the larger social problem. It requires more than any political arrangement and I hope that it would be possible for you to go beyond this political arrangement that we are making today and devise ways and means whereby it would be possible for Depressed Classes not only to be part and parcel of the Hindu Community but also to occupy an honourable position, a position of equality of status in the community.

So long as the "Depressed" Classes an ignorant lot, not imbued with a sense of self-respect, it was possible for them to accept the social status that was given to them by Hindu law, but as they get education they will begin to smart under these social Laws and there is a great danger of their seceding from Hindu Society. I beg of you to bear that in mind and hope that you will do the needful in the matter."

Rao Bahadur M. C. Rajah further supported the resolution. He said that he clearly saw a change of heart among the caste Hindu and that was why he supported the Agreement. He had no doubt at all that the Agreement will have the uninstinct support of all the "Depressed" Class people in the country.

Mr. C. Rajgopalachari moved a vote of thanks to the chair.

Pandit Malaviya announced that he was going to communicate with Mahatmaji regarding the fast declared by Sjt. Keiappan to establish the right of the "Depressed Class" people to enter the Gurvayur temple in Malabar.

Among those present at the Hindu leaders' Conference of Sunday were: Sir Tej Bahadur Sapru, Sir Lallubhai Samaldas, Sir Purushottamdas Thakurdas, Sir Chunilal Mehta, Sir Govind Madgaokar, Mr. M. R. Jayakar, Pandit Hridaynath Kunzru, Mr. G. K. Deydhar, Mr. B. N. Karanjia, Mr. K. Natarajan, Rao Bahadur M. C. Rajah, Dr. Ambedkar, Mr. P. Baloo, Mrs. D. G. Dalvi, Miss Natarajan, Mrs. Hansa Mehta, Mrs. Avantikabai Gokhale, Mr. B. S. Kamat, Mr. Manu Subedar, Mr. G. D. Birla, Mr. D. P. Khaitan, Mr. B. F. Bharucha, Dr. Solanki, Dr. Choitram Gidwani, Lady Chimanlal Setalvad, Mr. Walchand Hirachand, Mr. B. J. Deorukhkar, Mr. C. Rajagopalachari, Mr. Devadas Gandhi, Mr. T. Prakasam and Babu Rajendra Prasad." ¹

His Majesty's Government announced on September 26, 1932 that it would recommend to Parliament the endorsement of the Poona Pact.

On Monday the 26th September 1932, the Hon'ble Mr. H. G. Haig, Home Minister, made his statement in the Central Legislative Assembly:

"Statement Re. Communal Award. The Honourable Sir, C. P. Ramaswami Aiyar (Leader of the House): Sir, will you allow me to request you to make a departure from the usual practice at question time as a very important statement has to be made by my Honourable Colleague, the Home Member, and I am sure the House will agree with me when they hear the statement that this departure is well justified. Will you allow us to do so?"

Mr. President (The Honourable Sir Ibrahim Rahimtoola): What is the statement?

The Honourable Sir C. P. Ramaswami Aiyar: The Honourable Home Member desires to make a statement about the Communal Award and the decision of His Majesty's Government with regard to the Communal Award in relation to the Depressed Classes.

¹: The Bombay Chronicle, dated 26th September 1932.

Mr. President (The Honourable Sir Ibrahim Rahimtoola): As a special case, the Chair will allow the statement to be made at this stage.

The Honourable Mr. H. G. Haig (Home Member): In accordance with your permission, Sir, I will read to the House a Statement issued by His Majesty's Government this morning in connection with the agreement reached at Poona on Saturday afternoon. His Majesty's Government have learnt with great satisfaction that an agreement has been reached between the leaders of the Depressed Classes and of the rest of the Hindu Community regarding the representation of the Depressed Classes in the new legislatures and certain other matters affecting their welfare. In place of the System of General Constituencies combined with Special Depressed Class Constituencies contained in the Government Communal Award of 4th August last, the agreement provides for General Constituencies with which seats are reserved for Depressed Classes subject to important conditions as to the manner in which the reserved seats are filled. The Government, in their Award which was given in the absence of agreement between the communities, were solely concerned in relation to the Depressed Classes to provide adequate securities that the interests of these classes should be observed by the new legislatures. As representatives of the Depressed Classes and other Hindus acting together believe that the scheme now forwarded by them to His Majesty's Government is adequate for the purpose, the Government, in accordance with the procedure which they laid down in paragraph 4 of their Award, will recommend to Parliament, in due course, the adoption of the clauses of the agreement dealing with representation in the Provincial Legislatures in place of the provision in paragraph 9 of the Award (Applause).

It will be understood that the total number of general seats including those reserved for the Depressed Classes under the agreement will, in each Province, remain the same as the number of general seats plus the number of special Depressed Classes seats provided for in His Majesty's Government's decision.

His Majesty's Government note the agreement deals also with certain questions outside the scope of their award of August 4th. Clauses 8 and 9 deal with general points, the realisation of which will be likely to depend in the main on the actual working of the constitution. But His Majesty's Government take note of these clauses as a definite pledge of the intentions of the Caste Hindus towards the Depressed Classes.

There are two other points outside the scope of their Award : (1) The agreement contemplates that the franchise for the Depressed Classes should be that recommended by the Franchise (Lord Lothian's) Committee. It is obvious that the level of the franchise for the Depressed Classes (and indeed for Hindus generally) must be determined at the same time as that for other communities is being settled, and the whole subject is under consideration by His Majesty's Government—(2) The agreement also provides for a particular method of electing Depressed Classes representatives for the Legislature at the Centres. This, again, is a subject outside the terms of this Award which is under investigation as part of the whole for election for the legislature at the Centre, and no piecemeal conclusion can be reached. What has been said on these two points should not be regarded as implying that His Majesty's Government are against what is proposed in the agreement, but that these questions are still under consideration. To prevent mis-understanding, it may be explained that the Government regard the figure 18 per cent, for the percentage of British India general seats at the Centre to be reserved for the Depressed Classes as a matter for settlement between them and other Hindus. (Applause).^{1*}

"In the evening prayers were said in the Prison yard. Kasturba then handed Gandhi orange juice, and he broke his fast about half-past five amidst a gathering of some two hundred disciples and admirers, poet Tagore, Sarojini Naidu, Sardar Patel and Swarup Rani Nehru being conspicuous."²

¹: (The Legislative Assembly Debates-Official Report—Volume V. 1932, Pp. 1307-1308, Monday, 26th September, 1932)."

Reprinted, Khairmode, Vol. 5, Pp. 57-59.

²: Keer, P. 215.

* For comments on Round Table Conference and Poona Pact—See appendix-V

I Responded to the call of humanity and Saved the Life of Mr. Gandhi.

In this regard Dr. B. R. Ambedkar said,

“The story of this fact has been told by Mr. Pyarelal in a volume which bears the picturesque and flamboyant title of “The Epic Fast,” The curious may refer it. I must, however, warn him that it is written by a Boswell and has all the faults of a Boswelliana. There is another side to it, but there is neither time nor space to present it here. All I can do is to invite attention to the statement* I issued to the Press on the eve of Mr. Gandhi’s fast exposing his tactics. Suffice it to say that although Mr. Gandhi declared a fast unto death, he did not want to die. He wanted very much to live.

The fast nonetheless created a problem, and that problem was how to save Mr. Gandhi’s life. The only way to save his life was to alter the Communal Award which Mr. Gandhi said hurt his conscience so much. The Prime Minister had made it quite clear that the British Cabinet would not withdraw it or alter it of its own, but that they were ready to substitute for it a formula that may be agreed upon by the Caste Hindus and the Untouchables. As I had the privilege of representing the Untouchables at the Round Table Conference, it was assumed that the assent of the Untouchables would not be valid unless I was a party to it. The surprising fact is that my position as the leader of the Untouchables of India was not only not questioned by Congressmen but it was accepted as a fact. All eyes naturally turned to me as the man of the moment or rather as the villain of the piece.

As to myself it is no exaggeration to say that no man was placed in a greater and graver dilemma than I was then. It was a baffling situation. I had to make a choice between two different alternatives. There was before me the duty, which I owed as a part of common humanity, to save Gandhi from sure death. There was before me the problem of saving for the Untouchables the political rights which the Prime Minister had given them. I responded to the call of humanity and saved the life of Mr. Gandhi

* See Pp. 143-150 of this part-Editors.

by agreeing to alter the Communal Award in a manner satisfactory to Mr. Gandhi. This agreement is known as the Poona Pact.

The terms of the Pact were accepted by Mr. Gandhi and given effect to by Government by embodying them in the Government of India Act. The Poona Pact had produced different reactions. The Untouchables were sad. They had every reason to be. There are, however, people who do not accept this. They never fail to point out that the Poona Pact gave the Untouchables larger number of seats than what was given to them by the Prime Minister in his Communal Award. It is true that the Poona Pact gave the Untouchables 148 seats, while the Award had only given them 78. But to conclude from this that the Poona Pact gave them more than what was given by the Award is to ignore what the Award had in fact given to the Untouchables.

The Communal Award gave the Untouchables two benefits :—(i) a fixed quota of seats to be elected by separate electorate of Untouchables and to be filled by persons belonging to the Untouchables ; (ii) double vote, one to be used through Separate Electorates and the other to be used in the General Electorates.

Now, if the Poona Pact increased the fixed quota of seats it also took away the right to the double vote. This increase in seats can never be deemed to be a compensation for the loss of the double vote. The second vote given by the Communal Award was a priceless privilege. Its value as a political weapon was beyond reckoning. The voting strength of the Untouchables in each constituency is one to ten. With this voting strength free to be used in the election of caste Hindu candidates, the Untouchables would have been in a position to determine, if not to dictate, the issue of the General Election. No caste Hindu candidate could have dared to neglect the Untouchable in his constituency or be hostile to their interest if he was made dependent upon the votes of the Untouchables. Today the Untouchables have a few more seats than were given to them by the Communal Award. But this is all that they have. Every other member is indifferent, if not hostile. If the Communal Award with its system of double

voting had remained the Untouchables would have had a few seats less but every other member would have been a member for the Untouchables. The increase in the number of seats for the Untouchables is no increase at all and was no recompense for the loss of Separate Electorate and the double vote. The Hindus, although they did not celebrate the Poona Pact, did not like it. Throughout their commotion to save Mr. Gandhi's life there was definite current of conscious feeling that the cost of saving his life may be great. Therefore, when they saw the terms of the Pact they very definitely disliked it, although they had not the courage to reject it. Disliked by the Hindus and disfavoured by the Untouchables, the Poona Pact was given recognition by both parties and was embodied in the Government of India Act." ¹

After the Poona Pact, Third Round Table Conference was held at England. Dr. B. R. Ambedkar left India on 7th November 1932 to attend this Conference. Gandhi's fast and Poona Pact were the issues of debate everywhere. One of the comments about Dr. B. R. Ambedkar is as follows :

"On boardship many important passengers talked about the Poona Pact and about Gandhi's fast that had rocked the Indian world. The fast had impressed them tremendously. One of the European passengers pointing to Dr. Ambedkar, said to his friend : "This is the young man who is writing new pages of Indian history." ²

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¹: Writings and Speeches, Vol. 9, Pp. 87-90.

²: Keer, P. 220.

SECTION IV

**KALARAM TEMPLE ENTRY
SATYAGRAHA, NASIK AND TEMPLE
ENTRY MOVEMENT**

CONCENTRATE ENERGY AND RESOURCES ON POLITICS AND EDUCATION

“In the history of India the year 1930 was a year of action and reaction. It brought forth a new line of thinking and a new angle of approach; new measures of repression and new methods of rapprochement. Better still, it was the age of *Satyagraha*. It was in this year that Mahatma Gandhi as the generalissimo of the Congress inaugurated his great movement for the liberation of the country on March 12, 1930, and transformed the whole country into a theatre of passive resistance, vast crowds facing battalions of mounted police, rounds of firing and terms of jail life.

Ten days before the Dandi March of Gandhi, Ambedkar, the father of Indian social unrest, launched his temple entry movement at Nasik. Preparations for this movement had been going on for over three months. Dr. Ambedkar was guiding, inspiring and organising it from Bombay through his letters and lieutenants. The Depressed Classes at Nasik had formed a *Satyagraha* Committee and through its Secretary, Bhaurao Gaikwad, informed the Trustees of the famous Kalaram Temple that they would launch *Satyagraha*, if the Trustees did not throw the temple open to the Untouchable Hindus before a particular date. Simultaneously, a clarion call was issued to the Depressed Classes to come to Nasik to assert their right of worshipping Shree Rama in the said temple. In response to this call of the *Satyagraha* Committee, about 15,000 volunteers and representatives assembled in a specially erected pandal in the Depressed Classes locality at Nasik. Notable among those present were Deorao Naik, Rajbhoj, Pradhan, Shivtarkar, Patitpavandas and B.G. Kher.

At last the day of action dawned. It was Sunday, March 2, 1930. In the morning at ten, a Conference was held under the Presidentship of Dr. B. R. Ambedkar in the pandal to consider the situation and adopt ways and means for launching the *Satyagraha*.”¹

“Dr. Ambedkar put forward a thought-provoking speech about the entry of Kalaram Temple. He said, today, we are about to

¹: Keer P. 136.

enter the Temple. But the entry in the Temple would not solve the whole problem. Our problem is comprehensive. It is political, social, religious, economic, educational etc. The issue of Kalaram Temple entry is a appeal to the Hindu mind. The high caste Hindus deprived us from the far ages. Whether the same Hindus are willing to grant our humanitarian rights will be the question raised from this Temple entry *Satyagraha*. Whether the Hindu mind is willing to accept us as human beings, this is the question to be tested through this *Satyagraha*. The high caste Hindus looked down upon us and treated us even worse than cats and dogs. We wish to know whether those very Hindus would give us the status of man or not. This *Satyagraha* will provide answer to this question. This *Satyagraha* is one of the efforts for bringing about a change of heart among the high Caste Hindus. Hence the success of this effort depends on the Hindu mind-set.

Our real problem is not going to be solved by the entry into the Ram Temple. It will not bring about any radical change in our life. But this is a test to judge the high caste Hindu mind. Whether the Hindu mind is willing to accept the elevated aspirations of the new era that “man must be treated as man ; he must be given humanitarian rights ; human dignity should be established “is going to be tested. In order to achieve this goal, we have launched this *Satyagraha*. The main question is whether the high caste Hindus are going to consider these aspects and act accordingly.

We know that in this temple resides God made of stone. By having a mere glance at him or by worshiping him, our problem will not be solved completely. Millions of people might have visited this temple and have had a glance at the god uptill now. But who would say that their basic problem was solved by this act? We know this. But our *Satyagraha* today is an effort to bring about a change of heart among the Hindus. With this principled position we are launching this *Satyagraha*.” ¹

¹: Dr. Babasaheb Ambedkaranchi Patre (Marathi); Shankarrao Kharat, Pp. 46, 47. English Translation by Editors.

“At noon the Conference adjourned and again met at half past one.

At three in the afternoon, the congregation divided itself into batches of four extending itself over a mile-long procession. It was the biggest procession in the history of Nasik. At the head played a band after the military style redolent of the association of many of the Depressed Class members with military life. Then followed a batch of scouts. Behind them walked about 500 women *Satyagrahis* showing a revolutionary change in their outlook; and they were followed by a multitude of processionists enthused with an exalted spirit, but walking with a full sense of discipline, order and determination. As soon as the procession came up to the eastern gate of the temple, the District Magistrate, the Police Superintendent and the City Magistrate moved towards the gate of the temple. As all the gates of the temple were closed, the processionists proceeded to the Godawari Ghat. There the procession transformed itself into a meeting.

At eleven O'clock that night the leaders again discussed the issue in all its aspects and decided to launch a non-violent struggle before the gates of the temple. This historic struggle thus commenced on the morning of March 3, 1930. The first batch of 125 men and 25 women was posted at the four gates of the temple, and over 8,000 enlisted *Satyagrahis* were awaiting their turn. But the gates of the temple were closed and barricaded. While the *Satyagrahis* squatted at the entrance, chanting hymns and singing bhajans, crowds of Untouchables numbering over 3,000 gathered in their vicinity; but the police were on the alert and kept them on the move. A strong force of armed police was posted at each gate. Two First Class Magistrates were on duty at the place since early morning to meet any emergency. Reynalds, the Police Superintendent, had shifted his office to a tent pitched right in front of the temple.

The touchables, too, were precluded from entering the temple as the gates remained closed, and their leaders were deliberating behind closed doors to find a way out of the impasse. A difficult situation would have developed had the gates been opened to the Caste Hindus.

At night, a public meeting of the citizens of Nasik was held under the Presidentship of Dr. Kurtakoti, the Shankaracharya, but it ended in pandemonium due to the predominance of the orthodox people. The *Sanatanists* by now had got panicky and rowdy. They pelted the meeting with stones and shoes. It was felt that even Rama himself would be thrown aside, if he were to fell the orthodox Hindus to throw open the temple to the Untouchables !

The *Satyagraha* struggle continued for about a month. April 9 dawned. It was the day of the chariot procession of the image of Rama. A compromise was patched up between the Caste Hindus and the Untouchables. It was decided that strong men from both sides should draw the chariot. Thousands of people assembled at noon near the main gate of the temple to see the sight. Dr. Ambedkar, with his choice gymnasts, stood near the gate. But before they could touch the chariot, they were engaged in broils by the riotous element of the Caste Hindus, and the Caste Hindus ran away with the chariot, as secretaly planned, through a street, narrow, thorny and inconvenient on either side, and the mouth of which was guarded by armed police. A daring Bhandari youth by name Kadrekar broke the cordon of the armed police who were awaiting orders to fire, and in a movement crowds of Untouchables pursued the chariot amidst showers of stones and captured it. Dangerously wounded, Kadrekar fell down in a pool of blood. Dr. Ambedkar was protected by his men and as the umbrellas that protected his person were shattered, he too, received minor injuries. There was free fighting between groups of Untouchables and Caste Hindus all over the city.

This *Satyagraha* provoked considerable ill-feeling in the minds of the orthodox Hindus throughout the District. As a result of this tension children of the Untouchables were thrown out schools, roads were closed to them, and necessities of life were denied to them in the market because they claimed equal rights with all other Hindus. Untouchables in several villages were maltreated. Despite these sufferings, the struggle at Nasik was earned on. Attempts were being made to persuade both the parties to reach a compromise. Dr. Moonje and Dr. Kurtakoti the Shankaracharya,

were trying to reach a settlement. The great multi-millionaire Birla also saw Dr. Ambedkar in Bombay in the middle of April 1930. But so firm was the resolve of the Depressed Classes that orthodox Hindus had to keep the famous temple closed for a whole year and the agitation continued.”¹

Dr. B. R. Ambedkar had written two letters to His Excellency Governor of Bombay regarding the problems created by the bureaucracy during Kala Ram Temple entry *Satyagrah* at Nasik.

The letters are as follows : Editors.

“BHIMRAO R. AMBEDKAR,
M.A., Ph. D., D. Sc,
Bar-at-law,

Damodar Hall Parel,
Bombay-12.
24th March 1930.

Member, Legislative Council,
Bombay.

May it please your Excellency,

I am extremely obliged to Your Excellency for the letter of the 13th of March 1930 in reply to my telegram giving an assurance that Government proposed to act impartially in the dispute between the touchables and the Untouchables, which is centered in the *Satyagraha* at the Kala Ram Temple at Nasik. I have honour to bring to Your Excellency's notice at recent development in the situation which seems to be fought with the greatest danger. On the day on which the *Satyagraha* was started, we purposely ommitted to blockade the entrance to the house of the *Pujari* of the temple assuming that it would not be used by the public for the purpose of going into the temple and obtain *Dev Darashan*. But of late this entrance has become a public passage and the public in Nasik is using it to go into the temple. If this is allowed, it will entirely frustrate the principal object of the *Satyagraha*. To prevent this, the District Superintendent of Police and the District Magistrate were approached by the *Satyagraha* Committee to discuss the question and to communicate to them the intention of the *Satyagraha* Committee to blockade that private entrance to the general public and permit only the members of family of the *Pujari*.

¹: Keer, Pp. 137, 138.

The District Magistrate, however, refused to see the members of *Satyagraha* Committee and turned them away with a chit stating that he will remove those who will start *Satyagraha* at the door of the *Pujari*. It is not for me to say whether such a conduct on the part of a District Officer is wise. What I wish to point out to Your Excellency is that if the attitude of the Collector is to prevail, it will immediately provoke a conflict between the Government and the Depressed Classes. Our real contest is with the touchable Hindus and I have been avoiding every circumstance which would leave the touchable Hindus out and make the *Satyagraha* a matter between Government and the Depressed Classes. Indeed this could have been done on the first day by our refusal to make *Satyagrahis* stand outside the barricades and insist on forcing through the Police guards for seating them next to the temple gates. This we did not do simply because we did not wish to make it a fight between ourselves and the Government. But it would be inevitable if the Government to depart from its original intention of remaining impartial by permitting the *Pujari* to permit to use his private entrance as a public passage and thereby be a party to the frustration of our object. Under no circumstances can we permit this new stunt of the *Pujari* and tolerate his rendering our *Satyagraha* futile even if it brought us into conflict with Government. I am writing this to inform Your Excellency of the situation as it is developing and to give a chance for the reconsideration of the attitude of the District Magistrate before of the *Satyagraha* Committee addressed to me and also a copy of the chit sent to them by the District Magistrate with which he turned them away when they called upon him,

I have seen the place myself last Saturday and I am quite convinced that the fear expressed and the danger to the *Satyagraha* which is apprehended are real.

I beg to remain,
Your Excellency's Most Obedient Servant,
(Sd) B.R.Ambedkar.”¹

¹: Khairmode. Vol. 3; Pp. 321—323.

Second letter:—

“BHIMRAO R. AMBEDKAR,
M.A., Ph. D., D. Sc.,
Bar-at-law,
Member, Legislative Council,
Bombay.

Damodar Hall Parel,
Bombay-12.
11th April 1930.

To,

His Excellency the Rt. Honourable Sir,
Frederick Sykes, P. C, G. C. I. E.,
G. B.E.,K. C.B.,C.M.G.,
Governor of Bombay,
Bombay.

May it please Your Excellency,

The Government of Bombay must have received a report from the District Magistrate of Nasik on the riot that took place there between the touchables and the Untouchables on the 9th instant. I feel it necessary to submit to Your Excellency my reversion of the riot.

Origin of the Riot :—According to the practice of the Kala Ram Temple at Nasik, the *Rath* (carriage of the God Ram) was to be taken out in the procession through the city. I was asked by Inspector Karnik (one of the Police Officers on duty at the Kala Ram Temple) what attitude I proposed to adopt the connection with the *Rath* procession. I told him that if equal treatment was accorded to Untouchables I had no objection to the *Rath* being taken out and I also specified the nature of the equality of treatment. I had stipulated for stating that I would insist upon two things—

(1) That the Untouchables will participate in dragging the *Rath* alongwith the touchables, and (2) the Untouchables will offer *Puja* to the Idol in the *Rath*. Mr. Karnik then left and turned with the District Magistrate. The District Magistrate told me that my conditions were accepted by the touchable Hindus and that the touchables would bring the *Rath* to the main door of the temple

and after they had dragged it for 10 feet from the gate the Untouchables could join, and together with the touchables join carrying by holding the rope fastened to the *Rath*, and questioned me whether I had any objection to the *Rath* procession, to which I replied 'I had none' and in order to help the cause of peace I went out of my way to sort out about 50 out of a 5,000 Untouchables and told them that they alone want to take part in the dragging of the *Rath*. Accordingly the *Rath* was brought out to the temple gate by the touchables. But the touchables who wanted to deceive both the Untouchables and the Police Officers did two things— (1) the touchables held the rope so close to one another that no room was left for the Untouchables to join in, and (2) the touchables instead of stopping the *Rath* at the temple gate, as previously agreed to, began to run away with it so as to give no chance to Untouchables to catch the rope and participate in carrying the *Rath*. This menace to violate the most important condition in the agreement naturally enraged the feelings of the Untouchables. But the immediate cause of the fight was the action of the Police Sepoys a great majority of whom were Caste Hindus, they at once started to assault those Untouchables who were struggling to hold a bit of the rope. The fight was started by the Caste Hindu Police who openly took the side of the touchable Hindus.

The batch of 50 Untouchables was thus subjected to an assault from two-sides. The touchable Hindus who had held the rope were brushing them away and preventing them from taking a position near the rope and when the Untouchables were struggling to take a position the caste Hindu Police were charging with their batons and butt-ends of their rifles.

Seeing their men assaulted in this way the rest of the Untouchables followed the *Rath* with which the touchables were running away at a terrific speed. Seeing that the crowd of the Untouchables pursuing the *Rath* had come very near it, the touchables abandoned *Rath* on the road and went to adjoining field and began to throw a volley of stones on the crowd of Untouchables who were standing on the road.

The road was lined on one side by barbed wire and on the other side by cactus, and consequently the Untouchables could not

escape from the volley of stones as a result of which many of them were injured. The peaceful conduct of the Untouchables is evidenced from the fact that there is not a single casualty reported from among the touchable Hindus.

Extent of the mischief done :— The crowd of the touchable Hindus when they were dispersed from the Field wherefrom they were throwing stones went to the camp of the *Satyagraha* Committee, pulled down the tent, smashed bicycles of volunteers, stoned the motor belonging to one of the members of the Committee and stoned the women who were in the charge of the kitchen and caused injuries to small children straying about.

From there it went to the bank of the river where they found some Untouchable men, women and children who could not leave the bank of the river and join the main body of the Untouchables at the temple gate on account of the fact there was no one to take charge of their bullocks and carts, they were brutally assaulted, their belongings were burnt and some were thrown into water.

According to the information given to me this attack resulted in the death of one man. Very little help was given to these unfortunate Untouchables on the bank of the river. The main body of the Untouchables could not go to their rescue because they were stopped from moving from their place and the police cordon was placed around them and as most of the Police force was engaged in keeping custody of the main body of the Untouchables at the gate, very few were left to give aid to those Untouchables who became victims to the attack on the bank.

Attitude of the Police :—I must, however, guard myself against creating the impression that I have any complaint to make against the Police Officers. On the contrary, I have not the slightest hesitation to say that they have done their duty. I wish particularly to mention the names of Inspectors-Shelke, Nagarkar and Karaka for their splendid work in the most trying circumstances arising out of the *Satyagraha*.

My complaint is against the Sepoys who took sides and who exhibited their caste prejudice by assaulting respectable Untouchables in a most wanton fashion. Their names and numbers will be submitted to their superiors and I trust Your Excellency will direct disciplinary action against them.

Policy of District Magistrate :—I regret to say that I was not satisfied with the policy of the District Magistrate in connection with the *Satyagraha* of the Untouchables. In my last letter I had informed Your Excellency how a private door of the house of the *Pujari* was being used by the public as an entrance to the temple and how our *Satyagraha* was being frustrated thereby.

The District Magistrate did not pay any regard to our contention and on the Ramnavami Day not only allowed the public to use the private entrance of the *Pujari* in complete disregard of our contention but prohibited our *Satyagrahis* to sit as usual at the adjacent public way the barricade from which was removed to provide exit to the touchable Hindus entering by the private door. As a result 18 Untouchables out of 300 who offered *Satyagraha* were arrested on the Ramnavami Day.

After the riot of the 9th, the District Magistrate proposed to me that I must stop the *Satyagraha* or else he will withdraw the Police. His proposal was considered by the *Satyagraha* Committee and was rejected and I think rightly. Nothing could be a greater disaster to movement of the Untouchables than the stopping of the *Satyagraha* at this juncture. The touchable Hindus would gain the impression that any slight use of the force is sufficient to crush the movement of the Untouchables.

Under the circumstances I or *Satyagraha* Committee can allow such an impression to go round. Only on this, if on no other account, we must continue our *Satyagraha*. Regarding the withdrawal of the Police, I wish the Government of Bombay to realise fully the implications thereof.

To my mind it means that the Government is not willing to use the power it has under its command to help people who are struggling for their rights to win them. Such a power is good for nobody and the Depressed Classes may then be justified in joining hands with those who are speaking for a change. I hope that the Government of Bombay will give proper directions to the District Magistrate on this point.

I learn from the 'Times of India' of today's date that the District Magistrate has promulgated an order under Section 144 Cr. P. Code

and prohibited people coming from near the Kala Ram Temple. I do not know if this order contemplates the prevention of our *Satyagrahis* from sitting at the temple doors as they have been doing heretofore.

I most respectfully submit to Your Excellency that there is a chance (I use this word advisedly as I do not know the opinion of the *Satyagraha* Committee) of this order being respected only if the District Magistrate gives an assurance that the temple doors will remain closed during the period stated in his order and that the private door of the Priest will not remain open to the public.

As I have made clear in my last letter, the fight is between touchables and the Untouchables and I have no desire to bring the latter into the conflict with the Government.

I am anxious to have an interview with Your Excellency to discuss the situation personally and if Your Excellency is inclined to grant one I am available till 2 p.m. tomorrow.

Awaiting the favour of Your Excellency's early reply,

I remain,

Your Excellency's Most Obedient Servant,

Sd/- B. R. Ambedkar."¹

"Win Freedom By Your Own Efforts"

Dr. Ambedkar's Advice to Trichur People

Calicut, June 17, 1931.

Dr. Ambedkar of Bombay in the course of a letter to the organiser of the Temple Entry *Satyagraha*, Trichur, says "Would advise you not to depend upon Congress help. It won't help you in this matter. Its help would not redound to your credit. Want our people win freedom by their own efforts."²

¹: Khairmode, Vol. 3; Pp. 323-328.

²: The Bombay Chronicle, dated 18th June 1931.

“Dr. AMBEDKAR’S ADVICE

Nothing could be more natural on the part of Doctor Ambedkar than to suggest that the organisers of the Temple Entry *Satyagraha* at Trichur should not take the help of the Congress in their campaign. For, otherwise, the task of misrepresenting the Congress would be rendered still more difficult. And then, secondly, one cannot be expected to surrender one’s “*raison d’etre*”. Doctor Ambedkar’s letter is nothing more than a very intelligible struggle for existence.

Blessings to Nasik Satyagrahis From London

Bombay, November 2, 1931

The General Secretary, Nasik Temple Entry *Satyagraha* Committee, has received the following message from Dr. Ambedkar from London :—

“I regret very much not to have been able to write to you in reply to the letter you sent me some time ago containing the interview you had with the Commissioner. I have been so much taken up with the question of minorities which as you know has become much more difficult owing to the attitude of Mr. Gandhi that I have had no minute to spare :—

As anticipated by you I did get a letter from the Commissioner C. D. asking me to advise you people to stop the Nasik *Satyagraha*. I have not replied to him but I am going to do so by this mail. I am going to tell him that we cannot stop. So you may tell our people to go on. We must not take our orders from the Government just as we must not take them from the Orthodox Hindus.

We have trusted Government long enough

We have trusted the Government long enough to remove “Untouchability”. But it has not lifted its finger to do anything in the matter and it has no right to ask us to stop. We must take the burden on our shoulders and do what we can to free ourselves from this curse at any cost. If the Government does not help us, it must not at least hamper our just cause. It is no use telling us that we must not create ill-feeling between different classes and communities. This appeal by Government should be addressed to all the communities and not to us alone. It should specially be addressed to those communities who are in the wrong and who are sinning in the matter.

“My people don’t need me”

You may publish a translation of this in handbills and broadcast them among our people. I have been reading the telegrams regarding the struggle at Mukhed between our people and the castemen. I am glad to find that our people are prepared at all costs to carry on the fight to a success. I congratulate them on their splendid resolve. I see that you are starting *Satyagraha* on the 5th November. I hope you have made the best preparation. I am sorry. I am not there to help you. But I know that our people are now alive to their problem and that they do not need me every time.—A.P.” ¹

The situation prevailing in Nasik during the *Satyagraha* was reported in the Times of India as follows : Editors.

“No Right to bathe in the Sacred Kunds,

Nasik enduring decisions against Untouchables.

(From our Correspondent.)

Nasik, June 6, 1932.

‘On the whole I believe that Untouchables have neither the right to approach the four *Kunds* (bathing pools) nor to bathe in them. Therefore, under Section 147 (3) of the Cr. P. Code, I hereby prohibit all Mahars, Mangs, Chamars, Dheds, Bhangis and other Untouchables from exercising their alleged right of proceeding to and bathing in Lakshmana, Dhanushya, Ram and Sita *Kunds*, until they obtain from a Civil Court an order entitling them to bathe there.’ Thus observes Mr. L. N. Brown, District Magistrate of Nasik in the order passed today in connection with the inquiry instituted into the dispute between the *Sanatanists* and Untouchables in which the latter claim the right to proceed to and bathe in the Sacred *Kunds*.

Dealing with the question of Irish Bridge Sandhwa located near the Ram *Kund*, the Magistrate says that it appeared that this Sandhwa is used by the pilgrims doing the Pradakshina (a religious ceremony) or the Sacred *Kunds*. Its use as a thoroughfare is secondary. It is, I think, a fair deduction from the evidence

¹: The Bombay Chronicle, dated 3rd November 1931.

that respectably dressed Christians and Mahomedans have been allowed to cross the Sandhwa. But this evidence is not strictly relevant to the present case which is concerned with the rights of Untouchable Hindus. It has not been proved that Hindu Untouchables have any right to use this Sandhwa.' ¹

When the *Temple-Entry-Satyagraha* was going on a move was forced to get the temple-entry legalised by the Government. The background of the issue is as follows :

The Temple-entry movement in India received a setback when the Courts of law held that entry in the temples by the Untouchables was illegal being against the established custom. Such judicial pronouncements turned out to be stumbling blocks in the way of social reform undertaken by Mahatma Gandhs. Against this backdrop efforts were afoot to bring about legislation to overcome that barrier. Therefore, several Bills were intended to be introduced in the Central Legislature as well as the Provincial Legislatures. Of the bills mentioned above, the most important were those of Dr. Subbaroyan's Temple-Entry Bill and Ranga Iyer's Untouchability Abolition Bill.

Dr. Subbaroyan's Temple-Entry Bill was intended to undo the wrong done by the Courts of Law and sought to amend the Madras Religious Endowments Act. The Bill, however, was approved by the *Sanatoria* Hindus prominent of them being Pandit Madan Malaviya, Konda Venkatappaiah and S.T. Ramanuja Iyengar, Srinivasa Iyengar. However, Dr. Subbaroyan's Temple-Entry Bill in the Madras Council was refused permission on the ground that it was far-reaching in implication for enactment by a Provincial Legislature. Afterwards Ranga Iyer drafted a second Bill based on Dr. Subbaroyan's which the Viceroy permitted to introduce it in the Central Assembly, subject to the same qualification as in the case of his forerun Bill.

His Excellency Lord Wellington the Viceroy, for its introduction in the Central Legislative Assembly subject to the condition that the Government of India did not commit themselves to accepting its principles and that the fullest opportunity would be given to every section of the Hindu Community to express an

¹: The Times of India. 7-6-1932, Reprinted, Khairmode, Vol. 3; Pp. 351-352.

opinion on its provisions. Mahatma Gandhi pleaded with the Viceroy by his letter dated February 1, 1933 that the Government of India was bound to support these two Legislative measures in view of the Resolution dated September 25, 1932 passed by the Caste Hindus at Bombay which formed part of the Poona Pact.

Mahatma Gandhi saw that the Ranga Iyer's Bill should be supported by everyone. He sent out an appeal to the Hindu Members of the Central Legislative Assembly. He utilised the services of C. Rajagopalachari, who, according to him, was 'a better lobbyist', to enlist support for the Bills. He advised him not to take to heart, "Dr. Ambedkar's explosion, the Government's decision and Malaviya's opposition." G. D. Birla and Devdas Gandhi were appointed to canvass support for the Bills. When the Bills had come to the stage of appointment of a Select Committee, the British Government had taken a decision to dissolve the Assembly and order election. Terrified at the thought of facing the electorate, there was a sudden *volte-face* on the part of the members who favoured the Bills. The mover of the Bills Ranga Iyer was deeply hurt and came up heavily on C. Rajagopalachari stating that he had gone back "like a crab". He added: "Had they gone on with the Temple-Entry Bill or the Untouchable question, they would have lost many votes, for it is not a popular issue and, therefore, "they have run away for their own convictions and playing every trick to come back to the Legislature with as large a number as possible."

Against this background, two great stalwarts-Mahatma Gandhi and Babasaheb Ambedkar-met at Yeravada Prison on February 4, 1933.

(For the details of the meeting between Dr. Ambedkar and Gandhiji see Section II under the title "Dr. Ambedkar-Mahatma Gandhi Meetings.—Editors.)

After this meeting Dr. B. R. Ambedkar issued a statement wherein he expressed his views regarding the Temple Entry Bill. Following is the statement:

Statement on Temple Entry Bill
14th February, 1933

"What was the attitude of the Untouchables to this movement for Temple entry? I was asked by Mr. Gandhi to lend my

support to the movement for Temple entry. I declined to do so and issued a statement on the subject to the Press. As it will help the reader to know the grounds for my attitude to this question I have thought it well to set it in full. Here it is !

Although the controversy regarding the question of Temple Entry is confined to the *Sanatanists* and Mahatma Gandhi, the Depressed Classes have undoubtedly a very important part to play in it, in so far as their position is bound to weigh the scales one way or the other when the issue comes up for a final settlement. It is, therefore, necessary that their viewpoint should be defined and stated so as to leave no ambiguity about it.

To the Temple-Entry Bill of Mr. Ranga Iyer as now drafted, the Depressed Classes cannot possibly give their support. The principle of the Bill is that if a majority of Municipal and Local Board voters in the vicinity of any particular temple on a referendum decide by a majority that the Depressed Classes shall be allowed to enter the temple, the Trustees or the Manager of that temple shall give effect to that decision. The principle is an ordinary principle of Majority rule, and there is nothing radical or revolutionary about the Bill, and if the *Sanatanists* were a wise lot, they would accept it without demur.

The reasons why the Depressed Classes cannot support a Bill based upon this principle are two : One reason is that the Bill cannot hasten the day of temple-entry for the Depressed Classes any nearer than would otherwise be the case. It is true that under the Bill, the minority will not have the right to obtain an injunction against the Trustee, or the Manager who throws open the temple to the Depressed Classes in accordance with the decision of the majority. But before one can draw any satisfaction from this clause and congratulate the author of the Bill, one must first of all feel assured that when the question is put to the vote there will be a majority in favour of Temple Entry. If one is not suffering from illusions of any kind one must accept that the hope of a majority voting in favour of Temple-Entry will be very rarely realised, if at all. Without doubt, the majority is definitely opposed to-day—a fact which is conceded by the author of the Bill himself in his correspondence with the Shankracharya.

What is there in the situation as created after the passing of the Bill, which can lead one to hope that the majority will act differently? I find nothing. I shall, no doubt, be reminded of the results of the referendum with regard to the Guruvayur Temple. But I refuse to accept a referendum so over weighted as it was by the life of Mahatma Gandhi as the normal result. In any such calculations, the life of the Mahatma must necessarily be deducted.

Secondly, the Bill does not regard Untouchability in temples as a sinful custom. It regards Untouchability merely as a social evil not necessarily worse than social evils of other sorts. For, it does not declare Untouchability as such to be illegal. Its binding force is taken away, only, if a majority decides to do so. Sin and immorality cannot become tolerable because a majority is addicted to them or because the majority chooses to practise them. If Untouchability is a sinful and an immoral custom, then in the view of the Depressed Classes it must be destroyed without any hesitation even if it was acceptable to the majority. This is the way in which all customs are dealt with by Courts of Law, if they find them to be immoral and against public policy.

This is exactly what the Bill does not do. The author of the Bill takes no more serious view of the custom of Untouchability than does the temperance reformer of the habit of drinking. Indeed, so much is he impressed by the assumed similarity between the two that the method he has adopted is a method which is advocated by temperance reformers to eradicate the evil habit of drinking, namely, by local option. One cannot feel much grateful to a friend of the Depressed Classes, who holds Untouchability to be no worse than drinking. If Mr. Ranga Iyer had not forgotten that only a few months ago Mahatma Gandhi had prepared himself to fast unto death if Untouchability was not removed, he would have taken a more serious view of this curse and proposed a most thoroughgoing reform to ensue its removal lock, stock and barrel. Whatever its shortcomings may be from the stand point of efficacy, the least that the Depressed Classes could expect is for the Bill to recognise the principle that Untouchability is a sin.

I really cannot understand how the Bill satisfies Mahatma Gandhi, who has been insisting that Untouchability is a sin ! It certainly does not satisfy the Depressed Classes. The question whether this particular Bill is good or bad, sufficient or insufficient, is a subsidiary question.

The main question is : Do the Depressed Classes desire Temple Entry or do they not ? This main question is being viewed by the Depressed Classes by two points of view. One is the materialistic point of view. Starting from it, the Depressed Classes think that the surest way for their elevation lies in higher education, higher employment and better ways of earning a living. Once they become well placed in the scale of social life, they would become respectable and once they become respectable the religious outlook of the orthodox towards them is sure to undergo change, and even if this did not happen, it can do no injury to their material interest. Proceeding on these lines the Depressed Classes say that they will not spend their resources on such an empty things as Temple Entry. There is also another reason why they do not care to fight for it. That argument is the argument of self-respect.

Not very long ago there used to be boards on club doors and other social resorts maintained by Europeans in India, which said "Dogs and Indians" not allowed. The temples of Hindus carry similar boards today, the only difference is that the boards on the Hindu temples practically say : "All Hindus and all animals including dogs are admitted, only Untouchables not admitted." The situation in both cases is on a parity. But Hindus never begged for admission in those places from which the Europeans in their arrogance had excluded them. Why should an Untouchable beg for admission in a place from which he has been excluded by the arrogance of the Hindus ? This is the reason of the Depressed Class man who is interested in his material welfare. He is prepared to say to the Hindus, "to open or not to open your temples is a question for you to consider and not for me to agitate. If you think, it is bad manners not to respect the sacredness of human

personality, open your temples and be a gentleman. If you rather be a Hindu than be gentleman, then shut the doors and damn yourself for I don't care to come."

I found it necessary to put the argument in this form, because I want to disabuse the minds of men like Pandit Madan Mohan Malaviya of their belief that the Depressed Classes are looking forward expectantly for their patronage.

The second point of view is the spiritual one. As religiously minded people, do the Depressed Classes desire temple entry or do they not? That is the question. From the spiritual point of view, they are not indifferent to temple entry as they would be, if the material point of view alone were to prevail. But their final answer must depend upon the reply which Mahatma Gandhi and the Hindus give to the question namely: What is the drive behind this offer of temple entry? Is temple entry to be the final goal of the advancement in the social status of the Depressed Classes in the Hindu fold? Or is it only the first step and if it is the first step, what is the ultimate goal? Temple entry as a final goal, the Depressed Classes can never support. Indeed they will not only reject it, but they would then regard themselves as rejected by Hindu Society and free to find their own destiny elsewhere. On the other hand, if it is only to be a first step in the direction they may be inclined to support it. The position would then be analogous to what is happening in the politics of India to-day. All Indians have claimed Dominion Status for India. The actual constitution will fall short of Dominion Status and many Indians will accept it. Why? The answer is that as the goal is defined, it does not matter much if it is to be reached by steps and not in one jump. But if the British had not accepted the goal of Dominion Status, no one would have accepted the partial reforms which many are now prepared to accept. In the same way, if Mahatma Gandhi and the reformers were to proclaim what the goal which they have set before themselves is for the advancement of the Social Status of the Depressed Classes in the Hindu fold, it would be easier for the Depressed Classes to define their attitude towards Temple

Entry. The goal of the Depressed Classes might as well be stated here for the information and consideration of all concerned. What the Depressed Classes want is a religion, which will give them equality of social status. To prevent any misunderstanding, I would like to elaborate the point by drawing a distinction between social evils which are the results of secular causes and social evils which are founded upon the doctrine of religion. Social evils can have no justification whatsoever in a civilised society. But nothing can be more odious and vile than that admitted social evils should be sought to be justified on the ground of religion. The Depressed Classes may not be able to overthrow inequities to which they are being subjected. But they have made up their mind not to tolerate a religion that will lend its support to the continuance of these inequities.

If the Hindu religion is to be their religion, then it must become a religion of Social Equality. The mere amendment of Hindu Religious Code by the mere inclusion in it of a provision to permit temple entry for all, cannot make it a religion of equality of social status. All that it can do is to recognize them as national and not aliens, if I may use in this connection terms which have become so familiar in politics. But that cannot mean that they would thereby reach a position where they would be free and equal, without being above or below any one else, for the simple reason that the Hindu religion does not recognise the principle of equality of social status : on the other hand it fosters inequality by insisting upon grading people as Brahmins, Kshatrias, Vaishyas and Shudras, which now stand towards one another in an ascending scale of hatred and descending scale of contempt. If the Hindu Religion is to be a religion of social equality then an amendment of its code to provide temple entry is not enough. What is required is to purge it of the doctrine of *Chaturvarna*. That is the root cause of all inequality and also the parent of the Caste System and Untouchability, which are merely forms of inequality. Unless it is done not only will the Depressed Classes reject Temple Entry, they will also reject the Hindu faith. *Chaturvarna* and the Caste System are incompatible with the self-respect of the Depressed Classes. So long as they stand to be it cardinal doctrine the Depressed Classes must continue to be looked upon as low.

The Depressed Classes can say that they are Hindus only when the theory of *Chaturvarna* and Caste System is abandoned and expunged from the Hindu *Shastras*. Do the Mahatma and the Hindu reformers accept this as their goal and will they show the courage to work for it? I shall look forward to their pronouncements on this issue, before I decide upon my final attitude. But whether Mahatma Gandhi and the Hindus are prepared for this are not, let it be known once for all that nothing short of this will satisfy the Depressed Classes and make them accept Temple Entry. To accept temple entry and be content with it, is to temporise with evil and barter away the sacredness of human personality that dwells in them.

There is, however, one argument which Mahatma Gandhi and the reforming Hindus may advance against the position I have taken. They may say: "acceptance by the Depressed Classes of Temple Entry now, will not prevent them from agitating hereafter for the abolition of *Chaturvarna* and Caste. If that is the view, I like to meet the argument right at this stage so as to clinch the issue and clear the road for future developments. My reply is that it is true that my right to agitate for the abolition of *Chaturvarna* and Caste System will not be lost, if I accept Temple Entry now. But the question is on what side will Mahatma Gandhi be at the time when the question is put. If he will be in the camp of my opponents, I must tell him that I cannot be in his camp now. If he will be in my camp he ought to be in it now.

B. R. Ambedkar."

"Almost all the Depressed Class leaders of Dr. Ambedkar's persuasion, endorsed the views of their leader. Srinivasan, Premtai and Malik upheld the views of their leader.

Gandhi issued a statement in reply in which he stated: "I am a Hindu, not merely because I am born in the Hindu fold, but I am one by conviction and choice. There is no superiority or inferiority in the Hinduism of my conception. But when Dr. Ambedkar wants to fight *Varnashram* itself, I cannot be in his camp, because I believe *Varnashram* to be an integral part of Hinduism." ^{1*}

¹: Keer, P. 230.

* Comment on Temple Entry Campaign See Appendix-VI.

Regarding the above mentioned *Satyagraha* Dr. Ambedkar explained his stand in the following letter addressed to Bhaurao Gaikwad.

BHIMRAO R. AMBEDKAR,

Rajgriha Colony.

M. A., Ph. D., D. Sc,

Dadar, Bombay 14.

Barrister-at-law., J. P., M. L. C.

3-3-34

My dear Bhaurao,

I am in receipt of your letter of the 23rd Feb. It is very kind of you to have asked me for my views on the propriety of the Depressed Classes launching upon a *Satyagraha* at the Kala Ram Temple in Nasik on the coming Ram Navami Day. I have no position in saying that such a move would be quite uncalled for and should not merely be suspended but should be stopped altogether. This may appear strange and surprising coming as it does from one who was the author of the *Satyagraha*. But I am afraid to declare this change of front. I did not launch the temple entry movement because I wanted the Depressed Classes to become worshippers of idols which they were prevented from worshipping or because I believed that temple entry would make them equal members in and an integral part of the Hindu Society. So far as this aspect of the case is concerned I would advise the Depressed Classes to insist upon a complete overhauling of Hindu Society and Hindu theology before they consent to become an integral part of Hindu Society. I started temple entry *Satyagrha* only because I felt that was the best way of energising the Depressed Classes and making them conscious of their position. As I believe I have achieved that purpose I have no more use for temple entry. I want the Depressed Classes to concentrate their energy and resources on politics and education and I hope that they will realise the importance of both.

Your sincerely,

Sd/-B. R. Ambedkar.”¹

Accordingly the *Satyagraha* was stopped immediately.
—Editors

¹: Khairmode, Vol. 3; Pp. 357-358.

“WHY NASIK TEMPLE *SATYAGRAHA*
WAS GIVEN UP

“No Longer Needed”

Nasik, November 19, 1934

Before a mammoth gathering of over 15,000 members of the Depressed Classes who assembled at Vinchur on the occasion of the 11th day death ceremonies of the late Mr. Dhondiba Runkhambe of Vinchur. Dr. Ambedkar made an important political pronouncement. He said he had been repeatedly asked why the Kalaram Temple Entry Movement had been suspended for the last two years. The only reason, he explained was that such a move was no longer needed. This, he said, may appear strange and surprising, coming as it did from the author of the temple entry *Satyagraha*.

The Temple Entry Movement, he explained, was started because he felt that was the best way of energizing the Depressed Classes and making them conscious of their position. He believed that: he had achieved that purpose and therefore he had no more use for temple entry.

Instead he strongly advised the Depressed Classes to concentrate their energy and resources on politics. Since in the coming Reforms they would be called upon to play an important part in moulding their own political future and, thus, their own standard.

Concluding, he paid warm tributes to the Nasik Temple Entry *Satyagrahis* who he said, had not only awakened their brethren and made them realise their true position in Hindu Society but had also aroused deep sympathy towards the Depressed Classes throughout the civilised world. He also stressed the necessity of educating their children.”¹

¹: The Times of India, 21st November 1934.

Dr. Ambedkar has expressed his views on this subject in his book 'What Congress and Gandhi have done to the Untouchables' wherein he says,

“Here was an opportunity for Mr. Gandhi to advance his Anti-Untouchability campaign. He could have proposed that if a Hindu wishes to enroll himself as a member of the Congress he should prove that he does not observe Untouchability and that the employment of an Untouchable in his household should be adduced in support of his claim in this behalf and that no other evidence would be allowed to be tendered. Such a proposal could not have been impracticable for almost every Hindu, certainly those who call themselves high Caste Hindus, keeps more than one servant in his household. If Mr. Gandhi could make the Hindu accept spinning and boycott as franchise for membership of the Congress he could also make acceptable the employment of an Untouchable in a Hindu household a franchise for membership of the Congress. But Mr. Gandhi did not do it.

After 1924 till 1930 there is a complete blank. Mr. Gandhi does not appear to have taken any active steps for the removal of Untouchability or got himself interested in any activity beneficial to the Untouchables during his period. While Mr. Gandhi was inactive the Untouchables had started a movement called the *Satyagraha* movement. The object of the movement was to establish their right to take water from public wells and to enter public temples. The *Satyagraha* at the Chawdar Tank situated in Mahad, a town in the Kolaba District of the Bombay Presidency, was organised to establish the right of the Untouchables to take water from public watering places. The *Satyagraha* at the Kala-Ram Temple situated in Nasik, a town in the Nasik District of the Bombay Presidency, was organised to establish the right of the Untouchables to enter Hindu temples. There were many minor *Satyagrahas*. These were, however, the two principal ones over which the efforts of the Untouchables and their opponents, the Caste Hindus, were concentrated. The din and noise caused by them were heard all over India. Thousands of men and women from the Untouchables took part in these *Satyagrahas*. Both men and women belonging to the Untouchables were insulted and beaten

by the Hindus. Many were injured and some were imprisoned by Government on the ground of causing breach of the peace. This *Satyagraha* movement went on for full six years when it was brought to a close in 1935 at a Conference held in Yeola in Nasik District in which the Untouchables as a result of the adamant attitude of the Hindus in refusing to give them equal social rights resolved to go out of the Hindu fold. This *Satyagraha* movement was no doubt independent of the Congress. It was organised by the Untouchables, led by the Untouchables and financed by the Untouchables. Yet the Untouchables were not without hope of getting the moral support of Mr. Gandhi. Indeed they had very good ground for getting it. For the weapon of *Satyagraha*—the essence of which is to melt the heart of the opponent by suffering—was the weapon which was forged by Mr. Gandhi, and who had led the Congress to practise it against the British Government for winning *Swaraj*. Naturally the Untouchables expected full support from Mr. Gandhi to their *Satyagraha* against the Hindus the object of which was to establish their right to take water from public wells and to enter public Hindu temples. Mr. Gandhi however did not give his support to the *Satyagraha*. Not only did he not give his support, he condemned it in strong terms.

In this connection reference may be made to two novel weapons for redressing human wrongs. Mr. Gandhi claims exclusive credit for forging and perfecting them. First is *Satyagraha*. Mr. Gandhi has put into action this weapon of *Satyagraha* many a times against the British Government for the removal of political wrongs. But Mr. Gandhi has never used the weapon of *Satyagraha* against Hindus to get them to throw open wells and temples to the Untouchables. Fasting is another weapon of Mr. Gandhi. It is said that there have been altogether 21 fasts to the credit of Mr. Gandhi. Some were for the sake of Hindu-Muslim unity and quite a number as atonements for the immoralities committed by the inmates of his *Ashram*. One was against the order of the Government of Bombay refusing to give the work of a scavenger in the goal to a prisoner by name Mr. Patwardhan although he demanded it. In these 21 fasts there is not one undertaken for the removal of Untouchability. These are very significant facts.

In 1930 came the Round Table Conference. Mr. Gandhi joined the deliberations of the Conference in 1931. The Conference was concerned with a vital question of framing a constitution for a self-governing of India. It was unanimously held that if India was to be a self-governing country then the government must be a government of the people, by the people and for the people. Everybody agreed that only when a government is in a real sense a government by the people that it could be a government of the people and for the people. The problem was how to make it a government by the people in a country rent into communities, majorities and minorities, who are charged not merely with social cleavages but also with social antagonisms. Having regard to these circumstances it was agreed that in India there was no possibility of government by the people unless Legislature and the Executive were framed on the basis of communal representation.

The problem of the Untouchables loomed large at the Conference. It assumed a new aspect. The question was : Should the Untouchables be left as they were to the tender mercies of the Hindus or should they be given the means to protect themselves by extending to them the principle of communal representation ? The Untouchables strongly objected to be left to the pleasure of the Hindus and demanded the same protection as was given to the other minorities. The contention of the Untouchables was accepted by all. It was just and logical. They contended that the chasm between the Hindus and Muslims, between Hindus and Sikhs, between Hindus and Christians is nothing as compared with the chasm between the Hindus and the Untouchables. It is the widest and the deepest. The chasm between the Hindus and the Muslims is religious and not social. That between the Hindus and the Untouchables is both religious and social. The antagonism arising out of the chasm existing between Hindus and Muslims cannot spell political disaster to the Muslims because the relationship between the Hindus and the Muslims is not that of master and slave. It is one of mere estrangement. On the other hand, the chasm between Hindus and the Untouchables must spell political disaster for the Untouchables because the relationship between the two is that of master and slave. The Untouchables contended that the attempts

to close the gap between them and the Hindus by means of social process had been tried for ages. They had all failed. There was no hope of their success. Since power is being transferred into the hands of the Hindu majority they must have political safeguards of the same sort as, if not better, than those conceded to the Muslims and other minorities.

Here was an opportunity to Mr. Gandhi to show his sympathy to the Untouchables by lending his support to their demand and thereby strengthen their power of resistance against the tyranny and oppression of the Hindus. Instead of showing his sympathy, Mr. Gandhi used every means in his power to defeat them. He made a pact with the Muslims with a view to isolate the Untouchables. Failing to win the Musalmans to his side, he went on a fast unto death to compel the British Government to withdraw their decision to give to the Untouchables the same political rights as given to the Muslims and other minority communities. When the fast failed and Mr. Gandhi was obliged to sign a pact—called the Poona Pact—which conceded the political demands of the Untouchables he took his revenge by letting the Congress employ foul electioneering tactics to make their political rights of no avail.”¹

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¹: Writings and Speeches, Vol. 9, Pp. 246-249.

SECTION V

OTHER MOVEMENTS

I AM A MAN OF CHARACTER

“Subhedar Ramji Maloji, father of Bhimrao Ambedkar passed away on February 2, 1913. Bhimrao Ambedkar was now left to stand on his own feet. His insatiable thirst for knowledge and the spur of ambition made him restless. He was now in no mood to return to his job in Baroda. His short stay there had been unhappy. At last another chance came his way in June 1913. The Maharaja of Baroda*, at this juncture, thought of sending some students to the U.S.A for higher studies at Columbia University.”¹

“While H. H. Maharaja was at Bombay, Bhimrao met him at the Malbar Hill Palace in order to apprise him of the inconvenience faced by him in service and residential facilities while at Baroda. H. H. Maharaja was already knowing almost everything about Bhimrao. Without mentioning a single word about the inconvenience faced by Bhimrao, H. H. Maharaja was discussing various subjects with him. Bhimrao gave his considered opinion on whatever questions the H. H. Maharaja asked. After about half an hour discussion the H. H. Maharaja asked him to come tomorrow at the same time. Since H. H. Maharaja did not speak anything about the complaints Bhimrao had made felt unhappy.

The Next day, H. H. Maharaja asked which subject would he like to study. Bhimrao replied, Sociology, Economics and especially Public Finance.

H. H. Maharaja : What will you do by studying these subjects ?

Bhimrao : The study of these subjects would give me clues for improving the depressed condition of my society and I shall undertake the work of social reforms on those lines.

H. H. Maharaja : (Laughingly) But you are going to serve us, isn't it ? Then how are you going to study, serve and also do the social service ?

* His Highness Maharaja Sayajirao Gaikwad was born on March 1, 1863. His coronation took place on December 28, 1881. The Maharaja breathed his last on February 6, 1939, at his Jai Mahal Palace in Bombay.

¹: Keer, Pp. 24-26.

Bhimrao : If H. H. Maharaja gives me due opportunity, I shall manage to do all the things.

H. H. Maharaja : I have been thinking on the same lines. I am thinking sending you to America will you go?

Bhimrao : Yes Sir.

H. H. Maharaja : Now you can go. Send an application of foreign proposed study to our Academic Officer asking for a scholarship and inform me accordingly.”¹

“He advised him to apply for one of the scholarships which his State had advertised. He did so, and the Maharaja decided to send Bhimrao along with three other students for higher education. Bhimrao was called to Baroda. On June 4, 1913, he signed an agreement before the Assistant Minister for Education of the Baroda State, agreeing to devote his time to studying the prescribed subjects and to serve for ten years the Baroda State after completion of his studies.”²

The Memorandum of Agreement is as follow:

“Memorandum of Agreement made the fourth of June 1913, between the Government of His Highness the Gaekwad of Baroda, on the one part, and Mr. Bhimrao R. Ambedkar, B. A., an inhabitant of Baroda* on the other part.

It is agreed between the Government of His Highness the Maharaja Gaekwad and Bhimrao R. Ambedkar as follows :—

(1) Mr. Ambedkar Bhimrao R. undertakes to proceed to America to be trained up Finance and Sociology in the Columbia University, New York, and to obtain the Master’s degree in Economics, Finance and Sociology, staying there for a period of two years or more as may be hereafter considered necessary. During the period he shall stay under general supervision of Dr. H. C. Pumpus.

¹: Khairmode, Vol. I, Pp. 63-64.

²: Keer, P. 26.

* Should be ‘Bombay’ See Appendix VII for other details also.

(2) Mr. Bhimrao Ambedkar will not devote any time to the study of other subject or subjects to the detriment of his study of those mentioned in the agreement without the consent of His Highness' Government.

(3) He shall submit quarterly reports of his conduct and progress to the Minister of Education, Baroda State, through the Educational Authorities under whom he may be studying or through Dr. H. C. Pumpus under whose care he may be placed and shall abide by the insrtuctions that may be sent to him from time to time.

(4) He will receive before departure Rs. 500 for his outfit.

(5) For his onward journey from Bombay to America His Highness' Government will provide second class passage by a French or German Steamer. He will also be provided with the same for the return journey, if he returns after successfully finishing the subject or subjects as mentioned in clause I or if he is compelled by sickness to return, under a Medical Certificate, before the completion of his studies. He will also receive second class railway and boat fare and actual expenses for bona-fide journeys made in connection with his studies.

(6) Mr. Ambedkar will receive from the date of his starting from Bombay an allowance of £ 230 (two hundred and thirty pounds) per annum, and in addition the Government will pay all expenditure.

—*Incomplete—one Page missing*—

A. C. Joshi

Bhimrao R. Ambedkar

(on Eight Annas Stamp)

Signed and attested before me this day on fourth of
June 1913.

G.M. Shah

Assistant Minister of Education,

Baroda State.

On behalf of Government.”¹

¹: Rattu : Little known facts of Dr. Ambedkar, Pp. 227-228.

“Expenditure incurred on behalf of Mr. B. R. Ambedkar*

IN AMERICA

Rs.	As. P.	
1,373	12-0	Outfit, 3 month's scholarship from 15-6-13 and Railway fare from Baroda.
5900-0		Passage
3,828	0-0	Scholarship from 15-9-13 to 14-6-14 and books, fees, etc. Bill No. 843/25-4-14
6,912	3-7	Scholarship from 15-6-14 to 14-9-15 and books, fees, etc. Bill No. 898/28-7-16
3,651	7-10	Scholarship from 15-9-15 to 14-6-16 and books, fees, etc. Bill No. 1831/31-3-18

IN ENGLAND

4,078	9-8	Scholarship from 15-6-16 to 14-6-17 Bill No. 1831/31-5-18 educational expenses and passage.”
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-----” 1
20,434-0-6

“The Baroda State officials in their flaming zeal to guard the interests of the Maharaja and to control the finances of the State, took extraordinary steps in insisting on the repayment of the scholarship amount of Rs. 20,434.05p.² by Dr. Ambedkar, without, however, the knowledge of Maharaja.

Dr. Ambedkar was, no doubt, committed to repay the money the Baroda State had spent on his behalf for prosecuting studies abroad but situated as he was he had not sufficient money to live on much less to spare anything to his credits. Under the circumstances he expressed his inability to return the money spent by the State much as he wished to do. As such he humbly requested the Baroda State Government officials to give him time till he was in a position to pay

* For other details, see Appendices VII, VIII and IX

¹: Rattu: Little known facts of Dr. Ambedkar, P. 229

²: Slight difference between two figures-Editors.

Dr. Ambedkar's letter to Mr. Pandit, on the Baroda State Government's move to file a suit for the recovery of the amount. Written in his own magnificent way and style give a very interesting reading. The same is reproduced verbatim :

Private

Damodar Hall.

B. R. Ambedkar

Parel, Bombay

9-12-1924

Dear Mr. Pandit,

Thank you very much for your letter of the 6th instant. I have very carefully noted the contents of the same. If you had seen my previous correspondence with the Baroda Government you would not have found much necessity to remind me of my obligations to the State. For, I have written to them many a times that whatever be the legal relations between me and the Baroda State I hold myself bound to pay the money the State has spent on my behalf. And believe me that if I had the money with me here and now I would have discharged my obligations without a moment's delay. For I long to feel that I am free to say that I want to say regarding the treatment the Baroda Government has given to me and of which you seem to be entirely unaware. But situated as I am I have not sufficient to live on much less to spare anything to my credits. You say that I am now "established" in Bombay and that you don't see any difficulty why I should not fulfil my obligations. It is rather difficult to understand what you mean by the word "established". If you mean that I am earning by heaps I am sorry to tell you that you are entirely mistaken. You seem to forget that I am only a Barrister struggling to get work. First of all there is the fact that I am only year old in practice. Secondly there are all the caste prejudices which are rampant in this profession and which I have to face at every step in my onward march. The struggle

for me is the bitterest possible and I am therefore obliged to take things lying very low indeed. Under the circumstances I am for the present unable to return the money spent by the State much as I wish to do. If the Baroda Government interprets my inability to pay as an unwillingness to pay then the way for them is to go to Court, get a decree and execute it if they think that it will be really to their advantage. It may be true that if matters go to court then the name of the community will suffer. On the other hand it is my belief that if the community were to know as it will in the course of the suit the way in which I have behaved towards the Baroda Government, I am sure there will be nothing which it shall have to be ashamed of on my account. On the other hand I have no doubt that in the mudslinging that will follow the contemplated suit some mud will stick to His Highness and to the Baroda State of which both shall have to be ashamed.

Of course it will be better if all this were avoided. But the only way in which it can be avoided is by the Baroda Government giving me time till I am in a position to pay. The Baroda Government don't seem to know me sufficiently well. I have once shown them that I am a man of character. If I had not had sufficient character I would never have returned at Baroda. I had immeasurable offers to enter British service who would have thrown them away except by a man of character ? They only know me as an independent fellow. But they forget it is only a man of character who can be independent.

Be that as it may I hope you will understand that I am most anxious to meet my obligations to the State and if I cannot do it immediately it is only because I am hard up. The moment I am in easy circumstances you may depend upon it that I will commence to repay. More than this I cannot for the present say or do. My real object which I have disclosed to repay it to the University of Bombay and to request the University to

establish Scholarships for Depressed Class boys out of that sum in the name of the Maharaja of Baroda. The money was spent on me as a member of the Depressed Classes and in my view it should not go to the private use of the State but should be utilized for the benefit of the Depressed Classes. But as the State has been acting in such a commercial way I submit I do not think it would appreciate my plan.

With this I leave it to you to judge between me and the Baroda State.

I have not misunderstood the spirit in which you have written to me and I trust you will not misunderstand the spirit in which I have replied to you.

Hoping to hear from you occasionally.

I am,

Yours sincerely,

(B. R. Ambedkar)¹

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¹: Rattu : Little known facts of Dr. Ambedkar, Pp. 21-24.

INSTEAD OF A STATUE, A PUBLIC LIBRARY WILL BE THE BEST MEMORIAL OF SIR MEHTA

“This is the earliest letter of Dr. B. R. Ambedkar sent for publication while he was a student of Columbia University, New York, U.S.A. in 1916. A proposal to erect a statue of Sir Pherozshah Mehta was mooted in the city of Bombay to be erected in front of the Municipal Office. Dr. Ambedkar having learnt this through the newspapers, considered it a most trivial form of memorial of a great man. According to him the memorial should have utility to the society especially for spreading the knowledge. He, therefore, proposed a memorial in the form of a public library in memorium of Sir Pherozshah Mehta. This letter may be found instructive and guiding even to-day to the Indian people who have craze for erecting statues of illustrious personalities.” ¹—

“The Late Sir Pherozshah Mehta

To,

The Editor of ‘The Chronicle’

Sir,

You will agree with me when I say that in a country like India so badly situated socially, economically and politically, the paramount need of the hour is for honest leaders to take upon themselves the enormous task of regeneration. Such leaders were found in the persons of the late Messrs Gokhale and P. M. Mehta, both of whom were entitled to everlasting gratitude for the zeal and sacrifice with which they represented our cause. Their identification with the people and the latter’s repose in them were so complete that their sudden death seemed for a while as though it was all nature’s trick.

It is to their lasting credit that they grappled with many of our problems, solved a few of them and left the rest for us to face. But our feelings for the work done by them have completely set aside our feelings of the future work to be done by us- so much is our devotion to them. And it is quite natural that we should be more concerned about raising fitting memorials for those who have

¹: Lokrajya : Dr. Babasaheb Ambedkar Special Number, April 16, 1981, P.33.

unremittingly exerted themselves in our behalf than about meeting the problems that confront us to-day.

The Indian papers so far to hand indicate that the memorial of Mr. Gokhale is to take the form of establishing branches of the Servants of India Society at various places, while that of Sir P. M. Mehta is to stand in the form of a *statue* before the Bombay Municipal Office.

Permit me to say that individually I regard this particular form of Sir P. M. Mehta memorial to be very trivial and unbecoming to say the least.

I have been at pains to understand why his memorial cannot be in a form which will not only be a true memorial of him, but will be of permanent use to posterity.

As combining these two purposes, I would suggest that in my humble opinion the memorial of Sir P. M. Mehta should be in the form of a public library in Bombay to be called "Sir Pherozshah Mehta Library."

It is unfortunate that we have not as yet realized the value of the library as an institution in the growth and advancement of a society. But this is not the place to dilate upon its virtues. That an enlightened public as that of Bombay should have suffered so long to be without an up-to-date public library is nothing short of disgrace and the earlier we make amends for it the better.

There are some private libraries in Bombay operating independently by themselves. If these ill-managed concerns be mobilized into one building, built out of the Sir P. M. Mehta memorial fund and called after him, the city of Bombay shall have achieved both these purposes. As to the funds for the purchase of books and management of the library on modern lines, I trust there will be many generous souls to endow it.

As a student in one of the biggest universities of the U.S.A. I am thoroughly convinced of the place a library has in the intellectual and social development of a people and being painfully conscious of its lack in the city of Bombay, I take this opportunity of urging on the Bombay public of what I think can be the fittest and, most lasting memorial of the greatest hero of modern Indian history.

Being 10,000 miles away from India it takes time to get home-news. Consequently, I am a little late in submitting my proposal, but better late than never.

Yours etc.

Bhimrao R. Ambedkar

Livingston Hall, Columbia University,
New York City, U.S.A.”¹

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¹: Bombay Chronicle : Tuesday, 28th March, 1916.

Reprinted in Lokrajya : Dr. Babasaheb Ambedkar Special Number April 16, 1981, Pp. 33-34.

PUBLIC BODIES SHOULD HELP CANVASSER

This is an authority letter of Dr. B. R. Ambedkar issued to a Canvasser-Editors.

|| Jai Bhavani ||

Bhimrao R. Ambedkar,
M.A., Ph. D., D. Sc,
Bar-at-Law.
Member, Legislative Council,
Bombay.

Damoder Hall,
Pareal, Bombay,
4-7-1927.

This is to certify that the bearer Shankardas Narayandas Barve is a worker of the Bahishkrit Hitkarini Sabha, an organization established for the uplift of the Depressed Classes and a canvasser for the 'Bahishkrit Bharat' a paper which stands for safeguarding the interests of the Depressed Classes.

His duty is to travel from place to place in the presidency in the cause of the Depressed Classes to deliver lectures and exhort them to strive for their betterment. It is requested that, the public bodies should help him as far as possible.

Sd./- B.R. Ambedkar.¹

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¹: Khairmode, Vol. 6, Pp. 217-218.

**BHAURAO PATIL'S INSTITUTION
DESERVES SUPPORT**

This is a remark made by Dr. B.R. Ambedkar in the Visit Book of the hostel run by the institution of the Great Social Reformer and Educationist Karmavir Bhaurao Patil at Satara—Editors.

“I am extremely happy to have been able to pay this visit to the Hostel. It is an unique institution and deserves support of every man who cares for the best interests of this nation. Every credit is due to my friend Bhaurao Patil. I am paying Rs. 20/- to this institution.

Satara:

29-07-1928

Sd./- B. R. Ambedkar.”¹

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¹: Khairmode, Vol. 4, P. 14.

COMPLAINT AGAINST ME IS ABSOLUTELY UNFOUNDED

“Denies Statement alleged to have been made before Commission.

Dr. B. R. Ambedkar has sent us a lengthy statement from which we take the following material points :—

My attention is drawn to the statement appearing in your issue of 6th instant in which the President of the Sholapur Municipality has given publicity to the resolution of the Municipality strongly repudiating the implied suggestion in my evidence to the statement that the grant to the Depressed Classes Hostel at Sholapur was stopped as a repercussion of Hindu-Moslem riot and explaining the facts that led to the stoppage, of the grant.....

The complaint against me seems to be based upon the supposition that, in the course of my evidence before the Simon Commission, I stated that the grant given to the Depressed Classes Hostel at Sholapur was deliberately discontinued by the Municipality because the Depressed Classes of Sholapur had refused to help the Higher Class Hindus during the Hindu-Moslem riots in 1925 which the Municipality holds is an untrue statement.....

My reply to the statement by the Municipality is that its complaint against me is absolutely unfounded and is based upon a deliberate misreading of my evidence.....

I am sure, every fair-minded man would agree that in my evidence I have never stated that the grant was stopped because the Depressed Classes refused to aid the Caste Hindus in the Hindu-Moslem riot. On the contrary I have clearly stated that I did not know what the cause was.....

I wish the Municipality had stopped with vilifying me for the implication that, it thinks, arises from the statement made by me on the course of my evidence. It goes a step further and tries to give what it considers to be the true reasons for the stopping of the grant

to the Hostel. The statement says that the President “noticed serious irregularities in the subscription book and called for account books and the Society having refused the grant was stopped.” I am sorry to have to use strong language but I must state that all these statements are issues of untruth for which there is no mitigation.

Now the real facts are these :—The Hostel at Sholapur was opened in 1925. The Municipality gave a grant from the commencement of the Hostel. For the two years 1925 and 1926 the grant was paid regularly without any hitch. There was no inspection nor was there any examination of the accounts of the institution. The Municipality was satisfied with the audited accounts of the institution. But the attitude of the Municipality, which came into existence after the elections in 1927 and particularly of the President, Dr. V. V. Mulay, underwent a complete change. It so happened that the Chairman of the School Board paid a surprise visit to the Institution in the beginning of the year, 1927, in the course of which he inspected the hostel and examined the accounts. As usual he wrote out his remarks in the Visit Book stating that the accounts were kept in the best manner possible. *The copy of the said remarks was forwarded by the Superintendent to the President.*

But that gentleman, instead of being pleased, showed by his subsequent conduct as though his plan was foiled by the favourable remarks of the Chairman of the School Board. For, immediately afterwards he demanded from the Superintendent by his letter dated 19th March 1927 to produce the accounts of the institution for the years 1925 and 1926. To this a reply was sent by the Superintendent that the old books of account were sent to the Head Office in Bombay and were destroyed after the close of the year and that the books of the current year were available and were offered for examination.

In the meantime the Municipality appointed a Sub-Committee consisting of Mr. Buwalal Vakil, Vice-Chairman of the School Board and Mr. Shivilal Appa Deshmukh, Member of the School Board to examine the accounts. This Committee composed of the

President's men who were far from being well disposed to the institution, after examining the accounts reported on 2nd May 1927 that the accounts were kept in the best possible manner and that they could say nothing against the Hostel. The report was submitted to the Municipality.

Such a favourable report by his own men against an institution which he intensely disliked instead of changing the attitude of the President only served to exasperate him so much so that he still insisted upon producing books of accounts for the past years of 1925 and 1926. He was given from the Head Office the only reply that could be given namely that the old books of accounts of the Society are examined by auditors whose certified accounts are submitted and should be accepted and that current accounts are open for inspection to the Municipality at any time. Thereafter the Administrative Officer of the Municipality examined the accounts and certified that there was nothing wrong about them. This seems to have put the President to shame. For, thereafter he gave up his demand for producing the old books of accounts and intimated to the Superintendent that he would be content if the account books of the current year were produced before him. This was done and the President, I am glad to say, could find nothing against the institution. Disappointed at every stage to disqualify the institution on the ground of mismanagement the President at the time of the last budget meeting of the Municipality brought forth the proposal that the grant to the institution be stopped. But the allegations he then made against the institution were known to be false and malicious and were treated by the Municipal Councillors with the contempt they deserved All except one Councillor united in sanctioning the grant over the head of the President. It will thus be seen that far from the grant having been discontinued, the Municipality has in fact sanctioned the grant in its budget holding the allegation of its own President unworthy of belief. What has really happened is that the President after the grant was sanctioned refused to pay it out on the ground that the reply of the Society regarding the showing of accounts was not satisfactory.

Now I don't understand how the reply of the Society can be deemed to be unsatisfactory. The Society has always been ready to show the accounts of the current year. Regarding the production of accounts of the past years, the reply given by the Society is the only reply that can be given. For who on earth can produce books of years past? The demand is not only unreasonable but is perverse and can be met by no Society. From this, every fair minded man will see how the Municipality and its President in trying to expose, be it remembered, not a lie, in fact, but an implied lie have ended in giving publicity to issues of lies unmitigated by any extenuating circumstances whatsoever.....

Damodar Hall,
Parel, December 8, 1928.

B. R. AMBEDKAR”¹

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¹: The Indian National Herald, dated 10th December 1928.

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FORWARDING LETTER

BHIMRAO R. AMBEDKAR
M.A., Ph.D., D. Sc,
Barister-at-law,
J.P.,M.L.C.

RAJGRIHA
NEW DADAR,
BOMBAY-14

Dear Sir,

Your special correspondent in India wrote to me that you wanted a statement of my views on the Report of the Joint Parliamentary Committee on Indian Reforms for publication in the Manchester Guardian. In accordance therewith, I am sending alongwith this a statement of my views. I am sorry, I have not been able to compress my statement within 1200 words prescribed by you and the statement exceeds the limit by about 300 words. In view of the importance of the subject and the necessity of complete clarity, I have to make a special request to let the statement appear in full without curtailment.

Thanking you for the same.

I remain,

Yours faithfully,
B. R. Ambedkar

To, The Editor, Manchester Guardian.

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**PAY MORE ATTENTION TO ECONOMIC,
EDUCATIONAL AND SOCIAL
IMPROVEMENT RATHER
THAN TEMPLE ENTRY**

“Poona, October 18, 1932

Dr. B. R. Ambedkar came to Poona yesterday and spent some time in the Legislative Council but did not disclose to anybody the fact that he had been given permission to visit Mr. Gandhi in Yeravda Jail. In the evening, however, he made use of this permit and spent almost an hour and a half with Mr. Gandhi. Letter he left for Sawantwadi on professional business. He will return to Bombay on October 26 and hopes to sail for England on November 7.

Dr. Ambedkar is of opinion that the Round Table Conference will not begin before November 22 as it will be impossible for many delegates to be present in London by November 12. While it is difficult to draw a line between politics and social welfare in the present situation between Caste Hindus and the Depressed Classes, it is understood that politics proper were banned under the terms of the permit and that therefore the Poona Pact was not dealt with to any extent.

Dr. Ambedkar, however, placed before Mr. Gandhi his views on the future constitution of the Anti-Untouchability League, its Provincial and District Committees and its general progress. He took up the matter of the composition of the committees and expressed very firmly his opinion that there should be a majority of Depressed Classes people on these committees. He was of opinion that their voice must be predominant and that nothing must be done which might prove unpalatable to them. If the uplift work was to proceed satisfactorily the Caste Hindus must assist the Depressed classes people to work out their own salvation and not attempt to uplift them by inducing them to follow the ideals of the Caste Hindus in every way.

Special Census

He also drew Mr. Gandhi's attention to the proposal of the League to arrange for a special census of the Depressed Classes people in India and pointed out to the Congress leader that such a proceeding was unnecessary.

Mrs. Sarojini Naidu was present during the interview and Mr. Gandhi and those who met Dr. Ambedkar after the interview appear to have received the impression that Mr. Gandhi favoured Dr. Ambedkar's proposal regarding the composition of the Anti-Untouchability League Committees.

Mr. Gandhi is "perfectly fit" according to the latest news from Yerawda and Dr. Ambedkar has told his friends that the Congress leader is full of life and is completely restored to normal health.

ECONOMIC INEQUALITIES

Dr. Ambedkar's Advice to his Community

"There certainly is a general slackening off in the Anti-Untouchability Movement," said Dr. Ambedkar in an interview. "But, as the movement only dealt with the spectacular removal of the ban against Untouchables entering temples and with inter-dining, I am greatly perturbed over this fact. That with spectacular certainty, they caused much ill-feeling between the people and brought them no substantial advantage.

"The attention of the Anti-Untouchability League and workers in the same cause should be directed more to the economic, educational and social improvement of the Untouchables rather than to temple entry and inter-dining. Public opinion should be mobilised by them to throw open wells and to admit Untouchable children to public schools."

Referring to Belgaum district where a request had been received from the Depressed Classes people themselves for the construction of a separate well, he said that the Board should not grant such a request. Untouchables should insist on their right to draw water from the general public wells. He suspected that in this case there might be some interested party influencing them."¹

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¹: The Times of India, dated 19th October 1932.

NOTHING CAN EMANCIPATE THE OUTCASTES EXCEPT THE DESTRUCTION OF CASTE SYSTEM

“Mahatma Gandhi started newspaper named ‘Harijan’ on February 11, 1933, to propogate the cause of the Untouchables. Dr. B. R. Ambedkar on this occasion stated.”¹

“I cannot give a message.”²

“The out-caste is a by-product of the caste system. There will be outcastes as long as there are castes. Nothing can emancipate the outcastes except the destruction of caste system. Nothing can help Hindus and ensure their survival in the coming struggle except the purging of Hindus faith of this odious and vicious dogma.”

“In reply Gandhi said that many educated Hindus held this view; but he was not able to share it.”³ “Untouchability is the product not of the caste system, but of the distinction of high and low, that has crept into Hinduism and is corroding it. The attack on Untouchability is an attack upon this high and lowness.”⁴

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¹: Keer, P. 227

²: Kuber, B. R. Ambedkar, P.47

³: Keer, P. 227

⁴: Kuber, B. R. Ambedkar, P.47

DEPRESSED CLASSES AGAINST SECOND CHAMBERS

Dr. Ambedkar on Joint Parliamentary Committee Report Provision for Better Representation Demanded

“While it is a matter of great satisfaction to me and to the Depressed Classes that the Poona Pact has not been disturbed by the Joint Parliamentary Committee. I must point out that the Depressed Classes have been unjustly treated by the changes introduced by the J. P. C. in the matter of representation in the Provincial Second Chambers and in the Upper Chamber of the Federal Assembly”. Thus writes Dr. B. R. Ambedkar in a statement of his views on the Joint Select Committee’s report in so far as it relates to the Depressed Classes.

Dr. Ambedkar continues :—

The Depressed Classes opposed the establishment of the Second Chambers in the Provinces. They were deemed unnecessary under the Montague-Chelmsford reforms. They were not recommended by the Simon Commission. They are condemned by all the political organisations of India. In the opinion of the Depressed Classes they constitute a retrograde step and will prove a hindrance to the progress of the country.

The Composition

The second ground of the opposition of the Depressed Classes to the Second Chambers arises from the Composition of these Second Chambers. It is obvious that in some of the Provinces in which Second Chambers are instituted, is there any seat reserved for the Depressed Classes? Special provision is made for the representation of Muslims, Europeans and Indian Christians in these Provincial Second Chambers. But in no Province is any such provision made for the Depressed Classes. The Depressed Classes of Bombay, Madras, and the United Provinces are left to get such representation as they can out of the general seats in a straight election fight with High Caste Hindu candidates.

If there was any chance of the Depressed Classes winning seats in an open fight against Caste Hindu candidates there would have been no necessity for the Poona Pact. It is therefore obvious that there will be no representatives of the Depressed Classes in the Second Chambers in these Provinces. In Bengal and Bihar it is provided that 27 out of 65 in the former and 12 out of 30 in the latter will be elected, by the method of the single transferable vote, by members of the Provincial Lower House.

Insufficient Seats

This opens up a possibility for the Depressed Classes in these two Provinces to secure representation in the Second Chambers. On a closer study of the facts it will, however, be clear that in Bihar there will be no probability because the depressed classes seats in the Provincial Lower House (15 in 152) will not be sufficient to give them the necessary quota, and in Bengal 30 in a house of 250 will hardly give them a quota for one seat.

Not only will there be no seat for the Depressed Classes in any of the Provincial Second Chambers, but on account of the franchise, they will not be able even to influence the elections to the Second Chambers.

Need of Reserved Seats

The J. P. C. seems to have given no thought to these adverse effects, its proposals were calculated to produce on the representation of the Depressed Classes in the Second Chambers. In connection with its franchise proposals the committee observes that "the qualifications above indicated will also apply to candidates, but special provision may be necessary in the case of women and the Depressed Classes." That special provision will be necessary is beyond doubt. But what I wish to point out is that a differential qualification in favour of the Depressed Classes' candidate will be of no avail if the franchise of the voters remains uniform. Indeed, differential qualification in favour of Depressed Classes' voters will not help them to win in elections unless seats are reserved for them.

The Position of the Depressed Classes in regard to their representation in the Federal Upper House has also undergone a complete change for the worse. Under the White Paper proposals the

electorates for the Federal Upper House was the Provincial Lower House and the elections were to be by the proportional system and the method of the single transferable vote. As in the Provincial Lower Chambers, the Depressed Classes were represented in sufficiently large numbers to give them the necessary quota to get one member of their own class elected at any rate in eight or nine Provinces, the Depressed Classes were sure of eight or nine seats in the Federal Upper House. This prospect has now been completely destroyed by the change in the system of election to the Federal Upper House proposed by the J.P.C.

Electoral Colleges

As I have pointed out, there will be no representatives of the Depressed Classes in the Provincial Second Chambers, which are to serve as electorates to the Federal Upper House in those Provinces where the legislatures are bicameral. Turning to the proposed electoral colleges in the Provinces, which will be unicameral, and examining their composition, it will be seen that there are no provisions for special electoral colleges for the Depressed Classes as there are for Sikhs and Muslims. Nor is any special provision similar to that made for Indian Christians, Anglo-Indians, and Europeans.

In regard to the constitution of special electoral colleges in unicameral Provinces the committee observes "The question of special provisions for the Depressed Classes among the General Seats requires special consideration especially in relation to the Central Provinces.

If special provision is necessary for the Depressed Classes of the Central Provinces why is special provision not necessary for the Depressed Classes in other unicameral Provinces? And if special provision is necessary for Depressed Classes in the Unicameral Provinces why is not special provision necessary in bicameral provinces? The condition of the Depressed Classes is the same all over the country and it cannot be said that the position of the Depressed Classes in the Central Provinces is worse than that of their fellows in other parts of the country.

Against Vital Interests

In omitting thus to provide for their representation has J.P.C. acted against the vital interests of the Depressed Classes ? I would like to remind His Majesty's Government that the consent of the Depressed Classes to the transfer of power to Indians was conditional upon adequate provision being made for their representation in the legislatures of the country under the new constitution. I had made this abundantly clear in my speech as the representative of the Depressed Classes at the Plenary Session of the First Round Table Conference. This omission to provide for the representation of the Depressed Classes in the Second Chambers, Provincial and Federal, is also contrary to the considered views of all those who have dealt with the problem.

I am sure that the sentiments of the Prime Minister on which the Depressed Classes have been relying were intended to be earned out in the framing of the new constitution, but the J. P. C. failed to respect these sentiments, with the result that the interests of the Depressed Classes in the matter of representation in the Second Chambers, Federal and Provincial, have been flagrantly neglected. I must, therefore, say that it would not be possible for the Depressed Classes to give their support to the scheme of reforms, and I hope that His Majesty's Government will modify the proposals of the J.P.C. so as to safeguard the interests of the Depressed Classes in the matter of representation in the Second Chambers, Federal and Provincial. I am sorry to say that it would not be possible for the Depressed Classes to give their support to the scheme of reform if these proposals stand as they are.”¹

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¹: The Times of India, dated 15th January 1935.

REMOVE BASIS OF 'SMRITI' RELIGION

Nasik, November 28.

“Owing to the lowering of franchise the Caste Hindu masses will secure the real power under the new constitution but they are opposed to social reform. They will be extremely unwilling to change the existing custom and usage. My grievance is especially against them and not against the social reformers. Even the Congress candidates will not be able to win the elections if they declare that, if elected, they will enact legislation for abolishing Untouchability. I challenge the Congress to seek election on this mandate.”

The above is the gist of the interview between Dr. Ambedkar and the deputation, elected by the Nasik Progressive Hindus at a meeting held on October 26, 1935.

The Nasik Progressive Hindus have now issued an authoritative statement summarising the interview.

The deputation, says the statement consisting of five progressive Caste Hindus, headed by Mr. R. G. Pradhan, former M.L.C., waited upon Dr. Ambedkar at his residence on November 10 and the interview which lasted over three hours, was of a cordial, friendly and frank nature.

Progressives' Views

At the outset, the deputationists placed before Dr. Ambedkar the following resolutions adopted by the Nasik Hindu Progressive Citizens in a conference presided over by Shri Shankaracharya (Dr. Kurtakoti). The resolution runs thus: (A) “The question regarding public temples, public places of pilgrimage and *thirtas* being extremely controversial and outside the sphere of immediate practical achievement, every possible effort should be made to bring about a change of public opinion with regard to that question. (B) Barring the above question except to the extent of bringing about a change of public opinion with regard to, continuance and unflinching efforts should be made both

individually and collectively by propaganda, constructive work and in other ways for securing for the *Harijans*, freedom to reside and settle in localities inhabited by *non-Harijan* Hindus for abolishing Untouchability in public places, such as wells, schools, *dharamshalas* and hotels and in general for doing away with Untouchability in the Hindu society with regard to all other matters.”

Mr. Pradhan expressed the deputationists deep respect and love for Dr. Ambedkar and declared that they were anxious to solve the problem arising out of Dr. Ambedkar’s speech at Yeola with his cooperation and consultation.

Mr. Pradhan said that they all desired to dissuade Dr. Ambedkar. from changing his religion, Mr. Pradhan conveyed Shri Shankaracharya’s deep affection for Dr. Ambedkar.

“Remove Basis of ‘Smriti’ religion”

Dr. Ambedkar’s Demand

In the course of the interview, which lasted over three hours, Dr. Ambedkar said: “Whatever may be the metaphysical basis of a religion, those religious principles upon which depend the ethical system and the social practices of a people must be considered to be the principal element of that religion. Though Hinduism is based on the conception of Absolute *Brahma* the practices of the Hindu community as a whole are founded on the doctrines of inequality as pronounced in ‘*Manusmriti*’. Some people think that religion is not essential to society. I do not hold this view. I consider the foundation of religion to be essential to the life and practices of society. At the root of the Hindu Social System lies *Dharma* as prescribed in ‘*Manusmriti*’. Such being the case I do not think it possible to abolish inequality in the Hindu Society unless the existing foundation of the ‘*Smriti*’ religion is removed and a better one laid in its place. I, however, despair of the Hindu Society being able to reconstruct on such a better foundation.”

Referring to the position of *Harijans* in the coming constitution, Dr. Ambedkar said that the cause of removal of Untouchability and of social reform would not advance with the help of the legislatures under the new constitution.

About abjuring the Hindu religion, Dr. Ambedkar declared: "Personally, I have made up my mind to change my religion. I am not able to tell you today what other religion I will accept. But I do not intend to secure any personal gain by the change of religion. It is not a personal question and I desire to carry with me the whole Untouchable community at all events the majority of that community, I do not want it to be split up by some joining one religion or sect and other another. From the point of view of the interests to my community it is necessary that it should be united with and absorbed into some powerful and living community. It is my intention to make this movement for change of religion an all India one. If my community does not follow me then I will alone change my religion. This may take at least four or five years and you will have this period for doing what you can. Before the final decision is made we shall of course consider what success your efforts may have met with. I admit the work before you is tremendous. But if it cannot be accomplished except after a very long period we are not prepared to wait for such a length of time."

New Sect

Referring to the offer made by Dr. Kurtakoti, regarding his creation of a new order and throwing it open to the Untouchables in common with others on equal footing and status, Dr. Ambedkar said: "I shall not undertake the responsibility of starting a new sect nor will I advise my community to join it. Let Dr. Kurtakoti start the sect if he so desires and let it spread among the 'touchables' and then we shall think over it. I cannot say today what the *Harijans* will think of it if it is established. Their attitude towards it will depend upon its numerical strength and upon the extent to which it will promote the uplift of the *Harijan* community. We shall consider whether to join it or not just as we may consider whether or not to join any other sect, but such a sect must be of a living religion

There are some difficulties in the way of our accepting *Buddhism*. I think that the *Harijan* community should be completely absorbed into some powerful community. It has decided not to join the *Arya Samaj*. We shall consider the question of joining the *Sikh religion*.

Referring to the attitude of *Harijans* towards the *Harijan Sevak Sangh*, Dr. Ambedkar declared: “*The Harijan Sevak Sangh* is not likely to advance the cause of the abolition of Untouchability. That *Sangh* is merely a wing of the Congress.”

Dr. Ambedkar, continuing, said: “Democracy is not suitable to India and popular Government will not do for her. India wants a dictator, a Kemal Pasha or a Mussolini. I had hoped that Mr. Gandhi would attain the position of dictator, but I am disappointed. My complaint is not that Mr. Gandhi is a dictator, but that he is not. I feel the greatest respect for Kemal Pasha, it is he that has made Turkey into a powerful nation. If there are any people with whose religious sentiments and practices it is extremely risky to interfere, they are the Muslims. But Kemal Pasha has done it with success. Without a leader of the stamp of Kemal Pasha, there will be no salvation for India. But in the circumstances, it is impossible to get such a dictator in social and religious matters and hence I despair of the future of India.”

Younger Generation

Referring to the attitude of the younger generation and the *Harijans* Dr. Ambedkar is said to have declared: “I am not hopeful of the younger generation which seems to be more predisposed to pleasure seeking and not possessing much of idealism and is not likely to produce men of ideals, principles and actions like Ranade, Tilak or Gokhale. This also fills me with despair.

“In brief, being born in the Untouchable community, I deem it my first duty to strive for its interest and my duty to India as a whole is secondary. I have strong religious sentiment according to my own conception of religion, but I have no faith in Hinduism and I hate hypocrisy. I have therefore, decided to renounce Hinduism, but I do not intend to do so immediately as I want to carry my community with me. The *Harijan* army is not marching today and it is watching and waiting for a suitable opportunity. In the meanwhile, the ‘touchables’ may go on making their efforts on the lines chalked out by you.”¹

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¹: The Times of India, dated 30th November 1935.

HINDUS SHOULD NOT BE INDIFFERENT TO CONVERSION OF DEPRESSED CLASSES

Regarding conversion, "Dr. B. R. Ambedkar consulted his colleagues from different provinces in the matter of choosing the proper religion for conversion. He had now decided to embrace Sikhism. His friends and colleagues felt that Dr. Ambedkar should seek the support of the Hindu Sabha leaders in their conversion to Sikhism; for, the Hindu Sabha leaders believed that Sikhism was not an alien religion. It was an off-spring of Hinduism and therefore the Sikhs and the Hindus intermarried and the Sikhs were allowed to be members of the Hindu Mahasabha.

Accordingly, Dr. Moonje, the spokesman of the Hindu Mahasabha, was invited to Bombay. In the presence of two other friends, Dr. Ambedkar had a talk with Dr. Moonje at Rajgriha, on June 18, 1936, at half past-seven that night. Dr. Ambedkar cleared all issues and had a free talk with Dr. Moonje. Next day the purport of Dr. Ambedkar's views was reduced to a statement and was given to Dr. Moonje who approved of it personally."¹

The following is the statement:—

The Hindus cannot afford to be indifferent to the movement of conversion which is gaining ground among the Depressed Classes. It would undoubtedly be the best thing from the standpoint of the Hindus if the Depressed Classes were to be persuaded to drop the idea of conversion. But if that is not possible, then the Hindus must concern themselves with the next move which the Depressed Classes will take, because their move is bound to have serious consequences upon the destiny of the country. If they cannot be persuaded to stay, the Hindus must help if they cannot lead them, to embrace a faith which will be least harmful to the Hindus and to the country.

It seems very unlikely that the Depressed Classes will formulate a new religion. Most probably, they will embrace one of the existing faiths. At any rate the Hindus can well proceed on that assumption. The first question is what is the faith that the Depressed Classes are likely to embrace? Obviously, the one most advantageous to them.

¹: Keer. P. 277.

There are three faiths from among which the Depressed Classes can choose. (1) Islam, (2) Christianity and (3) Sikhism. Comparing these three, Islam seems to give the Depressed Classes all that they need. Financially, the resources behind Islam are boundless. Socially, the Mohammedans are spread all over India. There are Mohammedans in every Province and they can take care of the new converts from the Depressed Classes and render them all help. Politically the Depressed Classes will get all the rights which Mohammedans are entitled to. Conversion to Islam does not involve loss of such political rights as the right to special representation in the Legislatures, right to services, etc. Christianity seems equally attractive. If Indian Christians are too small numerically to provide financial resources necessary for the conversion of the Depressed Classes, the Christian countries such as America and England will pour their immense resources in if the Depressed Classes show their readiness to embrace Christianity. Socially, the Christian community is numerically too weak to render much support to the converts from the Depressed Classes but Christianity has the Government behind it. Politically, Christianity will give them the same rights which Islam gives. Like the Muslims, Indian Christians are also recognised by the Constitution for special representation in the Legislature and in the services. Compared to Christianity and Islam, Sikhism has few attractions. Being a small community to forty lakhs, the Sikhs cannot provide the finance. They are confined to the Punjab and as far as the majority of the Depressed Classes are concerned, the Sikhs can give them no social support. Politically, Sikhism is at a positive disadvantage as compared with Islam or Christianity. Outside the Punjab, the Sikhs are not recognised for special representation in the Legislature and in the services.

The second question is, looking at these three alternative faiths purely from the standpoint of the Hindus, which is the best—Islam, Christianity or Sikhism? Obviously Sikhism is the best. If the Depressed Classes join Islam or Christianity, they not only go out of the Hindu religion but they also go out of the Hindu culture. On the other hand, if they become Sikhs they remain within the Hindu culture. This is by no means a small advantage to the Hindus.

What the consequences of conversion will be to the country as a whole is well worth bearing in mind. Conversion to Islam or Christianity will denationalise the Depressed Classes. If they go to Islam the number of Muslims will be doubled and the danger of Muslim domination also becomes real. If they go to Christianity, the numerical strength of Christians becomes five to six crores. It will help to strengthen the hold of the British on this country. On the other hand, if they embrace Sikhism they will not harm the destiny of the country but they will help the destiny of the country. They will not be denationalised. On the contrary they will be a help in the political advancement of the country. Thus it is in the interest of the country that the Depressed Classes, if they are to change their faith, should go over to Sikhism.

The third question is, if it is in the interest of the Hindus, that the Depressed Classes should go over to Sikhism, are the Hindus prepared to make Sikhism as good an alternative to the Depressed Classes as Islam or Christianity is? If they are, then obviously they must try to remove the difficulties which lie in the way of Sikhism, as compared with Islam and Christianity. The deficiencies are financial, social and political. The Hindus cannot help Sikhs to remove the social difficulty. But they can certainly help the Sikhs to remove the financial and political difficulties. Of these, it is most urgent to remove the political difficulty, because it might become an obstacle in the way of the Sikhs. The solution of the political difficulty is fortunately a very small matter. All that is necessary is to add to the list of Scheduled Castes in each Province, other than the Punjab, the word 'Sikh' as that of a person from the Depressed Classes who becomes a convert to Sikhism will not lose his political rights, that he would have had if he remained a Depressed Class. Under the Communal Award, communities have been given the liberty to agree to any change in the Award and the government has bound itself to alter the Award in accordance with the agreement.

This change can, therefore, easily be brought about if the Hindus so desire by mutual agreement with the Depressed Classes. This does not involve any radical change in the Poona Pact. It does not

require any apportionment of seats. The seats assigned to the Depressed Classes under the Poona Pact will remain the same. The only change that will be introduced is that non-Sikh Depressed Classes and the Depressed Classes who have gone to Sikhism will both be free to compete. It merely removes a difficulty from the Depressed Classes who become Sikhs.

Those Hindus who might oppose this suggestion must answer the following questions :

1. The seats assigned to the Depressed Classes under the Poona Pact cannot come back to the Hindus. They will go to the Muslims or Christians if the Depressed Classes become Muslims or Christians because if by conversion of the Depressed Classes the population of the Muslims or Christians increases then the Muslims and Christians are bound to ask for increased representation in the legislature. Thus, if these seats are to go, why not allow these seats to go to the Sikhs ?

2. If under the Constitution the Depressed Classes cannot lose political rights by becoming a Muslim or a Christian why should a Depressed Class on becoming a Sikh be made to lose his political rights? This is placing a premium on conversion to Islam and Christianity, and penalty on conversion to Sikhism. This is driving the Depressed Classes to the Muslim or Christian folds. Is it in the interest of the Hindus to allow this to be so?

3. It may be that the Depressed Classes will not lose their political rights by becoming converts to Sikhism, because even under the Poona Pact the Scheduled Castes Order-in-Council, their rights to special representation is not made dependent upon their professing the Hindu religion. Their representation is made dependent upon their being members of certain castes and tribes. But why give the Sikhs cause for complaint and create bad blood against the Hindus?

4. The proposal to add Sikhs to the list of Scheduled Castes in the different provisions for political recognition cannot be said to be strong proposal. On the other hand, not to give such a recognition would appear queer.

If Sikhs in the Punjab can be recognised for political purposes, why should Sikhs in other provinces not be so recognised?

If the Depressed Classes of the Punjab can not lose their rights on becoming Sikhs, why should the fate of the Depressed Classes in other Provinces on becoming Sikhs be made different?"

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For reaction on this statement by Dr. Moonje, Mr. Raja, Mahatma Gandhi and others see Appendix- X.—Editors.

RIGHTS NOT AFFECTED IN THE EVENT OF CONVERSION

“Talk of the possibility of the Depressed Classes having to forego their political privileges under the Poona Pact in the event of their leaving the Hindu Community is discounted by Dr. B. R. Ambedkar, who regards it as a Congress stunt to frighten him and his party from contesting the elections.

“I have evidence in my possession to show that it is a Congress stunt calculated to frighten me and my party from contesting the forthcoming elections and to coerce us into remaining within the Hindu fold.”

This is Dr. Ambedkar’s reaction to the reports current in the city that the resolutions of the Yeola and Bombay conferences of the Depressed Classes and Dr. Ambedkar’s own declared intention to renounce Hinduism must militate against the enjoyment by the Depressed Classes of the privileges secured under the Poona Pact.

Dr. Ambedkar is inclined to laugh at these reports as they are, in his opinion, based on ignorance of the constitutional position and of the provisions of the Communal Award as amended by the Poona Pact.

The original provision of the Communal Award in respect of the Depressed Classes was that they should vote in the general constituencies, but in order to ensure adequate representation to them special seats were to be allotted to them the basis of this provision was a separate electorate for the Depressed Classes.

The Poona Pact, briefly put, substituted joint electorates with the Hindu community for separate electorates for the Depressed Classes. In order to ensure that the representatives of the Depressed Classes carried the confidence of their community with them, a device for a primary election by the community itself was evolved; the electorate of the joint Hindu community was to make its choice from among the panel of four candidates for each seat selected by the voters on the list of the Depressed Classes.

Poona Pact: Hindus' Contention

The main point urged by the Hindu community now is that the circumstances in which the Poona Pact was evolved presumed without doubt that the Depressed Classes would remain as part of the Hindu community. Mr. Gandhi's fast, which was solely responsible for the Pact, was undertaken in order to prevent the dismemberment of the Hindu community, which it was feared would result from the allotment of a separate electorate to the Depressed Classes.

It is argued that the Hindu community has made sacrifices under the Poona Pact and has surrendered some of the seats allotted to it under the original Award solely with the object of allaying the fears of the Depressed Classes and retaining them within the Hindu fold.

Since then, however, a section of the Depressed Classes under the leadership of Dr. Ambedkar has resolved to renounce the Hindu faith. The Bombay Mahar Conference, for instance, resolved that after thorough consideration the conference:—

(a) “declares that a change of religion is the only remedy for the Mahar community to attain equality and freedom,

(b) “assures Dr. B. R. Ambedkar, their accredited leader, that the community is prepared to change its religion *en masse*, and

(c) “urges on the Mahar community, as a preliminary step towards the change of religion, to refrain henceforth from worshipping Hindu deities to put a stop to the observance of Hindu festivals and to put a stop to visiting Hindu holy places.”

Orthodox View

This resolution, according to orthodox Hindu opinion, leaves no doubt as to the intentions of the Mahars *vis-a-vis* the Hindu community and they cannot therefore complain if they are denied the electoral privileges conceded to them by the Hindus on the implicit understanding that they would remain Hindus.

In other words, as a Congress leader said recently, “they cannot have it both ways. Either they are Hindus and enjoy the privileges

under the Poona Pact, or they cease to be Hindus and forfeit those privileges.”

Invited to explain the position from his point of view. Dr. Ambedkar, in an exclusive interview with a representative of *The Times of India*, repudiated the suggestion that the Hindu community had made any sacrifices to the Depressed Classes.

“It is wrong to presume that the orthodox Hindus have surrendered any seats in favour of the Depressed Classes. In fact there is no such thing as a Hindu seat or a Hindu constituency, there is only a general constituency,” he said.

According to Dr. Ambedkar, the constitution does not recognise a Hindu constituency, although there are separate constituencies for Muslims, Europeans, Anglo-Indians, Sikhs (in the Punjab), etc. The general constituency includes not only the Hindus, but also the Parsis, Jews, Jains, Buddhists and a number of other communities. The concessions, if any, granted to the Depressed Classes under the Poona Pact are from the general constituency and not from the “Hindu Constituency” for such a thing does not exist. It was not mentioned in the Communal Award nor in the Poona Pact, nor even in the Government of India Act, 1935, which is to govern the franchise and electoral procedure.

Classification of Constituencies

Too Late to Question Issue

It is too late in the day, argued Dr. Ambedkar, to enter into the justification or otherwise of the classification of Constituencies adopted by the Government of India Act. “There it is and has to be followed. Even in the Punjab, where the Muslims are in a majority and the Hindus in a minority, the former have a separate electorate and the latter a general Constituency,” he added.

Thus, Dr. Ambedkar maintains, it is” incorrect and mischievous to affirm that the Hindus have made a sacrifice, for it may well be said that the numerous other communities who comprise the general constituency have made the so-called concession to the Depressed Classes.

The next important point made by Dr. Ambedkar is that religion has nothing to do with the political adjustments contemplated in the Communal Award, the Poona Pact and the Government of India Act of 1935, The Europeans constituency included Europeans, whatever their religious persuasion; so also the Anglo-Indians. It is only in regard to the Muslim Community that the political classification follows the religious grouping. Within the general constituency itself, there is no commonness of religious faith serving as the basis of the enjoyment of the political rights conferred on those who come under that electoral category.

Franchise Adjustments

In other words, franchise adjustments have been based on the membership of a community rather than adherence to any religious persuasion. The original classification of "Depressed Classes" has now been changed into "Scheduled Castes" and it refers only to a branch of a community, viewed socially and economically, not from the religious standpoint.

Assuming for argument's sake that there is an element of religion in these classification, renunciation of religion or declaration of loss or lack of faith in a set of tenets does not militate against the enjoyment of any attendant political right, says Dr. Ambedkar.

It may be a different matter if a member of the Depressed Classes gave up Hinduism and actually embraced another religion, say, Islam or Christianity.

Then, and only after such conversion, will he come under the political group assigned to the adherents of such a religion; then and then only can he be compelled to forfeit the rights attaching to the membership of the Hindu Community.

What if a Hindu is not an ardent believer in the Vedas ? asks Dr. Ambedkar. There are many Hindus in India today who are only Hindus in name and who do not observe the countless religious rites and formalities which go to make a Hindu. Do they cease to be Hindus on that account ? And; what is the standard by which one is to measure the extent of a Hindu's faith in his religion ?

Insistence of Rights

Intention to leave a religious sect born of disgust with current practices or injustice does not sever one's connection with the religion which he is nominally believed to profess.

"Surely, not all the present day Christians are true Christians. What about the Sunday parades in Europe where people who do not believe in Christianity or are indifferent or are rationalists demonstrate in front of Churches on Sunday morning ? They, too, are nevertheless Christians in the eyes of the State.

"You may call me a statutory Hindu if you like," said Dr. Ambedkar humorously," but I wilt insist on my political lights irrespective of the depth of my religious fervour."

To support his contention Dr. Ambedkar cites two instances from the Punjab, where two sections of Depressed Classes have been classified as "Scheduled Castes" in spite of the proved fact that they are not Hindus. The instances mentioned are those of *Ad Dharmis* and *Ramdasis*. The first of these have gone out of their way formally to intimate to Government that they are not Hindus, and yet they have been classed under "Scheduled Castes" in the general constituency.

The Punjab Census Report of 1931 says :

"The most notable feature of the present census from the stand-point of return of religion has been the adoption of the term '*Ad Dharmi*' by numerous *Chamars* and *Shudras* and other Untouchables. A new instruction to the religion was given this year, namely, 'Persons returning themselves as *Ad Dharmis* should be recorded as such.'

"The Punjab *Ad Dharmis Mandal* had petitioned the Punjab Government before census operations started in 1930, representing that the Depressed Classes should be permitted to return *Ad Dharmis* as their religion at the time of the census, as they were the oborigines of India and while the Hindus kept them at a respectable distance, they did not believe in the Hindu religion. The President of the Punjab *Ad Dharm Mandal* was informed that a clause was

being provided in the Census Code requiring that persons returning their religion *as Ad Dharm* would be recorded as such. *Ad Dharm* literally means original or ancient religion.”

A Negative Attitude

According to Dr. Ambedkar, the dispute over the *Ad Dharmi* agitation became so serious that several murders were committed. However that may be, the *Ad Dharmis* have been classified as “Scheduled Castes” in the general constituency, notwithstanding their unequivocal declaration that they are not Hindus.

In the case of himself and his followers, Dr. Ambedkar points out, the attitude is negative in respect of Hinduism and not yet positive adherence to any other faith.

Similarly, the *Ramdasis* are Sikhs by religion, but they have been classified under “Scheduled Castes” in the general constituency. All of which, according to Dr. Ambedkar, goes to show that religion has nothing to do with electoral classifications have gone exactly contrary to the religious grouping.

Thus, while Dr. Ambedkar does not recognise the Hindus’ right to complain or challenge the Depressed Classes’ privileges by virtue of the Poona Pact, he affirms that his community’s political rights are unaffected by intended or even impending renunciation of Hinduism.”¹

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¹: Times of India : dated 24th July 1936.

CONVERSION MOVEMENT SANS SELFISH MOTIVE

Dr. Ambedkar's comments on Rao Bahadur M. C. Rajah's statement against conversion of the Untouchables:

At the outset I would like to say that to send this correspondence to the newspapers for publication, is in itself an indecent act on the part of Mr. Rajah. Dr. Moonje had clearly mentioned at the end of his letter that till the final decision regarding conversion, this letter might be treated as personal and confidential. It cannot be believed that this fact did not come to the notice of Mr. Rajah. Mr. Rajah should have sought the permission of Dr. Moonje before releasing the correspondence to the press. This act on the part of Mr. Rajah is ill-becoming of a decent man.

The Untouchables may choose Sikhism for conversion. This fact is known to many of my Hindu friends and such members of the Untouchable community as are seriously interested in the question of conversion of the Untouchables.

The correspondence regarding the possibility of the Untouchables embracing Sikhism, which took place between Rao Bahadur M. C. Rajah and Dr. Moonje has been published in the newspapers. I have gone through it.

There is no reason for Rajah to rejoice that he had exposed some great secret of Dr. Ambedkar. I do not attach any importance to the letters of Mr. Rajah. *In* my opinion Rajah commands little respect among the Untouchable masses nor do his views regarding conversion have any worth or value. Had I felt that his views had any value at all, I would have co-operated with him to change his mind.

Ignoring Rao Bahadur Rajah, Rao Bahadur Srinivasan and I were invited to the Round Table Conference to represent the Untouchables. This led to heart-burning and animosity against me in the mind of Rajah who has since then been constantly criticising and opposing me.

I am trying to serve my people. Mr. Rajah has been opposing me and finding fault with my work. At the same time he has developed the art of self-advertisement through the medium of newspapers. I do not attach much importance to this question but I fail to understand why the movement to renounce Hinduism and the desire on the part of the Untouchable masses to embrace any other religion launched by them should hurt Mr. Rajah ? If Mr. Rajah does not want to renounce the Hindu religion, nobody will force him to do so and for this reason he has no right to comment on it. Mr. Rajah says, "I will live as a Hindu and die as a Hindu." He is quite free to do so. But I would like to tell him one thing, that in making use of his proficiency in issuing statements to press, he has been exhibiting his love for the Hindu religion but until he converts himself to some other religion he will continue to live as a 'Pariah' and die as a 'Pariah'. He must bear in mind the fact that the stigma of Untouchability attached to him due to his caste is not likely to be effaced even a bit if he continues to remain within the Hindu fold. It is nonsensical to say that conversion should be done only for spiritual reasons. I would like to ask Mr. Rajah whether it is only for the reasons 'spiritual' that he wants to remain within the fold of Hinduism. If he has no ambition other than spiritual satisfaction why should he bother about the material and political benefits accruing from the reservation of seats in the legislature ? If he is so keen on living as a Hindu and dying as a Hindu, why does he aspire for reserved seats ?

Mr. Gandhi and Mr. Malaviya, I believe, have no moral courage to say anything against the conversion of the Untouchables. They have failed to honour the promises they had made at the time of signing the Poona Pact.

Mr. Gandhi says that he has failed to understand my stand; I would also say that it is difficult for me to understand his language and action. According to him, 'upliftment of Untouchables is an independent question'. If this kind of language which is used by Gandhiji is used by one saint or another, perhaps, he can comprehend it better, but for an ordinary mortal like me, who is governed by ordinary principles of society in everyday life, this Mahatmatic language of Gandhi has no meaning. Gandhi says that religion is

not a commodity to be bartered. My reply is that it is not fair on the part of Gandhi to give expression to this kind of view at this distant date. At the time of the Poona Pact, Mr. Gandhi himself accepted the principle of give and take. Gone are the days when those who are struggling for achieving the basic human rights to satisfy their hunger and ordinary basic needs like bread and water could be hood-winked to live, merely for attaining spiritual peace.

Gandhi says that the Untouchables are bartering away their religion, but he must bear in mind that the conversion movement has not been launched with any selfish motive or for any personal benefit. According to Gandhi, 'Hindus should do (repentance) *prayschit* themselves and voluntarily endeavour to eradicate Untouchability. Untouchables themselves need not do anything for the removal of Untouchability and their own upliftment. The Untouchables should simply sit with folded hands and pray, 'O' ! Lord, grant the Hindus wisdom, and courage, and light, so that they may be forgiven for their evil deeds. Let their sins be forgiven and grant them the knowledge and strength to reform their society.' This is the pious advice of Gandhiji to the Untouchables. These pious platitudes can do no good to anybody, nor can they solve any problems. No sane person can ever agree to such a proposal. This sounds more like the advice tendered by an idiot to the people living in an area effected by a plague epidemic. "Brothers, halt and listen to me ! Do not be afraid of the disease. The Municipal Committee members will have to repent one day for the dereliction of duty on their part; some plan will surely be chalked out for the eradication of the plague. Meanwhile, you must wait and see. Do not be in a hurry to leave home and hearth." Whatever wisdom you find in this advice, the same kind of advice has been tendered by Gandhi to the Untouchables in his statements.

Shri Rajagopalachari, it seems, has another fit of anger. This aged house-holder has developed a kind of indigestion owing to excessive use of acidic expletives which he is in the habit of coining. He has labelled this conversion movement as 'satanic.'

If the Untouchables have been seriously thinking of embracing Sikhism, the followers of Hinduism should think for themselves and decide whether this step on the part of the Untouchables is

really satanic. I feel that those Hindus who feel concerned about the future of Hinduism must be wondering whether this great Hindu Brahmin Rajagopalachari, is really a man out of his senses to call conversion to Sikhism 'satanic.'

In fact, if this accusation of being 'satanic' is to be levelled against any person, it is Dr. Moonje who without any respect for propriety published the personal and confidential correspondence. But I do not wish to say any more on this subject.

Shankaracharya Dr. Kurtakoti, and other prominent Hindu leaders have favoured the idea of Untouchables embracing Sikhism. In fact, it is these leaders who have propagated the idea of Untouchables embracing Sikhism... and also prevailed on me to do so. I fell for the idea mainly because I too feel I have some responsibility towards the future of Hindu culture and civilisation. Hindus are free to decide, after reading my views about the correspondence published in the newspapers, whether the policy decided by Mr. Gandhi, Mr. Rajah and Mr. Rajagopalachari about the conversion of the Untouchables to Sikhism is of the advantage to Hindu Society or not.

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THE INDEPENDENT LABOUR PARTY : A SOURCE FOR BETTERMENT OF THE DEPRESSED CLASSES

On 14th January 1937, Dr. B. R. Ambedkar reached Bombay from London. The Journalist from Times of India had interviewed Dr. Ambedkar. The interview is as follows : Editors.

Dr. Ambedkar said that he visited Europe purely for reasons of health and he stayed most of the time in Vienna and Berlin. He was in London only for a week. He had no conversation of a political nature with any one in London.

Asked if he had come to any decision regarding his intention to leave the Hindu fold, he said that the decision still remained, although he had not finally made up his mind which new faith he should embrace.

Dr. Ambedkar said that his immediate concern was the ensuing elections to the Bombay Legislative Assembly and he would devote himself to the election campaign. The Independent Labour Party, which he had started, would work for the betterment of the political and social condition of the Depressed Classes in the Legislature, and he was sanguine that all the candidates put up on behalf of his Party would come out successful in the elections.

Dr. Ambedkar was given a rousing reception on arrival. More than a thousand Khaki-clad volunteers belonging to the Social Equity League lined up the entire route from Ballard Pier Station to Alexandra Dock No. 18, cheered him as he passed.

Most of the candidates put up by the Independent Labour Party of which Dr. Ambedkar is the founder, for the ensuing elections to the Bombay Legislative Assembly were present on the wharf to meet him. Among them were B. K. Gaikwad (Nashik District), Mr. Prabhakar Roham (Ahmednagar), Mr. B. H. Varale (Belgaum), Mr. R. R. Bhole (Poona), Mr. B. J. Sawadkar, Mr. S. G. Tipnis (Kolaba), Mr. G. R. Ghatge (Ratanagiri), Mr. R. E. Bhatankar (Thana) and Mr. V. A. Gadkari.¹

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¹ : The Times of India, dated 15th January 1937

Reprinted : Khairmode, Vol. 7, Pp. 57-59.

CIVIL LIBERTIES OF INDIANS

“It is interesting that for him Untouchability and exploitation were a violation of civil liberties, not in the conventional sense, but because of the breach of the dignity of whole communities. His reply to the Secretary of the Civil Liberties Union, Dr. K. B. Menon, way back in June 1937, makes meaningful reading ;

Bhimrao R. Ambedkar
M.A., Ph.D., D.Sc,
Barrister-at-Law.

‘Rajgriha’
Dadar, Bombay - 14
8th June 1937

Dear Mr. Menon,

I am in receipt of your letter No. 998 of the 19th of May 1937 and also your post card asking me to sign the manifesto, on behalf of the Indian Civil Liberties Union to be read as a message from India at the conference on civil liberties in India to be held in London. I did not know of your letter till I came to Bombay on the 25th May, and hence could not reply to it earlier.

I have read the manifesto and I am sorry I cannot subscribe to it. You have condemned the Frontier Policy of the Government of India. I do not see how it can be a matter of *Civil Liberties of Indians*. On the other hand, you make no mention of the systematic tyranny and oppression practised by Caste Hindus against the Untouchables, which is undoubtedly a matter of Civil Liberties of Indians.

Yours Sincerely,
B. R. Ambedkar.”¹

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¹ Justice V. R. Krishna Iyer, Exordium P. VII.

IN ANY OTHER COUNTRY SUCH A MINISTER WOULD HAVE BEEN DISMISSED

To the Editor,

The Times Of India

Sir,

Following close upon the action of the Home Minister of Bombay in suspending the sentences passed upon two gamblers by the High Court; there comes the news of the action taken by the Home Minister of the C.P. in remitting the Sentences passed by the Court of the Judicial Commissioners upon a person by name Jaffer Hasan who was condemned to three years, rigorous imprisonment on a charge of rape upon a girl of 14 years. The conviction took place in 1936. The accused had only undergone one year's imprisonment so that he has been given a remission of two years.

I think that this act of the Congress Minister in the C. P. is a most shameless act, for which I can find no parallel. What does the Hindu public which is so blindly supporting the Congress, think of these acts ?

I would not have troubled you with this letter if the matter concerned the Caste Hindus—not that it would not have been a grave thing if the girl was a Caste Hindu girl, but because the Hindus have cultivated a religious faith that no party other than the Congress and no man other than the Mahatma can bring them salvation ! They have placed their destiny in the hands of one party and have refused to examine the acts of those in whom they trust. If they come to grief, it is their fault. But the girl belongs to the Depressed Classes. She is *Chambhar* by caste. It is because of that I feel deeply concerned. We are destined to be in a minority. We can only criticise. We can never hope to control.

What hope have the Depressed Classes of fair play and justice if such acts as those of the Home Minister in the C. P. are tolerated by the Hindu public, are endorsed by the Prime Minister and

overlooked by the Mahatma ? I am sure in any other country such a Minister would have been dismissed. But, is this not to be expected in India? The Mahatma owes the Depressed Classes an explanation as to how he and his Prime Minister can justify this reprehensible act of their Minister.

B.R. Ambedkar.”¹

Bombay

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¹ : The Times of India : Dated 19th March 1938.

SOCIALISTS NOW INACTIVE

“On his arrival in Bombay, on 21st May 1938 in the course of an interview, Dr. B. R. Ambedkar expressed great satisfaction at the growing support of the people to his Party and their grateful appreciation of his efforts towards abolishing their serfdom.

He said that in its own way his Independent Labour Party was striving to redeem its election pledges, but if the Congress Ministry refused to give relief through constitutional methods, and if people’s faith in it was thus lost, the alternative was obvious. He, however, was surprised at the attitude of the Socialists, who, he said, had been all those years shouting for the confiscation of all Zamindari lands and the abolition of the capitalist system, but now inactive when a concrete Bill was brought forward to put an end to the Khoti system.”¹

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¹: Keer, P.310.

**LET SUCH INSTITUTIONS GROW INTO
BIG LIBRARIES**

Dr. B. R. Ambedkar's remarks in the Visitor's Book of the Rajwade Sanshodhan Mandal, Dhulia (Maharashtra) on 18th June 1938— Editors :

“As who has spent some six or seven years in various libraries of Europe and America I was greatly pleased to go round the collection of manuscripts and paintings of the Rajwade Sanshodhan Mandal. As compared with the European Libraries this of course is indeed a very small place. The responsibility for this, however, does not lie on those who have given birth to the institution. It is to be hoped that the new government will pay adequate attention to such institution and see that they grow into big libraries. I wish this institutions every success.

18 6-1938

Sd/B. R. Ambedkar

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**A BILL TO CONTROL
AND
REGULATE MONEY-LENDING
BY**

Dr. B. R. AMBEDKAR,

M.A., Ph. D., D. Sc., Bar-at-Law.

**INDEPENDENT LABOUR PARTY
PUBLICATIONS**

No. 2

Bill No. of 1938.**A Bill to Control and Regulate Money-Lending****Table of Contents****CHAPTER I****Preliminary**

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Sec. 2 Definitions
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customs or contracts.

CHAPTER II**Licensing of Money-lenders**

- Sec. 4 Prohibition of Money-lending without license.
Sec. 5 Name in which license to be taken out.
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CHAPTER III**Suspension and Revocation of License**

- Sec. 17 Suspension etc. of license on conviction.
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Sec. 44 Court to estimate the value of judgement-debtor's property.
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Bill No.**of****1938****A Bill to Control and Regulate
Money-Lending**

Whereas it is expedient to prescribe by law the duties and obligations of persons carrying on business as money-lenders and to control and regulate the same.

It is hereby enacted as follows :—

Chapter I.*Preliminary***Short title, extent and commencement**

- 1.(1) The Act may be called the Bombay Money-lenders Act, 1938.
- (2) It shall apply to the whole of the Province of Bombay and shall come into force on a date not being later than one year after the passing of this Act as the Government may by notification in the Official Gazette appoint.

Definitions

2. In this Act unless there is anything repugnant to the subject or context—
 - (i) “Authorised name” and “Authorised address” means respectively the name under which and the address at which a money-lender is authorised by a license granted under this Act to carry on the business of moneylender.
 - (ii) “Business name” means the name or style under which any business of money-lending is carried on whether in partnership or otherwise.
 - (iii) “Debtor” means any person against whom a moneylender has a claim in respect of a loan.
 - (iv) “Interest” means and includes any amount in kind, cash, service or in any other form and by whatsoever name called, in excess of the principal, paid or rendered, or payable or renderable to a money-lender in consideration of, or otherwise in respect of a loan.

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- (v) “Loan” means an advance made whether of money or in kind at interest and shall include an undertaking given in respect of past liability and any transaction which in substance is a loan.
 - (vi) “Money-lender” includes every person who carries on the business of lending money or who advertises or announces himself or holds himself out in any way as carrying on that business and shall include a pawnbroker; but it shall not include—
 - (a) any society registered under the Co-operative Societies Act, 1912, and the Provident Insurance Societies Act, 1912,
 - (b) any corporate body, incorporated by a special enactment to lend money in accordance with such special enactment,
 - (c) Government or any person authorised by it to lend money on its behalf and
 - (d) any person, who merely because in the course of and for the purpose of his business lends money if he is bona fide carrying on
 - (i) the business of banking or insurance, or
 - (ii) any other business the primary object of which is not money-lending.
 - (vii) “Payment” or “Re-payment” means and includes any amount paid or re-paid in kind, cash or service rendered.
 - (viii) “Person” includes a company and a firm.

Explanation I. For the purpose of duties and liabilities of a money-lender, “Company” shall include the managing agents or managing directors and in the case of a Firm all partners of the Firm.

Explanation II. Where in a money-lending business a minor or a person not competent to contract has an interest the word “person” includes the person responsible for the management of the business.

- (ix) "Prescribed" means prescribed by rules made under this Act.
- (x) "Principal" means in relation to a loan the amount actually advanced or lent to the debtor.
- (xi) "Secured debt" means a loan for which the moneylender holds a mortgage, charge or lien on the property of the debtor or any part thereof as a security for that loan.
- (xii) "Unsecured debt" means any loan other than a secured loan.

Provisions of this Act not affected by laws, customs or contracts.

3. The provisions of this Act shall apply notwithstanding anything contained in any other law or custom or usage having the force of law or any contract to the contrary.

Chapter II.

Licensing of Money-lenders.

4. No person whether individually or otherwise or whether for himself or for another or for himself and another shall carry on the business of money-lending unless he takes out annually a "Money-lender's License" (in this Act referred to as the Licensee) in respect of every address at which such business is being carried on.

Name in which license to be taken out.

5. A money-lender's license shall be taken out by a moneylender in his own name and shall be void if taken out in any other name :

Provided that where a person is carrying on the business of money-lending not in his own name but under a business name the license shall also show such business name and the authorised address at which such business is carried on;

Provided further that where the business of money lending is earned on by a firm or by a company the license shall be taken out

in the name of the firm or in the name of the company and where it is carried on in the name of a minor or a person who is otherwise incompetent to contract in the name of such person.

Particulars to be stated in license.

6. (1) The license shall disclose in the case of a firm the names of its partners, in the case of a company the names of the managing agents or managing directors and in the case of a minor or a person incompetent to contract the name of the person or persons responsible for or appointed to carry on the business.

(2) The license shall also state the authorised address in respect of which the license is granted.

Necessity of certificate for license.

7. (1) No person shall be deemed to be entitled for a license unless he holds a certificate (in the Act referred to as certificate) and a license shall not be granted except to a person who holds a certificate granted in accordance with provisions of this Act.

(2) A separate certificate shall be required in respect of every separate license.

Particulars to be stated in certificate.

8. Every certificate granted to a person shall show his true name and the address at which he intends to carry on money-lender's business irrespective of the question whether he intends to use the certificate for securing a license for himself, or for another, or for himself and another or for a firm or for a company.

Authority competent to grant certificate.

(1) Any Magistrate or other Officer especially invested by Government in this behalf with jurisdiction in the area in which the money-lender's business is to be carried on, may, on application made in the prescribed form, grant to a person a certificate of eligibility.

- (2) On receipt of an application for the grant of certificate, the Officer shall post up a complete copy of the application in a conspicuous place in his office and shall take no proceedings thereon for fifteen days from the date of such exhibition.
- (3) Any person shall be entitled to oppose the grant of a certificate to the applicant and in case the application is opposed, the Officer shall be bound to hold an inquiry and either grant or reject it.
- (4) Nothing in this section shall limit the power of the Officer to reject the application even though it is not opposed.

Grounds for refusing certificate.

10. A certificate shall not be refused except on one or more of the following grounds-

- (i) that satisfactory evidence has not been produced of the good character of the applicant,
- (ii) that satisfactory evidence has been produced that the applicant, or any person responsible or proposed to be responsible for the management of his business as a money-lender is not a fit and proper person to hold a certificate,
- (iii) that the applicant, or any person responsible or proposed to be responsible for the management of his business as a money-lender, is by order of a Court disqualified for holding the license,
- (iv) that the applicant has not complied with the provisions of any rules made under this Act with respect to an application for a certificate.

Recording of reasons for refusal.

11. When any authority who has power to grant a certificate refuses to do so it shall record its reasons in writing for such refusal.

Appeal against order of refusal.

12. Any person aggrieved by an order of refusal to grant a certificate may appeal to the Sessions Judge and the decision of the Sessions Judge in this respect shall be final.

Authority competent to grant license

13. Subject to the provisions of this Act any Officer authorised by Government in this behalf may, on application made in the prescribed form and on payment of the prescribed fee, grant to the holder of a certificate, a license.

Duration of license.

14. Every license shall expire on the 31st December in every year.

Fee for license.

15. There shall be charged on every money-lender's license a fee of Rs. 50/- or if the license be taken out not more than six months before the expiration thereof, Rs. 30/-.

Penalty for breach of provisions regarding license.

16. Whoever—

- (a) takes out a money-lender's license in any name other than his own name, or
- (b) carries on business as a money-lender without having a proper license authorising him to so do, or
- (c) being licensed as a money-lender, carried on business as such in any name other than his authorised name, or at any place other than his authorised address, or
- (d) enters into an agreement in the course of his business as a money-lender with respect to the advance or repayment of money, or takes any security for money, in the course of his business as a money-lender, otherwise than in his authorised name, shall be punishable with fine of not less than Rs. 100/-.

Provided that on a second or subsequent conviction of any person for an offence under this sub-section the court may, in lieu

of or in addition to ordering the offender to pay the penalty aforesaid, sentence him to imprisonment of either kind for a term not exceeding three months.

Chapter III

Suspension and Revocation of license.

Suspension etc. of license on conviction

17. Where any person, being the holder of a license is convicted of any offence under this Act, the court

- (i) (a) shall order that the license held by that person be either suspended for such time as the court thinks fit or revoked, and
- (b) shall also declare any such person to be disqualified for obtaining a license for such time as the court thinks fit,
- (ii) shall cause particulars of the conviction and of the order made under sub-clause (i) of this section to be endorsed on every license held by the person convicted or by any other person affected by the order, and
- (iii) shall cause copies of these particulars to be sent to the authority by whom the certificate was granted and also to the officer by whom the license was granted.

Appeal against order of suspension and revocation

18. Whether by order of a court a license held by any person is suspended or revoked or any person is disqualified for obtaining license, he may, whether or not he is the person convicted, appeal against the order of his conviction, and the appellate court may, if it thinks fit, pending the appeal, defer the operation of the order.

Production of license when directed by court

19. (1) Any license, required by a court for endorsement in accordance with the foregoing provisions of this Act, shall be produced by the holder in such manner and within such time as may be directed by the court.

- (2) Any person, who, without reasonable cause, makes default in producing any license as required, shall in respect of each offence, be liable on conviction to fine not exceeding five rupees for each day during which the default continues.

Chapter IV

Mode of carrying on business.

Prohibition of advertisements circular of money-lending

- 20.(1) A money-lender shall not, for the purpose of his business as such issue or publish or cause to be issued or published any advertisement, circular, business-letter, or other similar document-
- (a) containing an invitation to borrow or,
 - (b) containing expressions which might reasonably be held to imply that he carries on banking business.
- (2) Any money-lender who acts in contravention of the provisions of sub-section (i) of this section shall be liable on conviction to a fine not exceeding Rs. 100/- in respect of each offence.

Prohibition against employment of agents

21. (1) No money-lender or any person on his behalf shall employ any agent or canvasser for the purpose of inviting any person to borrow money or to enter into any transaction involving the borrowing of money from a money-lender, and no person shall act as such agent or canvasser, or demand or receive directly or indirectly any sum or other valuable consideration by way of commission or otherwise for introducing or undertaking to introduce to a money-lender any person desiring to borrow money.
- (2) Any person who acts in contravention of the provisions of sub-section (1) of this section shall be liable on conviction to simple imprisonment for a term not exceeding three months or to a fine not exceeding one hundred rupees or both.

Penalty for breach of Sec. 20 and 21

22. When it is shown that a money-lending transaction was brought about by a contravention of any of the provisions of *Section 19 and 20, the transaction shall, notwithstanding that the money-lender was duly licensed under this Act, be void, unless the money-lender proves that the contravention occurred without his consent or connivance.

Agreement for payment by borrower of costs, charges etc. void

23. Any agreement between a money-lender and a borrower or intending borrower for the repayment by the borrower or intending borrower to the money-lender of any sum on account of costs, charges or expenses incidental to or relating to the negotiations for or the granting of the loan or proposed loan shall be void and if any sum is paid to a money-lender by a borrower or intending borrower on account of any such costs, charges or expenses, that sum shall be recoverable as a debt due to the borrower or intending borrower or in the event of the loan being completed, shall, if not so recovered, be set off against the amount actually lent and that amount shall be deemed to be reduced accordingly ;

Provided that it shall not be unlawful for a money-lender to charge the debtor with an amount not exceeding half the amount due on account of stamp duty and registration fee payable in respect of any document evidencing the transaction.

Chapter V*Duties of Money-lender***Transaction to be reduced to writing**

24. (1) After the commencement of this Act every contract for the repayment of the loan or for the payment of interest on the loan and for security of the loan shall be evidenced by a memorandum in writing signed by the borrower personally.

(2) The memorandum shall be in the prescribed form and shall contain all the terms of the contract and shall in particular show—

(a) the date on which the loan was made,

* Section number might be 20 and 21.—Editors

- (b) the amount of the loan,
- (c) the nature of the consideration,
- (d) the interest,
- (e) the nature of the security taken, and
- (f) where the loan wholly or partly superseeds the previous loan, the particular loan and the security therefor, if any.

Copy of memo to be supplied to debtor

25. A copy of every such memorandum shall be delivered to the borrower within seven days from the date of the contract by the lender.

Transaction in contravention of Sec. 23 or 24 void

26. A contract or security in which it is proved that the memorandum was not signed by the borrower before the money was lent or before the security was given as the case may be or that a copy thereof was not sent to the borrower within seven days of the making of the contract as provided *section 24 be inserted of this Act, shall be void.

Agreement to pay compound interest void

27. Any contract made after the commencement of this Act for the loan of money by a money-lender shall be void in so far as it provided directly or indirectly for the payment of compound interest or for the rate of interest being increased by reason of any default in the payment of sums due under the contract, and he shall not be entitled to any interest:

Provided that provision may be made by any such contract that if default is made in the payment upon the due date, of any sum payable to the money-lender under the contract, whether in respect of principal or interest, the money-lender shall be entitled to charge simple interest on that sum from the date of the default until the sum is paid, at a rate not exceeding the rate payable in respect of the principal apart from any default, and any interest so charged shall not be reckoned for the purpose of this Act as part of the interest charged in respect of the laon.

* Section '23 or' be inserted.—Editors

Chapter VI

Method of keeping Accounts

Money-lender to give pass-book to debtor

28. Every money-lender shall give to his debtor a pass-book provided by Government and shall enter therein every payment made by the debtor or to the debtor and authenticate the same by his signature.

Money-lender to supply annually a statement of debtor's account.

29. Every money-lender shall deliver to his debtor and such other persons from whom he is entitled to claim payment of the debt, on or before the 31st January of every year, a statement of his accounts in respect of the debt in such form as may be prescribed by Government, upto the 31st December of the previous year authenticated by his signature.

Money-lender not entitled to sue during default

30. A money-lender, who fails to comply with the provision of section 28, shall not, as long as the default continues, be entitled to sue for or recover any sum due under the contract on account either of principal or interest, and interest shall not be chargeable in respect of the period of the default.

Penalty for default

31. A money-lender who contravenes the provision of section 28 or 29 shall be liable to a fine not exceeding Rs. 100/-.

Accounts to be kept in books obtained from Government

32. Every money-lender shall obtain from Government on payment of such fees as may be prescribed, such books of accounts as may be necessary for him for the purpose of recording his transactions as a money-lender and shall regularly record and maintain accounts of all his transactions relating to the loans made and security for such loan, if any, in such account books, containing such details and in such script and numerals and in such ink as may be prescribed by Government from time to time.

Production of books of account used during the year for authentication.

- 33.(1) On or before the 31st January in each year every money-lender shall produce before the licensing officer all the books of account used by him in the previous year.
- (2) The licensing officer shall thereupon sign and date in the case of running accounts the first and last entries on either side of each book and in the case of a ledger the first and last entries of each account in the ledger.
- (3) The licensing officer shall also enter after the last entry in the running account particulars of the books issued to the money-lender in the previous year but not used by him in that year.

Entries in books not in accordance with Sec. 31 and 32*, inadmissible in evidence.

34. Notwithstanding anything contained in the Indian Evidence Act, 1872, no entry in any book, register or record relating to any loan or security therefor shall be admissible as evidence in any suit or proceedings for a money-lender unless it is contained in a book supplied by Government under the provisions of section 32 of this Act and reorded in the manner prescribed by the said section and in the case of an entry which relates to a previous year authenticated as provided by section 33.

Chapter VII*Suits and Proceedings***Jurisdiction of Small Causes Court excluded**

35. Notwithstanding anything contained in the Provincial or Presidency Small Causes Court Act, no suit by or against a moneylender in respect of any claim arising out of any money-lending transaction shall be cognizable by a court of Small Causes unless that claim is in respect of a single transaction and such transaction is not directly or indirectly connected with earlier transactions between the parties or persons through whom they claim.

* It may be 32 and 33 - Editors.

Particulars of license to be given in the plaint

- 36.(1) Every plaint by a money-lender shall contain the particulars of the license held by him at the time when the transaction in the suit was entered into;
- (2) If a money-lender without lawful excuse fails to comply with the provisions of sub-section (i) of this section the court shall order him to pay to the defendant the cost of the suit.

Interrogatories to be delivered to money-lender

- 37.(1) In any suit or proceedings for accounts or for the recovery of money lent or advanced if the person lending or advancing the money denies that he is a money-lender the court shall deliver to such person interrogatories for the purpose of ascertaining-
- (a) whether he either alone or in conjunction with or in the name or through the agency of any other person or persons or corporation, made any and if so what loan or loans or advances within a reasonable time before and after the date of the transaction in suit or proceedings and if so,
- (b) whether he or any and if so on what occasion or occasions, lent or advanced money under any name other than his own name and;
- (c) whether he has been registered as a money-lender under his own or any other or what name as a money-lender and if so when.
- (2) The provisions of Order 11 of the Code of Civil Procedure, 1908 shall apply to such interrogatories.

Power of Court to re-open certain transactions

38. Where in any suit or proceedings instituted after or pending at the time when this Act comes into force the transaction discloses that—

- (a) the interest is excessive, or
- (b) the transaction is as between the parties therein, unconscionable,

the court shall exercise one or more of the following powers, namely—

- (i) re-open the transaction, take an account between the parties and relieve the debtor of all liability in respect of any excessive interest,
- (ii) notwithstanding any agreement, purporting to close previous dealings and create a new obligation, re-open any account already taken between them and relieve the debtor of all liability in respect of any excessive interest, and if anything has been paid or allowed in account in respect of such liability, order the money-lender to re-pay any sum which it considers to be re-payable in respect thereof,
- (iii) set aside either wholly or in part or revise or alter any security given or agreement made in respect of any loan, and if the money-lender has parted with the security, order him to indemnify the debtor in such manner and to such extent as it may deem fit.

Certain transactions not to be re-opened

39. In the exercise of the powers conferred by section 38 the court shall not—

- (i) re-open any agreement purporting to close previous dealings and to create a new obligation which has been entered into by the parties or any person from whom they claim at a date more than twenty years from the date of the transaction, or
- (ii) do anything which affects any decree of a court.

Explanation.—In the case of a suit brought on a series of transactions for the purposes of clause (i) of section 38 the expression “transaction” means the first of such transactions.

Rate of interest when deemed excessive.

40. For the purposes of section 37, interest shall be deemed to be excessive if—

- (i) in the case of an unsecured loan it is at a rate in excess of three times,
- (ii) in the case of a loan secured by a second or subsequent mortgage it is at a rate in excess of two and a half times,
- (iii) in the case of loan secured by a first mortgage or pledge it is at a rate in excess of one and a half times,

the Bank rate of the Reserve Bank or of the Imperial Bank or the Bank of Bombay, as the case may be, at the date of the loan or transaction.

Mode of taking account

41. The account under section 37 shall be taken in accordance with the following rules, that is to say—

- (i) separate accounts of principal and interest shall be taken,
- (ii) in the account of the principal there shall be debited to the debtor such money as has from time to time been actually received by him from the money-lender and the price of goods, if any, sold to him by the moneylender as part of the transaction,
- (iii) in the account of the principal there shall not be debited to the debtor any accumulated interest which had been converted into principal at any settlement of account or by any contract made in the course of the transaction,
- (iv) in the account of interest there shall be debited to the debtor monthly simple interest on the balance of principal for the time being outstanding at a rate agreed between the parties but in no case exceeding the rates specified in section 38,
- (v) all moneys paid by or on account of the debtor to the money-lender or on his account, and all payments in kind, all profits, service or other advantages of every

description received by the money-lender in the course of the transaction shall be credited first in the account of interest and when any payment is more than sufficient to discharge the balance of interest due at the time it is made, the residue of such payment shall be credited to the debtor in the account of the principal.

Explanation.—Where for purposes of accounting it is necessary to estimate in terms of money the value of any profits, services or advantages received by the moneylender including profits, rents and other advantages of property in the possession of the money-lender held by him as a security for the loan, the same shall be determined in accordance with the market rates prevailing on material dates or with the aid of assessors appointed by the court or failing which by the court in its own discretion,

- (vi) the accounts of principal and interest shall be made upto the date of instituting the suit and the aggregate of the balance due on both such accounts against the debtor on that date shall be deemed to be the amount due at that date, except when the balance appearing due on the interest account exceeds that appearing due on the principal account, in which case double the latter balance shall be deemed to be the amount then due.

Power to direct payment of amount due on mortgage decree by instalments.

42. The court may, at any application of a judgement-debtor, after notice to the decree-holder, direct that the amount of any decree passed before or after the commencement of this Act, in respect of a loan, including any decree in a suit relating to a mortgage by which a loan is secured shall be paid in such number of instalments and subject to such conditions on the dates fixed by it as, having regard to the circumstances of the judgement-debtor and the amount of the decree, it considers fit.

Decree may direct payment of amount due on mortgage by instalment.

The court may at the time of passing the decree in any suit relating to a mortgage by which any loan is secured order that payment of any amount decreed in such suit, shall be made by instalments notwithstanding anything to the contrary contained in any contract between the money-lender and the person to whom the loan was advanced.

Court to estimate the value of judgement-debtor's property.

44. When an application is made for the execution of a decree by the attachment and sale of the judgement-debtor's property, the court executing the decree, shall, notwithstanding anything contained in the Code of Civil Procedure, 1908, hear the parties to the decree and estimate the value of such property and of that portion of such property the proceeds of the sale of which it considers will be sufficient to satisfy the decree.

Only sufficient portion of judgement debtor's property to be sold.

45. Notwithstanding anything contained in the Code of Civil Procedure, 1908, the proclamation of the intended sale shall include only so much of the property the proceeds of the sale of which the court considers will be sufficient to satisfy the decree and such property shall not be sold at a price lower than the price specified in the said proclamation.

Saving of power of court under Usurious Loans Act.

46. Except as is otherwise provided by this Act nothing herein contained shall affect the powers of a Court under the Usurious Loans Act, 1918.

Contract for payment outside the Province void.

47. Any contract entered into between a money-lender and his debtor in respect of a loan advanced after the commencement of this Act providing for the payment of the amount due on such loan at any place outside the province of Bombay shall be void.

Agreement to pay arrears of interest void.

Any agreement entered into by a debtor to pay any arrears of interest due on a loan shall be void.

Chapter VIII.*Proceedings in respect of offences***All offences cognizable.**

49. All offences under this Act shall be cognizable and shall be triable by any Magistrate.

Appeals from convictions or acquittals.

50. An order of conviction or acquittal passed under this Act in respect of any offence under this Act shall be appealable in the same manner as if it was an order passed under the Code of Criminal Procedure, 1898.

Chapter IX.*Supplemental***Power to make rules.**

51. (1) It shall be lawful for Government to make rules prescribing-

- (a) the form of the certificate and the license to be granted to the money-lender,
- (b) the procedure to be followed in making applications for certificates and licenses,
- (c) the authorities empowered to grant licenses and certificates, to issue books of accounts, pass books, memorandum and their form,
- (d) procedure in respect of appeals from orders passed under the provisions of this Act,
- (e) the form of account books, pass books and the method of authentication,
- (f) the forms of the annual statements of accounts to be submitted by the money-lender to his debtor,
- (g) fees for the supply of account books, pass-books etc.,
- (h) charges payable by the debtor to the money-lender in respect of loans.

- (2) Before any such rules are made under this section a draft thereof shall be laid before each chamber of the legislature for a period of not less than 21 days during the session of the chamber, and if either chamber before the expiration of the said period passes a resolution against the draft or any part thereof, no further proceedings shall be taken thereon, but without prejudice to the making of a new draft rule.

Statement of Objects And Reasons

This Bill is intended to control and regulate the business of money-lending. For that purpose it provides—

Firstly- (i) that no money-lender shall carry on the business of money-lending unless he has taken out a license and that license shall not be granted to any person who does not possess a certificate of good character; (ii) that the license issued to a money-lender shall be liable to be suspended or revoked if he is found guilty of breach of any duty imposed upon him by this Bill.

Secondly- (i) the bill provided that all loans made by a moneylender whether secured or unsecured shall be evidenced by writing signed by the borrower; (ii) that a money-lender shall give a pass-book to the borrower in which all transactions between them shall be entered by the money-lender; (iii) that annually the money-lender shall send to the borrower a statement of his accounts; (iv) that charging of compound interest or other costs shall be illegal.

Thirdly- the Bill lays down the mode of keeping accounts by the money-lender. It requires :

- (i) that the money-lender shall keep his accounts in the books obtained by Government; (ii) that at the end of every year he shall produce his books before a government official, who shall initial the first and last entries in such books; (iii) that no books of accounts shall be admissible in

evidence in any suit or proceedings unless they are kept in conformity with these rules.

Fourthly-the bill contains provisions regarding suits between a money-lender and a borrower. It lays down :—

(i) that such suit shall not be triable by the Small Causes Court unless it is in respect of a single transaction;

(ii) that the court may re-open certain transactions if the interest is excessive or if the transaction is unconscionable;

(iii) that interest shall be deemed to be excessive if it exceeds a certain level fixed in relation to the Bank rate;

(iv) that accounts between a money-lender and a borrower shall be taken in accordance with certain rules which are embodied in the D. A. R. Act;

(v) that in the execution of a decree against a borrower the court may grant instalments and sell only such amount of property of the borrower as may be sufficient, satisfaction of the decree.

Fifthly- The bill makes void any contract for payment of the loan by the borrower outside the Province the object being to prevent a money-lender from defeating the provisions of this Act.

B. R. Ambedkar

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I SHALL STAND FOR PRINCIPLE AND WILL FIGHT ALONE FOR IT

Ahmedabad, October 22.1938.

“I do not believe any progress has been made by the Congress Ministry of Bombay by bringing in the Trade Disputes and Tenancy Bills. We have fundamental differences with the Congress for years. We are not fighting for offices in the province, but we fight for our rights.”

Thus observed Dr. Ambedkar who came here this morning in an interview with the pressman.

Continuing, he said “if I join hands with the Congress today, I can have what I like, but our case is entirely different. I do not care if the whole of my community differs from me and join the Congress, but I shall stand for principle and will fight alone for it.”

Referring to Mr. Jinnah, he said, “Mr. Jinnah is totally carrying the Muslims on the wrong path. I do not understand what differences he has with the Congress. If the League really stands for the interests of the Minorities, I welcome Mr. Jinnah to join hands with other sections who differ from the Congress, and make a united front of all these sections against the Congress. The Muslim League, to my mind, is fighting for elections and ministry.

Mr. Jinnah on one side is fighting with the Congress, while on the other side he intends to come to a pact with the Congress, which is entirely meaningless. Appeal to him to learn a lesson from the Poona pact.”¹

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¹ The Bombay Chronicle : dated 22nd October 1938.

MINISTRY SEEMS TO BE INTOXICATED WITH POWER

Bombay, Thursday.*

‘In the name of the working class of Bombay, in the name of Law and Order and in the name of decent administration of the province I demand an impartial and public inquiry into the scandalous mismanagement of the protest strike by the police department under the control of the Hon. Mr. Munshi. I demand a public inquiry into the absolutely uncalled for firing and lathi charges to which the police repeatedly resorted’ said Dr. B. R. Ambedkar leader of the Independent Labour Party in the course of a statement to the Press.¹

‘What has come over the Congress Ministry, asked Dr. Ambedkar, ‘that it should not be able to manage a single day’s strike without resorting to such disgraceful terror.’

‘There were strikes that lasted for days and weeks and months in the past. There was one that lasted for seven and a half months with processions and meetings and demonstrations every day. There were no such lathi charges and firing during the whole of this period.’

‘Today under Congress Raj we cannot have a single day’s strike without repression and terrorism being let loose. That is what the Congress has come to.’

The Press

What about the press, the press that stood for freedom and rights of workers and championed their cause as long as the Congress needed their help ?

Today that press is resorting to lies and falsehoods and distortions and suppression of facts that must make the British and Anglo-Indian journal blush with shame.

¹: Free Press Journal, dated 9th November 1938. i.e. Wednesday.

* The 3rd November 1938.

‘The Protest Strike is condemned as having fallen flat, that it was a fiasco, that the workers defied the orders of their leaders. Those who went on strike were supposed to have been ‘intimidated’ ‘bullied’ ‘terrorised’ ‘coerced’ and so on’.

People are familiar with these words. But so far they used to come from a press that was considered anti-national. Today they come from Congress and pro-Congress press. That is the tragedy. That is the grim reality we have to face.

‘I ask these journals, what has happened to your Truth and Non-violence, what has happened to your common decency ?’

‘As far as the workers are concerned they cannot be misled by this or any other propaganda. They were witnesses to the gigantic demonstrations of protest against the Trades Disputes Bill. They know what mighty success the strike has been.’

Ministry Warned

‘Let the Congress Ministry and Congress leaders remember this one fact very clearly, that every lathi charge that has been directed on the workers, every shot that has been fired on members of the working class will echo and re-echo in this city and this presidency for weeks and months to come.’

‘Those lathi charges and firing will be echoed and re-echoed during the forth-coming Municipal Elections from a hundred platforms and in a hundred meeting. Those lathi charges and firing are going to cost the Congress much more than its leaders seem to realise today.

‘Those outrages on our right and our freedom will be heard in the farther most corners of this province in the remotest villages of this presidency.

‘The Congress Ministry seems to be intoxicated with power. They seem to be ignorant of the one great lesson of democracy that mighty majority in parliaments and legislatures are swept off overnight by a single incident by single miscalculated step. But that lesson will be driven home during

the Bombay Municipal Elections, it will be driven home when the Government face the electorate again.

‘I have not the slightest doubt that it will be driven home with a deadly effect.’

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INJUSTICE TO TILLERS OF SOIL

Analysis of Prakasam Committee's Recommendations

Dr. B. R. Ambedkar, Leader of the Independent Labour Party, has issued the following statement:—

I have read the recommendations of the Prakasam Committee on conditions in zamindari areas. While the view that the zamindar is no more than an assignee of revenue may be justified, the stand that the Committee has taken that no tenancy rights for the actual cultivator can accrue in lands belonging to proprietors of the soil is neither legally correct, nor just to the cultivator, nor conducive to the sound development of the agricultural economy.

It is legally incorrect, because grades of proprietary rights grown during that last century and have been recognised in law in all tenancy legislations. It is unjust to the cultivator, because the purpose of fixing a low rent or revenue is to leave a wide surplus for him and to provide him with a living income, to improve his farm and tide over scarcity years, and not to create a large number of smaller zamindars to enrich themselves both at the expense of the zamindar and the cultivator.

It is against the interests of agriculture, because proprietary interests ought not be allowed to exploit land as a property for rack-renting the cultivator as against its conservation for use for agricultural purposes.

The report of the Prakasam Committee is nothing more than an assessment of the distribution of the rack-rent collected from the cultivators among the superior holders.

MR. PRAKASAM'S RECENT REPLIES TO A QUESTION IN THE LEGISLATURE THAT TENANCY LEGISLATION WILL NOT BE UNDERTAKEN IN RAYATWARI AREAS BECAUSE RAYATWARI HOLDERS ARE PROPRIETORS OF THE SOIL SHUTS OUT ALL HOPES OF ANY GOOD COMING TO THE CULTIVATOR FROM THE CONGRESS MINISTRY.

I have no doubt that the Scheduled Class representatives in Madras will not be a party to any legislation which, in the name of proprietary rights, creates a new class of rent receivers. And I think that any support given by them to any such legislation would be grave betrayal of the interests of the cultivator.”¹

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¹: The Bombay Chronicle : dated 18th January 1939.

DR. AMBEDKAR CHALLENGES GWYER AWARD

“Since February 1939 trouble had been brewing in the Rajkot State where a strong agitation was going on for political reforms. Defeated and disappointed by Subhas Bose’s election to the Presidentship of the Congress, Gandhi hurried to Rajkot apparently to settle the State problem, but with an inward desire to create a crisis just at the time of the Tripuri Congress Session over which Subhas Bose was to preside. Dr. Ambedkar was urgently called by the local Depressed Classes to intervene in the dispute regarding their non-inclusion in the Reforms Committee of the State. He therefore, left by air for Rajkot and on the evening of April 18, saw the ruler, the Thakor Saheb, and at night addressed a meeting of the Depressed Classes, urging them to carry on their struggle for political rights.

The next morning he had a talk with Gandhi for forty-five minutes on the question of representation for the Harijans on the Reforms Committee. He stated in an interview at Rajkot that he could not discuss in detail all the points with Gandhi, as the Mahatma had a sudden temperature. He, however, revealed that the suggestion that his, alternative proposal should be submitted to a constitutional expert like Sir Tej Bahadur Sapru was not acceptable to Gandhi. At last Gandhi failed in his attempt to effect a change of heart by his non-violent methods and resorted to coercive methods by appealing to the Viceroy to intervene. Gandhi, the apostle of the principle of change of heart and non-violence, himself publicly confessed that his non-violence had not yet been developed to the fullest power, and so he left Rajkot, to quote his words, with hopes cremated and body shattered.

Accordingly, a few days thereafter Sir Maurice Gwyer, the Chief Justice of the Federal Court, gave an Award on the disputes in the State of Rajkot. Dr. Ambedkar challenged the interpretation of the word “recommend” given by Sir Maurice Gwyer. He stated that Gwyer had given his decision on the footing that “There is

no conclusive precedent for the purposes of the present reference.” Dr. Ambedkar quoted two authorities in support of his assertion, *Knolt vs. Cottee*, and *Johnson vs. Rowlands*¹

Following are the stage to stage details : Editors.

I

“HARIJAN REPRESENTATION IN COMMITTEE

Dr. Ambedkar’s Telegram to Gandhiji

Dr. B. R. Ambedkar, Leader of the Independent Labour Party, has sent the following telegram to Mahatma Gandhi :—

“Would like knowing if Rajkot Depressed classes get representation on the Reforms Committee.”²

II

“ANOTHER CLAIM FOR SEAT

Dr. Ambedkar’s Wire to Virawalla

The Muslim Deputationists to-day denied that the negotiations had broken down and added that they will be seeing Gandhiji again to-night. Meanwhile they are in communication with a prominent Muslim League leader in Bombay to receive instructions.

The Girasyas and Bhayats whose claim for representation on the Reforms Committee have not been accepted are waiting in a deputation on the Thakore Saheb to-night.

The latest claimant for a seat on the Reforms Committees are some members of the Depressed Classes in Rajkot. Dr. Ambedkar has wired to Durbar Virawalla to-day “hope you won’t forget your State representation to Depressed Classes on your Reforms Committee as already promised.”

The First Member of Rajkot Council has handed over the above telegram to Gandhiji.

¹: Keer, pp 322-323.

²: The Bombay Chronicle, dated 14th April 1939.

On behalf of the Thakore Saheb Durbar Virawalla has sent the following telegram to Dr. Ambedkar: "Your wire has been communicated to His Highness. I am directed to say that in spite of His Highness' desire and keenness Mr. Patel is not likely to recommend any representative of the Depressed Class. If you so desire, His Highness will willingly grant an interview to discuss with you how the Depressed Classes could be helped. "—A. P."¹

III

"DR. AMBEDKAR AS STATE GUEST

(From Our Correspondent.)

Rajkot, April 18.

Dr. Ambedkar arrived from Bombay this morning by air and was received by some Girasias at the aerodrome. He was taken to the state guest house in a state car.

Khawaji Hassan Nizami who also arrived with Dr. Ambedkar was received at Anandkunj by Mahatmaji this morning and had a talk with Mahatmaji for an hour.²

IV

"DR. AMBEDKAR SEES THAKORE

(From Our Correspondent.)

Rajkot, April 18.

Dr. B. R. Ambedkar who arrived here this morning in order to study the Harijan problems is returning to Bombay tomorrow. The Doctor interviewed the Thakore Saheb to-night and will see Gandhiji tomorrow.

In the evening prominent Muslim leaders and Bhayats met him and discussed how their negotiations with Gandhiji for representation of their interest in the Reforms Committee broke down.

¹: The Bombay Chronicle, dated 15th April 1939.

²: The Bombay Chronicle, dated 19th April 1939.

Dr. Ambedkar was also closeted with Mr. Virawalla this evening.

It is understood that Dr. Ambedkar will issue a note on the Rajkot question in the light of his discussions with various communities in Rajkot.”¹

V

“DR. AMBEDKARS ALTERNATIVE

Rajkot April 19.

Dr. B.R. Ambedkar, in an interview to the “United Press” stated that he came here not at the invitation of the Rajkot Durbar, but at the invitation of the local Depressed Classes who requested his intervention in the dispute regarding their non-inclusion in the Reforms Committee.

“The first thing I did on my arrival”, he said, “was to ascertain from the Durbar whether they were prepared to have on the Committee a person who was the accredited representative of the Depressed Classes.

Alternative Proposal

“I saw Gandhiji this morning at 11-30 but unfortunately, I could not discuss in detail all the points since he had got sudden temperature. However, I discussed with him an alternative proposal of submission of the formation of the new constitution to a person like Sir Tej Bahadur Sapru or Sir Shivaswami Iyer or any other equally well versed man in constitutional law, before all the classes of the State could put their cases. Gandhiji could not agree to this, his argument being that such a report should be final.”

Dr. Ambedkar left for Bombay this evening by train—United Press.”²

¹: The Bombay Chronicle, dated 19th April 1939.

²: The Bombay Chronicle, dated 20th April 1939.

VI

“DR. AMBEDKAR CHALLENGES GWYER AWARD

Quotes Cases to Show “Recommendation” Is Not Command

Dr. B. R. Ambedkar, in a legal analysis of the Gwyer Award says :—

The award given by Sir Maurice Gwyer on the dispute between the Thakore Saheb of Rajkot and Mr. Vallabhbhai Patel over the interpretation of the word “recommend” is not only of importance to the parties to the dispute but to the general public at large.

The parties to the award being bound by the award the question whether that interpretation is right or wrong may not be of much use to them. The same cannot however be said of the public. To them the question is still full of interest. It is true that the award is not a decision of a court of law. Yet it has behind it all the authority of so great a name as that of Sir Maurice Gwyer.

Last Word With Sardar

For an intelligent appreciation of such principles it is necessary in the first place to state what the contention of the Thakore Saheb was and how it was disposed off by Sir Maurice Gwyer.

Sir Maurice Gwyer sums it up thus, “The gist of Thakore Saheb’s argument is contained in the following sentence in the written case submitted on his behalf. ‘It is obvious that the word “recommend” itself clearly indicates that it (each name) is to be considered and it was open to the Thakore Saheb to reject any of the names on the ground, for instance, that any one of the names recommended was not a suitable person, was incapable or undesirable’. This contention Sir Maurice Gwyer has not upheld.

He says, “In my opinion the true construction is that the Thakore Saheb undertakes to appoint the persons whom Mr. Vallabhbhai Patel may recommend and that he does not re-serve to himself any discretion to reject those whom he does not approve. He is no doubt entitled to criticise the recommendations and to urge reasons for reconsidering them, but, unless it can be shown that any of the

persons recommended is neither the subject nor the servant of the State, Mr. Vallabhbhai Patel is to have the “last word”.

Two Objections

The ground for this conclusion and for the rejection of the Thakore Saheb's contention by Sir Maurice Gwyer are two. To use the words of Sir Maurice Gwyer himself, the first ground is that “no such proposition (as is contended for by the Thakore Saheb) can be based simply upon, the use of the word “recommend” which in itself does not necessarily imply anything of the kind. It may take its colour from the context and accordingly, all the circumstances of the case must be taken into account.”

The second ground is that the Thakore Saheb had not reserved to himself the power to consider the recommendation and therefore he had no discretion to reject the persons recommended by Mr. Vallabhbhai Patel. Sir Maurice Gwyer has referred to the case *Rex-vs-Governors of Christs' Hospital* reported in (1917) I. K. B. 19. But, he does not rely upon it. He makes it quite clear as to why he refers to it. He says, “I only refer to them for the purpose of showing that there is no single principle which regulates cases where one person recommends and another appoints.” Indeed he has proceeded to give his decision on the footing that there is no conclusive precedent for the purposes of the present reference”

Precedent And Principle

With due deference I venture to say that there is a well established principle supported by a precedent which could be invoked in deciding this reference. *Knott-vs-Cottee* (2 Phil 192 equal to 41 E. R. 915) *i.e.* the precedent I have in mind. The facts of the case can be very briefly stated.

‘A’ made a Will and appointed his wife, one Mr. Cottee and one Mr. Ibbettson executors and trustees and he also appointed these three as the guardians of his children. Further ‘A’ recommended that if his wife should die before his son should attain twenty-one. or before his daughters attain that age or marry, the surviving guardian or guardians should place his children, or such of them as should then be minors under the care of his cousin Mary

Prior. 'A's' wife died and the children were placed under the care of Mary Prior by Mr. Cottee the surviving executor and testamentary guardian. The case proceeded on the assumption that the word recommend meant that a binding trust was created on the testamentary guardians so that Mr. Cottee was bound to appoint Mary Prior as the person to take care of the children.

Inherent Powers

The issue was this Did the recommendation take away all the powers of control belonging to Mr. Cottee as the testamentary guardian? In deciding this issue the Lord Chancellor (Lord Denman) said..." I have had frequent opportunities of considering the effect of words of recommendation. One was in a recent case in this Court, where the question was whether a recommendation by the testator, that a certain person should be employed as receiver and manager of his property, gave that person any legal interest.

Another case was of *Shaw vs. Lawless* where the House of Lords laid it down as a rule which I have since acted upon, that, though recommendation may in some cases amount to a direction and create a trust, yet that, being a flexible term, if such a construction of it be inconsistent with any positive provision in the Will. It is to be considered as a recommendation, and nothing more.

In that case, the interest supposed to be given to the party recommended was inconsistent with other powers which the trustees were to exercise; and those powers being given in unambiguous terms, it was held that, as the two-provisions could not stand together, the flexible term was to give way to the inflexible term." Accordingly it was held that notwithstanding the fact that the recommendation was binding it did not take away the powers of control of Mr. Cottee as a testamentary guardian, over the children.

Not Binding Direction

The case is no doubt one relating to trust. But a trust is only another name for legal obligation and whether one speaks of recommendation creating a trust or creating a legal obligation it is

just the same. That being so the case is relevant because it enunciates a very important rule relating to the interpretation of the word 'recommend'. As one can see from the judgment of Lord Denman the rule is that the word 'recommend' cannot be interpreted to mean a binding direction from which there is no escape if such an interpretation becomes inconsistent with the exercise of certain other positive powers vested in the person to whom the recommendation is made.

Now in the case of *Thakore Saheb vs. Vallabhbhai* can it not be said that the position of the Thakore Saheb is the same as that of Mr. Cottee? Can it not be further said that like Mr. Cottee the Thakore Saheb also in his capacity as the Crown possesses certain positive powers? Such as the power to appoint, reject or dismiss any person to or from any place, if it is right to say that the Thakore Saheb stands in the same position at that of Mr. Cottee then how can one escape the conclusion that the rule to be applied in deciding the case of *Thakore Saheb vs. Vallabhbhai* is the rule laid down in *Knott vs. Cottee*?

Another Authority

There is also another authority *Johnson vs. Rowlands* (17 L. J. Ch 438) which can be usefully referred to in this connection. In this case the question was the interpretation of the word recommend as used in a Will. In the Will the testator had said, "I gave the same (a certain amount of money) to be disposed off in such a way as she shall think proper. But I recommend to her to dispose of $\frac{1}{2}$ of it to her own relations." The legatee did not dispose of the $\frac{1}{2}$ to her own relations as recommended by the testator. Question was whether she could depart from the recommendation. The Court held that she could. To use the language of the judgement 'recommendation' may mean command. But it cannot mean command if it is inconsistent with the legal and equitable power of . the person to whom the recommendation is made to depart from the recommendation.

It is true that the language of the letter written by the Thakore Saheb is different from the language of the Will in the *Johnson vs. Rowlands*. But supposing the letter written by the Thakore Saheb

to Mr. Vallabhbhai Patel had been written in these terms: "We have a right to constitute the committee in a way like. But you should recommend to us names of seven persons to be appointed on the committee and we shall appoint them." It is true that in the Thakore's case there is an agreement between him and Vallabhbhai while there was no such agreement between the legatee and her relations in *Johnson vs. Rowlands*. We are not however considering the question whether the agreement is binding on and enforceable against the Thakore Saheb which is made by him in his capacity as the Crown. That is a different question and raises important issues.

The Absent Phrase

The issue with which we are concerned is what is meant by the word 'recommend' and on this issue the case of *Johnson vs. Rowlands* seems to be on all fours with the case of *Thakore Saheb vs. Vallabhbhai Patel*. The absence of the words "we have a right to constitute the Committee in any way we like" in the letter of the Thakore Saheb to Vallabhbhai cannot, I submit, make any difference. Such words must be deemed to be present in every document executed by him as the Sovereign Ruler of Rajkot. Whether they are actually there or not the positive power of constituting the Committee at his pleasure in an inseparable incident of his position and run with him as part of the prerogative of the Crown. Nor does the fact that the Thakore Saheb in his letter did not reserve to himself the power to reject the recommendation of Mr. Vallabhabhai affect the situation.

The question is not whether the Thakore Saheb has reserved for himself the power to reject. The question is whether there is anything in the word 'recommend' which can be said to take away the Thakore's inherent powers of rejection which are always with him and which it was not necessary for him to save by any express stipulation. If this is so, the word 'recommend' cannot be given an interpretation different from the one given to it in these two cases.

Positive Powers

In this as in the other two cases there are on the one hand positive powers of the Thakore Saheb which is an inflexible term and on the other there is recommendation which is always a flexible term. That being so according to the rule the flexible term must give way to the inflexible term. That is to say 'recommend' cannot mean direct or bind.

The case reported in (1917) I. K. B. 19 referred to by Sir Maurice Gwyer seems to be in conflict with the two cases I have referred to. But on a closer examination it will be seen that there is no conflict and the case is easily distinguishable. In 1917 I.K.B. 19 the appointing authority, was 'just' an appointing authority and no more. It had no positive powers which could be said to be in danger of being nullified by interpreting the word 'recommend' to mean a binding direction.

The rule as laid down in the two cases referred to by me seems to be that where there exist positive powers which are capable of being exercised independently, the word recommend cannot mean a binding direction, but where there are no positive powers it may have that meaning. In the two cases referred to by me there were positive powers and therefore the decision was that recommendation did not mean binding direction.

In the case referred to by Sir Maurice Gwyer there were no positive powers and therefore it was held that recommendation could mean a binding direction. The case of Thakore Saheb *vs.* Vallabhbhai is one which in my opinion falls in the class under which the two cases cited by me fall and not under the class of cases reported in (1917) L K. B. 19.”¹

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¹ The Bombay Chronicle : dated 2nd May 1939.

I AM ANXIOUS MORE THAN MR. JINNAH...

“Dr. Ambedkar To join Muslim Celebration Deliverance Day”: Support of Many Parsis.

Dr. B.R. Ambedkar, leader of the Independent Labour Party, has decided to join in the celebration of “Deliverance Day” on Friday next.

A number of Parsis have, already expressed their eagerness in their individual capacity, to cooperate with Mr. M. A. Jinnah, President of the All India Muslim League, in making the day a success.

The sub-committee appointed by the Parsi Community a few months ago at a meeting held at Sir Cowasjee Jehangir Hall to protest against the Congress policy of prohibition will consider on Tuesday, the invitation extended to it to participation in the observance of “Deliverance Day”. The sub-committee consists of nearly 50 leading Parsis including Mr. M. P Khareghat, President of the Parsi Panchayat, Sir Cowasjee Jehangir, Sir H. P. Mody and Sir Byramjee Jeejeebhoy.

Dr. Ambedkar, in a talk with a representative of this Paper on Monday said:

“Eversince The Times of India published my cryptive reply to its representative only last week, supporting Mr. Jinnah’s appeal for the observance of “Deliverance Day”, I have had numerous inquiries from friends as well as foes to explain what I meant. I am, therefore, obliged to explain my position.

“When I read Mr. Jinnah’s statement, I felt ashamed to have allowed him to steal a march over me and rob me of the language and the sentiments which I more than Mr. Jinnah, was entitled to use.

“Harijans’ Position”

“Whatever anyone may say with regard to the tyranny alleged to have been practised by the Hindus over the Muslims during the

Congress regime no one can entertain any doubt as to the position of millions of Untouchables who had the misfortune to be ruled by the Congress Government in this province in common with some others. If Mr. Jinnah and the Muslims can prove five out of 100 cases of oppression, I am prepared to place 100 out of 100 cases before any impartial tribunal, I, therefore, am anxious more than Mr. Jinnah can ever be, for the appointment of a Royal Commission to investigate the cases of tyranny and oppression by the Congress Government.

“Although the oppressors, so far as the Untouchables are concerned, are Hindus, I can assure my Hindu friends that this is not an Anti-Hindu move, it is Anti-Congress, and, therefore, purely political. If attack on the Congress is interpreted by the Hindus as an attack on them, they have to thank themselves then for the consequences. It proves two things, that the Congress is a Hindu body and that the Hindus are attached to the Congress and are not prepared to put that organization on its trial.”¹

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¹: The Times of India, Tuesday, 19-12-1939, P-9

Reprinted : Khairmode, Vol. 9, Pp. 12-13.

WHEN BUDDHA STOPPED ANIMAL SACRIFICES, COWS WERE SANCTIFIED BY THEM

“Untouchability Was Punishment For Sticking to Buddhism” Brahmins’ Adaptability

A novel theory on the origin of Untouchability was expounded by Dr. B. R. Ambedkar, Leader of the Independent Labour Party, in the course of a talk with our representative.

Untouchability, it may be mentioned, is an institution or social practice that is the exclusive property of India and does not exist anywhere else in the world. In more than one sense it is an institution that is unnatural and runs counter to human psychology and social forces. The reasons for the origin of Untouchability that can carry conviction, therefore, must be such as will override all social and psychological considerations.

According to Dr. Ambedkar, Untouchability is of comparatively recent origin and could not possibly have existed in *Vedic* times or for centuries after that period. There is certainly no mention of Untouchability anywhere in the *Vedas*. How did it come into existence then ?

Semi-Tribal State

Dr. Ambedkar pictures a period when some of the people had only recently settled down to agricultural life while others were in a nomadic state moving about from place to place with their flocks of sheep and cattle.

The former with their encumbrances of landed property, houses, crops, etc., and higher state of civilisation than that of the pastoral tribes naturally did not want their peaceful life to be disturbed by the pastoral tribes. Nor were they a match for the pastoral tribes who were not burdened with any immovable property and were for obvious reasons physically hardier and more robust.

To guard their property against the depredations of the wandering tribes therefore the agricultural villages engaged the services of

men from the pastoral class whose tribes had been broken up by internecine wars. These men were allotted pieces of land and houses just outside the villages and their main duty—as is their main duty today—was to maintain law and order.

This duty of defending the villages against pastoral tribes they discharged for generations. The relations between the villagers proper and the protectors of the villagers living on the village fringe were normal human relations without any conception of Untouchability. How did it come in then ?

For that, according to Dr. Ambedkar, we have to look to the rise of Buddhism in India.

Buddhism, says Dr. Ambedkar, swept the land as no physical conqueror had ever done in India's history. Within a few generations almost the entire country especially the masses and the trading classes went over to Buddhism.

Brahminism was in the grip of mortal fear. In fact, it would have been wiped out had it not been for the shrewd adaptability of the Brahmins who were prepared to throw overboard every social and religious institution which they had championed for centuries and on which they had flourished for ages if only *Brahminism* could be saved. What did the Brahmins do ?

Mass Appeal of Buddhism

There were three cardinal teachings of *Buddha* that appealed to the masses. His gospel of social equality, his demand for the abolition of the "*Chaturvarna*" system, his doctrine of non-violence and his condemnation of elaborate religious ceremonials and sacrifices which impoverished the masses and created among them a repugnance for religious ceremonies.

The Brahmins of this period, according to Dr. Ambedkar, were far from being vegetarians. They were the most gluttonous meat eaters, sacrificing cows and other animals by thousands, presumably to pacify the Gods, but really to pacify their own greed for meat.

Truth Behind Vedic Sacrifices

The Brahmin demand for meat on such an unbounded scale impoverished the peasants who had to find the cows for the sacrifices and were consequently deprived of milk and its by-products, which were their staple means of livelihood.

The proof of the limits to which these blood sacrifices had been carried on can be found even to this day in the lurid descriptions of the ceremonials in the *Vedas* which show but scant regard for any sort of humanitarian considerations. And so when *Buddha* came out preaching abolition of animal sacrifices and religious ceremonials the masses to whom the new doctrines appealed both economically and ethically eagerly accepted them and scrapped *Brahminical* teachings.

How did *Brahminism* save itself from the surging tide of *Buddhism* ? It straight-way gave up all the sacrificial and ceremonial part of *Hinduism*. The cow that was slaughtered so far was, to outbid *Buddha*, covered with the highest sanctity.

The meat-eating *Brahmin* became a strict vegetarian. Wine bibbing came to an end. *Hinduism* assumed a puritanical covering.

Compromise with Kshatriyas

In order to prevent the *Kshatriyas* going over to *Buddhism* the *Brahmins* offered them equality with themselves. There is actually a verse in one of the religious book, apart from scores of other references, observed Dr. Ambedkar, wherein it is stated that just as two policemen have to stand on two sides of a prisoner to prevent his escape so also have the *Brahmins* and *Kshatriyas* to act together to prevent the *Vaishyas* and *Shudras* getting out of their hands.

How Cow became Sanctified

The cow being sanctified, sacrificial ceremonials brought to an end and a large number of other *Buddhist* teachings being incorporated in *Hinduism*, the masses who had gone over to *Buddhism*, were slowly weaned back. The one great teaching

that the Brahmins did not accept was the theory of equality and abolition of the “*Chaturvarna*” caste system. But they did one thing. They, for the time being, put the *Kshatriyas* on the same level as themselves, relegated the Gods of *Brahmin* birth to the background, installed *Kshatriya* Gods in their places and came to other time-serving compromises.

Unexpected Development

A development of a most unexpected nature which would have been utterly abhorrent to *Buddha* took place in the process of *Brahminical* campaign of accommodation and compromise. Sacrifice of cows was stopped by *Buddha*. The animal was sanctified by the *Brahmins*. The Hindu society in general accepted the sanctification and stopped killing of cows. So did the present-day Untouchables. But the Untouchables being too poor to use fresh meat or beef at any time continued their age-old practice of eating the carcasses of dead cows.

Neither *Buddha* nor the *Brahmins* had forbidden consumption of carcasses. The ban was only against slaughtering live cows. But the present day Untouchables had committed one great crime. Being the poorest of the poor and socially on the lowest rung of ladder they stuck to *Buddhism* the longest. It required a mighty big force exerted over a long period of years to bring them round. When nothing else would work, social ostracism and Untouchability were applied.

Their practice of eating dead cows was exploited against them. It was something that naturally repelled the Hindu mind. It was obnoxious. The *Brahmin* could use the situation to his advantage without much difficulty. And so Untouchability was imposed on the entire class. It was really a punishment for sticking to *Buddhism* when others had deserted it. And so Untouchability continues today in spite of education and all modern ideas of freedom and social equality.”¹

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¹. The Bombay Chronicle : dated 24th February 1940.

MAHARS HAVE BEEN MARTIAL PEOPLE

The *Mahars* have been a martial people. The army of the East India Company which successfully fought against the army of the Peshwa was recruited from the *Mahars*. The last battle between the Peshwa and the British was fought at Koregaon in the Poona district. There is a column at Koregaon raised by the British to commemorate the battle. On the column are inscribed the names of the soldiers who fell in the battle on the side of the British. Nine out of ten names are of *Mahars*. The recruitment of the *Mahars* continued upto 1892 and in all the wars, the *Mahars* have proved their martial qualities. All of a sudden the recruitment of *Mahars* was stopped in 1892. Ever since the *Mahars* have nursed a grievance against the British Government for what they regarded as very ungrateful conduct. There is much justification for this grievance for there can be no doubt that without the help of the Untouchables the British would never have been able to conquer India.

The *Mahars* carried on a great agitation against their banishment from the Army. But it bore no fruit. It was during the war of 1914 that the British Government under necessity lifted the ban and raised one *Mahar* battalion. It was raised at the fag end of the war and the battalion had no opportunity to go on war service and show its mettle. It was posted in Waziristan in the North-West Frontier Province, and it is on record while almost every battalion stationed in the N.W.F. lost some rifles and ammunition to the Pathans, who are in the habit of raiding ammunition and rifle depots to arm themselves, the Pathans did not succeed in stealing a single title or a single cartridge from the *Mahar* battalion. It was expected that the British Government, having re-enfranchised the *Mahars* for Military purposes, would continue the *Mahar* battalion and add to it more *Mahar* battalions. But instead the British Government on the excuse of economy, disbanded the *Mahar* battalion. This caused great bitterness in the minds of the *Mahars*. When the present war came, the *Mahars* hoped that their turn would come. But the steps taken by the British Government in the early stages of the war only added insult to injury. The *Mahars* were only wanted

for labour corps and not for the combatant ranks. The labour corps is safer than the combatant ranks, but the *Mahars* wanted to join the combatant ranks.

One of the banalities of the British Government in India is this distinction between martial and non-martial classes. Nothing has been more disastrous. It is a pity that so great a catastrophe as the war was necessary to force the British Government to give up this senseless distinction. It is stated that Government have directed to raise a *Mahar* battalion. The credit must go to H. E. the Governor of Bombay. On my making it a grievance he took up the matter with the Central Government and brought it to a successful issue. I appeal to the *Mahars* to take advantage of this opportunity; both for their sake as well as the sake of the country and also appeal to the British Government to keep faith with the *Mahars* and not to disband them from the army after the war is over.

Bombay :

(Dr.) B. R. Ambedkar”¹

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¹: The Times of India, dated 18th June 1941.

REPRESENTATION RELATING TO THE GRIEVANCES OF THE WATANDAR MAHARS, MANGS ETC.

“The Bombay Government levied additional taxes on the Mahar Vats. Dr. B. R. Ambedkar had been fighting that problem since 1927. But now instead of relieving the poor from the serfdom, the Government added salt to their injuries by the levy of additional taxes. The Mahars, Mangs and Vethias in Maharashtra and Karnatak met in Conference at Haregaon, District Ahmednagar in the middle of December 1939 to voice their grievances under the Presidentship of Dr. Ambedkar.”¹

On 16th December 1939 addressing the Conference of 20,000 Mahars, Mangs and Vethias, Dr. B.R. Ambedkar assured that he would submit the representation to the Government relating to their grievances. Accordingly he prepared and submitted the representation, dated 14th July 1941 which is as follows :—Editors.

To

HIS EXCELLENCY SIR ROGER LUMLEY
G.C.S.I.E., T.D., GOVERNOR OF BOMBAY.
MAY IT PLEASE YOUR EXCELLENCY.

I beg to submit the following representation relating to the grievances of the Watandar Mahars, Mangs and Vethias, known as Inferior Village Servants, in this Presidency, for favour of Your Excellency's kind consideration and necessary action—

1. These grievances arise out of the new policy initiated by the Government of Bombay relating to the Watandars called Inferior Village Servants. They affect them in two vital matters, namely :—

- (i) Heavy reduction of their remuneration, and
- (ii) Substantial increase of their Duties.

¹: Keer, Pp. 330-331.

2. In the matter of their remuneration the new policy proceeds on the assumption that the remuneration to the village Mahavs was excessive and that the same should be reduced. This was directed to be done either by imposing *Judi* (a levy in cash) upon their *Inam* lands where none existed before or by increasing the *Judi* in cases where the same was already being levied.

3. In the matter of their duties the Government of Bombay issued Government Resolution No. 7420/33 in the Revenue Department, dated 13-9-1938, in which they have set out the duties which the Mahars, Mangs and Vethias will hereafter be required to perform the duties specified in the Resolution number 19 in all.

4. To protest against the injustice of this policy a Conference of the Mahars, Mangs and Vethias was held at Haregaon in the Ahmednagar district on 16th November* 1939 under my Presidentship. In that Conference certain Resolutions were passed. These Resolutions were forwarded to Your Excellency for favourable consideration and issue of necessary order by Your Excellency's Government. For ready reference I have annexed hereto copies of the said Resolutions as Appendix I.

5. These Resolutions were also placed by Mr. B. K. Gaikwad, M.L.A., at a meeting of the Backward Class Board held on 7th June 1940. Copy of the proceedings of the meeting relating to these items are hereto annexed as Appendix II.

6. With great respect I am constrained to say that the Government have so far not given their proper consideration to the resolutions passed by the said Conference. More than a year and a half has elapsed since I forwarded the resolutions and yet there has been no modification of the policy of the Government either in the matter of the levy of the *Judi* or in the matter of revision of the long and onerous list of obligatory duties required to be performed by the Inferior Village Servants. On the contrary, the policy of collecting *Judi* has been going on apace and even pots and pans of poor and indigent families of the Inferior Village Servants are being attached under the process of the Court and many of these families have been rendered quite destitute.

* Month should be read as December— Janata : 9th and 23rd December 1939.

It is for these reasons that I am submitting this Memorial to Your Excellency with fervent hopes that Your Excellency will be pleased to give this matter your most careful, kind and sympathetic consideration and grant the much-needed and long-awaited relief to the Inferior Village Servants.

I. Reduction of Remuneration

7. First, I propose to deal with the question of the levy of *Judi*. This policy is for the present made applicable to the *Inam* lands of the Mahars only. It may be extended to others in course of time. In the matter of the levy of *Judi* on the *Inam* lands of Mahars, I do not know the precise reasons which have led Government to embark upon the policy of reducing the remuneration of the Mahars. They are, however, understood to be two.

8. In the first place the increase in *Judi* is sought to be justified by Government on the ground that there has been a reduction in the number of Officiating Mahars. It is said that this policy of reduction in remuneration by an increase of *Judi* on the *Inam* lands held by the Mahars is only a consequence of the policy of reducing the number of Officiating Mahars.

9. At the outset I wish to draw Your Excellency's attention to the fallacy underlying this reason. As a matter of fact there has been no reduction in the actual number of the Officiating Mahars at all either in general or in any particular village. The number of Officiating Mahars has remained the same. What has, however, happened is that the Watan Registers were corrected and brought in accord with facts. At one time in the Watan Register of every village the number of Officiating Mahars shown was very large. The Mahars did not object to it and that for two reasons. In the first place the number shown on the Register was a nominal one and the actual number on daily duty was much smaller. Secondly, it was in the interest of a Mahar to have his name shown in the Register in as much as it served as a proof to show that he was a Watandar, entitled to Watan office as well as to Watan property. When owing to the self-respect movement started by the Mahars, there grew up an antagonism in every village between the Mahars and the Villagers. The Village Officers started making misuse of the Watan Register and called for service the full quota of the Mahars mentioned in

the Register, although not one-tenth of the registered number was ever before required for service. The Taluka Officers sided with the Village Patil and demanded the whole number of Mahars, specified in the Register to be their duty for all time. This practically meant a conscription of the whole Mahar population of the village for Government service. The Mahars refused to submit to this extortionate and unjust demand, as it was impossible for the whole lot of the Mahars mentioned in the Register to be on duty for all time as the income of the *Inam* land assigned to them was not adequate for the maintenance of them all and a large majority were obliged to eke out their livelihood by doing odd jobs. The Watandar Mahars therefore carried on an agitation for the correction of the Watan Registers by a reduction in the number of Officiating Mahars. In this, they succeeded and the number of Mahars was reduced. But as I have said this is no reduction in the number of Officiating Mahars. It is only a correction of a wrong Record. To call it a reduction is either to forget facts or to misunderstand them. What has happened is the correction of an incorrect Watan Register. That being the case I cannot understand how Government can, on that account, justify their policy of making reduction in the remuneration of the Mahars by the levy of a *Judi* or an increase in the *Judi*.

10. Assuming, however, that there has been a reduction in the number of Officiating Mahars an assumption not justified by fact I respectfully submit that it is not easy to understand how Government can, on that account, proceed to reduce their remuneration by the levy of *Judi* or by an increase in the *Judi*. In adopting this course it appears to me that no or little consideration has been given to an important circumstance which has a great bearing on the question at issue, namely, that Watan property falls in a special class and although it may be called remuneration, the rule of "no work no salary" or "so much work, so much pay" has never been applied by Government in dealing with Watandars and their Watans.

11. In this connection I wish to draw Your Excellency's attention to the following facts showing how other Watandars have been treated by Government under similar circumstances. When the British took possession of this part of the country they found

that the Maratha Government had made a very prodigal use of its power of alienating the right of the State to claim assessment in favour of private individuals and had created a very large class of alienated lands popularly called *Inams*, the holders of which were designated as Inamdars and Watandars. These *Inams* fell into four classes namely (1) Personal, (2) Devasthan, (3) Political and (4) Non-Political and were all hereditary *Inams*. From the point of view of service these *Inams* fell into two classes : (A) *Inams* which formed a remuneration for service to the State and (B) *Inams* which were gifts and for which no service was required to be rendered to the State. The Personal and Devasthan *Inams* belonged to the class of non-service *Inams*, while Political and Non-Political *Inams* belonged to the class of Service *Inams*.

12. During the first 23 years of the British Rule (1818-1841) the enormous extent of the claims made by individuals to hold lands as *Inam* was not realised by the British Government. It was in 1841 that the question of examining these claims was taken up. In 1843 a Committee of two was appointed to inquire into the alienated lands of the Southern Maratha Country. The inquiry by the Committee appointed in 1843 proceeded for a period of nine years, till 1852, when the Committee was transformed into the Inam Commission and its proceedings were given a legal status by Act XI of 1852. By this Act, Government were empowered to appoint Inam Commissioners with Assistant Commissioners "to investigate the titles of persons holding or claiming against Government the possession or enjoyment of *Inams* or *Jahagirs*, or any interest therein, or claiming exemption from the payment of land Revenue." The operations of the Commission were very slow and did not extend to Gujarat. It was finally decided to abolish the system of inquiry by the Commission and to substitute for it a system of "Summary Settlement" to be extended over the whole Presidency. This system of Summary Settlement was carried into effect by two Acts, namely, Act II of 1863 which applied to the so-called "New Provinces" of the Deccan, Khandesh and Southern Maratha country, and Act VII of 1863 which was applied to the so-called "Old Provinces" of Gujarat and the Konkan,

(A) NON SERVICE *INAMS*

13. The terms of the Summary Settlement Acts applied only to two classes of *Inams* (1) Personal and (2) *Devasthan Inams*, i.e., to Non-Service *Inams*. The main principles underlying the Settlement Acts were as follows :—

(a) The conversion of all Personal *Inams* (also spoken of as *Warshasans*) whether adjudicated by the Inam Commission or not, into transferable freehold.

(b) The imposition of a quit rent or *Nazarana* upon such lands on account of such conversion the amount of which was fixed :

(i) By Act II of 1863 at 4 annas for every rupee of the full assessment, plus a *Nazarana* equal to an additional one anna in the rupee, and

(ii) By Act VII of 1863, at 2 annas in the rupee without *Nazarana*.

14. The extent of the annual loss which Government has suffered on account of the relinquishment of its right to full assessment by the settlement effected by these Acts was by no means small as will be clear from the following figures :-

Annual Loss to Government on Non-Service Inam Lands held as Personal and Devasthan Inams

Division		Assessment on alienated lands less quit rents (<i>Judi</i>)		
		Rs.	a.	p.
I Northern Division	...	1,26,529	15	1
II Central Division	...	2,86,292	2	3
III Southern Division	...	2,02,827	3	6
Total :		Rs. 6,15,649	4	10

15. As stated before the terms of the Summary Settlement Act applied only to Non-Service *Inams*, i.e., to Personal *Inams*, and *Devasthan Inams* only. They did not apply to Service *Inams*, i.e., the Political *Inams* and Non-Political *Inams*. They were expressly excluded from their operation and reserved for separate treatment.

(B) SERVICE *INAMS*

16. (I) *Political Inams* : These *Inams* comprised the class of *Inams* called “*Jehagirs*” and “*Saranjams*.” They were grants made by the State for the performance of Civil and Military services, or for the maintenance of the personal dignity of nobles and high officials who had rendered services to the State in the past. A settlement of these Political *Inams* was effected by the British Government on the principle of settlement in the case of Personal *Inams*, viz., they were continued hereditarily for one or more generations according to the date at which the original grant had been made, although they were exempted from the obligation to render service to Government. The result is that these *Saranjamdars* are receiving grants in the form of Cash Allowances from Government Treasury without rendering any service whatsoever to Government. The loss sustained by Government on account of *Saranjams* is represented by the Cash Allowances paid to the *Saranjamdars* annually from the Government Treasury. The following table shows the annual loss suffered by Government on this account :

Annual Loss to Government on Account of *Saranjams*

District	Cash Payment to <i>Saranjamdars</i>		
	Rs.	a.	P-
Poona	34,091	11	11
Sholapur	10,651	13	9
Ahmednagar	30,590	12	5
Satara	25,447	9	3
Khandesh	38,714	5	5
Bijapur	11,738	12	1
Nasik	47,037	10	4
Belgaum	32,875	12	4
Ratnagiri	1,079	2	3
Kolaba	1,655	10	6
Dharwar	30,091	0	3
Southern M.C.	3,378	15	1
Satara Political Agency	158	8	0
Total	2,67,501	11	7

17. There are altogether 104 *Saranjamdars* in the Presidency. This means that each *Saranjamdar* is receiving annually Rs. 2,500 on an average without rendering any service to Government. I might mention that out of the 104 *Saranjamdars*, 54 are Brahmins, 38 are Marathas, 7 are Musalmans, 3 are Kayasthas. 1 is a Paradeshi Rajput and 1 is a Mahar.

18. (II) *Non-Political*—The holders of Non-Political *Inams*, included (1) the District Officers and (2) Village Officers, who were employed by the Peshwas in the matter of Revenue collection and Administration.

(1) DISTRICT OFFICERS :

19. The District Officers formed a class which comprised the old hereditary officials known as Desais, Deshmukhs, Deshpandes etc; who constituted the Taluka agency of the Peshwa Government for the collection of the Revenue and which was replaced by the British Government by the agency of *Mamlatdars* and *Mahalkaris*. The principle adopted for making a settlement with them was that of “Commutation of Service” by which they were allowed to retain the greater part of their allowances, a levy of some amount varying from 3 to 8 annas only in the rupee being made as commutation and also as a cure for possible defect of title.

20. The annual loss sustained by Government on account of this settlement with the District Officers is given below :—

Annual Loss to Government on Service Inam Lands held by District Officers whose Offices have been abolished

Division	Assessment on lands less quit Rent			
		Rs.	a.	p.
I Northern Division	Rs.	1,04,753	1	9
II Central Division	Rs.	3,16,602	7	9
III Southern Division	Rs.	3,93,189	15	8
Total Rs.		8,14,545	9	2

(2) VILLAGE OFFICERS

21. The Village Officers were divided into the following sub-divisions :-

- (i) Those useless both to Government and to the Community.
- (ii) Those useful to the Village Community.
- (iii) Those useful to Government.

22. *Those useless both to the Government and to the Community*—This Class of *Inams* comprised of village servants such as the *Potdar*, who, besides being a village Silversmith used to assay all the money paid, either to Government or to individuals or the *Chaugula*, who was a kind of Assistant to the Patel and also had care of the Kulkarni's record. On the commutation of their *Inams*, lands held by this class of servants were settled on the following terms :—

- (i) In the Old Provinces – the full survey assessment was imposed.
- (ii) In the New Provinces – half of the full survey rate was taken.

In both areas, the lands were converted into transferable freehold.

23. *Those useful to the Village Community*—This class of *Inam* comprises village servants, such as Kumbhars, Sutars, etc., who still perform services to the village community. The settlement arrived at in their case was as follows :-

- (i) In the Old Provinces – The lands held were assessed at either half or quarter of the Survey assessment according as the service performed was more or less useful to the community.
- (ii) In the New Provinces - The land held was assessed at quarter the assessment.

The lands of this class of Village Officers being held subject to service, were made non-transferable.

24. The annual loss sustained by Government on account of the settlement made with this class of village servants will be clear from the figures given below :-

Annual Loss to Government on Service Inam Lands held by Village Servants useful to Community on account of Commutation is shown below :

			Rs.	a.	p.
I Northern Division	...	Rs.	79,177	0	0
II Central Division	...	Rs.	72,343	5	1
III Southern Division	...	Rs.	64,256	15	3
Total		Rs.	2,15,777	4	4

25. *Village Officers useful to Government* – These comprised the following three classes (1) Patil, (2) Kulkarni and (3) Mahar.

26. In the case of these Village Officers they were not released from the obligation to serve. There was no commutation effected with them as was done in the case of other hereditary Officers for the obvious reason that they were an essential part of the administrative machinery. They were as much indispensable to the British as they were to the Peshwa Government which preceded it.

27. From this survey the following facts emerge :-

- (i) The Holders of Personal and *Devasthan Inams* do not render any service to the State. They are allowed by the British Government to retain the grants made to them by the Peshwa Government and enjoy the same from generation to generation without any obligation as to service. The loss to Government on their account comes annually to Rs. 6,15,649-4—10.
- (ii) The holders of Political *Inams* have been relieved by the British Government from the obligation to serve the State. But the emoluments assigned to them have been continued. Their descendants are enjoying these emoluments from generation to generation. The loss suffered by Government on their account comes annually to Rs. 2,67,501-11-7.

- (iii) The District officers of the Peshwa Government, the Desais and Deshpandes render no kind of service to the British Government. Their *Inam* lands, which were granted to them by the Peshwa Government as remuneration for services, have been continued to them by the British Government subject to a small deduction in the form of a *Judi*. This was not merely a pension to those with whom the settlement was made by the British Government for lifetime. It has also become a hereditary pension to their descendants who could lay no kind of claim to such a grant. Here again the amount of annual loss is Rs. 8,14,545-8-4.
- (iv) The Village Servants who had become useless both to the village community as well as to Government were freed from the obligation to serve. But their emoluments were not wholly resumed. They retained their *Inam* lands and in some cases paid full assessment and in others only half of the assessment.

28. These instances will show that the Government of Bombay has always treated *Watan* and *Inam* property as falling in a special class. It has never regarded it as a mere matter of remuneration for service and even in cases where it bore the character of remuneration it never applied the principle of “no work no pay.”

29. The policy now adopted in the case of levying *Judi* on the Mahar *Watan* lands is a complete departure for which there is no precedent.

30. To prove the utter inequity and injustice of treating *Watan* property of Mahars as mere remuneration I beg to draw attention to the Kulkarni *Watan*. The Kulkarni *Watan* fell in the class of *Watans* belonging to village Servants useful to Government which class included three *Watans* that of (1) the Patil, (2) the Kulkarni and (3) the Mahar. The Kulkarni *Watan* as a hereditary *Watan* continued up to 1914. In 1914 by Government Resolution No. 5070, dated 30th May 1914, the Kulkarni *Watan* was commuted and the Kulkarni was relieved of the obligation to

render service to Government. The terms on which this commutation took place were as follows :-

- (1) Payment in perpetuity to the representative Watandars, their heirs lineal, collateral, or adopted so long as any male heir to Watan lineal, collateral or adopted shall be in existence, of cash allowance equal to one-third of the *Akarni* (remuneration for collecting land revenue) and the *Potgi* paid for the year 1913-14.
- (2) Continuance to the present holders and their heirs, lineal or adopted, so long as any male heir, lineal, collateral or adopted shall be in existence of all Watan lands subject to the payment of existing *Judi* and when this amount is less than full assessment, an additional amount not exceeding one sixteenth of the full assessment subject to the condition that the additional levy together with the existing *Judi* shall not exceed the amount of full assessment on the land for the time being.
- (3) The land will remain liable to the provision of sections 10, 11, 11A and 12 of the hereditary Village Offices Act, but may be excluded from the operation of the above sections by the Collector.
- (4) The continuance of the cash allowance as also the Watan lands is made subject to the continuance of the holders as faithful subjects of the British Government.
- (5) A fractional part of a rupee is to be compulsorily purchased at twenty times its value and when the fractional part is annas 14 or more the recipient may purchase at twenty times the difference to make the rupee.

31. Of all the Watandars, the Kulkarni has been given the benefit of the most favoured nation clause. He is relieved from the obligation to serve. He does not serve, yet he retains his land which is subject only to *Judi* and is allowed to receive in perpetuity 1/3rd of the *Akarni* and *Potgi* payable to him by Government in 1913-14. Besides, although the right of the Kulkarni to serve hereditary was liquidated by Government under

the scheme of commutation, still Government has, by its Resolution, given him a preferential right to be employed as a *Talati*, an agency created by Government to replace the Kulkarni.

32. Now the question that I would like to raise is this : If the principle or policy on which Government rely is “no service no pay” or “as much service so much pay,” why is it that the said principle was not applied by the British Government in the case of (i) *Warshasandars*, (ii) *Inamdars* and *Jahagirdars*, (iii) Hereditary District Officers, (iv) other Village Officers and (v) the *Kulkarnis*, who have all been relieved from the obligations to serve but who have been allowed to retain a substantial portion of their emoluments ? Comparing the treatment given to the other Watandars and particularly the treatment given to the Kulkarni, the treatment given to the Mahars stands in a cruel contrast. The limit of discrimination against the Mahars cannot go beyond. Why is this principle applied only to the Mahars ? What is the explanation of this invidious discrimination ? I confess my inability to find any. On the contrary, I venture to suggest that the principle sought to be applied to the Mahars is a wrong principle and that the policy adopted in dealing with the other Watandars was the right principle. According to the law prevalent under the Peshwa Government, Watan property was not only heritable but it was also alienable. So that a Watandar could alienate his office as well as his Watan property. Watan property was of the nature of private property and a Watandar was its owner who could do with it as he could with his own. This was the law upto 1827 when the Bombay Government by Regulation XVI of 1827 declared for the first time the Watan property as inalienable and forbade its alienation by any sole incumbent of the office or any co-sharer of such office out of the family for a term exceeding his life time.

33. That being the view of Watan property it can be said that Government could not have acted otherwise than it did without giving great violence to the sentiment which prevails in the country among Watandars in the matter of the Watan lands. My respectful contention is that *Maharki Watan* is in no sense distinguishable from other Watans and if in the commutation of these Watans Government has not applied the policy of “no

service no pay,” or the policy of “so much work, so much pay” there is no justification why it should be applied to the *Maharki Watan*.

34. Another reason advanced for the increase of *Judi* is the necessity of making better provision for the remuneration of another class of Inferior Village Servants. In his letter No. LA 26-F, Revenue Department, dated 11th November 1938, addressed to Mr. B.K. Gaikwad, M.L.A., Mr. M. J. Desai Esq., I.C.S., Deputy Secretary to the Government of Bombay, Revenue Department, in justification of increased *Judi*, states :-

“3. The standard minimum remuneration of a Mahar in the Central Division is land of which the *nuksan* is Rs. 10/- to Rs. 20/- according to the size of the village or cash allowance from Rs. 50/- to Rs. 100/-. There are still many inferior village servants who do not get even this remuneration. Provision of increased emoluments for badly paid inferior village servants has been proceeding steadily. One source from which it has been made has been the reduction of the emoluments of those whose remuneration is considerably in excess of the scale.”

35. From this extract it becomes clear that one reason and perhaps the real reason for reducing the remuneration of the Mahars by increasing the *Judi* is to make provision for the better remuneration of other Inferior Village Servants. There can be no doubt that all Inferior Village Servants are grossly ill-paid and the Mahars are no better paid than other Inferior Village Servants having regard to the duties they have to perform. But assuming that there is a case for increasing the remuneration of other Inferior Village Servants, I must respectfully submit that the policy adopted by Government for carrying it out is worse than that of robbing Peter to pay Paul and is contrary to the declared policy of Government and to the provisions of the Watan Act.

36. In the matter of increase of *Judi* there are several Government Resolutions which lay down the terms and conditions under which Government have reserved the right to increase the *Judi* all of which have been referred to, summarised

and explained by Col. W. C. Anderson, Survey and Settlement Commissioner N. D. in his letter to the Chief Secretary to Government, Revenue Department, dated 23rd July 1877 and which is printed as Appendix IV (c) in vol. II of the Bombay Survey Settlement Manual by R. G. Gordon, I.C.S., at pp. 496-505.

37. It appears that there was some doubt with regard to the principle underlying this Resolution of the Bombay Government No. 6141 of 1st November 1875 in which the position of the Government with regard to the increase in *Judi* was laid down. Colonel Anderson felt it necessary to explain the same. The Explanation given by him in para 4 of his letter is reproduced below :-

“4. The principle of the Government Resolution No. 6141 of the 1st November 1875 is clear - it was intended to hold the emoluments of the *Watan* applicable to the last rupee to the remuneration of the Officiator as fixed from time to time, *but it was not desired to make money out of the surplus emoluments* (of a *Watan*).....” (*Italics mine*).

38. So far as the Survey Settlement Manual goes there has been no subsequent Resolution by Government disputing this interpretation of the Resolution of 1875 as given by Col. Anderson. Nor has there been any Resolution modifying the terms of the Resolution of 1875, that being so the Resolution of 1875 and its interpretation by Col. Anderson stand as the last and final pronouncement by the Government on the question of increase of *Judi*. I, therefore, submit that I am justified in saying that the present increase in the *Judi* of the *Maharki Watan* lands to remunerate other Watandars is a direct violation of the Resolution referred to above.

39. The Resolution lays down two distinct limitations on the power to increase *Judi*, namely: (1) that *Judi* shall not be increased for making *i.e.*, for general finance of the Government and (2) and that *Judi* will be increased only if it becomes necessary to increase the remuneration of the Officiator. The main question that arises is: - Is increase of *Judi* on the *Maharki Watan* for increasing the remuneration of the Mahar Officiators? If it was, I concede that no objection to its increase on *Maharki* lands could be taken. But it is not. Admittedly the increase of

Judi on Maharki lands is intended to provide increase of remuneration to Bhills, Ramoshis and other Inferior Village Servants. Now by no stretch of imagination or by any far-fetched construction of the law relating to Watans can it be said that the Bhills, Ramoshis and other Inferior Village Servants Officiators who are officiating for the Mahar Watandars of a village.

40. In launching upon this policy of increasing *Judi* to provide better remuneration for Bhills, Ramoshis and other Inferior Village Servants, it seems to have been forgotten that under the Watan Act each Watan is a distinct and a separate Watan; that separate emoluments are attached to separate Watans; that the benefits of these separate emoluments are separately enjoyable only by families who are Watandars of that Watan and that a Watandar of a Watan cannot transfer his right to hold office and his right to the Watan property to any person who is not a Watandar of the same Watan. A *Patilki Watan* is separate from a *Maharki Watan* and both were separate from the *Kulkarni Watan* when it was in existence. A Patil could not transfer his right in the *Patilki Watan* to a Mahai; nor a Mahar his to a Patil. That the *Judi* on the Watan land could be increased only to pay an increase in the remuneration of the Officiator officiating for the Watandars of the same Watan is a mere corollary of the rule of law that any transfer of a Watan property to a person who is not a Watandar of the same Watan is illegal. It could not have been possible for Government to levy an increase of *Judi* on *Patilki Watan* to pay the Mahars. It could not have been possible for Government to levy a *Judi* on *Kulkarni Watan* to pay the Patil. For the same reason I submit that that is not open to Government to tax the *Maharki Watan* lands to pay for Bhills, Ramoshis and other Inferior Village Servants.

41. On the grounds stated above I have no hesitation in saying that this levy of *Judi* is the most arbitrary and illegal act on the part of Government.

42. In this connection I would like to place before Your Excellency the state of affairs which exists in some parts of this Presidency in the matter of the remuneration of the Mahars. The remuneration of the Mahars comes from three sources : (1) *Inam* Land, (2) *Baluta* from the villagers which is an annual payment in kind made by the villager to the Mahar and (3) cash payment

from the Government Treasury. The first and the last are not to be found in each district. There are many districts in which the Mahars have no *Inam* land and no cash allowance. It is only the second, namely, the *Baluta* which is found all over the Presidency and forms the principal mode of remuneration to the Mahars. The number of such villages is by no means small. In Belgaum District there are 317, in Bijapur District there are 543, in Dharwar District there are 572 and in Sholapur there are 463 villages in which there are no lands and in which the main source of income is *Baluta* to be collected from the villagers. The same is the condition in the Thana, Kolaba and Ratnagiri Districts. This list of villages wherein *Baluta* is the only source of remuneration to the Mahars is not a complete list. But from the data available it is clear that while in some villages the Mahars are mainly dependent upon *Baluta*, in other villages they are entirely dependent upon it for their remuneration.

43. With regard to the *Baluta* as a mode of remunerating the Mahars, I would like in the first place to draw Your Excellency's attention to the vicious character of this mode of remuneration. The Mahars are Government servants, Government takes service from them; but for their remuneration Government refers them to the villagers. Such a system of treating Government servants will be deemed to be very strange, if not disgraceful. The practice is certainly unbecoming to any Government which calls itself civilised.

44. This vicious system of *Baluta* results in stark injustice to the Mahars in the matter of their remuneration. Government takes into its calculation the payment of *Baluta* by the villagers to the Mahars in fixing the total remuneration of the Mahars. But it is the universal experience that the Mahars never get the *Baluta*. The reason is obvious. The relations between the Mahars and the villagers are never cordial. There is no village where there is no conflict between the Mahars and the villagers. Often it happens that the relation between the Mahars and the villagers remain friendly and the Mahars work for the whole year for the villagers as well as for Government in the hope that they will get their *Baluta* from the villagers. But something happens just at the

harvest season which creates strained relations between the Mahars and the villagers, with the result that the villagers refuse to pay the Mahars their *Baluta*. Coupled with their natural desire to evade the payment of *Baluta* is this state of enmity between the Mahars and the villagers which is a feature common to all villagers in the Presidency and which is responsible for the failure of *Baluta* system. The result is that the Mahar works in the hope of getting the *Baluta* but never gets it. The Mahar has no power to compel payment of *Baluta*. He is a minority in the village and is entirely dependent upon the village. In this conflict it is he who has to suffer. What makes this injustice so unbearable is the conduct of the Government officers, who take service from the Mahars, but who never help them to recover the *Baluta* from villagers. There is provision in law whereby the Revenue authorities have power to convert the *Baluta* into cash payment and recover the same from the villagers along with the land revenue and pay it to the Mahars. But a large majority of the Government officers have consistently refused to use these powers to relieve Mahars from this injustice for the fear of annoying the villagers.

45. The *Baluta* system at one time applied to all the village-servants. It applied to the Patil and the Kulkarni as well as to the Mahars. But Government discontinued the *Baluta* system so far as the Patil and the Kulkarni were concerned from the year 1844 and substituted in its place the system of cash payment from Government Treasury. The reason given was that the Patil and Kulkarni might—by force of the authority they possessed—recover from the villagers more than their quota of *Baluta*. If this reason was a good reason for abolishing the system of payment through *Baluta* to the Patil and the Kulkarni the reason for not applying it to the Mahars is a better reason. If the Patil and Kulkarni were strong enough to recover more the Mahars are too weak to recover any. Government seems to have considered only the interests of the villagers. They have never considered the interests of the Mahars. If they had, they would have abolished so precarious a system of remuneration as *Baluta* for the Mahars as well or would have made some provision for securing prompt payment of the *Baluta* to the Mahars. It is wrong for Government to have left the Mahars to be paid by a third party

like the villagers between whom and the Mahars had no direct contractual relation exists and at the same time not prepared to exercise any pressure to see that payment is made by the third party.

46. The question is, therefore, pertinent. The Patil is not asked to depend on *Baluta*. The Kulkarni, while he was a village servant, was also not made to live on *Baluta*. Why then is the helpless Mahar alone asked to serve Government and look for the payment to the villagers with no legal means open to him for its enforcement? It is time that Government did justice by taking the responsibility of remunerating the Mahars on its own shoulders.

47. As to the cash payment as a source of remuneration, the sums fixed by Government as remuneration to Mahars are the paltriest that can be conceived of. They were fixed somewhere about 1869. Remunerations of other Government servants fixed in those days have since been increased considerably from time to time. In fairness and justice to the Mahars it cannot be denied that an increase in their remuneration is long overdue.

II. INCREASE OF DUTIES OF INFERIOR VILLAGE SERVANTS.

48. The Government of Bombay have passed Government Resolution No. 7420/33 of the Revenue Department dated 13-9-1938 containing a list of duties to be performed by Mahars, Mangs, Vethiyas in this Presidency which impose upon them an intolerable burden and which it is impossible for these Watandars to bear. The duties prescribed in the Government Resolution came in for a good deal of angry criticism in the Haregaon Conference. The Resolutions passed in the Conference, which are appended to this Memorial, state the objections of the Inferior Village Servants to the duties prescribed by Government.

49. The contention of these Watandars is that they should not be called upon to perform duties listed at item Nos. 1, 3, 5, 9, 13 and 19 without payment of extra remuneration in the form of daily wages of not less than annas eight whenever they are called upon to perform these duties. In this I am sure, there is justice on their side. I have received several complaints from the Watandars of this Province that the Village and the Taluka

officers require the Watandars to render private service to them, such as taking a private chit to distant village, under the pretext that such service also falls under one or other of the above mentioned items. In this connection, I further beg to state that almost all Government Officers are paid Travelling and Subsistence Allowances whenever they go outside their headquarters and, therefore, it is in the fitness of the things that these Watandars, who are also Government servants, should also be given proper allowance whenever they are asked to go outside their village to compensate them for the extra expenditure they have to incur.

50. With regard to Duty No. 2 mentioned in the Government Resolution referred to above, these Watandars say that it should be confined to call the *Khatedars* by "*Bataki*" or "*Davandi*" and should not be extended to running several times after the recalcitrant *Khatedars*. In this connection, I may bring to Your Excellency's kind notice that in several instances the Watandars have to expose themselves to the risk of being assaulted and entangled by the recalcitrant *Khatedars*. In order to avoid all such contingencies, the only solution is the one proposed above.

51. With regard to Duty No. 7 mentioned in the Government Resolution referred to above which compels the Watandars to give to the village officers information about births and deaths in a village, they claim exemption. For the reasons stated below these Watandars should be exempted from doing this duty and the persons concerned should be compelled to give information of births and deaths to the Village Patil as is done in all Municipal Areas. Sometimes the Watandars boycotted by the so-called touchable villagers and are not allowed to enter the village, In such cases, it becomes impossible for the Watandars to get the necessary information, especially about births and deaths in the village and the Watandars, in consequence, are punished with a fine for no fault of their own.

52. Duty No. 15 of the said Resolution calls upon the Watandars to remove unclaimed dead bodies. In my opinion this is a duty to be discharged by the Police. The Watandars, therefore, should be exempted from performing that service.

III. CONCLUSION

53. In conclusion, I beg to state that the grievances referred to in this Memorial are crying for redress. I have no complete information regarding the amount of *Judi* so far recovered from the Mahars. From the figure relating to Nasik district which have been supplied to me it appears that in the Nasik district alone the amount of *Judi* levied on *Maharki* lands so far under the new policy comes to about Rs. 2,201-4-11 per year. This has produced a great tension and I am afraid that if the grievances are not redressed the *Watandar Mahars* may go on a strike as per last resolution of the Haregaon Conference. I had advised them to suspend action in the hope that Government will alter their policy and do justice to them. But nothing has so far been done. I, therefore, request Your Excellency to treat this question as urgent and redress the wrong which is being done to these Watandars by the new policy launched by Government. If the Mahar Watandars affected by this policy go on a strike or come in conflict in the matter of the recovery of *Judi* by attachment of their property which I hear is going on in some places, the responsibility thereof will be on Government alone, inasmuch as the Mahar Watandars will have ground to say that they have tried to get their grievances redressed by constitutional means and failed.

54. I would respectfully urge that the policy adopted by Government in dealing with the Inferior Village Servants should be suspended. The issues involved are very large and controversial. They cannot be settled by the executive action of Your Excellency's Advisers, however competent they be. They can be settled only by the vote of the Legislature after all sides had the opportunity of putting their case. This is not possible now owing to the suspension of the Legislature. But the question is an old one and can wait for its solution. I am sure that the Mahars and other Inferior Village Servants will prefer to wait for a just and agreed solution.

‘RAJGRIHA’ DADAR,
HINDU COLONY,
BOMBAY - 14
14th July 1941

I beg to remain,
Yours Excellency's
most obedient servant,
B. R. AMBEDKAR.

APPENDIX I

Resolutions Passed at the Haregaon Conference

Resolution No. 1 :-

This Conference of Watandar Mahars and Mangs, Vethias and other Inferior Village Servants strongly protests against the policy of enhancing *Judi* on Mahar Inam lands recently brought into operation in the Province under which an addition to the *Judi* out of all proportion has been made on already poverty-stricken Watandar Mahars and Mangs and demands that the same policy be withdrawn immediately and the levy made thereunder be cancelled inasmuch as the said policy is contrary to the underlying principles of the Hereditary Village Offices' Act and is also harsh and unjust.

Resolution No. 1 A :-

This Conference resolves that the G. R. No. 7420/33, R. D. dated 13th September 1938, containing a list of duties to be performed by the Mahars and Mangs imposed an intolerable burden which it is impossible for the Watandars to bear. This Conference is of opinion that these Watandars should not be called upon to perform duties listed as item Nos. 1, 3, 5, 9, 13 and 19 without the payment of extra remuneration in the form of daily wages of not less than annas eight whenever they are called upon to perform these duties.

Resolution No. 1 B :-

This Conference is of opinion that these Watandars be exempted from discharging duty No. 15 for the same is in the opinion of the Conference the duty of the Police.

Resolution No. 1 C :-

This Conference is of opinion that the duty No. 2 should be confined to call villagers by *Bataki* and not be extended to running after several times after a recalcitrant villager.

Resolution No. 2 :-

This Conference is of opinion that the *Maharki Watan* be commuted on the same principles as were made applicable to the

Watan of the village servant useful to the community by Mr. Gordon in 1863 and they be relieved from the obligation to render service to the Government and the village community.

Resolution No. 3 :-

This Conference wishes to bring to the notice of Government that there are innumerable villages in the Presidency where the Mahars are compelled to render the services free of cost. The Conference further asserts the necessity and urgency of Government assuming the responsibility for ensuring the payment of remuneration to the Inferior Village Servants. The Conference takes this opportunity to warn Government that if no steps are taken within six months in this direction, this Conference will be constrained to advise such Mahars to refuse to render any services to Government.

Resolution No. 4 :-

This Conference recommends to the Government to appoint a Committee consisting of the Representatives of Watandar Mahars in the Provincial Legislature to revise the orders of the suspension and fines passed by the Revenue Officers of this Province and give effect to such order in accordance with the decisions of this Committee.

Resolution No. 5 :-

This Conference authorises the members of the Scheduled Class in the Bombay Legislative Assembly to wait upon His Excellency the Governor of Bombay to represent the grievances of the Watandar Mahars and the Mangs expressed in this Conference.

Resolution No. 6 :-

This Conference appoints a Committee of the following gentlemen to give necessary effect to the Resolutions passed by the Conference and further this Conference empowers the Committee to advise and take such action as may be necessary in furtherance of the object of the resolution.

APPENDIX II

Extract from the Proceedings of 23rd Backward Class Board Meeting held in the II Advisor's Room, Secretariat, Bombay, on 7th June 1940 at 11 a.m.

Resolution No. 6 :-

This Board strongly protests against the policy enhancing Judi on *Mahar Inam* lands recently brought into operation in the Province of Bombay under which an addition to the Judi out of all proportion has been made on the already poverty-stricken Watandar Mahars, Mangs and Vethiyas and demands that the same policy be withdrawn immediately and the levy made thereunder be cancelled as much as the said policy is contrary to the underlying principle of the Hereditary Village Offices' Act, and is also harsh and unjust. Mr. B. K. Gaikwad's proposal No. 2 was discussed and adopted with slight modification as Resolution No. 7. As regards the rate of payment of daily allowance, it was suggested that a Mahar or Vethiya should be given a daily allowance of annas 6 whenever he is sent out of his village to perform Government duties.

(Mr. B. K. GAIKWAD)

Resolution No. 7 :-

This Board resolves that the Government Resolution No. 7420/ 33 of the Revenue Department, dated 13-9-1938, containing a list of duties to be performed by Mahars, Mangs, Vethiyas, impose upon them an intolerable burden which is impossible for these Watandars to bear. This Board is, therefore, of opinion that these Watandars should not be called upon to perform duties listed at item Nos. 1, 3, 5, 9, 13 and 19 without payment of extra remuneration in the form of daily wages of not less than annas six whenever they are called upon to perform these duties.

- (a) The Board is of opinion that Watandars be exempted from discharging duty No. 15 as it is, in the opinion of the Board, a duty that should be discharged by the Police.
- (b) The Board is of opinion that No. 2 should be confined

to call the Khatedars by “Bataki” or “Davandi” and not be extended to running several times after recalcitrant *Khatedars*.

- (c) The Board is of opinion that the Watandar Mahars, Mangs, Vethiyas be exempted from discharging duty No. 7 and the persons concerned should be compelled to give information of births and deaths to the Village Patil as is done in all Municipalities.

(Mr. B.K. GAIKWAD)

Resolution No. 8 :-

This Board wishes to bring to the notice of Government that there is innumerable villages in the Province of Bombay where the Mahars, Mangs and Vethiyas are compelled to render Government services without any remuneration.

This Board, therefore, strongly recommends to Government that no services should be demanded from the Inferior Village Servants without giving them proper and adequate remuneration.

APPENDIX III

Inferior Village Servants
Duties of
GOVERNMENT OF BOMBAY
REVENUE DEPARTMENT

Resolution No. 7420/33

Bombay Castle, 13th September 1938.

Government Memorandum, No. 7420-F/33, dated the 27th

January 1938 to the Commissioner,

<u>N. D</u>
<u>C. D</u>
<u>S. D</u>

Letter From the Commissioner, N.D., No. W. T. N. 1062, dated the 25th February 1938.

Letter From the Commissioner, CD., No. W. T. N. 2/27, dated the 22nd March 1938.

Letter From the Commissioner, S.D., No. W. T. N. 860, dated the 26th April 1938.

RESOLUTION :—Requests have frequently been made to Government to have the duties of Inferior Village Servants useful to Government defined so that they may know exactly what is required of them and not be made to render personal services to Government officers. Orders have been issued in paragraph 5 of Government Circular Memorandum, Political and Reforms Department, No. 1581/34, dated 25th August 1937, that no personal service should be accepted by Government servants without payment. The statement attached hereto describes the duties of the different classes of Inferior Village Servants.

2. The Oriental Translator to Government should be requested to translate the Statement into Gujarati, Marathi, Kanare and Urdu and to furnish the translations to the Manager, Government Central Press, for printing. The Manager should supply-printed copies of the translations to the Collectors in accordance with their requirements, which should be communicated direct

to him within one month of the date of this resolution. Copies of the printed translations should be supplied to every Talati and Patil. A copy should also be placed prominently in every village *chavdi*. In villages where there are no *chavdis* the copies should be displayed in some other public place.

3. The cost of printing the translations should be debited, for the purpose of press proforma account, to the head "25 General Administration."

By order of the Governor of Bombay.

M. J. Desai,

Deputy Secretary to Government.

Accompaniment to Government Resolution, Revenue Department, No. 7420/33, dated 13th September 1938

STATEMENT SHOWING LISTS OF THE DUTIES OF
DIFFERENT CLASSES OF INFERIOR VILLAGE
SERVANTS

Duties of Mahars, Dheds, Vethias, Bhangis and Madhavis

- (1) To carry Government remittances to the Sub-treasury.
- (2) To call the villagers at the *chavdi* to pay Government dues.
- (3) To carry the village *daftar* to and from the taluka kacheri.
- (4) To keep a watch on government money and office records at the village and on property attached for recovery of Government dues.
- (5) To take Government tapal to and from the taluka office and to take Government post officers on tour, where there are facilities for transport.
- (6) To accompany village officers and touring officers at the time of crop and boundary mark inspection, and to show roads to officers and other travellers.
- (7) To take news of births and deaths to village officers.
- (8) To carry distrained moveable property to the village *chavdi*.

- (9) To summon persons on whom notices, etc., are to be served and assist the Police Patil in serving summonses issued by Magistrates, Police, etc.
- (10) To carry chains and cross-staff, plane table and other instruments of the measurers to the field for Government work.
- (11) To accompany the Police Patil and Police at the time of the night round where there are no *jaglyas* appointed to do the work.
- (12) To publish Government orders in the village by beat of drums.
- (13) To take impounded cattle to the kacheri for auction when necessary.
- (14) To assist the vaccinator in collecting children for vaccination.
- (15) To help in the disposal of unclaimed dead bodies found in a village and to help the police in the removal of dead bodies for *post-mortem* examination wherever called upon by the police to do so.
- (16) To help the Police Patil in case of accidental deaths and fires and outbreaks of epidemics and epixootics.
- (17) To report movements of members of the criminal tribes and criminals and to assist the police in investigation of and prevention of the commission of crimes,
- (18) To keep guard over prisoners in the Police Patil's custody.
- (19) To set up camp offices in the village.

Duties of Ramoshis or Ravanias and Vartanias

- (1) To be present at the chavdi at the time of the collection of the land revenue.
- (2) To accompany Mahars or Dheds carrying remittance to the taluka headquarters.
- (3) To render assistance to Government officers on duty in the village for Government work.
- (4) To watch property attached for recovery of Government dues.

- (5) To call villagers in the collection season when necessary.
- (6) To do a round at night and help the police in patrolling on night duty in the arrest of criminals, in the detection of crime and at the time of inquests on accidental deaths.
- (7) To assist in the prevention of the commission of thefts and other offences.
- (8) To report the movements of criminal tribes and notorious criminals to the Police Patil and about criminal offences and accidents, etc.
- (9) To carry the daftar of village officers.
- (10) To assist the village officers at the time of the recovery of land revenue.
- (11) To accompany the village officers at the time of the crop inspection.
- (12) To Keep guard over persons in the custody of Police Patil.

Duties of Chaugulas and Naikwadis

- (1) To carry the daftar of the village officers.
- (2) To assist the village officers at the time of the recovery of the land revenue.
- (3) To accompany the village officers at the time of the crop inspection.
- (4) To keep the village *chavdi* clean and light the lamps there.

Duties of Jaglyas

- (1) To keep watch at night, to find out all arrival and departures, to observe strangers and to report all suspicious persons to the Police Patil.
- (2) To trace a thief by footsteps.
- (3) To assist the police in the investigation of crime.
- (4) To accompany remittances from the village to the taluka.
- (5) To accompany village officers at the time of crop and boundary marks inspection.

Duties of Talbadas and Kolis

- (1) To clean the *chavdi* by sweeping and cowdunging it and to light lamp in it.
- (2) To assist village officers in the work of crop and boundary marks inspection.
- (3) To make *bandobast* when Government officers camp in the village so far as the public duties of these officers require it.

Duties of Samadis or Walikars, Talwars, Holkars and Ugranis

- (1) To help the village officers in the collection of Government revenue.
- (2) To help the Police Patil in serving summonses, etc., issued by magistrates and the police.
- (3) To keep watch over the village records and public money, or "*Muddemal*" in cases when there is occasion for it to be done at the village.
- (4) To escort the remittances of treasury or money to the taluka or mahal sub-treasury.
- (5) To carry the post of the village and touring officers from place to place where there are no other facilities for its transport.
- (6) To do night patrolling in the village.
- (7) To keep guard over prisoners in the Police Patil's custody.
- (8) To show the way to touring officers from village to village where there are no roads, at walking pace, to the minimum extent necessary to give adequate directions.
- (9) To report information about births and deaths to the Police Patil.
- (10) To call villagers to the village *chavdi* when they are required for Government work.
- (11) To accompany village officers and other officers on field inspections.
- (12) To assist vaccinators in collecting children for vaccination.

- (13) To carry village records from village to taluka and *vice versa*.
- (14) To assist village officers when on tour in the village in the performance of their public duties.
- (15) To keep the village *chavdis* clean.
- (16) To set up camp offices in the village.

Duties of Barkers

- (1) To keep the village *chavdi* clean.
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I SHALL BE MORE DEADLY AGAINST THE BRITISHERS THAN HINDUS IF.....

The Viceroy constituted the Defence Council of India on 27th July 1941. There were Eight Indians out of total thirteen members. Dr. B. R. Ambedkar was one of the members of the Council. He expressed his views about the evil policies of Britishers—Editors.

“I have directed for these many years bitter and virulent attacks on Hindu Society and its numerous evils, but I can assure you that I shall direct attack a hundred-fold more bitter, more virulent, more deadly against the Britishers than I have done against Hindus if my loyalty is going to be exploited for crushing my own people and taking away from them last dry bone from which they draw their sustenance.”

(Ten Years To Freedom, Pp. 58-59)¹.

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¹: Quoted, Khairmode, Vol. 9, P. 130.

EXCLUSION OF DEPRESSED CLASSES FROM VICEROY'S COUNCIL AS AN OUTRAGE AND BREACH OF FAITH

Bombay, Thursday*

“Depressed Classes regard their exclusion from the Viceroy’s reconstituted Council as an outrage and breach of faith,” says Dr. B. R. Ambedkar, Leader of the Depressed Classes in a cable addressed to the Secretary to State for India, Mr. L. S. Amery.

The cable adds: “Your flouting of 60 million Depressed Classes altogether and giving 43 per cent representation to Muslims, which is nearly equal to that of Hindus, is astounding. Government appears to have been mortgaged to some communities only.

After solemnly recognising the Depressed Classes as an important distinct element in the Indian national life after insisting that their consent to constitutional changes is essential after exploiting their co-operation in war, their exclusion from the Council bespeaks of want of good faith on your part.

Protesting in the interest and name of the Depressed Classes, personally I have never asked, depended or had support from the British. I can do without it in future. You are absolutely free in your choice.

I want justice for the Depressed Classes. I warn you that the Depressed Classes are not prepared to surrender their right to representation in the Council. I strongly urge you to recognise the same. Adding one member to the Council cannot hurt.”

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CONFERENCE OF ALL LEADERS OF THE DEPRESSED CLASSES ALL OVER INDIA

Bombay, September 26, 1941

“The “United Press” learns that a decision to mobilise all forces of the Depressed Classes in the country under one political body which will speak with authority and represent the interests of the sixty millions population of the Depressed Classes in Maharashtra held in Bombay yesterday, Dr. B. R. Ambedkar, Leader of the Community, and Mr. P. N. Rajbhoj, President of the All-India Harijan Political Conference, were among others present.

It was decided at the meeting, the “United Press” further learns, to hold a conference of all leaders of the Depressed Classes all over India under the guidance of Dr. Ambedkar for the purpose during the last week of October either at Bombay or at Poona. Mr. Rajbhoj was appointed convener of the proposed conference, exact date and venue of which will be announced after consultation with Depressed Classes leader.

It is further learnt that the proposed body of the Depressed Classes will be a permanent one on the lines of other political bodies like the Muslim League or the Hindu Mahasabha.—United Press.”¹

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¹: Bombay Chronicle, dated 27th September 1941.

Dr. AMBEDKAR AND THE JEWISH PEOPLE

“Fifty years ago in a special interview with the editor of a monthly Jewish publication in Bombay (The Jewish Advocate, November 1941), one of the India’s most respected leaders expressed openly his admiration for the pioneering efforts of the Jews in Palestine “in respect of the Social order that was being created there” (in Palestine) as he said.

It was none other than the “Father of Indian Constitution” and the Leader of the Depressed Classes in India, Dr. Ambedkar.

Dr. Ambedkar whose centenary is being celebrated all over the world, was among the few. In the Indian National Movement who was aware of and consequently sympathised with, the Jewish National Movement in Israel (then Palestine under British rule).

To understand the specialities Dr. Ambedkar had with the Jewish people one should read his article “Moses and His Significance ” published in the Bombay Sentinel probably the same year, 1941. In this masterpiece of a short essay about the Biblical Leader Moses, Dr. Ambedkar exposes to the roots of his special attitude towards the Jewish people. Due to its importance, I feel it is only appropriate to reprint it once again.

“The story of the Jews told in the Old Testament is a moving tale. It has few parallels. It is told in a simple but thrilling language. The pathos inherent in the subjugation and ultimate emancipation of the Jews cannot, but affect the emotions of those who are as depressed as the Jews were in Egypt in the days of Pharaoh. But the heart of every one who is working for emancipation of a depressed people is bound to go to Moses, the man who brought about the emancipation of the Jews.”

“What did Moses not do for the Jews ? He led them out of Egypt, out of bondage, he laid the foundation for their religion

Dr. Ambedkar was interviewed by Glora Becher, Consul of Israel in Bombay—Editors.

by bringing the Ten Commandments from Mount Sinai. He gave them laws for social, civil and religious purpose and instructions for building the tabernacle.”

“What did Moses not suffer at the hands of the followers”? When the children of Israel left Egypt and were pursued and attacked by the army of Pharaohs they were sore and said unto Moses, ‘Because there were no graves in Egypt, has thou taken us away to die?’ It has been better for us to serve the Egyptians than that we should die in wilderness.”

“The marching Israel came to Elim and camped there. There was not sufficient water for them all. They all shouted, give us water wherefore is this that thou hast brought us out of Egypt to kill us and our children and our cattle with thirst? They were ready to stone him because there was no water.”

“Moses went up to Mount Sinai and delayed to come down. Immediately the Jews went to Aaron and said unto him. ‘Make for us Gods, which shall go before us; for as for this Moses the man that brought us out of the land of Egypt,’ we woe not what has become of him.”

Even his leadership was challenged. The Old Testament records that Miriam and Aaron spoke against Moses because of the Ethiopian woman he had married and they said, “Hath the Lord indeed spoken only by Moses? Hath he not spoken also by us? Yet Moses bore their calumny, their abuse, tolerated their impatience and served them with the fullness of his heart.

“As the Old Testament truly says: ‘There arose not a Prophet since in Israel like unto Moses, whom the Lord knew face to face’. Moses was not merely a great leader of the Jews. He is a leader whose birth, any downtrodden community may pray for.”

“Whatever interest others may have felt in the story of the exodus and the leadership of Moses they have been to me a source of perennial inspiration and hope.”

“I believe that just as there was a land of promise for the Jews, so the Depressed Classes must be destined to have their land of promise. I trust that just as the Jews reached their land of promise, so will be the Depressed Classes in the end reach their land of promise.”

“I see in the present day condition of the Depressed Classes of India a parallel to the Jews in their captivity in Egypt. In Moses I see a leader whose infinite love for his people has given undaunted courage to face hardships and bear calumny.”

“I confess that if any thing sustains me in my efforts to emancipate the Depressed Classes, it is the story of Moses undertaking the thankless but noble task of leading Jews out of their captivity.”

It is only natural that the Jewish people have always looked at Dr. Ambedkar and his life’s work with absolute admiration. His struggle for the weakest sector of society has found an echo in the hearts of those who for many hundreds of years since their expulsion from their “Promised land”—Israel—were suffering from discrimination and persecution just because of being different from the majority around.

We in Israel are till today proud of Dr. Ambedkar’s support in our struggle for rebuilding our national home in Israel.

*(Courtesy : News from Israel).*¹

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¹: Praja bandhu, dated 30th December 1991.

I AM NOT LEAST INTERESTED IN FORMATION OF MINISTRY

Bombay, Saturday*

“I am not in the least interested in the formation of Ministry in Bombay”, said Dr. B. R. Ambedkar in an interview to a representative of the “Chronicle”, referring to a New Delhi message of November 25, in this connection. The message suggested that during his stay in New Delhi next week, Dr. Ambedkar was expected to meet the Viceroy “presumably” in connection with the formation of Ministry in Bombay on the lines of Orissa.

“There is absolutely no foundation for this suggestion”, added Dr. Ambedkar.

The news as contained in the New Delhi message that “certain individuals have already seen the Viceroy” in connection with Ministry formation does not seem to have any basis. An attempt at Ministry formation is necessarily to be preceded by feelers with a view to find out possible weak spots in the Congress Party. There is no indication of any attempt so far in the matter of weaning away any of the members of the Congress Legislature Party.

That Orissa will never be repeated in Bombay is the opinion expressed in Congress Circles. A prominent member of the Congress Legislature Party said that he had not the least doubt about the solidarity of the party.”¹

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*The 29th November 1941.

¹: The Bombay Chronicle : dated 30th November 1941.

HINDUISM IS POLITICAL IDEOLOGY AS THE SAME CHARACTER AS.....

Dr. B. R. Ambedkar in a statement says :—

General Chiang Kai-Shek has made an appeal to the British Government to give the people of India without waiting for any demands on their part real political power as speedily as possible. But he has not given any solution of the difficulties which have come in the way of such a consummation. The difficulty is caused by the Congress not accepting the fundamental feature of the August Declaration made by the Viceroy that the future Constitution of India must have the consent of certain important elements in the national life of India. Equally, the difficulty is due to the British Government not realizing what its responsibility is. The Congress cannot expect any sane person who knows anything about conditions in India to agree to the Government of the country being placed in the hands of the Hindu majority, simply because it is a majority. The Congress chooses to forget that Hinduism is a political ideology of the same character as the Fascist and or Nazi ideology and is thoroughly anti-democratic. If Hinduism is let loose—which is what Hindu majority means—it will prove a menace to the growth of others who are outside Hinduism and are opposed to Hinduism. This is not the point of view of Muslims alone. It is also the point of view of the Depressed Classes and also of the non-Brahmins.

Only Antidote

I think it is possible for the British Government to make a declaration in terms on the following lines :—

- (1) That it is proposed to raise India to the status of a Dominion Status within three years from the date of peace,
- (2) That for the speedy consummation of that end, the elements in the national life of India will be required to produce an agreed solution of their constitutional difference within one year from the date of the signing of the armistice,

- (3) That failing agreement the British Government would submit the dispute to an International Tribunal for decision, and
- (4) That when such decision is given the British Government shall undertake to give effect to it as a part of the Dominion Constitution for India.

Such a declaration must satisfy all reasonable people. As far as I am able to see, it meets Mr. Jinnah's point of view and the point of view of the Depressed Classes that there must be an agreed solution of the communal problem. It also meets the Congress point of view that no element in the national life of British India should be allowed the power to veto the birth of a Dominion Constitution. The arguments that we are in the midst of the war is no argument against making the declaration. Indeed, it is an argument in favour of it.

Harijan-Muslim Bone of Contention

Should the declaration be accompanied by a National Government ? It would be better if it could be done. But there is a difficulty for which Mr. Jinnah is making two demands : (1) One is ultimate, namely Pakistan; (2) The other is immediate, namely 50 per cent representation in the Cabinet.

I can quite understand the demand for Pakistan when Mr. Jinnah says that the Muslims are a nation, I feel no reason to quarrel. When Mr. Jinnah says the Muslims must have Pakistan because they are a nation, I say have it, if you do not thereby run away with a large belt of Hindu population, who on your own theory are of different nationality.

With regard to Pakistan I feel like pointing out that Mr. Jinnah seems to be counting his chickens before they are hatched, and reckoning without the host.

The N. W. F. is the most integral part of this Pakistan. Mr. Jinnah must admit that he is not the host of the N. W. F. The host is Khan Abdul Ghaffar Khan. Without his consent, there could be no Pakistan. Rather than carry on a whirlwind propaganda in favour of Pakistan, Mr. Jinnah should spend his time and energy in converting Khan Abdul Ghaffar Khan. That is, however, a matter for Jinnah to consider. As I said, I can understand Pakistan.

Monstrous

But I cannot understand this demand for 50 per cent representation for the Muslim community. Nor can I see how this immediate demand of 50 per cent is related to the ultimate demand of Pakistan. I am sure this demand of the Muslim League is a monstrous thing and I have no doubt that Lord Linlithgow has done the greatest service to India by putting it down.

I am definitely of opinion that no National Government ought to be established in India as an interim measure, if it means conceding to Mr. Jinnah's claim for 50 per cent. After all, I cannot believe that the National Government can do more in the matter of war effort than what is being done. India simply cannot do more, her capacity has not been developed. The fault lies entirely with the British Government. They had chosen not to develop the resources of India in peace time and it has therefore become impossible for the Government or the National Government to do more than what is being done. If she had been fully developed she could have defended the Empire. She cannot now defend herself. She must, indeed she is compelled to look to England to defend her from the impending Japanese invasion ; such is her helpless condition. The appointment of an Indian—as a Defence Member may be good, but is that enough ? Without the means of defence at his disposal, what an Indian Defence Minister can do it is difficult to understand.

I should have thought that the wiser course for Indians would be to ask England to send out to India the means of defence, which she is hoarding for her own safety. Therein lies the immediate interest of India and therein also lies the duty of England.—A. P.”¹

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¹: The Bombay Chronicle, dated 26th February 1942.

WE ARE A SEPARATE ELEMENT IN THE NATIONAL LIFE

A journalist from London, Mr. Bevarali Nikolas interviewed Dr. B. R. Ambedkar when he became a member of the Viceroy's Executive Council. Mr. Beverali recorded his interview in his book "Verdict on India" published in the year 1944. The personal observations that were revealed in the interview about Dr. Ambedkar are as follows : Editors.

‘A man of about fifty, waiting for me in a wicker chair on the veranda of his house. Bulky, dynamic. Very charming manners, but nervy, inclined to fiddle with his shoe-laces. Seemed to be on his guard, as though ready to parry taunts from all directions. Well after all it's only to be expected.

So runs an extract from my diary.

The man is Doctor Ambedkar. And in a moment we shall see what it is ‘only to be expected.’

Dr. Ambedkar is Labour Member in the Government of India. and **one of the six best brains in India**. He is the Cavour School of Statesman, an implacable realist. When he speaks in public he is galvanic, creative, an almost embarrassingly to the point. To comparing a Hindu Chart with a fusillade of pistol shots.

As a result, he is one of the best hated man in India.

And why is it ‘only to be expected,’ this nervousness—this suggestion that he would be ready to take offence ?

Because Dr. Ambedkar, in the eyes of most of the 180 million Caste Hindus is ‘Untouchable’. A person to bring pollution if his Mayfair dinner jacket should happen to brush against their dhoties. A creature from whose touch the extreme orthodox must fly as though he were a paper, a mouster whose slightest contact compels them to precipitate themselves into the nearest bath-tube,

to soap and pray, and pray and soap, and soap and pray, so that the filth of Dr. Ambedkar (M. A. London)* the shame of Dr. Ambedkar (high honours at Columbia University) the plague and scourge of Dr. Ambedkar (special distinction at Heidelberg) should be washed for ever from their immaculate and immortal souls.' (P. 30)

Dr. Ambedkar said to me : 'The keynote of my policy is that we are not a sub-continent of the Hindus but a separate element in the national life.'

'Gandhi says to us 'Trust us-trust the Caste Hindus !' I reply 'We will not trust you, for you are our hereditary enemies.'

'In every village there is a tiny minority of Untouchables. I want to gather those minorities together and make them into majorities. This means a tremendous work of organisation-transferring populations, building new villages. But we can do it, if only we are allowed.' (P. 40.)

'We are as staunchly nationalist as any of the Congress. But we do not want the British to quit India till our rights are safeguarded. If they do, our fate will be mere terrible than the fate of any of the oppressed people of Europe.'

(Verdict on India, P. 41)¹

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*Dr. Ambedkar obtained degrees of M. A. and Ph. D. from the Columbia University and not from London, but he obtained his degree of D.Sc. from London University.—Editors.

¹: Quoted : Khairmode, Vol. 8, Pp. 36-39.

SCHEDULED CASTES SETTLEMENT BE MADE AT PAR WITH BANTUS

“*Hyderabad (Deccan)*, April 22, 1946: The view that the demand of the Scheduled Castes for separate villages was not an encroachment on the rights of any party, was expressed by Dr. B. R. Ambedkar, Labour Member of the Government of India, in an interview.

Dr. Ambedkar said that there were large areas of cultivable waste land lying untenanted in the country which could be set apart for the settlement of Scheduled Castes. Government could form a trust to give effect, to the proposal.

Objection, he thought, would come only from those who had been accustomed to using the Scheduled Castes as a source of labour which was available to do all the unclean jobs and who could be forced to work at the cheapest wage-rate. They would like to perpetuate this slavery. Because of intolerable condition under which the Scheduled Castes lived in Provinces like Bombay and Madras, it was necessary to have separate villages for them.

Dr. Ambedkar explained that the village being a social and not an economic unit of society, there was no need to fear an economic strangulation of these separate villages. The product of these areas would be sent to places where it would be welcomed.

Asked if the demand applied to the Pakistan areas, Dr. Ambedkar said that it did. At present there was nothing concrete about Pakistan. The question of setting up separate villages would arise when it took concrete shape.

The position of the Scheduled Castes, he said, was analogous to that of the *Bantu* and other tribes of South Africa. He did not see why provision should not be made in the future Indian Constitution to safeguard the interests of the Scheduled Castes in the same way as was done in the South African Constitution in the case of the *Bantus*.—A.P. I.”¹

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¹ : The Times of India : dated 23rd April 1946.

HINDUS ALWAYS REGARDED SCHEDULED CASTES AS 'OUTSIDE THE PALE' OF HINDU SOCIETY

“In an exclusive interview given to ‘Globe’ at Bombay on 20th November 1946, shortly after his return from England where he had been representing the case of India’s 50,000,000 Untouchables, Dr. Bhimrao Ramji Ambedkar said he had found no reason to modify his statement made in London when he drew a gloomy picture of the Indian political scene and forecast a dismal future of the country until they were laid by a real coalition representing all important elements of their national life.

Asked if he considered it advisable in view of Mr. Jinnah’s latest statement and the unsatisfactory state of the country to postpone the meeting of the Constituent Assembly which is fixed for December 9, Dr. Ambedkar said, “The question to my mind is whether the Constituent Assembly would have any moral authority behind it if the Muslims absent themselves from the Constituent Assembly. If the Muslims decide to absent themselves, I don’t know that the Constituent Assembly could do anything if it met on the 9th or any other subsequent date.

WOULD CARRY NO WEIGHT

“Unless the Hindus presume that the Constitution framed by themselves is likely to be accepted by the British Government merely because the session in which they met was called the Constituent Assembly,” he continued, “I don’t see any hope that the formulations by a Constituent Assembly, which consists of Hindus only, would carry any weight.”

To the question, “Do you envisage any concrete fundamental basis on which a settlement can be brought about between the major political parties, including the Scheduled Castes, as represented by the Scheduled Castes Federation?” Dr. Ambedkar replied, “The basis for a settlement between the Scheduled Castes and the other major political parties — that

is the Hindus and Muslims—is not at all difficult if there is good sense and right sense in the Congress.

SCHEDULED CASTES WANT POLITICAL SAFEGUARDS

“All that the Scheduled Castes want are political safeguards, over which there can hardly be any dispute,” he continued, “The principal demand of the Scheduled Castes is that they must have separate electorates, the reason being that without Separate Electorates, all other political safeguards that might be granted to them are useless.

“The Muslim League, so far as I understand, has no objection to separate electorates for the Scheduled Castes. The only objecting party is the Congress which represents the Hindu point of view, and if the Congress could agree to Separate Electorates there will be no reason for any non co-operation between the Congress and the Scheduled Castes.”

CONGRESS - LEAGUE UNBRIDGEABLE DIFFICULTIES

“The question of a settlement between the Congress and the Muslim League stands on a different footing.” Dr. Ambedkar continued, “The differences between them to-day are very wide-almost unbridgeable. The League wants to out up the country and the Congress is opposed to it. I am unable to say how this gulf can be closed and I must leave that question to the Congress and the Muslims League to decide among themselves although the Scheduled Castes, as Indians, are not only interested in the terms of the settlement but are deeply concerned in it.”

Globe's next question was, “In the interests of unity and understanding can you suggest separate representation for the Scheduled Castes ; is it not possible to have reservation for those sections of the Scheduled Castes who do not owe political allegiance to the Congress by means of proportional representation ?” Replying, Dr. Ambedkar said, “I have already said that if the Congress is agreeable to give the Scheduled Castes the right to be represented in the Legislature, in the Executive, in the Services, then it must, in all honesty, grant separate electorates. Because a separate electorates would alone guarantee to the Scheduled Castes the possibility of their electing to the Legislature, members of their own who could be treated

at all times to fight in the Legislature and in the Executive whenever they did anything which had the effect of nullifying the rights granted to the Untouchables.

BOUND BY PARTY DISCIPLINES

“To grant political safeguards to the Scheduled Castes without granting separate electorates is a fraud which is bound to have the effect of giving by one hand and taking away with the other.

“It will be noticed that the Congress has been able to elect on its ticket representatives of the Scheduled Castes all throughout India in the different Provincial Legislatures.” Dr. Ambedkar continued, “And yet not one of them ever asked a question, moved a resolution or tabled a motion in order to ventilate the grievances of the Scheduled Castes. The reason is that the representatives of the Scheduled Castes elected on the Congress ticket are bound hand and foot by the party discipline of the Congress, and have no freedom of action.

“It would be much better not to have representation at all than to have such representation in the Legislature.” he added.

PROPORTIONATE REPRESENTATION

“With regard to the question whether proportionate representation will be a solution of this dispute, I might say that I have considered the question and I find that it will not work because if we keep the number of members of the Legislature within the bounds now prescribed or which may be regarded as reasonable, nowhere will the Scheduled Castes, be able to have the quota of voter necessary to have their own men elected in the Legislature.”

Dr. Ambedkar next answered the question, “Is it not possible for the Scheduled Castes to merge themselves into the Hindu community on the basis of a charter of common rights, privileges and removal of all social disabilities?”

“The question of a merger of the Scheduled Castes into the Hindu community is really dependent upon the wishes of

the Hindu community.” he replied. “The Untouchables have always wished for it and have tried for it, but they have never succeeded in changing the attitude of the Hindus who have always regarded them as ‘outside the pale’ of Hindu Society.

HINDU ABSORPTION A DREAM

“It is because the Scheduled Castes have come to realise that the assimilation or absorption of the Scheduled Castes into the Hindu community is a vain hope and is only a dream that they have decided to ask for separate electorates.

“If the Hindus can absorb the Scheduled Castes not in the superficial manner in which they want to do by opening temples and canteens, but in the real and substantial sense of the term assimilation, namely inter-marriage and inter-dinning, the Untouchables are always prepared and ready for it.

“It is the Hindu who must convince the Scheduled Castes that when he talks about the merger of the Scheduled Castes into the Hindu fold he means the removal of the bar against intermarriage and inter-dinning.

“Another aspect of the same question,” continued Dr. Ambedkar, “is that in the opinion of the Scheduled Castes their merger into Hindu society would become possible easier only when the Untouchables rise to the same social status which is occupied by the Hindus. In the present degraded condition, no Hindu however great a social reformer may be, will consent to dine with an Untouchable or inter-marry with him, but if, as an effect of the political rights, the Untouchables become better educated, more advanced and begin to occupy the posts of officers and administrators in the State, the chances of intermarriage and inter-dinning between them and the Hindus would be much greater.

IGNORANCE, OBSTINACY

“From this point of view the political safeguards which the Untouchables want are in no sense in conflict with the desire of the Hindus to absorb and assimilate them. Because the Untouchables have Separate Electorates it is difficult to understand

why the Hindus should find any difficulty in absorbing them socially in their fold. It can't prevent them from having intermarriage or inter-dinning and, therefore, the whole attitude of the Congress towards the demand of the Scheduled Castes for separate representation is marked by ignorance and obstinacy."

Commenting on a recent statement made by Rev, Gordon Livingston in which he suggested Untouchables should embrace Christianity rather than Islam, Dr. Ambedkar made the following observations :

HINDUISM'S SHORTCOMINGS

"The thinking section among the Untouchables are convinced that Hinduism, as it exists today, does not furnish to the Untouchables the sort of spiritual home and social communion which religion is intended to furnish to men.

"Secondly, the thinking portion of the Scheduled Castes is of the opinion that it is not easy to uproot humanity as one can uproot and transplant from one soil and to another. It is a difficult operation and cannot be treated as adventure. It has to be a planned action which would take time to formulate and carry out.

"Thirdly, the Untouchables feel that probably—although they have grave doubts in the matter—Hinduism in the course of time will so reform itself that it may become acceptable, and the Untouchables are, therefore, prepared to stay on where they are, provided that during the interval the Untouchables get enough political safeguards so as to withstand the cruelty oppression and injustice that is inherent in Hinduism and from which they have been suffering all these ages, and from which they apprehend they will suffer more than they have if the Hindu majority obtains calumniated political power in its own hands such as would be the case if India become completely independent. If the Hindus refuse to recognise this situation, and does not grant the Untouchables political safeguards they want, I have no doubt that conversion to some other religion by the Untouchables would become an emergent issue.

WHICH RELIGION FOR UNTOUCHABLES ?

“Fourthly, although the thinking portion of the Scheduled Castes are agreed to leave Hinduism I cannot say that there is complete agreement as to which religion they should embrace. The matter is still open.

“Finally, with regard to the question whether Christians should accept the 50,000,000 Untouchables into their fold without a period of preparatory training (as suggested by Rev. Livingston), I should like to say that those who make that objection do not seem to realise that the conversion of the Untouchables would be the only instance in history of a real conversion. Today religion among Christian as well as Non-Christians, is a mere matter of inheritance. The Christian inherits his father's property and along with it his father's religion. He never stops to contrast Christianity with other religions and make his own judgement as to its spiritual value. And historically conversions of Christianity have always been mass conversions and conversions on grounds which had nothing to do with the realisation of the spiritual value at all of the Untouchables convert they will be converted on a thorough examination of different religions and their spiritual and social value. Let nobody, therefore, have any qualms of conscience that the conversion of the Untouchables is anything like a commercial proposition. It is not. If the conversion of the Untouchables brings them any advantages apart from those of a spiritual and social character, they are incidental advantages and not criminal inducement.” Globe.”¹

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¹ : Jai Bheem (Weekly), Madras, dated 25th December 1946.

SCHEDULED CASTES' CASE TO BE PRESENTED BEFORE U. N. O.

“Bombay, Jan. 17, 1947.

The Working Committee of the All-India Scheduled Castes Federation adopted a resolution today, seeking to submit to the United Nations Assembly the case of “the sufferings of the Scheduled Castes in India against the Hindus for their acts of social, economic and political tyranny.” The Committee concluded its two-day session held under the Chairmanship of Mr. N. Shivraj, President of the Federation.

The Committee approved the memorandum prepared by Dr. B. R. Ambedkar, for submission to the UNO and directed the President of the Federation to take early steps to submit the case formally to the Secretary of the UNO and to organise a delegation of the Federation for the purpose.

The memorandum among other complaints added that the “tyranny and the constant and shameless resort to violence by Hindus, makes the position of the Scheduled Castes far worse than the position of Indians in South Africa.” The memorandum also complains of the “failure of the British Government to give protection and do justice to the Scheduled Castes” and requests the intervention of the UNO for “necessary international action”.

With regard to the problems arising out of the framing of the future Constitution of India, the Working Committee declared in another resolution that the Federation stood for “a United India and a strong Central Government.” The Federation according to the resolution “would be prepared to accept the proposals of the Cabinet Mission regarding Grouping in order to secure the co-operation of all parties and to arrive at a peaceful solution of India’s constitutional problems.”

EQUALITY SHOULD BE THE BASIS OF THE CONSTITUTION

The resolution stated that the Federation stood for liberty and equality as the fundamental basis for a future Indian Constitution. “While fighting for the cause of the Scheduled Castes

and without detriment to that cause” the Federation supported the “just and necessary demands of all minorities irrespective of the communities to which they belong.”

The Working Committee also expressed the opinion that “it was in the interest of India that she should be satisfied with Dominion Status and accept it for a term of years which was without prejudice to the right of Independence for India.”

MEMORANDUM TO MINORITIES' COMMITTEE

The Working Committee also approved another memorandum prepared by Dr. B. R. Ambedkar who is a member of the Constituent Assembly. This memorandum suggests safeguards for the Scheduled Castes in the future Constitution of India.

The Working Committee directed the representatives of the Federation in the Constituent Assembly to insist that “the ultimate sanction for the Constitutional Safeguards should be lodged in the Central Government” and emphasised that “Separate Electorates were the only way of guaranteeing real representation of the Scheduled Castes in the Legislatures without which all other safeguards were sure to be only paper safeguards.”

The Committee also passed a resolution condoling the death of Mr. B. J. Deorukhkar, Member of the Bombay Municipal Corporation and two other Scheduled Castes workers from Andhra, Messers Hari and Dr. Dharmanna.

Dr. Ambedkar, in an interview to the Press, explained the resolutions passed by the Working Committee of the Federation and asserted that the UNO had jurisdiction over the issue to be submitted by eight crores of Scheduled Castes in India, inasmuch as the UNO had jurisdiction over the case of Indians in South Africa. He said that he was in communication with the leader of Negroes in the United States, Paul Duabois, who, according to Dr. Ambedkar, was submitting the case of Negroes in U.S.A., before the U.N.O. Paul Duabois, Dr. Ambedkar stated, was the founder President of the Negroes Association in U. S. A. who was fighting for political, economic and social rights of Negroes in that country.*

*Some words in this sentence are illegible—Editors.

Dr. Ambedkar, referring to the “sufferings of the Scheduled Castes” in India, compared them with the condition of Negroes in U. S. A. who, he said, “are as much tyrannised by the White Americans as Scheduled Castes are by Caste-Hindus.”

Discussing the problem of framing the future Constitution of India, Dr. Ambedkar said that he had an ingenious method of preventing the formation of an executive of a majority community belonging to one party disregarding completely the interests and susceptibilities of a minority community belonging to another party. He refused to disclose the details of his scheme, but said that under the present Constitution, the major community belonging to one party took possession of the administration in a Province, “thus imposing the worst form of tyranny on a minority community.” The helplessness of the minority community, when the major community makes a monopoly of the executive of the Government in the Province should be prevented by a statutory provision in any future Constitution of India,” he said. He added that he stood for coalition Governments formed by representatives of both major and minor communities in different Provinces and also at the Centre.

Dr. Ambedkar reiterated his view that India under the present circumstances should be satisfied with Dominion Status. “My approach to the question of Indian Independence is purely from the stand point of defence of the country and I firmly believe that India is not well equipped at present to defend herself alone without the help of Britain,” he declared. “If the Constituent Assembly adopts my method, India could have the help of the British Army stationed in India without British control over that army, he concluded.” ¹

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¹ : Jai Bheem, dated 26th January 1947.

I FAIL TO UNDERSTAND ATTLEE'S STATEMENT

Dr. Ambedkar, former Member of the Viceroy's Executive Council and leader of the Scheduled Castes in an interview with *Globe* when asked for his reactions to Mr. Attlee's statement on India, said "I have not studied it. In fact, I fail to understand the statement,"

Continuing, Dr. Ambedkar said: "There is not a single point in the statement on which I can put my finger and say that it is clear to me. Nothing is explicit in the statement. Perhaps my intelligence is so limited that I fail to know what the statement is about."

In reply to the question whether the Scheduled Castes Sikhs were part and parcel of the All-India Scheduled Castes Federation, and if so, what was their motive in joining the League's demonstration against the Punjab Government. Dr. Ambedkar said: "I have no idea as to whether they are part of the Scheduled Castes Federation. The question will be better answered by the Sikhs themselves in the Punjab"—*Globe*.¹

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¹ : Reprinted, *Jar Bheem*, dated 16th March 1947.

SECURE ADEQUATE SAFEGUARDS FOR THE UNTOUCHABLES

Dr. B. R. Ambedkar expressed his thoughts regarding the safeguards for Scheduled Castes in the letter addressed to Jogendra Nath Mandal. Letter follows : Editors.

“CONFIDENTIAL

BHIMRAO R. AMBEDKAR

M.A., Ph.D., D.Sc,
Barrister-at-Law

‘RAJGRAHA’

Dadar, Bombay-14

Bombay-2nd June 1947

My dear Mandal,

Your letter of the 30th May, 1947 was delivered to me by Mr. Meshram yesterday. I am sorry that for the whole of last month owing to severe pain in my left leg I have been confined to bed and disabled from taking any active interest in public affairs. I wish to come to Delhi on the 4th by air to attend the Union Constitution Committee to which I have been appointed. But that depends upon my fitness to move. In case I am still advised by Doctors not to move, I shall let you know my views about the question of partition of Bengal. I have always felt that the British have refused to recognise the Scheduled Castes as a separate and independent entity. The Scheduled Castes were incapable of doing anything precisely with regard to the question of partition. They could neither force partition nor could they prevent partition if it was coming. The only course left to the Scheduled Castes is to fight for safeguards either in a United Bengal or a Divided Bengal. I also hold the view that the Muslims are not greater friends of the Scheduled Castes than the Hindus and that if the Scheduled Castes should by their own circumstances be destined to live in a minority whether a Hindu Bengal or a Muslim Bengal, the only one course is to fight for safeguards for every possible emergency. It is possible for the reasons you have mentioned that the Scheduled Castes in Eastern Bengal

will elect to stay where they are even when partition comes. I have of course told the Hindus that in case there is partition they shall have to agree to reserve some land in Western Bengal for the Scheduled Castes of Eastern Bengal when the Damodar Valley Project matures and more land is made available for cultivation and in case the Scheduled Castes of Eastern Bengal express a desire to migrate to Western Bengal. This is however a somewhat remote possibility. In the meantime I agree that you should work in alliance with the League and secure adequate safeguards for them, I am not quite so hopeless as you are with regard to the attitude of the Hindus in Evelock to give political safeguards to the Scheduled Castes. There isn't a chastened mind. In so far as I am able to judge I think they will agree to almost all the safeguards that we want. The only thing they will insist on is some modified form of Separate Electorates. The Muslim League however, will be ready to give to the Scheduled Castes Separate Electorates more probably because they themselves want Separate Electorates for their own community. So far as the Eastern Bengal Scheduled Castes are concerned that no doubt is an advantage.

You have asked me to let you have what demands you should put up before the Muslim League. I have formulated a set of demands in my Memorandum which has been printed and circulated to the Members of the Minorities Committee. I am sending a copy of it to you for your information. In my view that Memorandum contains all that we need for our protection, not only in Eastern Bengal but in every Province in India. I think you should make this Memorandum the best use in your negotiations with the Muslim League. Of course, you are free to add to it any new safeguard for our people in Eastern Bengal which you think there are some special circumstances which call for such safeguards.

I have been already apprised of the plight of the *Satyagrahis* in Lucknow Jail. I am sending two of my representatives to Lucknow in order to inspect and state the condition of the *Satyagrahis* in Jail. I have also referred to the Prime Minister. U. P. Of course, our own people having thrown a challenge to

the Government of U. P. in the form of a *Satyagraha*, prestige release the *Satyagrahis*. But if some agreement is reached with regard to our safeguards in the Minorities Committee, I should, of course, make their immediate release a part of the bargain.

With Kind regards,

Yours sincerely,

Sd/- B. R. AMBEDKAR

Hon'ble Mr. J. N. Mandal,
Law Member to the Govt. of India,
NEW DELHI.”¹

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¹ : Khairmode, Vol. 8, Pp. 164—166.

INDIAN CENSUS

Dr. B. R. Ambedkar expressed his opinion on Indian Census on 26th October 1947, as follows : Editors.

“The Census of India has over a number of decades ceased to be an operation in demography. It has become a Political affair. Every community seems to be attempting to artificially argument its numbers at the cost of some other community for the sake of capturing greater and greater degree of political power in its own hands. The Scheduled Castes seem to have been made a common victim for the satisfaction of the combined greed of the other communities who through their propagandists or enumerators are able to control the operations and the results of the Census.”¹

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¹ : Khairmode, Vol. 10, P. 22.

Place is not mentioned—Editors.

SCHEDULED CASTES IN PAKISTAN SHOULD COME OVER TO INDIA

New Delhi, November 27th, 1947.

“The Nizam deserves no sympathy in opposing union with India. I am anxious that no person from the Scheduled Castes brings disgrace upon the community by siding with one who is an enemy of India,” says Dr. B. R. Ambedkar, Minister for Law, in a statement extending to them an open invitation to migrate to India. issued today.

Regarding the status of his followers in Pakistan, Dr. Ambedkar mentioned that the Muslim League and its President had sided the Scheduled Castes only when it suited them and in view of the wrongs perpetrated on them, he suggested that they too should come over to India from Pakistan.

Dr. Ambedkar felt that the number of Scheduled Castes in India was so large and well-organised, they could not fail to influence the Government of the day.

He added : “I have received innumerable complaints from the Scheduled Castes from Pakistan and Hyderabad asking me to do something to relieve them from the distress in which they have been placed as a consequence of the policy adopted by Pakistan and Hyderabad towards them. In Pakistan, they are not allowed to come over to India and they are being forcibly converted to Islam. In Hyderabad also they are being forcibly converted to Islam in order to increase the strength of the Muslim population there. Further, there is a regular campaign carried on by the Ittehad-ul-Muslimeen by burning the houses of the Untouchables in order to strike terror into the hearts of the Scheduled Castes of Hyderabad so that they may never join the movement for responsible Government in Hyderabad and compelling Hyderabad to join the Indian Union.

Open Invitation

“All I can do is to invite them to come to India. For, the condition of the Scheduled Castes in India is as it is in Pakistan. In

India they are being tyrannized by the Caste Hindus in all parts of the country. While in Pakistan they are subjected to forcible religious conversion, in Hindustan they are subjected to forcible political conversion. They are compelled to be members of the Congress and if they refuse to become members they are boycotted and their lives made impossible. There have been cases particularly in the U. P. where the tyranny and oppression against the Scheduled Castes have been carried to the length of burning them alive. The tyranny and oppression that is being practised upon the Scheduled Castes in East Punjab by the the Sikhs and Jats who have come from West Punjab have been equally unbearable. The administration which is entirely by Caste Hindus has done nothing to render them the slightest assistance.

Notwithstanding the gloomy prospect for the Scheduled Castes who are in India, I would like to tell the Scheduled Castes who happen today to be impounded inside Pakistan to come over to India. The Congress party has weakened the political safeguards necessary for the Scheduled Castes under the new Constitution to such an extent as to make them worse than useless. Nonetheless, our numbers are so great that if we are well-organised, we cannot fail to influence the Government of the day.

Muslims Are not Friends

It would be fatal for the Scheduled Castes, whether in Pakistan or in Hyderabad, to put their faith in the Muslims or the Muslim League. It has become a habit with the Scheduled Castes to look upon the Muslims as their friends simply because they dislike the Hindus. This is a mistaken view. The Muslims wanted the support of the Scheduled Castes but they never gave their support to the Scheduled Castes. Mr. Jinnah was all the time playing a double game. He was very insistent that the Scheduled Castes were a separate entity when it suited him but, when it did not suit him he insisted with equal emphasis that they were Hindus. The Muslims and the Muslim League, charged as they are with the passion to make the Muslims a governing class as quickly as possible, will never give consideration to the claims of the Scheduled Castes. This I speak from experience.

As regards conversion, we Scheduled Castes must look upon it as a last resort forced upon them by violence. And even to those who are converted by force and violence, I say that they must not regard themselves as lost to the fold for ever. I pledge my word that if they wish to come back I shall see that they are received back into the fold and tressed as brethren in the same manner in which they were treated before their conversion.

“The Scheduled Castes of Hyderabad should under no circumstances side with the Nizam and the Ittehad-ul-Muslimeen. Whatever the tyranny and oppression which the Hindus practise on us, it must not warp our vision and swerve us from our duty. The Nizam deserves no sympathy in opposing Union with India. In doing this he is acting against his own interest. He does not realize that his own dynastic rights would be much safer if they were guaranteed by the Union Constitution which would have the sanction of 90 per cent of the Hindus of India than they would be if he relied on the Ittehad-ul-Muslimeen. I am anxious that no person from the Scheduled Castes bring disgrace upon the community by siding with one who is an enemy of India.” A.P.I.”¹

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¹ : The National Standard, dated 28th November 1947.

SCHEDULED CASTE REFUGEES NEGLECTED

After partition, in Bengal and in Punjab, communal clashes between Hindus and Muslims arose on a scale never experienced in the past. Both the communities suffered badly. But the ill-effects of that dissension were felt even by a large number of Untouchables living in those areas, Dr. B. R. Ambedkar had received a number of letters describing sufferings undergone by the Untouchables by the Hindus, Muslims, Sikhs and Jats. He, therefore, wrote a letter (dated 18th December 1947) to the Prime Minister Jawaharlal Nehru, informing him of the sufferings of the Untouchables and requesting him to give relief to the Scheduled Caste refugees—Editors.

“New Delhi,

The 18th December 1947.

My dear Shri Jawaharlal,

I have been receiving so many complaints from the Scheduled Castes evacuees who come over from Pakistan to India as well as from those who have been looked up by the Pakistan Government and prevented from coming over to India. I feel that the time has come for me to draw your attention to their sufferings. For the purpose of giving you an idea of what is happening and what is required to be done, I am setting out below the causes of their sufferings and the measures that should be adopted to remove them.

I

(1) The Pakistan Government are preventing in every possible way the evacuation of the Scheduled Castes from their territory. The reason behind this seems to me that they want the Scheduled Castes to remain in Pakistan to do the menial job and to serve as landless labourers for the land holding population of Pakistan. The Pakistan Government is particularly anxious to impound the sweepers whom they have declared as persons belonging to Essential Services and whom they are not prepared to release except on one month's notice.

(2) The organisation known as the M.E.O. has been of some use in helping the Scheduled Castes refugees who are anxious to evacuate. I, however, understand that the Pakistan Government is not permitting the M.E.O. to get into direct touch with the Scheduled Castes who want to evacuate. Consequently, the process of evacuating the Scheduled Castes is going very slowly, and in some places it is at a standstill. I am also told that the M.E.O. is going to be closed very soon. If this happens then the evacuation of the Scheduled Castes from Pakistan would be quite impossible.

(3) What is necessary to do is :—

- (i) to ask the Pakistan Government not to place any obstacles in the way of the evacuation of the Scheduled Castes,
- (ii) to allow the M.E.O. to get into direct touch with Scheduled Castes and wish to evacuate,
- (iii) to maintain the M.E.O. till all the Scheduled Castes are evacuated.

(4) So far the Ministry of Relief and Rehabilitation has appointed only one officer from the Scheduled Castes to West Punjab. But other Provinces of Pakistan such as N. W. F. P., Sind and Bhawalpur are left over and for which no such officer has been appointed. The Ministry should be directed to make appointments to these areas forthwith to that special officers could tour the Pakistan area and find out the places where the Scheduled Castes are prevented by the Pakistan Government from coming over.

II

With regard to those Scheduled Castes who have come over from Pakistan to Eastern Punjab, they have also sent their complaints. They are far more numerous than those coming from persons who are impounded in Pakistan. I have their gist below :—

(i)

(1) The Scheduled Castes evacuees who have come to Eastern Punjab are not living in the refugees camps established by the

Government of India. The reason is that the officers in charge of these refugees camps discriminate between the Caste Hindu refugees and the Scheduled Caste refugees.

(2) It appears that the Relief and Rehabilitation Department has made a rule that it is only that refugees who are staying in the Relief Camps can receive rations, clothing, etc. On account of their not staying in the Refugee Camps for the reason mentioned above, the Scheduled Castes refugees are not getting any relief. This is a great hardship.

(3) As discrimination cannot be prevented, it is necessary to modify the rule so that the Scheduled Caste refugees living outside the camps should also be entitled to relief in the same way and to the same extent as refugees living in camps.

(ii)

(1) In the allotment of lands made by the Government of Eastern Punjab the interests of the Scheduled Castes are completely overlooked. The administration of Eastern Punjab being entirely in the hands of the Caste Hindus, there is nobody either to take a personal interest in the rehabilitation of the Scheduled Castes evacuees nor is there any agency appointed by the Government of India especially charged with the duty of bringing to the notice of the Eastern Punjab Government that the interests of Scheduled Castes are overlooked.

(2) It is, therefore, essential that there should be a number of officers appointed by the Government of India to work in East Punjab charged with the special duty of seeing that the allotment of land is fairly made and that the Scheduled Caste refugees get their legitimate share.

(3) I have given to the Honourable Mr. Neogy a list of persons for being appointed for this purpose who, so far as I know, are best qualified to carry out this work.

(4) (a) It is a notorious fact that the Sikhs and the Jats who occupy a very prominent position in East Punjab are compelling the Scheduled Castes who are residents of East Punjab to evacuate their original homes in order to appropriate their houses or their

landed property. The Scheduled Castes are unable to obtain any redress from the tyranny and oppression practised upon them by the Sikhs and the Jats to carry out their purposes for the simple reason that the Magistracy and the Policy in East Punjab are wholly manned by the Sikhs and Jats who quite naturally protect the wrong doers who are their Kith and Kin and pay no attention to the complaints of the Scheduled Castes.

(b) It is, therefore, absolutely essential that the Government of East Punjab should be compelled to recruit at least 300 Scheduled Castes in their Civil Police. It was recently published in the newspapers that the East Punjab Government had recruited some 300 Scheduled Castes in their Police Force. On enquiry I found that this recruitment has been made for the purpose of the Frontier Constabulary and not for the ordinary Civil Police Force. What the Scheduled Castes need for the purpose of their protection is recruitment to the Civil Police of East Punjab. I am informed that the Civil Police Force of East Punjab does not include even a single Scheduled Caste person.

(5) (a) The Land Revenue system of East Punjab divided the residents of village into two classes *Zamindars* and *Kaminas*. In the category of the *Zamindar* are included those families who have an exclusive right to own land situated inside the village boundary. The *Kaminas* have no right to buy or to own land situated in the village of which they are residents. Even the sites on which their houses are situated belong to the *Zamindars*, with the result that the *Zamindars* if they combine can compel the *Kaminas* to leave the village by asking them to remove their houses. This rule places the *Kaminas* of every village at the mercy of the *Zamindars*. The Scheduled Castes in all the villages in East Punjab are classed as *Kaminas* and are therefore living in complete servitude of the *Zamindars* of the village.

(b) It is, therefore, necessary that the East Punjab Government should be called upon to abolish this distinction by altering their Land Revenue system and making it similar to the Ryotwari System under which all villagers are placed on equal footing so far as the capacity to own land is concerned.

(6) (a) In the Province of East Punjab there operates what is called the Land Alienation Act which is intended to protect the agriculturists from the money lenders. But there cannot be slightest doubt that it is a most vicious piece of legislation inasmuch as it contains a definition of Agriculturist which is communal and not occupational. According to this law, a person is an agriculturist if he belongs to a community which is declared by the Government as an agricultural community. The old Punjab Government took particular care not to declare the Scheduled Castes as an agricultural community although every member of the Scheduled Castes is either a cultivator of land or an agricultural labourer. The result is that the Scheduled Castes in East Punjab are debarred from buying or acquiring landed property and are compelled to lead the life of landless labourers dependent upon the Hindu, Sikh and Jat landowners for their livelihood. This is a cruel piece of legislation and I think ought not to be allowed to remain on the Statute Book.

(b) The East Punjab Government should be to amend the definition of the term 'agriculturist' and make it occupational so that everybody who earns his livelihood by agriculture irrespective of his caste and creed becomes an agriculturist entitled to own and acquired landed property.

I have enumerated all the difficulties of the Scheduled Castes which have been brought to my notice and the remedies, which I think, if adopted, will remove them. Some of the remedies lie in the hands of the Government of India and the rest in the hands of the Government of East Punjab. There can be no question of applying such remedies as lie in the hands of the Government of India if it has the will to do so. Even with regard to those remedies which lie in the hands of the Government of East Punjab, the Government of India need not feel helpless. For, since the Government of India is paying the cost of rehabilitation, it has a moral right to compel the Government of East Punjab to adopt particular measure which the Government of India thinks necessary for a fair and equal treatment of all classes of people. That is the reason why I have not hesitated to include for action by the

Government of India such remedies as lie in the hands of the Government of East Punjab. So far all care and attention has been bestowed by the Government of India on the problem of the Muslims. The problem of Scheduled Castes has either been supposed not to exist, or deemed to be so small as not to require special attention. Although some people do not like to mention the problem of the Scheduled Castes nonetheless those of us who are concerned with the Scheduled Castes know that: the problem exists and it is such more acute than the problem of the Muslims. Many a times I had thought of drawing the attention of the public to the neglect by the Government of India of the problem of the Scheduled Caste refugees both in Pakistan and in India. For obvious reasons I have refrained from doing so. Owing to your pre-occupation with other matters, I have made no complaint regarding your silence about this question. But I am afraid time has come when I must insist upon your giving personal attention to this problem by issuing directions to the Minister for Relief and Rehabilitation and to the Minister without Portfolio to relieve the Scheduled Castes of their sufferings either by adopting the remedies I have suggested in this letter or by devising better remedies to effectuate the purposes I have set out. I shall be grateful if you will give this matter your immediate attention.

Yours sincerely,

(Sd/)—B.R. AMBEDKAR.

The Hon'ble Pandit Jawaharlal Nehru,
Prime Minister of India,
New Delhi.”¹

Pt. Jawaharlal Nehru responded to the abovementioned letter thus :

“Prime Minister,
India.

P.M.
New Delhi,
The 25th December 1947.

My dear Dr. Ambedkar,

I have your letter of the 18th December about the evacuation of Scheduled Caste people from Pakistan to India.

¹ : Reprinted, Khairmode, Vol. 10, Pp. 26-32.

We have been trying our utmost to help in the evacuation of the Scheduled Castes from Pakistan, notably Sind, where they have been prevented from coming away. Our High Commissioner there is in continuous contact with this problem.

As regards the other problems raised by you they have to be dealt with by the East Punjab Government. We shall certainly advise them in the matter and see to it that every help is given to the Scheduled Caste evacuees.

We have had some difficulty in dealing with the East Punjab Government in regard to many matters chiefly because the multitude of the problem it faces. I shall gladly give my personal attention to this subject and am requesting the Minister without Portfolio to look into this matter specially.

Yours Sincerely,

(Sd/—) Jawaharlal Nehru.

The Honourable Dr. B. R. Ambedkar.”¹

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¹ : Reprinted, Khairmode, Vol. 10, Pp. 32-33.

GOVERNMENT SHOULD BE IMPARTIAL

The pitiable plight of the Untouchables coming from Eastern Punjab was becoming worse day by day. To get the solution to this problem officials from the Untouchables were to be appointed in the Relief and Rehabilitation Department. Hence Dr. Ambedkar wrote a letter to Hon'ble Mr. K. C. Neogy, Minister for Relief and Rehabilitation, New Delhi. The letter is as follows.—Editors.

“Personal

New Delhi,
23rd March 1948.

My dear Neogy,

You will recall that you wanted me to recommend the names of some special workers who could be employed under your Department for helping the Scheduled Caste refugees who have come over from Western Punjab to Eastern Punjab in the matter of their rehabilitation. I gave you a list of persons who could be employed for this work. I do not know what you have done with regard to the names contained in the list. There are, however, two persons whom I recommended and whom you have appointed, and about whom I propose to write to you in this matter. They are Messrs B. K. Gaikwad and R. S. Jadhav. Both of them have been complaining to me that they are given no work at all and that they are wasting their time. They also reported to me that they were called over by Mr. Shevakram Karamchand who is the Director of the Harijan Section of your Department and who cross questioned as to their views on the general politics of this country. The impression left upon them, which they conveyed to me, is that the Government of India is not prepared to employ people because they do not belong to the Congress. It seems to me absurd, if not mischievous, for Government to insist that its employees should have the same political opinion as the Party in power, and I am sure that you do not share the view-point expressed by Mr. Shewakram Karamchand. What I am concerned about is that these two men who have been retained are not given the work for which they were

recruited. Mr. Karamchand told them in the course of the interview that the persons recommended by the Harijan League were thoroughly incompetent and were of no use for the sort of work they were expected to do and that the persons belonging to the Scheduled Castes Federation were the most competent, and yet these men are not given the responsible work for which they were recruited merely because their political opinions are distasteful to this gentleman. I am, therefore, driven to ask you whether you intend to give them any responsible piece of work for which they are fitted. If you are not prepared to do that I think it is only right that you should discontinue their service and allow them to return to their places and do the social work that they had been doing. I am sorry I have to write to you in this very direct fashion, but when one's patience is exhausted one has no other way.

With kind regards.

Yours sincerely,
Sd/—B.R. Ambedkar.

Honourable Mr. K. C. Neogy,
Minister for Relief and
Rehabilitation,
New Delhi.”¹

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¹ : Reprinted, Khairmode, Vol. 10, Pp. 34-35.

BE YOUR OWN LIGHT !

“On a balmy evening in May 1950, two gentlemen seated themselves on a bench in Bombay’s Cuffe Parade and proceeded to hold a conversation. One of them was the architect of the Indian Constitution Dr. Bhimrao Ramji Ambedkar. The other was noted writer Mulk Raj Anand, author of ‘The Untouchable’.

Forty years later, Dr. Anand recalls the illuminating conversation with the Messiah of the downtrodden.

Mulk Raj Anand : Namaskar, Dr. Ambedkar !

B. R. Ambedkar : I prefer the Buddhist greeting—Om mani padmaye ! May the lotuses awake.

MRA : I agree. How thoughtless we are ! We inherit words without questioning their meaning ! Of course, namaskar means I bow before you

BRA : That perpetuates submission ! May the lotuses awake is a prayer for enlightenment!

MRA : Indeed, old habits die hard. We adopt them unthinkingly

BRA : In everything.

MRA: Come to think of it, one is not born stamped Hindu ! Or

Muslim ! or Christian! Hindu parents give their child a name during the naming ceremony ! Sanctified by a priest reciting verses in Sanskrit, which the child does not understand. A sacred thread is put on his body. And to and behold the boy is a Hindu !

BRA : Idiocy !

MRA : If you by mean the Greek word, idiot-going round and round in circles !

BRA : One must question all old habits, ideas, practices. Education should encourage the new young to ask the teacher, one new question a day

MRA : The best way to teach teachers ! They often don't know what is not in the text book. As a matter of fact, even in one's mature youth, one can only grow by asking questions. I learnt this from Henri Bergson's book *Creative Evolution*. I was in difficulties about various philosophical problems after reading Hegel, Kant and Descartes. Bergson said : One can heighten consciousness by questioning every philosophical proposition

BRA : Buddha argued with Brahmins about every one of their beliefs. They had degraded whole people as outcastes. They said, God had ordained you varnas—Brahmins, Kshatriyas, Vaishyas, Shudras. Buddha asked : What about man himself—the individual ? Because a man is born in a family which handles corpses of dead cattle, he is condemned to be an Untouchable. All forest people are junglis to the Hindus

MRA : Rejected !

BRA : Indeed ! Everyone who works with hand was, and is, rejected. Those who skin animals! Those who carry dung! Those who do menial labour on the land ! All branded and bonded forever ! After five thousand years it is still worse ! An Untouchable can't enter a temple even if he has a bath before he goes there ! He can't draw water from the village well—he must take it from the filthy pond outside the village ! He can't graze his cattle on the landlord's land. He is dirty because he cleans dirt. Always considered impure ! An animal can be touched, not an Untouchable

MRA : As a member of the Constituent Assembly have you been able to assert the rights of the individual ? I see that your committee gives fundamental rights—the right of the individual to freedom. But we see that you have also conceded the right to property as a fundamental right Does not the right to property give a decisive advantage to those who have inherited wealth ? So the poorest of the poor, the Untouchable will always be at a disadvantage.

BRA : In our Constitution, we have put forward the ideal of a secular, socialist democracy... If every one can have the right to till the land from the State tenancy rights then equality of privilege

can be assured and there need be no exploitation. So far Untouchables and even many Caste Hindus and Muslims do not have tenancy rights. All these landless peasants are mere hands.

MRA : Then the right to work should have been recognised as a fundamental right.

BRA: I was only one of the members of the drafting committee.

MRA : So you became a lamb before the lions ! BRA : I bleated good deal ! I am now roaring !

MRA : As a lawyer, you know how the judges will always decide in favour of the high caste, upper class Hindus.

BRA : Of course, the only Non-Brahmin in our Government of Pandit Jawaharlal Nehru fought hard against the right to own property being a fundamental right But Babu Rajendra Prasad felt that Nehru wanted to make India into Russia. The Caste Hindus, therefore, only conceded the other rights of man as directive principles to be fought for in Parliament.

MRA : Which would be weighted in favour of men of property.

BRA : The socialists can win a majority one day. And ask for redress. Any how, the outcastes and tribals have been declared Scheduled Castes. They will be given certain privileges to uplift them—like reservation for admission to schools and colleges and scholarships.

MRA : The Caste Hindus will always resent reservation.

BRA : We must organise ourselves. Arouse the disinherited to fight. There are more outcastes than Caste Hindus—if we include the Muslims who are also regarded as Untouchables by the casteists. And the tribal people. Together, with the socialists they can abolish ownership of private property ! No landlords, no tenants ! No landless labourers !

MRA : State capitalism might also prove to be dangerous. You know what Stalin has done in Russia. Imposed a set of bureaucrats on the people in the name of Communism !

BRA : Of course, we must protect the individual from invasion of his rights from other individuals. Liberty of the person must always be a primary concern. That was in my mind when I urged for fundamental rights.

MRA : If that was in your mind then you might urge Parliament to revise fundamental rights. We must fight against both State capitalism and Private capitalism. You know how the vast majority of people everywhere are subject to the will of the employers.

BRA : Indeed, liberty so far seems to be the liberty of the landlord to increase rent. The capitalist always wants to reduce wages and increase hours of work. Capitalism is a dictatorship of private employer.

MRA : The fundamental rights—right to life, liberty and happiness—remain a dream

BRA : The new young must go on fighting. They can change the Constitution.

MRA : This may not be possible without upturnings like the 1789 revolution in France.

BRA : Strange to hear this from you ! I thought that by making Gandhi the liberator of Untouchables in your novel, you have been converted to non-violence.

MRA : I could not live up to the Mahatma's ideal. We had to face Hitler and Mussolini. I went to Spain and joined the International Brigade. Though I fainted at the sight of blood in a clinic and was asked to opt out.... But one had to take sides in the second world war. A poet called the so-called war for freedom of the democracies against fascism, the fight for a "half lie" against a "big lie."

BRA : You know, though the Mahatma was all for the Harijans, he did not get up his beliefs in the Varnashram dictated by the Bhagwad Gita By calling them sons of Hari, the supreme God, he thought he was exalting them. In fact they were left at the lowest levels.

MRA : Is that why you have adopted Buddhism as your religion ?

BRA : May be that was the chief consideration. Also by remaining a Scheduled Castes citizen, one accepts the status of the outcaste. I have felt the faith of the Buddha, which does not believe in the Hindu God Brahma aspires for human beings, man and women, to be free of dogmas. Obscure myths and legends ! One can pursue knowledge ! One can disown casteist heroes of the Hindus like God King Ram, the avatar of Vishnu ! And many other sentimental myths of Hinduism.

MRA : Indeed, I find the Buddha's hunches far more plausible than the guesses of the Brahmins. He was the first existentialist of the world. He cried out. *Dukha, dukha, dukha !* The Hindus were always for make-beliefs. God is *ananda*. A consolation prize for beggars who ask the feudal Lord God for favours by offering gifts of flowers, bribes of garlands and fruits !—via the priests.

BRA : That is why most priests have big bellies.

MRA : What is your message for the rejected ?

BRA: I say to the Untouchable : Be a lion ! Hindus sacrificed goats before the image of Kali. You be your own light '*atta deep bhav !*'

MRA : Like the Buddha said to Ananda : Be a lamp unto yourself !...."¹

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¹ : Dr. Mulk Raj Anand, An eminent writer and author of "The Untouchable"—Tribal World, April, 1991, P. 13.

Reprinted, Rattu Remembrances of Dr. B. R. Ambedkar. Pp. 110—114.

HINDUISM IS THE LATEST DEVELOPMENT OF SOCIAL THOUGHT IN INDIA

“Bombay, Wednesday*

Dr. B. R. Ambedkar, Minister for Law, Government of India, who arrived in the city from Delhi this evening declined to comment on reports about his *conversion to Buddhism*.

Dr. Ambedkar told pressmen that he intended to start a college at Ahmednagar on the lines of the Siddhartha College. The College which will give instruction in both Arts and Science subject will be started before July next, he stated.

He is leaving for Poona tonight and returning to the city tomorrow evening.

He said, as one interested in the subject, he had been collecting pieces of information as to the causes leading to the birth and fall of *Buddhism in India*.

Dr. Ambedkar was of the opinion that the significance of *Buddhism* would not be understood unless the exact circumstances which gave birth to it were understood. He disagreed with most people who were under the impression that the religion of India had all along been Hinduism “Hinduism is the latest development of social thought in India,” he declared.

Causes of Decline

Turning next to the causes which led to the decline of *Buddhism*, Dr. Ambedkar refuted suggestions made by many people in India that *Buddhism* was destroyed by the dialectic of Shankaracharya. “This is contrary to facts as *Buddhism* existed for many centuries after his death.”

Dr. Ambedkar believed that *Buddhism* faded away in India because of the rise of *Vaishnavaitism* and *Saivaism*. Another cause was the Muslim invasion of India. “When Allauddin marched into Bihar, he killed over 5,000 *Bhikkus*. The remaining

*The 3rd May 1950.

Buddhist monks fled to neighbouring countries like China, Nepal and Tibet. Efforts were subsequently made by *Buddhists* of India to raise another priesthood in order to revive *Buddhism*. But these failed as by then 90 per cent of *Buddhists* had embraced *Hinduism*.

Answering the question why *Hinduism* survived in India and *Buddhism* had died, Dr. Ambedkar said, “this religion is difficult to practise while *Hinduism* is not.”—P.T.I.¹

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¹ : The Free Press Journal, dated 4th May 1950.

SCHEDULED CASTES' EMANCIPATION —DRAFT MANIFESTO—

“An Executive Committee Meeting of All India Scheduled Castes Federation was held at the Residence of Dr. B. R. Ambedkar at New Delhi on 6th Oct. 1951 to decide the Election Manifesto.”¹

In that meeting a decision was taken, not to have alliance with Congress, Hindu Maha Sabha, R.S.S., Communist Party and Jan Sangh. The power to have the alliance with other Politicat Parties was delegated to the adhoc committee comprising Dr. B. R. Ambedkar, N. Shivraj and Bapusaheb Rajbhoj. It was also decided that the *adhoc* Committee would take the appropriate decisions.

“The emphasis was given to make the ‘Samata Sainik Dal’ of ‘Scheduled Castes Federation’ stronger and effective.”

“The manifesto prepared by ‘Scheduled Castes Federation’ was approved unanimously. The press wrote columns after columns speculating about the proposed manifesto. Indians and Western Journals welcomed the manifesto released on 7th October 1951 which was unique, unparalled and outspoken.”²

The copies of manifesto were circulated to the representatives of news papers well in advance. Accordingly the leading news paper ‘The Times of India’ dated October 3rd, 1951 reacted under the above title which is as follows :—

“... Seeking to fight the battle against poverty on two fronts, the Federation, it is understood, will advocate birth control to limit population and urge measures for increased and intensified agriculture and industrial production. The Federation considers rapid industrialization as very essential but is of a view that agriculture would continue to be the foundation of Indian economy. As regards administration, the Federation will press for the creation of linguistic provinces. It will insist on stringent action against corruption and black-marketing in all phases of life, particularly against Ministers or Officers who are corrupt. The Federation will advocate reduction of expenditure in the army, re-levy of the salt tax, abolition of prohibition

¹ : Khairmode, Vol. 10, P. 147.

² : Janata, October 13th, 1951.

and nationalisation of Insurance. As regard the foreign policy, the manifesto is expected to emphasize that India's first duty should be to herself. It will urge the reversal of the present policy which is stated to have converted India's friends into her enemies and the prevailing antagonism between the United States and India, is mentioned as an instance¹

**To the Men and Women of India who are
expected to think before they vote. To the men
and women of India who are expected to believe
that public good should come before selfish gain.**

ELECTION MANIFESTO OF THE SCHEDULED CASTES FEDERATION

Scheduled Castes Federation is an All-India Political Party of the Scheduled Castes, established by the Scheduled Castes. In the following pages an attempt is made to set out (1) its Principles, (2) its Policy, (3) its Programmes and (4) its terms of Co-operation with other political parties.

by Dr. B. R. Ambedkar

¹: The Times of India, dated 3rd October 1951, under title—'Scheduled Castes' Emancipation : Draft Manifesto'

Reprinted, Khairmode, Vol. 10, P. 147.

Principles of the Party

1. The attitude of the Party in public affairs will be governed by the following principles :-

- (1) It will treat all Indians not only as being equal before the law but as being entitled to equality and will accordingly foster equality where it does not exist and uphold it where it is denied.
- (2) It will regard every Indian as an end in himself with a right to his own development in his own way and the State as only a means to that end.
- (3) It will sustain the right of every Indian to freedom—religious, economic and political— subject to such limitations as may arise out of the need for the protection of the interests of other Indians or the State.
- (4) It will uphold the right of every Indian to equality of opportunity subject to the provision that those who have had none in the past shall have priority over those who had.
- (5) It will keep the State ever aware of its obligation to make every Indian free from want and free from fear.
- (6) It will insist on the maintenance of liberty, equality and fraternity and will strive for redemption from oppression and exploitation of man by man, of class by class and of nation by nation.
- (7) It will stand for the Parliamentary System of Government as being the best form of Government both in the interest of public and in the interest of the individual.

2. There are two considerations which should be borne in mind in assessing the implication and sincerity behind these principles. The first consideration is that these principles though adopted by the Federation are for the benefit of all the down-trodden humanity in India. The Federation in that sense cannot be accused of being a communal organization. It may be that it is not open to all, nonetheless it is out to serve all and co-operate with all who prove worthy of co-operation.

3. There may not be anything new in the Principles of the Scheduled Castes Federation. They will be found in the manifestoes of most political parties. But there are two considerations which distinguish the Federation from other Political Parties. The first consideration is that the principles of the Federation are not adopted by the Federation merely to look politically respectable or merely to delude the voters. They are natural to the Federation. They are borne out of the social condition of the Scheduled Castes. The Scheduled Castes Federation cannot exist without adopting these principles and without holding up to those principles and living up to them. The principles of the Scheduled Castes Federation are the life book of the Scheduled Castes Federation. They are not the external marks of a political faith. They are the outward register of the inward feeling. They are not cloak worn for the purpose of winning the election. Many parties may adopt these principles. But no party can be so true to the principles as the Scheduled Castes Federation. This is the second consideration in valuing the principles of the Federation.

The Policy of the Party

4. The policy of the Party will be to try to give effect to the principles set out above. The policy of the Party is not tied to any particular dogma or ideology such as Communism, or Socialism, Gandhism, or any other ism. The Party will be ready to adopt any plan of social and economic betterment of the people irrespective of its origin and provided it is consistent with its principles. Its outlook on life will be purely rational and modern, emperistic and not academic.

The Programme of the Party

I. Old Problems

5. The programme of any Political Party in India must be integrally connected with the legacy left by the British. The legacy of the British has its credit side, and also its debit side. On the credit side must be reckoned (1) a uniform system of law, (2) a uniform system of justice, and (3) a uniform system and administration. On the debit side must be reckoned (1) maintenance of the archaic

social system prevalent among the people of the country, (2) maintenance of the privileged class in education and in the Services, both Civil and Military, (3) complete neglect of the Untouchables, of the Backward Classes and of the Tribal People, (4) impoverization of the country.

A. Problem of Raising the Backward Classes

6. The Scheduled Castes Federation will fight for the raising of the Backward Classes, the Untouchables and the Tribal people both in the matter of Education and Services. This will receive topmost priority in the plan of action by the Federation and will be treated as fundamental. Neither delay or want of means will be allowed to stand in the way of carrying this part of the Programme into effect. The sort of Education which the Scheduled Castes Federation has in mind with regard to these classes is not primary education, not even Secondary Education. What it has in mind is advanced education of such high order, both in this country and outside, which will enable these classes to fit themselves for taking hold of administration. Similarly, in the matter of services, the Scheduled Castes Federation will insist on reservation, subject to minimum qualifications, so long as these classes are not able to find their place in the Civil and Military services of the country. Today there is rampant a worst sort of communalism in the Civil and Military services of the country by the higher classes. The services have become the monopoly of a few communities. When the lower classes are trying to break this monopoly by demanding that they who are at present excluded from services, are decried as communalists. The Scheduled Castes Federation will not allow this perverted logic to stand in the way of the non-privileged classes in the way of the fulfilment of their demand for occupying their rightful place in the affairs of this country.

7. The Scheduled Castes Federation believes that the gulf between the higher classes and the lower classes in this country is already very great. This gulf has already created a good deal of enmity between them. The murders, arsons and loot that were committed by members of the lower classes against members of the higher classes in 1948 in certain parts of India after the murder of Mr. Gandhi shows how deep rooted this enmity is.

The Scheduled Castes Federation is firmly of opinion that to remove the cause of this enmity is to give the lower classes the higher education and to open to them the door of services is the only solution of this problem. The artificial distinction between higher classes and lower classes based on birth must come to an end soon. But it cannot come to an end except by raising the lower classes to the level of the higher classes in the matter of education.

B. The Problem of Poverty

8 (7) The economic condition of India has been described by the Planning Commission in very realistic terms. It says :-

- (i) The population of the Indian Union (excluding Jammu and Kashmir) has increased from 235.5 million in 1901 to 356.9 million in 1951—an increase of about 52 per cent over the half-century. The rate of increase for the first two decades was relatively low, but it has risen since then. Between 1921 and 1931, the increase was 11 per cent; for 1931-41, it was 14.3 per cent; and, for 1941-51, it was 13.4 per cent.
- (ii) There has been very little change in the occupational structure, despite considerable development of industries. In 1911, about 71 per cent of the working population was engaged in agriculture. For 1948, the National Income Committee puts this figure at about 68.2 per cent. Agriculture affords employment for only a part of the year, so that a large proportion of the workers engaged in this occupation are more or less idle for the rest of the year. There is thus a great deal chronic underemployment in the country.
- (iii) Sown area per person has shown a steady tendency to decline. For British India, sown area per person went down from 0.88 acre in 1911-12 to 0.72 acre in 1941-42. For 1948, i.e., after partition, the estimated sown area per person in the Indian Union works out at 0.71 acre. Evidence as to the trend of yields per acre is not

conclusive. From some of the published figures available, it would appear that in respect of certain food crops, at any rate, the trend has been downward. It is difficult to assess the over-all trend of productivity in agriculture, but the broad picture that emerges suggests conditions of stagnation in this respect.

8. The Problem of poverty is thus a double edged problem. From one point of view it is a problem of more production both in Agriculture and in Industry. From another point of view, it is a problem of controlling the excessive growth of population. Both sides are equally important. The Scheduled Castes Federation proposes to fight the battle against poverty on both the fronts.

9. For the purpose of reducing population, it would advocate an intensive propaganda in favour of birth-control among the people. It will advocate the opening of birth control clinics in different parts of the country. It regards the growing rate in the increase of population in the country so grave an evil that it would not hesitate to advocate more drastic methods of controlling it.

10. For the purpose of increasing production, the Scheduled Castes Federation will not be bound by any dogma or any pattern. The Pattern of industrial enterprise will be a matter regulated by the needs of the time and circumstances. Where national undertaking of an industry is possible and essential, the Scheduled Castes Federation will support national undertaking. Where private enterprise is possible and national undertaking not essential, private enterprise will be allowed. Looking at the intense poverty of the people of this country no other consideration except that of greater production and still greater production can be the primary and paramount condition. A pre-conceived pattern of industry cannot be the primary or paramount consideration. The remedy against poverty is more production and not the pattern of production. Once reservation, the Scheduled Castes Federation must however make. Any scheme of production must in the view of the Scheduled Castes Federation remain subject to one overriding consideration namely that there should be no exploitation of the working classes.

11. While the rapid industrialisation of the country is very essential in the opinion of the Federation agriculture is bound to remain the foundation of India's economy. Any scheme of increased production which does not take into account the re-construction of Indian agriculture is doomed to disappointment.

12. The Federation holds that for increased production in agriculture the following plan must be adopted :—

- (i) Agriculture must be mechanised. Agriculture in India can never become prosperous so long as the method of cultivation remains primitive.
- (ii) To make mechanised farming possible, cultivation on small holdings must be replaced by large farms.
- (iii) To increase the yield, there must be provision for adequate manuring and for the supply of healthy seeds.

13. It is not possible for the average agriculturist to adopt this plan and work upon it. He has no means to bear the cost involved in the plan. The Scheduled Castes Federation believes that the plan should be put into effect by the State. The first item in this plan should be the responsibility of the State. The State should supply all the mechanized equipment to the farmer on hire and at a rental to be recovered along with the land revenue.

14. With numerous small holdings, the problem of creating large scale farms becomes very difficult. But the problem must be solved either by introducing Co-operative farms or collective farms.

15. Although India is an agricultural country, there are a vast number of people who are just landless labourers, who are ekeing out a miserable living and who are exploited by cultivators and majority of whom are Untouchables and other backward classes. There is no need why this body of landless labourers should be left to their fate resulting in their misery

and in the poverty of the country. This is all the more regrettable because the situation is not beyond remedy. In this connection the following figures relating to available land in India are very instructive :

Total Geographical area	811	million acres.
Total area under agriculture	577	million acres
Total area under forest	84	million acres
Cultivable waste	93	million acres
Uncultivable waste	93	million acres
Current fallow	62	million acres
Net land under agriculture	244	million acres

From these figures it is quite clear that there are 93 million acres of land which is cultivable waste and which can be brought under cultivation. Surely, it cannot be beyond modern science to reclaim this vast amount of cultivable waste land and make it available for cultivation. The Scheduled Castes Federation will take up this question.

16. The prosperity of the agriculturist must depend upon the maintenance of forest belts spread over the country. Without forests belts proper degree of rainfall will not be assured and agriculture in India will continue to be the gamble in rain as it has always been in the past. The Federation would urge for more and more afforestation of the uncultivable waste land.

17. Agriculture in the narrow sense of the term can never be a profitable pursuit. It must be supplemented by subsidiary industries which are called cottage industries. But no cottage industry worth the name will be possible without an adequate supply of electricity. Generation of electricity is in the opinion of the Scheduled Castes Federation the foundation of economic prosperity of India and the Scheduled Castes Federation will strive for the realization of the river valley projects, the purpose of which is to produce irrigation, to produce electricity and to stop floods.

18. Just as land has been neglected so also landless labourers have been neglected. The Federation will reserve land out of uncultivated land or reclaimed land for the

benefit of landless labourers and will also introduce for them the principle of minimum wages.

II. New Problems

19. So far the manifesto has dealt with the way the Scheduled Castes Federation proposes to deal with the old problems which the British left as a legacy to India. Since Independence, new problems have come up. They fall into two divisions—

- (A) Problems of Internal Administration, and
- (B) Problems of Foreign Relations

A-Problems of Internal Administration

20. Among the problems of Internal Administration the glaring ones are :—

- (i) The Problem of Linguistic Provinces;
- (ii) The Problem of restoring purity of Administration ;
- (iii) The Problem of Control and Black-marketeers;
- (iv) The Problem of Inflation and the distress due to rising cost of living.

21. The Problem of Linguistic Provinces is most urgent. The quarrels within linguistic units in the States of Madras, Madhya Pradesh and Bombay have made it impossible for democracy to work. There must be social peace among various linguistic units if our constitution is to work on purely political considerations. For that purpose Linguistic States is the only remedy. The Federation will press for the creation of Linguistic States.

22. . The Scheduled Castes Federation believes that corruption in administration is wholly the creation of the Congress. The Congress imply does not believe in punishing the corrupt. Charges have been made by members of the Congress itself against congress ministers of corruption and graft not in one State but in many states. The Congress High Command did not even think it necessary to make inquiries. Instead of making inquiries into these charges

and punishing the guilty Ministers the Congress High Command has suppressed those who have made such charges thereby openly protected the corrupt and the dishonest. When Ministers at the top are corrupt how could officers below fail to be corrupt ? The Federation will urge stern action against ministers or officers who are corrupt and raise the standard of administration which has fallen so low during and owing to the Congress regime.

23. The problem of control and Black-marketeers is also the result of the close association between the Congress and Big Business. The Congress throughout its life has been financed by Big Business and is reared upon the support of Big Business. From what has recently been revealed to be happening in the State of U. P. this association between the Congress and Big Business bids fair to continue. Congress is prepared to sell Big Business power in exchange for election fund and Big Business is ready to buy power by giving money to Congress to run its election. Much of the remedy lies in the hand of the Voter himself. If he realizes that he must not support a candidate who is backed by Big Business he will greatly help to solve the problem. The Federation which is miles away from Big Business will see to it that the Big Business does not run the Government of country.

24. The problem of inflation seems to have come to stay. It is allowed to despoil the life of the people. It has never been given the consideration it deserves. The Federation will press for its immediate solution.

B- Problems of Foreign Policy

25. It is a fact that on the date of India's Independence all nations were the friends of India and wished her well. Today the situation is just the reverse. India has no friends. All nations are her adversaries, if not actual enemies. This ghastly change in the situation is the result of the Foreign Policy of the Congress Government. This change of front by foreign nations towards India within the last three years is due to India's policy regarding Kashmir, regarding the admission of Communist China in the United Nations Organisation and in regard to the Korean War.

26. On the Kashmir issue, the policy adopted by the Congress Government is not acceptable to the Scheduled Castes Federation. This policy if continued will lead to a perpetual enmity between India and Pakistan, and the possibility of war between the two countries. The Scheduled Castes Federation believes that it is essential for the good of both countries that they should be good and friendly neighbours. For this purpose the proper policy to adopt towards Pakistan should be based upon two considerations. (1) There should be no talk about the annulment of the partition of India. Partition should be accepted as a settled fact not to be reopened and that the two countries to continue as two separate sovereign States. (2) That, Kashmir to be partitioned— the Muslim area to go to Pakistan (subject to the wishes of the Kashmiries living in the Valley) and the non-Muslim area consisting of Jammu and Ladhak to come to India.

27. This policy has the best chance of producing friendly relations between the two countries, and the Scheduled Castes Federation will press for its acceptance.

28. The other centre of our foreign policy which has made other nations our enemies is China. India is made to fight her battle for entry in the United Nations Organisation as a permanent member thereof. This is an extraordinary thing. Why should India fight the battle of China when China is quite capable of fighting her own battle? This championing of the cause of Communist China by India has been responsible for the prevailing antagonism between India and America with the result that it has become impossible for India to obtain financial and technical aid from America.

29. We refused Dominion Status. We became an Independent Country. Subsequently we agreed to remain in the British Commonwealth— and yet our relations with the other countries is not at friendly.

30. In our foreign policy we have not been able to make a distinction between Capitalism and Parliamentary Democracy. The dislike of Capitalism is understandable. But we take care that

we do not weaken Parliamentary Democracy and help Dictatorship to grow. It would be like throwing the baby out of the bath but in emptying it of dirty water.

31. India's first duty should be to herself. Instead of fighting to make Communist China a permanent member of the U. N. O. India should fight for getting herself recognised as the permanent member of the U. N. O. Instead of doing this, India is spending herself in fighting the battle of Mao as against Chaing kai Shek. This quixotic policy of saving the world is going to bring about the ruination of India and the sooner this suicidal foreign policy is reversed the better for India. Before championing the cause of Asiatic countries, India must strive every nerve, must seek every aid to make herself strong. Then only will her voice be effective. This will be the line of Foreign Policy that the Scheduled Castes Federation will pursue.

III. Question of Resources :

33. Programme is not a mere matter of words or ideas. If it is to be put into action, it is necessary to find the necessary finance. Nobody will take a Party's programme seriously unless and until the Party is able to show how it is going to foot the bill.

34. Although the amount required for the programme set out by the Federation is by no means small, the financial problem is not unmanageable. The Scheduled Castes Federation suggests the following ways of raising finances for the development of the country :-

- (i) Reduction of Expenditure over the Army.
- (ii) Re-levy of the Salt tax.
- (iii) Abolition of prohibition and the saving of Excise Revenue,
- (iv) Nationalisation of Insurance.

35. The total revenues of the Government of India are about Rs. 350 crores out of this the Army is eating up more than 50 per cent of the Revenues or nearly Rs. 180 crores per annum. This is a colossal expenditure on defence in a country where people are dying of starvation. On the basis of the settlement of the Kashmir issue in the way suggested in the Manifesto and the change in the

foreign policy and creation of friendly relations with other foreign nations, there should be no risk in reducing the defence expenditure by Rs. 50 crores per year.

36. There is no reason why the levy of the Salt tax should not be resumed. The giving up of the levy of the Salt tax was a concession to mere sentiment. It has not made Salt cheap. Instead salt has become very dear. The only thing that has happened is that the State has lost a valuable source of revenue which used to produce Rs. 11 crores of revenue per year and which has seriously handicapped the State in advancing the development of the country. The incident of the tax on the people will be nothing even if it is levied at a rate which will produce Rs. 30 crores per year.

37. Prohibition is sheer madness. Its progress must not only be arrested but it must be immediately abolished. It has produced more evils than those it was intended to stop. Manufacture of liquor has become a cottage industry. Formerly only men drank liquor. Now women and children also drink because liquor is manufactured in every home in the presence of women and children. It has produced more crime and worst soil of demoralisation of the lower classes.

38. From the point of view of conserving the resources of the State it is a huge waste. The excise revenue of Part 'A' States in 1945-46 was Rs. 51.67 crores. In 1950-51, it was 25.23 crores. The Budget estimates for 1951-52 is 24.95 crores. The figures for 1945-46 includes the prepartitioned Punjab and Bengal. Nevertheless, broadly the statement can be made that the loss on account of prohibition in part 'A' States is of the order of Rs. 25 crores a year. This does not, however, take into account the possible rise in excise revenue that might have taken place in the absence of prohibition.

39. For Bombay, excise revenue in 1946-47 was Rs. 9.74 crores. In 1950-51, it was 1.20 crores and the budget estimates for 1951-52 is 1.05 crores. The loss in excise revenue thus works out of about Rs. 8.7 crores a year.

40. The excise revenue in Madras was Rs. 16.80 crores in 1945-46. It declined to .50 crores in 1950-51. For 1951-52 the budget estimate is .36 crores. The loss in excise revenue in consequence of prohibition thus works out at Rs. 16 crores.

41. In the U. P. excise revenue in 1947-48 was Rs. 7.06 crores. For 1950-51, it was Rs. 5.93 crores and the budget estimate for 1951-52 is Rs. 5.84 crores. The loss thus works out at Rs. 1.2 crores.

42. The excise revenue in Madhya Pradesh, Punjab and Bengal also shows some fall.

43. The loss in excise revenue for Bombay and Madras alone works out at almost Rs. 25 crores which is also the approximate decline in the excise revenue in part 'A' States taken together.

44. These figures are incomplete. They do not contain any data for part 'B' States. For they are not available. They also do not contain any data if the expenditure on enforcement in consequence of the adoption of the policy of prohibition.

45. From the point of equity, there is no justification for prohibition. The cost of prohibition is borne by the general public. Why should the general public be made to pay the cost of reforming a lakh or two of habitual drunkards who could never be reformed? Why should the general public be made to pay the cost of prohibition when the other wants of the public such as education, housing and health are crying for remedy? Why not use the money for development plans? Who has greater priority, the Drunkard or the Hungry? There are pertinent questions to which there is no answer except arrogance and obstinacy. Whatever happens, the policy of prohibition must be reversed and this colossal waste of public money should be put a stop to and the resources utilised for advancing general welfare.

46. As regards nationalization of Insurance it is the most profitable source of money as the following figures show :—

Total number of Insurers registered in 1950 under the Insurance Act	339
Total number of Life Insurance Policies effected in 1949	33,03,000
Sum Insured	7,39,49,00,000
Annual Income by way of Premium	37,18,00,000
Total Invested in Government Securities as required	8,64,16,000
Expenses of Management	29.2 per cent of the premium income.

47. From these figures it will be seen that the total money in the hands of the Life Insurance Companies per annum is 37 crores. Unlike Bank deposits they are not demand deposits. Not being demand deposits they can be easily invested in long term development projects. It is true that Insurance Companies invest their monies in Government Securities so that it may be said that in the last resort it is the Government which gets the Insurance money. But this is no answer to nationalization of Insurance. For the amount invested in Government Securities is very small, 9 crores out of 37 crores. Secondly, Government has to pay interest on these securities which is a needless burden on the tax-payer. Thirdly, Insurance Companies eat up annually 29 p.c. of the income from premium which came to 11 crores out of 37 crores for the year 1949. This is intolerable waste of money. All this could be stopped by nationalization.

48. The Scheduled Castes Federation will not only press for nationalization of Insurance ; it will make Insurance compulsory for all State and Private Employees. Compulsory Insurance will give security to the individual and funds for the Government for further development.

49. To sum up under the scheme set out by the Federation the available resources for the development of the country will come to-

(1) From the Army Budget	..	Rs. 50 crores
(2) From the Salt Revenue	..	Rs. 30 crores
(3) From Excise	..	Rs. 25 crores
(4) From Life Insurance	}	Figures not available.
(5) From compulsory Insurance of State and Private Employees		

50. The sources indicated can be depended upon to provide enough funds for the development of the country.

IV. Co-operation between Scheduled Castes Federation and other Political Parties

51. Mere Organization does not make a party. A party means a body of people who are bound by principles. Without principles a party cannot function as a party for in the absence of principles there is nothing to hold the members of it together. A party without principles is only a caravanserai. The Scheduled Castes Federation will not, therefore, ally itself with a Political Party which has not laid down its principles and whose constitution does not demand a pledge from its members to stand by those principles and whose principles are not in antogonism with these of the Federation.

52. It is not enough to have political ideals. What is necessary is the victory of ideals. But the victory of ideals can be ensured only by organized parties and not by individuals. For these reasons the Federation will not support independent candidates who belong to no party except in exceptional cases.

53. Secondly, the Scheduled Castes Federation would like to work in co-operation with the Backward Classes and the Scheduled Tribes. For they are more or less in the same position as the Scheduled Castes. These classes unfortunately have not developed that degree of political consciousness which the Scheduled Castes have by reason of political and social activity of the Scheduled Castes Federation during the last twenty years. The Constitution of Free India has made the Backward Classes, the Scheduled Tribes and the Scheduled Castes virtually the masters of the country.

Hitherto the minority of Caste Hindus have made themselves the rulers of the country. The fear of the Scheduled Castes Federation is that the Backward Classes and the Scheduled Tribes by reason of their want of consciousness may fall a prey to the minority of Caste Hindus and continue to be their slaves instead of becoming masters of their own. The Scheduled Castes Federation's first concern is to help these Classes to get on their feet. If they so wish, the Scheduled Castes Federation would be prepared to change the name and call itself the Backward Classes Federation so as to include both sections in a common organization. If this is not possible, the Scheduled Castes Federation would be ready and willing to forge a working alliance with such organizations.

54. As regards other Political Parties, the Scheduled Castes Federation's attitude can be easily defined. The Scheduled Castes Federation will not have any alliance with any reactionary Party such as the Hindu Mahasabha or the R. S. S.

55. The Scheduled Castes Federation will not have any alliance with a Party like the Communist Party the objects of which are to destroy individual freedom and Parliamentary Democracy and substitute in its place a dictatorship.

56. The Scheduled Castes Federation does not believe in totalitarianism and, therefore, will not join a political party which is already totalitarian and which will not permit an opposition party to grow.

57. The Scheduled Castes Federation is equally opposed to the growth of multiplicity of Political Parties. The ideal of the Scheduled Castes Federation is to have two parties. That alone can give stability to the State and Freedom to the individual. The Federation will strive to bring about a two party system in this country. Such an ideal, however, does not seem to be realizable within the short time available from now and the coming general election. For the moment what is possible is to form an All India Party consisting not of individual members but of different political parties as units all having a common basis in Political principles and bound by common

discipline but each having its own autonomy in the matter of its internal organization and the setting up of candidates on some agreed basis and reciprocal obligation to support one another's candidate subject to a committee of approval. In short, the Party should be some what on the lines of the British Labour Party which is a Federal Party.

58. The Scheduled Castes Federation is prepared to be a unit of such a Federal Party if Parties such as the K.M.P. Party, the Socialist Party, the Justice Party and where no such Parties exist other Parties on the following terms and conditions :

- (i) Every Party to such an alliance must have its principles set out in clear terms;
- (ii) The principles of such a Party should not be opposed to the principles of the Scheduled Castes Federation;
- (iii) The Party seeking alliance must pledge its support for the social and economic uplift of the Scheduled Castes;
- (iv) The Party must agree to permit the Scheduled Castes Federation to function as an autonomous unit within the Federal Organization in the matter of its internal affairs; and
- (v) The Party must not be affiliated to any Party which is not recognized by Federal Party as a unit of its own.

59. With regard to individuals who seek the aid of the Scheduled Castes Federation in Election they would be required to become Associate Members of the Federation and sign a pledge to the effect that they accept the principles, the policy, the programme and the discipline of the Federation.

RESIGNATION NOT DUE TO ILLNESS

Dr. Ambedkar's statement, New Delhi, October 12, 1951.

Dr. B. R. Ambedkar said here to-day that he had not resigned on grounds of illness.

In a Statement he said that in his letter of August 10 last, to the Prime Minister, he had referred to his illness but had not mentioned it as a ground for his resignation. He had mentioned it is a ground for getting higher priority for the Hindu Code. In their letter of resignation of September 27 last, he had not mentioned illness as a ground for his resignation.

"How anybody can spell out from those two letters that I resigned because of my health, I am unable to understand. I knew that attempts were being made to give such an impression, that is why I wanted to make a statement in the House so that nobody should be under any false impression."

The former Law Minister expressed surprise over the question about his statement in Parliament on his resignation having been raised against at 6 p. m. yesterday. After reading the press reports of what had happened in the House in his absence, he found that some confusion had been created in the minds of the members by what was said by the Prime Minister and the Deputy Speaker.

"Unfortunately," Dr. Ambedkar said, "the Prime Minister did not inform me that he was going to raise the question in the evening at six O' clock. If he had told me of his intention to do so, I would have certainly been present in the House to hear what he had to say, and offer my explanation there. But I received no such intimation from him and consequently was not present in the House.

"I, therefore, think it necessary to clarify the position. I have not been able to understand what exactly the Prime Minister wanted to gain by reading the correspondence between him and me. I can only guess. If the impression which the Prime Minister seems to be desirous of creating by reading the correspondence was that the ground for my resignation was my illness, it is not difficult to dispel that conclusion."

Propriety of Reading out Dr. Ambedkar's letters

Mr. Kamath's Query in Parliament,

New Delhi, October 12: The propriety of the Prime Minister's reading out to Parliament last evening the letters exchanged between Dr. Ambedkar and himself, without taking the permission of the former and without informing him, has raised in Parliament this morning by Mr. H. V. Kamath.

Soon after Dr. Ambedkar had taken his seat in the front bench amidst cheers. Mr. Kamath raised this question and asked whether Dr. Ambedkar would be permitted to make a statement commenting on the correspondence. The Deputy Speaker said that every member should speak for himself. He pointed out that he had fixed 6 p. m. last evening as the time Dr. Ambedkar to make the statement. At that time Dr. Ambedkar was not in his seat and the Prime Minister wanted to read out certain relevant papers and permission was given. No particular notice need be given to any member.

Clarifying his position, Dr. Ambedkar said that when he left the Chamber in the morning, he was quite sure that he had left the impression on the House and the Chair that he was not prepared to make a statement at 6 p.m. He was not saying that he felt injured by the Prime Minister's reading out the correspondence at 6 p.m. "knowing fully well that I had stated clearly in the morning that I was not going to obey your observations and make the statement at 6 p.m."

Dr. Ambedkar added :—

"Whether it was justifiable for the Prime Minister to have read out the letters or not is a matter I leave to the Prime Minister and yourself, because I have other channels open to me for correcting wrong impressions".

Closing the incident the Deputy Speaker said. It is always open to a member to change his mind and make the statement especially when once I had fixed 6 p. m. as the time for the statement."¹

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¹: The Times of India, dated 11-10-1951, the dates '11' seems to be incorrect—Editors.

ALLIANCES WITH OTHER PARTIES WHOSE OBJECTIVES ARE NOT OPPOSED TO THOSE OF FEDERATION

Patna, November 7, 1951. (PIT)

Dr. B.R. Ambedkar, Leader of the Scheduled Castes Federation, told the Press Trust of India in an interview today that his party would seek to fight the elections not only in alliance with the Socialist Party but any other party whose objectives did not run counter to those of the Federation.

Dr. B. R. Ambedkar had a talk with Mr. Jay Prakash Narayan, the Socialist leader, today for about an hour. The talks are believed to have centred round the question of an election alliance.

Dr. B. R. Ambedkar said that his party would not in any case align with the Communist Party "for the plain reason that I do not believe in Communism,"

Asked if he would prevent his party from aligning with the Communist Party simply because he was personally opposed to Communism, Dr. Ambedkar said : "I am not going to be a slave to my party so long as I and my party agree, we work together else we go our own way. I do not live on politics and I do not propose to live on politics."

Dr. B. R. Ambedkar added, however, that on the question of Communists there was no difference of opinion between him and his party.

More Time

Dr. Ambedkar said that he had along been opposed to the holding of the elections hastily. In his opinion at least one year's time should have been given to the people between the passing of the People's Representation Act and the actual holding of elections to enable them to prepare themselves.

If he had time he would have exerted himself for forming a single party opposed to the Congress on Unitary or Federal basis. The provincial branches of the Federation, Dr. Ambedkar said, had been left free to enter into election alliances with other parties whose objectives were not opposed to those of Federation.

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NO MAN SHOULD BE THE JUDGE IN HIS OWN CASE

New Delhi. December 10. 1951.

Dr. Ambedkar, former Law Minister of India, and the Chief Architect of the Constitution, today appeared in the Supreme Court, as a practising lawyer. He would be shortly arguing the petitions of some *Zamindars*.

Mr. P. R. Das, who was advancing his arguments almost thought today, at one stage made a reference to Dr. Ambedkar's presence in the Court. He told the Court that a particular phrase existed in the draft constitution but was later deleted at the instance of Dr. Ambedkar.

"Dr. Ambedkar" said Mr. Das, "is here. Your Lordship must call upon him to explain why those words were deleted". (Loud Laughter).—UPI."¹

New Delhi, March 6.*

Dr. Ambedkar, continuing his arguments before the Supreme Court, on behalf of the Uttar Pradesh *zamindars*, said that the State should not be the judge in determining the amount of compensation to be paid to the *zamindars*.

Relying on American doctrines, Dr. Ambedkar said that according to jurisprudence no man should be the judge in his own case.

Dr. Ambedkar was challenging the Uttar Pradesh *zamindars* and Estate Abolition Act on behalf of some *zamindars* petitioners.

To a question from the Chief Justice as to what should be the remedy if State fixed the compensation, the counsel said that the Court should declare the compensation fixed by the State as arbitrary.

Dr. Ambedkar said that the question of fixing compensation should be referred to an independent body and not to the State itself who sought to acquire the private properties.

"The compensation fixed by the Uttar Pradesh Government was illusory and they would not get anything at all after the entire amount of debt was paid from the amount", he added—P.T.I."²

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¹ : The Free Press Journal, dated 11th December 1951.

² : The Free Press Journal, dated 5th March 1951,

*One of the date seems to be incorrect—Editors.

ELECTION PETITION

The 1st General Elections in India were declared in the year 1952. Dr. B. R. Ambedkar wanted alliance with like-minded political parties. In Maharashtra there was a talk for electoral alliance with the 'Peasants and Workers Party' and the Socialists. Mr. Jayaprakash Narayan and Mr. Ashok Mehta contacted Dr. Ambedkar through Acharya Donde, who met him at Delhi.

The alliance between Scheduled Castes Federation and Socialist Party took place and Dr. B. R. Ambedkar filed his candidature for the House of People from Bombay City North Constituency as a Reserved Candidate. The Election was held on 3rd January 1952.—Editors.

“BOMBAY RESULTS SHOCKING

Inquiry Urged

New Delhi, January, 5th, 1952.

Dr. Ambedkar, former Law Minister of the Government of India, who is contesting the reserved seat from Bombay north, to the House of the People, said today that the results of the elections in Bombay City, so far declared, came as a great surprise and shock to the citizens of Bombay.

In a statement issued today, Dr. Ambedkar said, the Congress show in the city was comparatively very poor. He claimed that the polling was heavily in favour of the Socialists and the Scheduled Castes Federation.

“How the overwhelming support of the public of Bombay could have been belied so grossly is really a matter for inquiry by the Elections Commissioner” he said.—P. T. I.”¹

“AMBEDKAR, MEHTA FILE ELECTION PETITION

New Delhi, April 24, 1952

Dr. B. R. Ambedkar, former Union Law Minister, and the Socialist leader, Mr. Ashok Mehta, have filed a joint election petition before the Chief Election Commissioner to set aside the election to the House of the People from the Bombay City North Parliamentary constituency, and declare it illegal.

¹: The Time of India, dated 6th January 1952.

This double-member constituency was the seen of a strong contest in which eight candidates, including Mr. S. A. Dange, Communist leader, took part.

The Congress nominees, Mr. V. B. Gandhi, and Mr. N. S. Kajrolkar (Scheduled Caste) were elected in the contest.

The election petition enumerates a number of grounds on which, it wants the election to be declared void.—P. T. I.”¹

“Dr. Ambedkar submitted his election petition on 21st April 1952 to the Election Commission.

IN THE MATTER OF THE REPRESENTATION OF THE
PEOPLE ACT, 1951

Election Petition under Section 81 to set aside the
Election to the House of the People from the
Bombay City North Constituency held on
the 3rd day of January 1952.
Before the Election Commission,

NEW DELHI

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| <p>(1) Bhimrao Ramji Ambedkar, aged 60 of Bombay Inhabitant residing at Rajgriha, Hindu Colony, Dadar, without the Fort of Bombay.</p> | } | Petitioners. |
| <p>(2) Ashoka Ranjitram Mehta, aged 39 of Bombay Inhabitant residing at 3, Dadystth Street, near Babulnath Temple without the Fort of Bombay.</p> | | |

Vs.

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| <p>(1) Shripad Amrit Dange aged 52 of Bombay Inhabitant residing at Shah Nivas, Muncipal House No. 3, Kohinoor Road, Dadar, without the Fort of Bombay.</p> | } |
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¹: The National Standard, dated 25th April 1952.

- (2) Gopal Vinayak Deshmukh, aged 56 of Bombay Inhabitant residing at 39, Peddar Road without the Fort of Bombay.
- (3) Vithal Balkrishna Gandhi, aged 55 of Bombay Inhabitant residing at 23, Dwarkadas street, Khatau Building, within the Fort of Bombay.
- (4) Keshav Balkrishna Joshi, aged 49 of Bombay Inhabitant residing at P. 165, Shivaji Park, Road No. 6. Mahim, without the Fort of Bombay.
- (5) Narayan Sadoba Kajrolkar, aged 56 of Bombay Inhabitant residing at 187 Suparibaug Road, Parel, without the Fort of Bombay.
- (6) Nilkanath Baburao Paruiekar, aged 57 of Bombay Inhabitant residing at 157, Princess Street, without the Fort of Bombay.
- (7) Dattatray Ramchandra Gharpure, aged 62 of Bombay Inhabitant residing at Topiwala Mansion, 386, Sandhurst Road, without the Fort of Bombay.
- (8) Ramchandra Sadoba Kajrolkar, aged 42 of Bombay Inhabitant residing at 185, Suparibaug Road, Parel, without the Fort of Bombay.
- (9) Shantaram Sawalram Mirajkar, aged 49 of Bombay Inhabitant residing at Abdul Kadar Chambers, Municipal House No. P.L, 180, St. Xavier's Street, Bhoiwada Police Station Area, without the Fort of Bombay.

Respondents.

To,
The Election Commission,
New Delhi.

THE HUMBLE PETITION OF THE PETITIONERS
ABOVE NAMED RESPECTFULLY SHEWETH :

1. That the Petitioners were candidates for election to the House of the People from Bombay City North constituency at the Elections to the House of the People held on the 3rd January, 1952.

2. That the Petitioners' names were duly enrolled in the electoral roll and the Petitioners thus became eligible to stand as candidates from the said Constituency to the House of the People.

3. That the Petitioners duly filed their nomination papers as candidates from the Bombay City North Constituency. The Petitioners' nominations were duly accepted on 27th November, 1951. The Respondents 1 to 9 were the other candidates to the House of the People from the same Constituency as that of the Petitioners. The Respondent Nos. 7, 8 and 9 withdrew their candidature within the time allowed for such withdrawal.

4. That the said Bombay City North Constituency, as a plural member Constituency, has a right to elect two members to the House of the People. Out of the two seats to be filled in by Election in the said Constituency, one seat is general and the second one is reserved for the Scheduled Castes. Every voter in this Constituency has subject to the restriction prescribed in Section 63 (1) of the Act, two votes as there are two members to be elected; Section 63 (1) of the Representation of the People Act, 1951 (Act No. XLIII of 1951) expressly lays down that no elector shall give more than one vote to any one candidate.

5. That the election at the polling stations in the Bombay City North Constituency was held on the 3 rd January, 1952.

6. That the counting of votes polled by the various candidates commenced on the 7th January 1952 and the same was completed on the 11th January 1952.

7. That the result of the election of the said Parliamentary Constituency was declared by the Returning Officer on 11th January to be as follows :—

- (i) That the Petitioners 1 and 2 polled respectively 1,23,576 and 1,39,741 votes;
- (ii) That the Respondent Nos. 1,2, 3, 4, 5, and 6 polled 96,755; 40,786; 1,49,138; 15,195; 1,38,137 and 12,560 votes respectively;
- (iii) That the Respondent No. 5 was elected to the reserved seat and the Respondent No. 3 was elected to the remaining seat from the said Constituency; and
- (iv) That it was further declared by the Returning Officer that the total number of valid votes polled in the said Constituency was 7,15,888 and that the total number of invalid votes was 74,333;

8. That the Petitioners rely on the declaration of the result made by the Returning Officer, a copy whereof is hereto annexed and marked A.

9. That the result of the said election was published in the Gazette of India (Extra ordinary) Part-I Section I, dated 26th January 1952, at page 130. The respective returns of election expenses have been duly lodged with the Returning Officer under Rule 112 of the Representation of the People (Conduct of Election and Election Petitions) Rules, 1951, by the Petitioner No. 1 on 10th March 1952 and by the Petitioner No. 2 on 7th March 1952.

10. The Petitioners say that the Returning Officer has declared at the counting of the votes that the candidates who contested the election had obtained several double votes which the Returning Officer had to cancel as being null and void. The Petitioners say that

as a result of the inspection it was found that such invalid votes found in the ballot boxes of the Petitioner Nos. 1 and 2 and of the Respondent Nos. 1, 2, 3, 4, 5 and 6 and cancelled as being double votes, are as shown below :—

Petitioner	No. 1	--	2,921
Petitioner	No. 2	--	5,597
Respondent	No. 1	--	39,165
Respondent	No. 2	--	6,634
Respondent	No. 3	--	10,881
Respondent	No. 4	--	1,168
Respondent	No. 5	--	6,892
Respondent	No. 6	--	1,025
Total		--	<u>74,333</u>

The Petitioners will rely on the records in proof of this statement.

The Petitioners submit that in the aggregate 74,333 ballot papers had been rejected and not counted at all as being void by the Returning Officer for the aforesaid reason.

11. The Petitioners submit that at several polling stations of the aforesaid Constituency the voters to whom double voting papers were issued, did not, in thousands of cases, distribute the same as required by Section 63 (1) of the said Act, and their failure to comply with the provisions of Section 63 (1) of the said Act resulted in the said ballot papers being declared to be void and wholly worthless in respect of the election held in the said Constituency.

12. The Petitioners say that the aforesaid large number of double votes being void votes, has been the result of corrupt practice of undue influence on the part of the Respondent Nos. 1 and 2 within the meaning of Section 123 (2) of the Representation of People Act, 1951, at the election as set out below and that the said corrupt practice has vitiated the entire election and has rendered the same void.

13. The Petitioners say that the Respondent Nos. 1 and 2 during their election campaign carried on a fierce, virulent and malicious propaganda by leaflets, handbills and press statements and by speeches at public meetings held in the constituency and induced and illegally exhorted the voters to cast both their votes in favour of each of them in direct contravention of the provisions of Section 63 (1) of the Act. The Petitioners say that due to the aforesaid propaganda carried on by the Respondent Nos. 1 and 2. amongst the voters in the Constituency, the electors were falsely induced to give more than one votes to the same candidate by placing both the ballot papers issued to them in the same ballot box and thereby contravening the said section of the said Act and defeating the purpose and policy underlying it.

14. (i) In a printed Marathi pamphlet addressed to and distributed amongst the voters in the said Bombay City North Constituency at the instance of the Respondent No. 1 or his agents and/or supporters, the Respondent No. 1 was described as the most capable leader of all, to lead the People's Front in the House of the People. The voters were exhorted therefore, to cast both their votes in favour of the said Respondent No. 1 avoiding to tell the voters whether voting in the manner suggested would benefit Respondent No. 1. A copy of the English translation of the relevant portion of the said handbill is annexed hereto the marked B.

(ii) A Marathi weekly paper entitled 'Yugantar' printed at Bombay gave instructions to the Bombay voters in its issue dated 29th December 1951 at page 4, columns 1, 2 and 3 whereby the voters receiving two ballot papers were, *inter alia*, falsely instructed and exhorted to drop both the ballot papers in the box with picture of the Engine pasted on it i.e. into the ballot box of the Respondent No. 1 again avoiding to tell the voters whether voting in the manner suggested would benefit Respondent No. 1. The Yugantar is an organ of the Communist Party of which the Respondent No. 1 was a nominee for the Parliamentary seat. A copy of the English translation of the said instructions is annexed hereto and marked C.

(iii) Similarly in leaflet in Marathi issued over the signature of the Respondent No. 1 described as the United Front of the Leftist

candidate for the House of the People from the said Bombay City North Constituency. It was stated, *inter alia*, that if the voters wanted their candidate to be elected they should cast both their votes for the Respondent No. 1. The Respondent No. 1 stated further that the waste of one of the two votes did not in any way violate democracy because according to the Respondent No. 1 giving of a vote by the non-Scheduled Castes voters to a candidate for the seat reserved for the Scheduled Castes is itself against the interests of democracy of the Scheduled Caste voters. Then referring particularly to the Petitioner No. 1 the Respondent No. 1 stated in the said pamphlet that as the Petitioner No. 1 as a Scheduled Caste candidate, was according to the Respondent- entitled to contest both the seats, it was desirable that the Respondent No. 1 must take both the votes for himself and that all those who wanted to make United Front of Leftist nomination successful, should give both their votes to the 'Engine' (the symbol of the Party on whose ticket the Respondent No. 1 stood for election). A copy of the English translation of the said leaflet is annexed hereto and marked D.

15. In a press statement published by the Respondent No. 2 in the Marathi Weekly in Bombay entitled Vividh Vritta, in its issue of the 30th December 1951 under the caption, '*Bombay City North Constituency Parliamentary Election Trap*', '*Warning to the Voters*' the Respondent No. 2 warned the voters in this Constituency, where a reserved seat for the Scheduled Castes is provided, that a virtual trap to enable the two Scheduled Castes candidates to capture both the seats had been laid by the Petitioner No. 1, who belongs to the Scheduled Castes. The Respondent No. 2 further stated in the said statement that in order to escape the trap, the voter should cast his votes as he himself wanted to without paying any heed to any party or pact and completely disregarding, what he conveys, "the influence of self seeking leaders." He still further added that "that alone would be his duty", meaning thereby that the voters should cast both their votes to a candidate other than the Petitioner No. 1 if they wanted to avoid the Petitioner No. 1, who belonged to Scheduled Caste being elected with the Respondent No. 5 who also belonged to the Scheduled Castes, and thereby the Scheduled Castes candidates carrying both the seats and

the non-Scheduled Castes community going unrepresented. An English translation of the said statement issued by and on behalf of the Respondent No. 2 is hereto annexed and marked E.

16. Then again the said Marathi Weekly, the Vividha Vritta, sponsoring the cause of the Respondent No. 2, published a statement under the caption '*Ruse in Voting*', in its issue dated 30th December 1951 at page 1 column 5 wherein it is stated, *inter alia*, that both the votes can be dropped in the box of a Caste Hindu candidate and that voting in this manner is in no way illegal. It is further stated that voters have complete freedom to cast both their votes for one candidate alone. An English translation of statement referred to in this para is hereto annexed and marked F.

17. The Petitioners say that the Respondent Nos. 1 and 2 in view of what is contained in the foregoing parts 13,14,15,16 of this Petition not only misled the voters but also played upon the communal feeling of the Caste Hindu voters; the Respondent No. 2 particularly raising the communal feeling of the Caste Hindu voters by creating a fear complex in them that their interest would be in jeopardy if they distributed their votes as required by law.

18. The Petitioners say that the Respondent Nos. 1 and 2 not only did create an alarm in the mind of the Caste Hindu voters in the said Bombay City North Constituency but failed to explain the provisions of Section 54 of the Act, which prescribes how the results of election are to be determined and declared.

19. In the aforesaid manner the Respondent Nos. 1 and 2 misrepresented the law and misled the Caste Hindu voters into believing that in any and every circumstance it was probable for the Scheduled Castes candidates to get themselves elected to both the seats to the exclusion of Caste Hindu community candidates.

20. The Petitioners say that in the aforesaid manner the Respondent Nos. 1 and 2 practised deception on the Caste Hindu voters and willfully and fraudulently induced them cast both their votes in their favour.

21. The Petitioners submit that in view of what is stated in the foregoing paras, the Respondent Nos. 1 and 2 have by themselves their Agents and other persons acting for and on their behalf, exercised undue influence during their election campaign preceding the side election inasmuch as they actively interfered with the free exercise of the electoral right of the voters within the meaning of Section 123 (2) of the Act and that the election on that account has not been a free election within the meaning of Section 100 (i) (a) of the said Act.

22. The Petitioners further say that the Respondent Nos. 1 and 2 knew that they could not derive any benefit to themselves by their propaganda to appropriate both the votes to themselves. All the same they persisted in the said propaganda because they were actuated by the malicious motive to injure the prospects of the Petitioner Nos. 1 and 2.

23. The Petitioners submit that the large number of double votes cast by the voters in favour of the Respondent Nos. 1 and 2 as herein above stated in para 10 is evidence of the fact that the undue influence exerted by the Respondent Nos. 1 and 2 in the said Constituency has extensively prevailed at the Election.

24. The Petitioners therefore say that the election has not been a free election by reason of the corrupt practices of undue influence which extensively prevailed at the election, and that hence the said election should be declared wholly void.

25. That Petitioners have deposited Rs. 1,000 with the Reserve Bank of India in favour of the Secretary of the Election Commission as security for the costs of the Petition as required by Section 117 of the Representation of the Peoples Act, 1951. The original receipt showing that the said amount has been deposited in hereto annexed and marked G.

26. That this Petition is accompanied by a list of the particulars of the corrupt practices committed by the Respondent Nos. 1 and 2 signed and verified as required by Section 83 (2) of the Representation of the People Act, 1951 and is hereto annexed and marked H.

27. That this Petition is being presented within the time allowed under Rule 119 (b) of the Representation of the People (Conduct of Election and Election Petitions) Rules, 1951, 11th March 1952 being the date on which the time for lodging of the return of expenses under sub-rule (1) of Rule 112 of the said Rules expired.

28. The Petitioner No. 2 craves leave to submit any other Petition on grounds other than those advanced in this Petition.

Your Petitioner, therefore, pray :—

- (a) that an Election Tribunal be appointed for the trial of the Petition;
- (b) that the election to the House of the People from the Bombay City North Parliamentary Constituency held on 3rd January 1952 be declared wholly void;
- (c) that the Petitioners' costs of this Petition be provided for; and
- (d) that Petitioners may have such further and other reliefs as the nature of the case may require and for the purpose aforesaid all such orders may be passed and directions given including scrutiny of votes as may be deemed necessary and proper.

(Sd) B.R.Ambedkar

(Sd) Ashoka Mehta

(Petition drawn by)

(Mr. N. C. N. Acharya,

Advocate O. S.)

(Sd) Kothare & Co.

Attorneys for the

Petitioners.

We, (1) Bhimrao Ramji Ambedkar and (2) Ashoka Ranjitram Mehta of Bombay Inhabitants residing respectively at Rajgriha, Hindu Colony, Dadar, and 3, Aadyseth Street near Babulnath Temple without the Fort of Bombay do solemnly declare that what

is stated in paras 1 to 9 and 11 to 26 of the foregoing Petition is true to our own knowledge and that what is stated in para 10 is stated on information and belief and we believe the same to be true.

Solemnly declared by)
 Bhimrao Ramji Ambedkar)
 the Petitioner No. 1)
 above named at Bombay)
 aforesaid this 21st day)
 of April 1952.)

(Sd.)B.R. Ambedkar

S e a l

Before me
 (Sd.) H. K. Patel
 Presidency Magistrate,
 XI Court, Kurla, Bombay
 21-4-1952.

Solemnly declared by)
 Ashoka Ranjitram Mehta)
 the Petitioner No. 2)
 above named at Bombay)
 aforesaid this 21st day)
 of April 1952.)

(Sd) Ashoka Mehta

S e a l

Before me
 (Sd.) H. K. Patel
 Presidency Magistrate,
 XI Court, Kurla, Bombay
 21-4-1952.”¹

¹: Khairmode, Vol. 10, Pp. 269-280.

Use of Agents at General Elections

Dr. Ambedkar's Plea.

“Anything which causes a disturbing effect on the minds of voters amounts to undue influence and interference. If a candidate carries on propaganda to frighten voters then he has caused interference and obviously disturbed the minds of voters. If he conceals an important point of law from the electorate he commits a fraud on voters or brings about undue influence on them. And to tell voters to act contrary to the electoral law is corrupt practice.

There were some of the points of law Dr. B. R. Ambedkar submitted to the Election Tribunal, composed of Mr. N. J. Wadia, Chairman, Mr. M. K. Lalkaka, and Mr. G. P. Murdeshwar at the resumed hearing of his petition and that of the Socialist Leader, Mr. Ashoka Mehta, complaining of malpractices at the last General Elections from the Bombay City North Constituency, on Friday.

Dr. Ambedkar, who appeared in person, argued at length on the question of agency at elections and touched on propaganda some of the candidates had made through newspapers and pamphlets and went on to prove that those publications had amounted to undue influence with particular reference to Section 123 (2) of the Representation of the People's Act.

UNDUE INTERFERENCE

He pointed out the difference between the English and the Indian law and said that the former particularised undue interference while the latter only used the word in a general sense.

He referred to the statements published by and on behalf of Mr. S. A. Dange, the Communist candidate, and Dr. G. V. Deshmukh, the Independent candidate, and said that by asking voters to cast both their votes in favour of one candidate they had caused undue influence on them. One of the four witnesses previously examined had admitted that Mr. Dange knew that the Left United Front which supported his candidature to Parliamentary seat, had issued leaflets, but at no stage had he intervened and asked the Front to stop the issuing of the leaflets, he said.

The petitioner contended that Mr. Dange was responsible for his agents' doings. The *Ugantar*, a Marathi weekly, had in an

hesitant manner admitted that it was an organ of the Communist Party and that the two members of the Front in their evidence had also admitted that they had made propaganda to support the candidature of Mr. Dange. On the basis of the submission, he said, there could be no doubt that they were Mr. Dange's agents.

Dr. Ambedkar tried to trace the relationship between *Vividh Vritta*, a Sunday Marathi weekly, and Dr. Deshpande (Deshmukh), and said that the statement the respondent had published in the paper was not to enlighten voters. In fact, it was given to that particular newspaper and to no other and this, in his contention, proved that there was a link between the paper and the respondent.

..... At this stage, Dr. Deshmukh stood up and requested the tribunal that Dr. Ambedkar might be asked to address his question. "I am not asking you any question. In fact, you have raised them and I am only trying to answer them," was Dr. Ambedkar's reply which caused laughter in the Court room.

Earlier Mr. K. V. Chitre, Registrar of Siddharth College and an agent of Dr. Ambedkar gave evidence.

The hearing will be continued on Monday."

(The Times of India, 4-10-1952)¹

"PROPAGANDA FOR WASTAGE OF VOTES IS ILLEGAL"

Dr. Ambedkar's Plea In Election Dispute

It was a gross perversion of law to arouse communal feelings among the electorate by frightening it that it would go unrepresented if it distributed votes, declared Dr. B. R. Ambedkar, arguing his petition before the Election Tribunal, composed of Mr. N. J. Wadia, Chairman, Mr. M. D. Lalkaka and Mr. G. P. Murdeshwar, at the Small Causes Court, Bombay, on Monday.

He was referring to the communal propaganda that had been carried on in the Bombay City North Constituency by Dr. G. V. Deshmukh, who, he said, was the leader of the Independent Candidates' Group, comprising 17 candidates.

"I cannot find worse propaganda than this," said Dr. Ambedkar, and added "Because of the realisation of the psychology of Caste Hindus, who did not want Untouchables to occupy important posts

¹ Khairmode, Vol. 10, Pp. 298-299.

in the legislature, a special provision was made for Scheduled Castes in the Montague - Chelmsford Reforms. There is a similar provision in the Representation of the People's Act also."

..... The petitioner contended that Dr. Deshmukh has conceded the provisions of Section 54 of the Act from the electorate while the Communist candidate, Mr. S. A. Dange, by preaching the nullification of Section 63, had set the law at naught. He charged both the respondents with adopting corrupt practices and unduly influencing the voters.

DISPOSAL OF VOTES

Dr. Ambedkar submitted that the disposal of one of the two votes was not left to the wishes of voters or, for that matter, of candidates. The disposal of the second vote was regulated by Section 79 (d) which, he said, gave the electorate the option to vote or not to vote as voting was not compulsory in India. He raised the following points (1) A voter was free to exercise his electoral rights; (2) He could go to the polling booth and receive both his ballot papers and distribute them; (3) He could use one of them and return the other to the Presiding Officer; (4) To use one ballot paper and destroy the other was illegal and an offence according to Section 136(e) (f); (5) To cast one ballot paper in the ballot box and take the other with him would be illegal, according to Section 135, and (6) To insert both the ballot papers in one box was also illegal, according to Rule 25 (1) and a violation of the Act.

He stated that Section 100 clearly stated that "an election shall be set aside on the ground of corrupt practices extensively prevailing," and asked if the Tribunal did not consider the 74,333 votes wasted as the result of the perverse propaganda to be a large figure. "I lost my seat by 13,000 votes. I am not very presumptuous, but out of the 39,000 votes wasted by Mr. Dange, I would certainly have got a large number had it not been for the crucial propaganda of his and that of Dr. Deshmukh," he said.

"CHAPTER OF MISALLIANCE"

Mr. A. S. R. Chari, counsel for Mr. Dange, described the petitions of Dr. Ambedkar and Socialist leader, Mr. Ashoka Mehta, as the closing chapter of misalliance between the Socialists and the Scheduled Castes Federation. He said the petitioners' own witness

Mr. Bapurao Jagtap, had told the Tribunal that the Left United Front had requested the petitioners “with folded hands” to join the Left United Front, a request they had refused only because they overestimated their strength.

Mr. Chari said that there was no legal obligation on a voter to use both his votes as he could either vote or refrain from voting for a candidate in accordance with the clauses of Section 63 of the Act. His arguments were: That the persuasion to vote only one candidate, or not to vote for any one candidate, did not constitute interference with the free exercise of the will of the voters according to the definition of “undue influence.” That any of the acts of Mr. Dange or any other candidate, did not come within the definition of “corrupt practice” as set out in the Representation of the People Act. That what Mr. Dange had done was only to persuade the voter and he had a right to do so. That the petitioners had filed their petitions only to provide a plausible excuse for their defeat before their supporters; and that the defeat of the petitioners in the last election was due to their arrogant refusal to join hands with the Left United Front which wanted to fight the Congress and the communal elements.

UNDUE INFLUENCE

Mr. T. R. Kapadia, counsel for V. B. Gandhi corroborating Mr. Chari’s argument, said that the petitioners had failed to prove who had exerted undue influence on voters. He asked whether the respondents alone were guilty of that charge or whether the petitioners were also equally guilty of it.

Dr. Deshmukh, after obtaining consent “from -the Tribunal that he might be allowed to address it in place of his advocate, said that all parties were responsible for corrupt practices at the last elections. He admitted that the editor of “Vividh Vritta”, a Marathi weekly, was not only his agent but also his intimate friend.

Hearing will be continued on Wednesday.

The respondents are Mr. S. A. Dange, Dr. G. V. Deshmukh, Dr. V. B. Gandhi, Mr. K. B. Joshi, Mr. N. S. Kajrolkar and Mr. N. B. Parulkar.

Mr. S. S. Kavalekar and Mr. Madhusudhan Vyas, instructed by Kothare and Company appeared for Mr. Ashoka Mehta; Mr. A. S. R. Chari and Mr. T. S. Hegde for Mr. Dange; Mr. Pandit for Dr. G. V. Deshmukh and Mr. T. R. Kapadia for Dr. Gandhi and Mr. Kajrolkar.”¹

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¹: The Times of India : dated 7-10-1952

Reprinted Khairmode, Vol. 10, Pp. 300-302.

COMMUNISTS IN MAHARASHTRA

American Journalist Mr. Seling S. Harrison interviewed Dr. B. R. Ambedkar on 21st and 28th February and 9th October 1953 on the topic of weaknesses of the Communists State of Maharashtra. The interview is as follows: Editors.

Dr. B. R. Ambedkar, who organised Mahars as a political force, accounted similarly for Communist weakness in Maharashtra :

“The Communist Party was originally in the hands of some Brahmin boys—Dange and others. They have been trying to win over the Maratha community and the Scheduled Castes. But they have made no headway in Maharashtra. Why? Because they are mostly a bunch of Brahmin boys. The Russians made a great mistake to entrust the Communist movement in India to them. Either the Russians didn’t want Communism in India—they wanted only drummer boys —or they didn’t understand”¹

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¹ : Ambedkar on Communism in India — quoted in the book, India : The Most Dangerous Decades, by Seling S. Harrison. Pp.190-91.

Quoted : Khairmode, Vol. 11, P. 164.

STARVING PEOPLE ASK FOR BREAD

Hyderabad Government proposed to allot lands to Scheduled Caste people. Hon. Minister Andhra Pradesh Shri Bindu told this decision to Dr. B. R. Ambedkar at the time of his visit to Delhi. Dr. Ambedkar asked Hon. Bindu to send copy of that order as early as possible. Government of Hyderabad had taken back possession of the land which was allotted to Scheduled Castes. In protest of this the Scheduled Castes started. *Satyagraha*. 1700 people were arrested. Dr. Ambedkar wrote a strong letter to Hon. Bindu that the Government should handover the ownership of lands to the Scheduled Castes then only he will advise Scheduled Castes to withdraw the *Satyagraha*. The said letter is as follows : Editors.

26, Alipur Road, Delhi

Dated the 6th Nov. 1953.

Dear Mr. Bindu,

When we met in Delhi you promised to send me copies of the decision taken by the Hyderabad Government in regard to the grant of land to the Scheduled Castes. It is now more than a week but have not sent me the copies.

From the newspapers it appears that about 1700 men and women belonging to the Scheduled Castes in the Aurangabad district have been arrested and sent to jail for offering *Satyagraha* for the return of their lands which were granted to them and which were afterwards resumed.

I do not know what the intention of the Government is. Perhaps it is to prosecute them and send to jail. If this happens it would be a great tragedy. It cannot redound to the credit of the Government to prosecute starving people and send them to jail because they ask for bread. I think you ought to release them, the law having been vindicated.

If the orders that your cabinet has passed are satisfactory from our point of view I may intervene and ask the Scheduled Castes to drop the *Satyagraha*.

I shall be grateful for an early reply.

Yours Sincerely,
(Sd.) B. R. Ambedkar.

Shri Bindu,
Minister for Home Affairs,
Hyderabad State,
HYDERABAD”¹

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¹: Khairmode, Vol. 11, Pp. 67-68.

BUDDHIST SEMINARY TO BE STARTED IN BANGALORE

“Dr. B. R. Ambedkar, M. P., said in Bombay on Tuesday* that a *Buddhist* seminary would be started in Bangalore as a preliminary steps to spreading *Buddhism* in India.

Dr. Ambedkar, who has declared his intention to embrace *Buddhism* recently, said in an interview with P. T. I. that the *Rajpramukh* of Mysore had donated a five-acre plot which was situated in between the two well-known centres of learning, the *Raman* Institute and the Indian Institute of Science.

He said as a result of his two visits to Burma recently, all help—financial and technical—from the world *Buddhist* Mission and the *Buddha Sasana Council*, had been promised.

Dr. Ambedkar revealed that he had approached successfully for financial help to many people in the country and he would also shortly set out with the begging bowl for public contributions.

Training Preachers

With the money forthcoming, Dr. Ambedkar said, the seminary would be ready in about two year's time. The main object of this institution would be to train preachers for propagating *Buddhism* among the common folk, he said.

Dr. Ambedkar said that students would be admitted to the seminary without consideration of caste, creed or nationality and would undergo courses in comparative study of religions and other allied subjects. He believed that no one could uphold *Buddhism* truly without studying the other religions also scientifically.

Dr. Ambedkar said the seminary would also have a press where *Buddhist* literature would be printed. A group of eminent scholars from all over the world would be engaged in translating *Buddhist* texts in *Pali* and other languages into English and they would be published by the seminary, he said.

*The 11th January 1955.

A large library with books on religion and philosophy would be another feature of the seminary. There would be also temples and classrooms and dormitories for students, teachers research scholars.

He also said that an essay competition, with prizes worth Rs. 10,000 would be announced shortly.”¹

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¹: The Times of India, dated 12th January 1955.

BUDDHISM DISAPPEARED FROM INDIA DUE TO WAVERING ATTITUDE OF THE LAITY

Dr. B. R. Ambedkar, in his letter to D. Wali Sinha, General Secretary. Maha Bodhi Society, Calcutta, on 16th February 1955 expressed his opinion about Dhamma Diksha.

Following is the letter.—Editors.

“I have been of the opinion that the conversion of the laity is not conversion at all. It is only a nominal thing. The so-called Buddhist laity besides worshipping the Buddha also continued to worship other Gods and Goddesses which were set up by the Brahmins to destroy Buddhism. Buddhism disappeared from India largely of this wavering attitude of the laity. If hereafter Buddhism is to be firmly established in India the laity must exclusively be tied up to it. This did not happen in the past because in Buddhism there was a ceremony for initiation into the *Sangh* but there was no such ceremony for initiation into the *Dhamma*. In Christianity there are two ceremonies. (1) Baptism which is initiation into the Christian religion, (2) Ordination of the priest. In this respect the new movement for the propagation of Buddhism in India must copy Christianity. To remove this dangerous evil in Buddhism I have prepared formula which I call *Dhamma Diksha*. Every one who wishes to be converted to Buddhism shall have to undergo through ceremony. Otherwise he will not be regarded as a Buddhist.”¹

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¹ : Khairmode, Vol. 12 First Edition—July 1992, Pp. 24-25.

I'M PREPARED TO SAVE YOUR LIFE PROVIDED.....

“During the first three months of 1955, Maurice Brown and Francis Watson of British Broadcasting Corporation, London, visited India, travelling, interviewing and recording some of those they knew could contribute, recorded their memories and opinions of Mahatma Gandhi. The extracts below contain in brief the text of interview they had with Dr. B. R. Ambedkar. To maintain a link the opinions of a few others have also been retained.

Narrator : We are on the heights now, with the saint, the Mahatma.

B. R. Ambedkar : He was never a Mahatma. I refuse to call him Mahatma, you see. I never in my life called him ‘Mahatma’. He doesn’t deserve that title. Not even from the point of view of morality.

Narrator : Opposition. Opposition from Dr. Ambedkar, political” leader of the Scheduled Castes of India, the Untouchables. Gandhi wanted Untouchability to be dissolved by bringing the scheduled castes within the fold of Hinduism and removing all their disabilities. Dr. Ambedkar wanted protection for them as a separate community, which to Gandhi seemed morally wrong and politically dangerous. It was a very stern fight, leading in the end to one of Gandhi’s most celebrated fasts.

B. R. Ambedkar : Oh of course, he bargained and bargained ; I said, nothing doing. I’m prepared to save your life, you see, providing you don’t make hard terms but I’m not going to save your life at the cost of the life of my people. I always say that as I met Mr. Gandhi in the capacity of an opponent I’ve a feeling. I knew him better than most other people, because he had opened his real fangs to me, you see, and I could see the inside of the man.

Narrator : But one didn't have to be an opponent to be wary of the idea of a Mahatma. J. B. Kripalani, the Indian Socialist leader, was not an opponent. He was a follower from 1917 until Gandhi's death.

J. B. Kripalani : He repudiated the idea of superman, he repudiated the idea of his becoming a Mahatma. He even said that if he were such a Mahatma, it would not be possible for us to understand him. Fundamentally, I believe, Gandhiji's message was social, political, economic, and not spiritual in the sense in which spirituality is understood. I would say that we had enough of Gods and supermen. Gandhi was good enough as a man.

Dhirendra Mohan Datta : I never thought that Mahatma Gandhi was typically Indian.

Narrator : Dr. Datta is a well known philosopher now living at Santiniketan, the educational institution of Rabindranath Tagore which is now a University.

Dhirendra Mohan Datta : To modern Hindus, he was their very ideal, the very ideal which they could follow with their European education and their European background and so on they could very easily sympathize with the Hindu ideals. But the orthodox Hindus thought that he was betraying that his Hinduism was not real Hinduism.

B. R. Ambedkar : He was absolutely an orthodox Hindu.

Narrator : Dr. Ambedkar thinks so. So did many but not all Muslims. Some of them felt that Gandhi's attitude to Untouchability distinguished him.

H. N. Brailsford : He once put it in this way, that he represented eighty-five per cent of the Indian people. Well, that was a bit of an exaggeration, because he never did represent more than a mere fraction of the Muslims. But when it came to the rest, Hindu and Sikhs and even Untouchables, then his boast was correct.

Narrator : It was, at all events, sincere. Most deeply of all, he felt the cause of the Untouchables to be his own. Brailsford had some private talks with him about this.

H. N. Brailsford : He spoke with a passion that meant, I think that he was suffering under a terrible sense of vicarious guilt. He knew how abominably his people, the Hindu Nation, had treated these outcasts ; and he was determined, just for that reason, that it should be his people, the Hindu Nation, that put matters right.

Narrator : Gandhi's own attempt to put matters right was at that time a new campaign, a new passion. Dr. Verrier Elwin was with him a few months earlier in India, almost at the start of things.

Verrier Elwin : Yes, that was in 1931, and when I went with him to a temple which belonged to a leading mill-owner in Ahmedabad, and Gandhi took a party of Untouchable children into the temple. I still remember the faces of the orthodox priests when this happened, they didn't like it at all, but afterwards Gandhi had a meeting and in the course of it he said that in future the Untouchables should be called the children of God, the Harijans, by which name they've been known ever since.

Narrator : But there was a new and formidable face at the Round Table Conference. Dr. Ambedkar, born an Untouchable, had pulled himself up by his own gifts and character, and didn't want any Caste Hindu to do penance for him.

B. R. Ambedkar : Give us a separate electorate, you see.

Narrator : Dr. Ambedkar was direct and implacable. Even afterwards he never changed towards Gandhi.

B.R. Ambedkar : All this, talk about Untouchability was just for the purpose of making the Untouchables drawn into the Congress, that was one thing, and secondly, you see, he wanted that the Untouchables should not oppose his movement of *Swaraj*. I don't think beyond that he had any real motive of uplift.

Narrator : But Gandhi's motives were strong enough, after he had gone back to India, to be tested in the great fast at Poona. He was prepared for it, Pyarelal remembers, amid the conflicts of the London Conference.

Pyarelal Nayar : He said he would not sell the vital interests of the Untouchables even for the sake of India's independence, but he knew that separate electorates were not good for the vast mass of Untouchables. He said, therefore, that he would resist it even if he were alone, with his life. At that time again, nobody thought what it would ultimately result in.”¹

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¹ : B.B.C.—Talking of Gandhiji, Orient Longmans, Bombay, Calcutta and Madras. Script and Narration by Francis Watson, Production by Maurice Brown, Pages 9, 10, 16, 78 and 79.

Reprinted : Rattu, Reminiscences and Remembrance of Dr. B. R. Ambedkar, Pp. 159-162.

A POLITICAL PARTY DOES NOT EXIST FOR WINNING ELECTION BUT FOR EDUCATING, AGITATING AND ORGANIZING THE PEOPLE

A meeting of the Working Committee of Scheduled Castes Federation was called by its President Dr. B. R. Ambedkar on 21st August 1955 which was held at Jairaj House, Bombay.

In this meeting the Constitution of Scheduled Castes Federation which was printed in January 1955 was discussed. Some amendments to the various articles were suggested and accepted.

The Report of this Working Committee along with amendments is as follows—Editors.

The Working Committee of the All India Scheduled Castes Federation, Jairaj House, Bombay.

The following members of All India Working Committee of the S. C. F. were present at the meeting of the Working Committee called by the President, Dr. B. R. Ambedkar, M. A., Ph.D., D.Sc, LL.D., D. Litt., Bar-at-Law, Member of Council of States on 21st August, 1955 at 4 p. m. at Jairaj House, Colaba, Bombay :

1. Dr. B.R. Ambedkar,
2. Shri Rajabhau Khobragade (Madhya Pradesh)
3. Shri A. Ratnam (Madras)
4. Shri Haridas Awode (Nagpur, Madhya Pradesh)
5. Shri J. C. Adimugam (Mysore)
6. Shri J. S. Bansode (Madhya Bharat)
7. Shri C. M. Arumugam (Mysore)
8. Shri Nilam Singh Gill (Pepsu)
9. Shri B. S. More (Aurangabad)
10. Shri R. D. Bhandare (Bombay)

11. Shri Hardas Asharwar (Vindhya Pradesh)
12. Shri G. T. Parmar (Gujarat)
13. Shri B.K. Gaikwad (Maharashtra)
14. Shri A. G. Pawar (Maharashtra)
15. Shri V. Doraswami (Mysore)
16. Shri M. G. Velu (Madras)
17. Shri W. S. Kamble (Berar)

Dr. B. R. Ambedkar : “Friends, we are meeting after a long time. There are various reasons why we did not meet earlier. As far as I am concerned, you know that I am not keeping good health. What I have noticed is that you have not learnt to carry on the work of S. C. F. without me. The time has come that you must be able to carry on the work even if I am not present. I should be a sort of consultant. Wherever there is any difficulty you can consult me at any time”. After these preliminary remarks the various resolutions were taken up for discussion.

Resolution No. 1 : This meeting of the Working Committee confirms the Selection by the last Working Committee of Dr. Babasaheb *alias* B. R. Ambedkar as the President of the Federation.

Proposed by : A, Ratnam (Madras)

Seconded by : G. C. Arumugam

Supported by : B. K. Gaikwad

The resolution was carried unanimously.

Dr. B. R. Ambedkar : There are some old members who have expressed some doubts as to whether the S. C. F. should continue or not. But I am of the opinion that as long as the problem of Untouchability remains the S. C. F. should continue to function. The question may arise as to whether we should work in co-operation with any other party at the time of election. But you know what is our experience when we have worked in co-operation with other parties. But such question will be considered at the proper time. For the time being we should consider this question of continuing our S. C. F.

Resolution No. 2: “The Working Committee of the All India Scheduled Castes Federation is aware of the defeat which the Federation has suffered at the last election. The Working Committee, however, is in no way discouraged by it. Such defeats are usual and normal. A Political Party does not exist merely for the sake of winning election. A Political party exists for the sake of educating, agitating and organising the people. This work the Federation has done beyond doubt and beyond measure.

This meeting of the Working Committee desires to state emphatically that the S. C. Federation cannot be wound up until the problems arising out of Untouchability are not solved.

Proposed by : Shri H. D. Awode

Seconded by ; Shri M. J. Velu

The resolution was earned unanimously.

Resolution No. 3 : “This meeting of the Working Committee of the S. C. F. regrets that the Election Commission was wrong in declaring the S.C.F. not to be an All India Party. Whether a party is an All India Party or not must be determined by the number of votes cast in its favour and not by the number of seats won by it. In calculating the number of votes cast the Election Commission failed to take into consideration that all the second votes of the Scheduled Castes voters were cast in favour of the Socialist Candidates on account of the Election Pact between the S.C.F. and the Socialist Party while the Socialist Party voters did not give their votes to the S. C. candidates. If the votes cast by the S. C. voters in favour of the Socialist candidates were added to the votes cast by the S. C. voters in favour of the S. C. candidates, the total number of votes polled by the Federation would be far greater than the votes polled by the Socialist Party.

This Working Committee, therefore, urges upon the Election Commission to restore the status of an All India Party which was given to it at the first election.

Moved by : Shri A. G. Pawar (Maharashtra)

Seconded by : Shri V. Doraswami (Mysore)

This resolution was carried unanimously.

Resolution No. 4 : The following amendment to the Constitution as drafted by the President are made :

Amendment to article I : The clause 2 after the figure 1957 add the words” or such other date as may be appointed by the Central Executive “.

Amendment to article II : Adopt the following sub-clause as the sub-clause No. VII after the Sub-Clause No. VI, Sub-Clause No. VII reads as follows : “To issue literature and to conduct printing presses. Delete sub-clause III, IV, V and VI which are printed twice as they being the printers’ mistakes.

Amendment to article VI: (i) Remove hyphens from clauses 3,4, 5,6. 7, 8, 9 and 10.

(ii) After clause 10 add the following clause as the clause No. 11.

“The number of members of the Village Committee, Taluka Committee, District Committee and the State Committee shall be as determined by the State Federation Committee of each State with the consent of the Central Committee.....

Amendment to article VII : (1) In sub-clause II of the clause I, after the word “Federation” add the word “and Regional Secretaries.”

(2) Delete the sub-clause No. IV which is after the sub-clause No. V. It is printed twice.

Amendment to article VIII : (1) In clause 1 drop the hyphen in the second line after the words “consist of”.

(2) In sub-clause 4 add “The” before the word “President.”

(3) After sub-clause 5 add the following :

“6. The President shall appoint Regional Secretaries for different regions not exceeding five in number”.

(4) After clause 7 add the following :

“8. The Regional Secretaries shall do the work of organising the Federation within their jurisdiction and shall perform such

other duties as the President. The President may prescribe and shall keep the President and General Secretary informed”.

Amendment to article X : For the word “bi-annually” in clause 1, line two, add the words “Every two years”.

Amendment to article XIV : In sub-clause No. 5 last line read the word “Offices” in place of officers so as to read “access to all offices”.

Amendment to article XVII : In clause No. 4 line No. 2 delete the words “States Federation” and substitute therein the “All India Committee of the Federation”.

Amendment to article XXIII : In sub-clause 2, in fifth line delete the word “District” and substitute the word “State” therein.

Amendment to article XXVI : (1) In sub-clause 1 delete the word “triangle” and substitute the word “Rectangle” therein.

(2) In the same sub-clause add “11 Stars” after the words “Consists of”.

All these above amendments were put to vote and were carried.

Resolution No. 5 : “This meeting of the Working Committee adopts the Constitution for the All India Schedule Castes Federation and declares that the Federation shall be bound by it”.

At this stage Dr. Babasaheb explained that the Constitution has become bulky one. Some portion of it, therefore can be transferred to “Standing Orders” so that the Constitution may be small one.

The resolution was carried unanimously.

Resolution No. 6 : This meeting of the Working Committee is of the opinion that the provision for the reservation of seats for the Scheduled Castes in Parliament, in State Assemblies, in Municipalities and District and Local

Boards be done away with immediately even before the next election”.

Moved by : Shri A. G. Pawar and

Seconded by : Shri A. Ratnam.

This resolution was carried unanimously.

Resolution No. 7.—(1) This meeting of the Working Committee of the Scheduled Castes Federation expresses its resentment against the Planning Commission for not having consulted the Federation to assist the Commission in devising ways and means for solving the problem of the Untouchables.

(2) This meeting of the Working Committee of the Federation is of the opinion that in Planning Commission's proposals there is none which would abolish Untouchability or remove the poverty of the Untouchables.

(3) This meeting of the Working Committee of the Federation is convinced that it is the village system which is based on compulsory co-existence between Untouchables and Caste Hindus which is at the root of Untouchability and the poverty of the Untouchables.

(4) When two parties decide to co-exist it is important that each should understand the other's mind and mental attitude. Behind what he says we could have some idea of what and how he thinks. What constitutes the Communal mind ? How does it work and react ? Has it got recognisable corporate existence ? And, if so, is there a discernible pattern to be studied ; and what can we learn from it ? Where, indeed, do we begin ?

It is our failure to study the caste Hindu reaction and to look below the surface of statements and propaganda that has been responsible for our past mistakes. The kind of Caste Hindu mind with which we must be concerned is not to be found in Caste Hindu (but behind the iron curtain).

(5) It is the confirmed opinion of the Working Committee that this system of co-existence must be done away with.

(6) This, in the opinion of the Working Committee, can be done by establishing separate villages exclusively of Untouchables who are now living scattered in small groups under the sovereignty of caste Hindus.

(7) The Working Committee, therefore, urges upon the Planning Commission to reserve all cultivable waste-land, to make barren land cultivable and let colonies of Untouchables settled on such land.

(8) The Working Committee is of the opinion that to raise the necessary finance that salt tax be re-levied”.

Moved from the Chair, Dr. Babasaheb explained that he was thoroughly convinced in his mind that so long the Scheduled Castes live with the Caste Hindus our people will not live the life of freedom and liberty, free from oppression of the Caste Hindus. The Madras Govt, wanted to build new cherries for the Scheduled Castes but he was strongly opposed to this idea. He did not want that Untouchability should be made permanent by building new cherries. He wanted them to be burnt.

This resolution was carried unanimously.

Resolution No. 8.—(1) The Working Committee of the Federation is sorry for the deaths that have taken place in the Goa *Satyagraha*. The Committee is, however, of the opinion that *Satyagraha* is not proper means of achieving the liberation of Goa.

(2) As understood by the Committee in *Satyagraha*, *Satya* is common ground to both. The difference is only on *Agraha*. In such a situation *Satyagraha* of the Gandhian type is possible and may be tried. But where there is no agreement of *Satya*, *Satyagraha* of the Gandhian type is a futility. The Working Committee cannot, therefore, advise the Scheduled Castes to join the Goa *Satyagraha*.

(3) Working Committee of the Federation is of the opinion that Goa must become a part of India and that the Portuguese must quit. There are three ways of achieving this object. (1) purchase, (2) lease, or (3) War. If Government is not prepared to accept any one of these three ways it is

the duty of the Govt, to tell the people what other weapon it has”.

Dr. Babasaheb explained that the *satyagraha* can be between two parties who agree on the “Truth” . The only difference between the parties is on *Agraha*. The British people could give freedom to India because both the British people and the Indians had agreed that the Indians have the right of Self-Government. In fact this principle of self Government was enunciated by Macaulay as far back as 1833. Macaulay said that the Indians were not barbarians. The Indians have a distinct civilization and culture of their own. They, therefore, should be given the right to govern themselves. But in the case of Goa the Portugues Government did not agree on the question of freedom of Goa. *Satyagraha*, therefore, as a weapon of liberating Goa is not only useless but dangerous. I cannot allow our people to be exposed to bullets and massacre. If we are given guns, we will fight. We, therefore, want to pass the above resolution.

The resolution was carried unanimously.

Resolution No. 9.—“This meeting of the Working Committee is not satisfied with the foreign policy of the country. It is neither calculated to strengthen the parliamentary system of Government nor the defence of the country”.

After this resolution was carried, the President announced that he has appointed Shri Rajabhau Khobragade as the General Secretary of the All India Scheduled Castes Federation.

Resolution No. 10.—Resolution congratulating Shri Khobragade was passed.

The Chairman was thanked for guiding the deliberations of the Working Committee.

All members of the Working Committee were also thanked.

This Working Committee of the Scheduled Castes Federation further resolved that the President be empowered to draft a resolution on Linguistic Provinces embodying the following points :—

- (1) The States be so divided as to maintain a Unity of the Country.
- (2) The administrative languages should be English and Hindi.
- (3) Bombay should belong to the United Maharashtra.
- (4) Hyderabad City should be a second capital of India making it a Governor's province.
- (5) Hyderabad State be divided into different Linguistic Units.

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**A LETTER TO JAWAHARLAL NEHRU
REGARDING THE BOOK 'BUDDHA AND HIS
DHAMMA'**

Dr. B. R. Ambedkar had written a letter, on 14th September 1956 to Pandit Jawaharlal Nehru regarding a book on "The Buddha and his Dhamma". It is as follows : Editors.

My dear Panditji,

I am enclosing herewith two copies of a printed booklet showing the Table of Contents of a book on "The Buddha and His Dhamma" which I have just finished. The book is in the press. From the table of the contents you will see for yourself how exhaustive the work is. The book is expected to be in the Market in September 1956. I have spent five years over it. The booklet will speak for the quality of the work.

The cost of printing is very heavy and will come to about Rs. 20,000. This is beyond my capacity and I am, therefore, canvassing help from all quarters.

I wonder if the Government of India could purchase about 500 copies for distribution among the various libraries and among the many scholars whom it is inviting during the course of this year for the celebration of the Buddha's 2500 years' anniversary.

I know your interest in Buddhism. That is why I am writing to you. I hope that you will render some help in this matter.

Yours sincerely,
(Signed) B. R. AMBEDKAR.

Pt. NEHRU'S REPLY

Pandit Jawaharlal Nehru had responded to the letter of Dr. B. R. Ambedkar. He expressed his inability to purchase the Book "Buddha and His Dhamma". He referred this to Dr. Radhakrishnan, the Chairman of Buddha Jayanti Committee. Following is the reply by Pt. Jawaharlal Nehru : Editors.

Shri Jawaharlal Nehru,
Prime Minister of India,
NEW DELHI.

No. 2196-PMH/56.
NEW DELHI
September 15, 1956.

My dear Dr. Ambedkar,

Your letter of the 14th September.

I rather doubt if it will be possible for us to buy a large number of copies of your book suggested by you. We had set aside a certain sum for publication on the occasion of the Buddha Jayanti. That sum has been exhausted and, in fact, exceeded. Some proposals for books relating to Buddhism being financed by us had, therefore, to be rejected. I am, however, sending your letter to Dr. Radhakrishnan, the Chairman of the Buddha Jayanti Committee.

I might suggest that your book might be on sale in Delhi and elsewhere at the time of the Buddha Jayanti celebrations when many people will come from abroad. It might find a good sale then.

Yours sincerely,

(Signed) JAWAHARLAL NEHRU.

Dr. B. R. Ambedkar,
26, Alipur Road, Civil Lines,
DELHI.

Dr. S. Radhakrishnan informed on phone to Dr. B. R. Ambedkar expressing his inability to do anything in this regard.

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BHIKHUS SHOULD SERVE THE BUDDHA BY BECOMING PREACHERS OF HIS DHAMMA

“Dr. B. R. AMBEDKAR,

M.A., Ph.D., D.Sc, LL.D., D.Litt., Barrister-at-Law,

Member, Council of States

26, ALIPORE ROAD, CIVIL LINES, DELHI

Dated the 30th October 1956.

My dear Valisinha,

Thank you very much for your letter of 25th October 1956. It certainly was a great event and the crowd that came forward for conversion was beyond my expectation. Thank the Buddha it all went well.

I am glad you realize that having begun the task well we have to look to its continued progress in the future. We have to consider ways and means of imparting knowledge of Buddhism to the masses who have accepted His Dhamma and will accept it on my word. We should no doubt train large number of workers to teach Dhamma to the people, but the best agents for carrying out the same are the Bhikkus. They would carry a great deal of prestige with them which no layman could do.

The Bhikkus in my judgement ought to be very happy to find out that a large task awaiting them has been done. The only difficulty with the Bhikkus is that they don't care to learn the language of the people. I am afraid the Sangh will have to modify its outlook and instead of becoming recluses they should become like the Christian missionaries the social workers and social preachers. As I told you today they are neither Arhans nor useful members of the society. This fact must be hammered into them and make them realize that they could serve the Buddha well by becoming preachers of His Dhamma.

I like your idea of opening a sort of the logical seminar where Bhikkus and non-Bhikkus could be taught the fundamentals of Buddhism and make to learn the different languages of India so that they could be sent to the different parts.

So far as my reading of the mind of the Indian youth is concerned it is very difficult to make them turn to learn the monestic ideals. The best way is that we can create like Japanese married priests like the protestant Christians have done. For that we shall have to find means for their support during their educational period and after they go out public life as priests.

The conversion ceremony in Bombay will probably take place in December, most probably during the X'mas holidays so that many people could have travel facilities which they would not otherwise get. I shall let you have the exact date after consulting my Bombay people.

I hope you are giving full publicity to the Nagpur ceremony, in the Maha Bodhi Journal. I would like you to particularly mention the following points :

1. that on the first day some three lakhs and eighty thousand people became converts to Buddhism. As many people arrived after the ceremony was over a second ceremony was held on the next day as the first item in the programme.
2. that there was another conference at Chanda on 16th October 1956 which was held in the evening. There also another conversion ceremony was held and some 3 lakhs of people were converted.
3. According to the news item in yesterday's paper there was again a conversion ceremony held at Akola after I came away and more than 2000 people were converted.
4. That a Marathi paper called 'Navyug' has published some fine photographs of the crowd that attended conversion ceremony at Nagpur.
5. That I am receiving letters from all corners for conversion.

If you are issuing a special number of Mahabodhi Society Journal and desire, to obtain photographs I can help you to obtain the same. Please let me know.

With reference to your query as to our tour programme I am told a copy of the same has already been sent to you. You will know from it when I shall be in Sarnath.

Yours Sincerely,
(Sd.) (**Dr. B. R. Ambedkar**)

Shri D. Valisinha,
General Secretary,
Maha Bodhi Society of India,
4-A, Bankim Chatterjee Street,
(College Square), Calcutta-2.”¹

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¹ : Mahabodhi ; May 1957, Number 5, P. 226.

I BELIEVE, MY PEOPLE WILL SACRIFICE EVERYTHING TO ESTABLISH BUDDHISM IN INDIA

“Dr. B. R. Ambedkar and Mrs. Ambedkar accompanied by Mr. B. H. Varale and Dr. Mavalankar left for Nepal to participate in the World Buddhist Conference scheduled to take place on the 17th November 1956.

While leaving for Nepal, on November 13th, 1956, Mr. Y. C. Shankaranand Shastri very respectfully enquired at the Air Port, New Delhi, “Baba Saheb, in view of your failing health how far will it be possible for you to tour India to propagate the Dhamma ?” Baba Saheb felt slightly irritated but strongly asserted, for the task like propagation of Buddhism I am not at all ill. I am prepared to utilise every moment of my remaining life for the great task of revival and propagation of Buddha’s Dhamma in Bharat.

“I am going to administer “Deeksha” to lakhs of people in Bombay in the month of December. The kind of great revival meeting took place in Nagpur on the 14th October 1956 will also be arranged in Bombay where millions of people will be converted to Buddhism. Conversion meeting like the one which took place in Nagpur will also be organised in other cities of India.”

“Not only the people treated as Untouchables but all people, irrespective of caste or religion, who believe in the teachings of the Buddha should participate in this Deeksha ceremony and embrace Buddhism.”

During the course of conversation with people present there, Baba Saheb Ambedkar strongly asserted, “It is very wrong to believe that Buddha is incarnation of Vishnu. This is a false and mischievous propaganda”. The preachers of this diabolical theory are none other than the followers of Brahminism. Their sole aim is to maintain the stratification based on inequality and mutual hatred in order to maintain their hold on the society. I have been

struggling throughout my life to abolish this evil practice of division based on caste and mutual hatred. In reality, I feel guilty of starting late the work of revival of Buddhism in India. But even then I hope and believe that my people who, sacrificing their own comforts, have been faithfully following me. I hope and I trust they will continue to struggle sincerely to propagate the Buddha Dhamma in India.”¹

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¹ : Prabuddha Bharat : dated 17th Nov. 1956. Translated by Bhagwan Das

APPENDICES

APPENDIX—I

BRUTE FORCE WILL NOT SUSTAIN UNTOUCHABILITY

—MAHATMA GANDHI

This is the article that appeared in *Young India* regarding the Mahad *Satyagraha*.

“UNTOUCHABILITY AND UNREASON

A correspondent from Mahad writes :

It gives me much sorrow to let you know that there was riot on the 20th of March last between touchables and Untouchables at Mahad. There was held a conference of the Colaba District Depressed Classes on the 19th and 20th ultimo. The meeting was quite successful. But whilst the crowd was dispersing, Mr. A. V. Chitre of the Social Service League of Bombay told the people as they were thirsty and as the sun was very hot that they could go to the public tank and drink water. There were some who tried to dissuade the men from going to the tank. But Dr. Ambedkar, the President decided to march the men to the tank. Even the police inspector could not feel the gravity of the situation, and instead of stopping the crowd from proceeding to the tank, went with them. The tank is situated in the midst of the Brahmin locality. As however no one was aware that the Untouchables were going to the tank there was no disturbance, and hundreds of them quenched their thirst at the tank with cries of “*Hara Hara Mahadev*”. Meanwhile the touchables came to the scene and they watched the incident with rage. The crowd of Untouchables then went back to the pandal for their meals. Within an hour of this the Mahad public was suddenly awakened by the wild cry of *Gurava* and they were told that the Untouchables were thinking of entering the temple of Vireshwar.

It was a false cry; but in no time the temple was filled by an infuriated mob of touchables who had sticks in their hands. The poor Untouchables had no intention whatsoever of going to the temple. But the touchables finding no

Untouchable attempting to enter the temple practically ran amuck, went to the bazar and began to beat any Untouchable they came across in the street. All the while this beating was going on the part of the touchables, not one Untouchable offered any resistance. A few touchables who sympathized with the Untouchables tried to protect them; but the furious mob would not be checked. They even rushed into the huts of shoe-makers and such others and beat them severely. The helpless Untouchables ran wildly for help; but none was offered by the shopkeepers. The Untouchables who were in the pandal were derided by the touchables for not coming out in the open to fight. There were nearly 1,500 of the former in the pandal and if they had offered to fight there would have been a great calamity and Hinduism would have been disgraced. Dr. Ambedkar justified the advice that he had given on the strength of the resolution that was passed in the Bombay Legislative Council and on the opinion expressed by the Mahad Municipality that the Untouchables were lawfully entitled to take water from public tanks and wells.

Mahatma Gandhi expressed his views on *Satyagraha* and the problem of Untouchability in the Hindu Society, thus :

I have omitted from the correspondent's letter several passages giving further details. But the letter appears to me to be genuine and does not in any way appears to be an over-estimate. Assuming then that the incident is correctly reported there can be no question about the unprovoked lawlessness on the part of the so-called higher classes. For, it should be remembered that it was not the drinking of water at the tank which had brought together the "touchables" to the temple but the false report that the Untouchables were wanting to enter the temple. But one can hardly expect sanity to exist side by side with unreason. Untouchability itself has no reason behind it. It is an inhuman institution. It is tottering and it is sought to be supported by the so-called orthodox party by sheer brute force.

The so-called Untouchables have brought the question a step nearer solution by their exemplary self-restraint under most provoking circumstances. Had they retaliated it would have been perhaps difficult to distribute the blame. As it is, the blame is all on the side of the "touchables." Brute force will not sustain Untouchability. It will bring about a revulsion of feeling in favour of the suppressed classes. It is a sign of the times that there were at least some "touchables" who tried to defend the poor Untouchables. One could wish that there were many more in Mahad. Silent sympathy on such occasions is not of much use. Every Hindu, who considers the removal of Untouchability to be of paramount importance, should on such occasions prove his sympathy by publicly defending the suppressed classes and having his own head broken in defending the helpless and the downtrodden.

I cannot help thinking that Dr. Ambedkar was fully justified in putting to test the resolutions of the Bombay Legislative Council and the Mahad Municipality by advising the so-called Untouchables to go to the tank to quench their thirst. No incident of this character should pass by unnoticed on the part of associations like the Hindu Mahasabha interested in this reform. Let them investigate the statements made by my correspondent and if they can be substantiated, let them condemn the action of the "touchables." There is nothing like the growth of enlightened public opinion for eradicating everything evil, which Untouchability undoubtedly is."

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¹ : Young India, dated 28th April 1927.

Reprinted, Ganvir, Mahad Samata Sangar. Pp. 246-248.

APPENDIX—II

MAN'S INHUMANITY TO MAN

(*By M. K. Gandhi*)

“In another column will be seen an extract from Navajivan of a most disgraceful case of calculated inhumanity of a medical man towards the dying wife of a member of the suppressed class in a Kathiawad village. Sjt. Amritlal Thakkar who is responsible for giving the details of the case has withheld the names of the place and parties for fear of the poor suppressed class school-master being further molested by the medical man. I wish however, that the names will be disclosed. Time must come when the suppressed class people will have to be encouraged by us to dare to suffer further hardships and tyranny. Their sufferings are already too great for any further sufferings to be really felt. Public opinion cannot be roused over grievances that cannot be verified and traced to their sources. I do not know the rules of the Medical Council in Bombay. I know that in other places a medical practitioner, who refused to attend before his fees were paid, would be answerable to the Council and would be liable to have his name removed from the Council's list and be otherwise subject to disciplinary action. Fees are no doubt exactable; but proper attendance upon patients is the first duty of a medical practitioner. The real inhumanity, however, if the facts stated are true, consists in the practitioner refusing to enter the Untouchable's quarters, refusing himself to see the patient, and refusing himself to apply the thermometer. And if the doctrine of Untouchability can ever be applied in any circumstances, it is certainly applicable to this member of the profession which he has disgraced. But I am hoping that there is some exaggeration in the statement made by Sjt. Thakkar's correspondent and, if there is none, that the medical practitioner will himself come forth and make ample amends to the society which he has so outraged by his inhuman conduct.

READ, REFLECT AND WEEP

There is a school for the children of the suppressed classes in a village in Kathiawad. The teacher is a cultured, patriotic man belonging to the *Dhedh* or Weaver (Untouchable) class. He owes his education to the compulsory education policy of His Highness the Gayakwad and had been doing his little bit for the amelioration of his community. He is a man of cleanly habits and refined manners, so that no one can recognise him as belonging to the Untouchable class. But because he had the fortune or misfortune of teaching the children of his own community in a conservative village in Kathiawad, everyone regards him as an Untouchable. But unmindful of that he had been silently working away. There are some moments, however, when the most patient man living under intolerable conditions may give vent to agony and indignation, which are evident in the following letters from the schoolmaster. Every little sentence in it is surcharged with pathos. 'I have purposely omitted the names of the village and all the people mentioned in the letter, lest the schoolmaster should come into further trouble.'

Namaskar. My wife delivered a child on the 5th instant. On the 7th she was taken ill, had motions, lost her speech, had hard breathing and swelling on the chest, and her ribs were aching painfully. I want to call in doctor but he said, 'I will not come to the Untouchable's quarters. I will not examine her either.' Then I approached the Nagarsheth, and the Garrsia Durbar, and requested them to use their good offices for me. They came and on the Nagarsheth standing surety for me for the payment of Rs. 2 as the doctor's fee, and on condition that the patient would be brought outside the Untouchable's quarters, he consented to come. He came, we took out the woman who had a baby only two days old. Then the doctor gave his thermometer to a Musalman who gave it to me. I applied the thermometer and then returned it to the Musalman who gave it to the doctor. It was about eight O'clock, and having inspected the thermometer in the light of a lamp, he said: 'She has pneumonia and suffocation'. After this the doctor left and sent medicine. I got linseed from the market and we are applying linseed poultice and giving her the

medicine. The doctor would not condescend to examine her, simply looked at her from a distance. Of course I gave Rs. 2 for his fee. It is a serious illness. Everything is in His hands !

The light in my life has gone out. She passed away at 2 O'clock this afternoon.

II

Comment is needless. What shall one say about the inhumanity of the doctor who being an educated man refused to apply the thermometer except through the medium of a Musalman to purify it, and who treated an ailing woman lying in for two days worse than a dog or a cat ? What shall one say of the society that tolerates this inhumanity ? One can but reflect and weep.

A. V. Thakkar,

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APPENDIX—III

“ORTHODOXY RUN MAD

Alleged Barbarous Treatment of “Untouchable” Crime of Being Mahars

Mr. Keshavaji Ranchhodji Vaghela from Ahmedabad has informed Dr. B. R. Ambedkar, President, *Bahishkrit Hitkarini Sabha* as follows :

One Bapoorao Laxman and his brother Kaurao have been residents of Ahmedabad during the last six years. They used to mix with some people from the Deccan belonging to Maratha Caste. Kaurao's two sons *viz.* Damoo and Laxman used to take part in the *Bhajan* parties of the Marathas. The latter, however, recently came to know that the brothers Damoo and Laxman were Mahars by caste and in order to ascertain this, two Mahars employed on the parcel train between Surat and Ahmedabad were specially called to identify Damoo and Laxman. After it was ascertained, they were called at a *Bhajan* party at Kalupur, Bhanderi Pole, at midnight on the 11th instant. Asked as to what caste they belonged to, Damoo and Laxman replied that they were *Somvanshis*. This reply enraged the Marathas who freely abused them for having defiled their persons and places. The Mahar brothers were also assaulted by the Maratha. One of the brothers had a gold ring on his person. It was forcibly taken away from him and sold for Rs. 11. Out of this amount Rs. 6 was paid to the Mahars who had been called from Surat to identify the brothers. Damoo and Laxman entreated the Marathas to allow them to return to their homes, but the latter refused to do so unless a fine Rs. 500 was paid. On the Mahar brothers pleading their inability to pay such a heavy sum, one of the Marathas suggested that the Mahar brothers should be fined only Rs. 125. But then one of the Marathas opposed the proposal for fine saying that they should not be satisfied with fine, but should punish the Mahars severely for their crime of concealing their caste. Having decided upon the course, the Mahar brothers were detained and at about 9 O'clock in the morning they were subjected to barbarous indignities. Their mustaches in the left side and eyebrows on the

right side were shaved, their bodies besmeared with soot mixed in oil and also with dirt, garlands made of old shoes were put around their necks, and one of them was asked to hold a broom in his hand and the other to hold a placard on which it was written that the punishment was metted out to the culprits for venturing to touch high caste people. The Mahar Brothers were taken in procession consisting of about 75 people, a drum being beaten in the front.

A complaint has been lodged with the Police by the said two Mahar brothers. The accused in their statement have admitted that Damoo and Laxman were treated in the alleged manner, but pleaded that the complainants had willingly agreed to undergo the punishment. Obviously Damoo and Laxman were helpless when they were abused, assaulted and threatened with severe punishment and actually subjected to barbarous indignities. This case has created a great sensation among the people belonging to the so-called Untouchable castes and efforts are being made to give proper legal aid to the complainants.”¹

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¹: The Bombay Chronicle, dated 25th February 1928.

APPENDIX—IV

GANDHI-VALLABHBHAI MEETING ON EVE OF POONA-PACT

On September 6, 1932 in Yervada Jail the discussion proceeded on these lines :

“Vallabhbhai Patel : What do you think will these people (British Government) do ?

Gandhiji : I still feel that they will release me on or before 19th. It will be the limit of wickedness if they let me fast, let no one know about it and then say that I did what I as a prisoner ought not to have done, and that they could do nothing about it. I do not say that they cannot go that far, only then they will find it necessary. And they certainly are not the people to go farther than it is necessary.

V. Patel : Then what will you do ?

Gandhiji : The fast cannot commence on 20th. We cannot stick to the 20th.”

V. Patel : Does it mean then that we have got time till the new Constitution is drawn up ? or that you can give a longer notice to the people and the Government ?

Gandhiji : Yes, but that depends on how much the people will allow me to do after I get out. I cannot tell what the situation will be. I may have no idea of the kind of letter I may have to write. But I shall have to consider every party—the Hindu Society, the *Antyajas*, the Government, the Muslims. It will be necessary for the Hindus to hold meetings along with the *Antyajas* at every place and reject this thing. The

Government has done this thing as a Christian Government and hence I shall have to tell both the Government and the Christians the same thing that as Christians they cannot do this thing. Let our *Swaraj* come into being, then they may influence the *Antyajias* in any way they like, but they should not divide us today. I had said this to the Muslims even in England. I shall say the same thing here also. I shall explain to the Hindu Society that now the *Antyajias* have no choice but to turn Muslims or Christians.

Mahadev Desai : Among the people who will come also be the Christian friends and they will say to you that before accusing the Government, you should accuse your self. Why does Hindu society regard the *Antyajias* as Untouchables ?

Gandhiji : That is upto me to explain. That is not difficult thing. We can say to them : “Allow us to settle our problems ourselves, why do you interfere ? After we have set about managing our own affairs, you may do what you like. Why do you divide us and then argue over things ? To-day the *Antyajias* have either to turn to Muslims or to you. The question of women is similar to that of *Antyajias*. But women are not Untouchables. Even if they wish to become Untouchables, men will go and sit on their beds. They cannot be separated from even by having a separate electorate. To-day the *Antyajias* have been separated permanently. What would be the outcome of it ? There

would be internal strife. There are people like ... He would collect bad characters in the community and get them to attack Hindus, poison wells and do other things.”¹

Bapuji wrote a letter to H. S. L., Polak in which he gave clear account of the circumstances leading to the fast. This is what he wrote :

“You seemed to have missed the very core of the fast. You have to go back to my speech at the Minorities Committee. It was not a prepared speech. The end of it came irresistibly. The fast was an inevitable result of that solemn declaration. I little knew how that declaration was to find fulfilment. I say that the declaration was from God and so was the fulfilment. If it was so, all argument is useless. If it was a hallucination, friends who believe it to be such are bound to drive home the truth to me with all the love and persistence they can summon to their assistance.

“Everything that happened since confirms me in the opinion that the fast was a God-given trust. Not the Premier but Sir Samuel Hoare through whom the message of the fast had necessarily to go. But if you had followed all the statements I have made and even my letter to the Premier you would have seen that the fast was addressed to the millions who had faith in me, and who had surrounded me with their undying affection whenever I went to their midst. They understood the fast with all its implications without any argument. For them, the political part of it was trivial; internal reform was everything.

“You ask why it was not administered ten years ago. The answer is; God did not call me to. He comes to wake you up when you least expect him. His ways are not our ways. You will, of course, believe me when I say that I had then the same capacity for sacrifices that I seem to have now.”²

¹ : Government of India, The Collected Works of Mahatma Gandhi, Ministry of Information and Broadcasting, New Delhi, Vol. 11, Pp. 457-458.

²: *ibid*, volume LI, Pp. 252-253.

All the above reprinted, Busi Dr ; Pp. 188-190.

APPENDIX—V

COMMENTS ON ROUND TABLE CONFERENCE AND POONA-PACT

1

Joint Select Committee of Parliament:

“Communal Award And Poona Pact”

The Committee are definite in their opinion that communal representation is inevitable at the present time. They describe as well-thought out and well-balanced the arrangement for the composition of Provincial Assemblies embodied in the Communal Award.

As regards the Poona Pact, the Committee express the view that in their opinion the original proposals of His Majesty's Government were a more equitable settlement of the general communal question, and more advantageous to the Depressed Classes in their present stage of development. But, since the Pact has been accepted as an authoritative modification of the Award, the Committee are clear that it cannot now be rejected. They are however, disposed to think that if by agreement some reduction were made in the number of seats reserved for the Depressed Classes in Bengal, possibly with a compensatory increase in the number of their seats in other Provinces, the working of the new Constituion in Bengal would be facilitated.” (A Summary of the Report of the Joint Select Committee of Parliament on the proposals contained in the White Paper on Indian Constitutional Reforms, page 4, dated 22nd November, 1934.)¹

2

Joachim Alwa stated in his book “Men and
Supermen of Hindustan” :

“He (Dr. B. R. Ambedkar) just became bold and literally adopted Spencer's maxim ‘Be bolde ! be bolde and ever more be bolde !’ He learnt that by daring and reckless courage, great fears & weaknesses are removed. He was most powerfully

¹ : Reprinted, Khairmode, Vol. 5. Pp. 65-66.

tempered and pampered with undue attentions. Mahatma Gandhi had also an unparalleled record of service on behalf of the Depressed Classes whom he chose to be respectfully addressed as 'Harijans.' But the Doctor would brook no rivals. He would not tolerate no one else occupying the pedestal. Being the product of abnormal social and economic conditions in which Indian Society had abysmally let itself down, Dr. Ambedkar deliberately cultivated an abnormal individuality. (Men & Supermen of Hindustan, page 20).

'Dr. Ambedkar's request to Ramsay MacDonald to settle the Communal ratios in the Legislature led to his discomfiture in the life of the turbulent politician, The Doctor cried at the gate of the Yeravada Jail—

I trust that I will not be driven to the necessity of making a choice between Gandhi's life and the rights of my people. I can never consent to deliver my people bound hand and foot, to the Hindus for generations. I don't care even if a hundred Mahatmas are sacrificed. Mahatmas are not immortal creatures. You are all free to hang me from the nearest lamp-post..... The Mahatma declared to the Doctor 'I am proud of you. I have always listened to your speeches breathlessly.' (Men & Supermen of Hindustan, P. 22)" ¹

3

An Author Writing Under Pen-Name

A Student of Public Affairs, in his book "Has Congress Failed? " expressed his views as under: "Not even his most ardent supporters will claim that Mr. Gandhi's participation in that Conference was a success. Communal differences were holding up progress on all sides and the Minorities Sub-Committee finally was obliged to report failure to reach a settlement. Mr. Gandhi consistently refused to consider any proposal for separate electorates for any community except the Mohammedans, the Sikhs and the Europeans, and as regards the Depressed Classes he insisted that they were Hindus and must be kept within

¹: Reprinted, Khairmode, Vol. 4. Pp. 168-169.

the Hindu fold. Dr. Ambedkar was led by this unyielding attitude into a definite demand for separate electorates for the Depressed Classes.”—P. 55)¹

4

Dr. M. R. Jaikar stated in his Autobiography that :

“ ... his (Mahatma) attitude at the Indian Round Table Conference in England drove the minorities to adopt the notorious Minorities Pact. He denied to the Depressed Classes even a single seat by reservation except through the medium of the Congress. Later he fasted in India against Prime Minister MacDonald’s award comparatively a more blanced arrangement than the later, “Poona Pact” which had to be accepted at the point of the bayonet as it were. The effect of this pact was deeply deplored in Bengal by leaders who had been Gandhiji’s loyal followers before.” (The Story of My Life, Vol. One, Pp. 361-62) ”²

5

On the occasion of the Birth day of Pandit Jawaharlal Nehru, the book entitled “A Bunch of Old Letters” was published. The book includes a letter by Mr. Edward Thompson who wrote it on 6th December 1936, wherein he stated,

“I never thought Gandhi wrong until the Round Table Conference, when he was both arrogant and irrelevant. Perhaps he should not have come at all. But having come, he was unjustified in refusing to regard the other Indians, many of the men who had paid a price for their opinions, as men entitled to be consulted by him and regarded as friends engaged in a common endeavour and hope.” (P. 208) ”³

6

Mr. Glorne Bolten stated in his book ‘The Tragedy of Gandhi’ :

“The truth is that Mr. Gandhi was lost in London, and the old assurance and reliance was deserting him. Day after day-in the Conference which he had come to detest-he faced the

¹ : Khairmode, Vol. 4 P. 173.

²: *ibid*, P. 173.

³: *ibid*, Pp. 173-174.

Mohammedan delegates who would yield none of their demands. Day after day Dr. Ambedkar came into greater prominence. He spoke for the 'Untouchables' and every speech on the welfare of India whether from a Conservative or a Socialist-would contain references to the tragic flight of the 'Untouchables'. It was a sentimental rather than a practical concern. Mr. Gandhi, by representing the Untouchables, would have drawn eulogies from almost every one in England-but now Dr. Ambedkar had destroyed this platform. He so opposed the Mahatma that the public began to believe that two personalities dominated the Conference, Mr. Gandhi and Dr. Ambedkar. Nothing could have been further from the truth. To begin with, Mr. Gandhi was not dominating the Conference nearly enough. He spoke over after Sir Samuel Hoare, when he came to like more and more, had spoken in favour of indirect election. Mr. Gandhi agreed with him entirely and he proceeded to elaborate his Panchayat Scheme whereby villages elect their representatives, a group of village-representatives elect their district representative and a group of district-representatives elect the representative for legislature. It is a system which while weakening Conservative fear, meets the Congress demand for adult suffrage. Indian Liberal delegates were warm in their approval. "Within a week," one of them said, "Gandhi will have the Conservatives at his feet." He never spoke in this fashion again, instead there was a wrangle with Dr. Ambedkar. At first Mohammedans seemed to enjoy the Mahatma's discomfiture, but in time every delegate was wishing that Dr. Ambedkar would show Mr. Gandhi the courtesy to which his personal eminence certainly entitled him."

(The Tragedy of Gandhi, pages 266-267)

"Henceforward Bow and Knights bridge were not to be the only centres for Conference plotting. Representative Mohammedans, Europeans, Anglo-Indians, Untouchables met together. In a very short period of time they had drawn up a Minorities Pact to which representatives of the Minorities with the notable exception of the Sikh leader, Sardar Ujjwal Singh, appended his signature. Mr. Benthall sent Mr. Gandhi a copy of the pact and a courteous, if rather buoyant explanatory letter. Dr. Ambedkar met Mr. Gandhi's gaze at St. James with an almost defiant smile. There were but two obvious courses open to

Mr. Gandhi. One was to accept the division of the Minorities with whatever grace he could. The other was to rally the great Hindu majority to his side to speak not as the sole representative of Congress but as the spokesman of all the Hindus, the orthodox Hindu Mahasabha included. Mr. Gandhi's eyes trenched swiftly down the clauses of the Pact. He saw at once that the Pact indicated the truculent attitude which Dr. Ambedkar had adopted. for separate electorates were generously bestowed upon the Untouchables. Obvious courses were not for Mr. Gandhi. If hitherto he had been uncertain of his mission in London he knew now that it was his duty to do. He would save the Untouchables from their leader. He called Sir Samuel Hoare. He even called Mr. Ramsay MacDonald by whom he was impressed, with the vehemence of his views.

Mr. Gandhi would speak of nothing else. "Separate Electorates to the Untouchables" he declared in a speech, "will ensure them bondage in perpetuity. The Musalmans will never cease to be Musalmans by having Separate Electorates. Do you want the 'Untouchables' to remain 'Untouchables' for ever? And however lightly the Indian Liberal may regard Mr. Gandhi's views on Federation, he has a healthy respect for his views on minorities. A Minorities Pact falls short of a general agreement and because it provided the hostility of the orthodox Hindus and the Sikhs more particularly because it roused the anger of Mr. Gandhi. The Pact died the day it was born. Its demise was promptly acknowledged by the British and Indian delegates alike. The Communal settlement, as everyone now admitted, would have to be impressed by the British Government.

(The Tragedy of Gandhi, Pp. 277—278) " ¹

7

Dhananjay Keer, biographer said,

"The Poona Pact thus vibrated the whole country and had repercussions throughout the world. It proved once more that Dr. Ambedkar whom in pre-Poona pact days the Congress leaders and the press refused to recognise as the leader of the Depressed

¹ : Khairmode, Vol. 4, Pp. 170—172.

Classes, came out as the accredited leader of the Depressed Classes all over India. In the new arrangement both the sides had to lose something. The Caste Hindus had to grant 148 seats instead of 71. The Depressed Classes lost their chance of bending the Caste Hindu leaders to their will as the Depressed Classes were under the Award entitled to elect their own representatives to the Assemblies separately, and besides they were to vote in general constituencies with the Caste Hindus in electing the Caste Hindu representatives. Now the Caste Hindus got the power to elect the representatives of the Depressed Classes. By a resolution at its Delhi Session on September 26, the Hindu Mahasabha also ratified it.

The third thing that was proved was that whenever the Mahatma in Gandhi got the upper hand of the politician in Gandhi, he performed the marvel of making simple things complex and complicated ! At the Round Table Conference the Mahatma in Gandhi dominated the politician in him; and the Mahatma shook the world, but the politician failed. At Yeravda the politician in Gandhi became successful and the Mahatma was defeated ! So effective and crushing was the victory of Gandhi that he deprived Dr. Ambedkar of all the life-saving weapons and made him a powerless man as did Indra in the case of Karna. Dr. Ambedkar was justified in saying that had Gandhi shown enough resilience at the Round Table Conference in the matter of the problem of the Depressed Classes, the Mahatma would not have been required to go through the ordeal. The ordeal was of Gandhi's own making.

The Poona Pact closed an epoch. But did the war, which had been declared at Manibhuvan on August 14, 1931,* come to an end ? Or was it a second battle and the war was to continue even after the truce ?”¹

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* See Pp. 51-56 of this part-Editors.

¹:Keer, Pp. 215-16.

APPENDIX—VI
DR. AMBEDKAR IS NOW PUTTING MR. GANDHI
TO AN ACID TEST

**This is the letter from one the readers of The
Times of India, which was published in The
Times of India regarding temple entry campaign**

“DR. AMBEDKAR’S BOMB
Test For Mr. Gandhi

To the Editor of “The Times of India ”

Sir,

Your Poona correspondent is quite right. Dr. Ambedkar has thrown a “live bomb into the centre of the temple entry campaign machinery.” It is something much more than that. It is a bomb (a country made one) dropped into the Congress Camp. We must never forget that Congress is almost dead, and this temple-entry campaign is simply an interesting effort to put life into a corpse. From the outset, Dr. Ambedkar has warned us that this whirlwind propaganda by Mr. Gandhi and his Congress was at bottom only a “political stunt”. He is now putting Mr. Gandhi to an acid test. There are two questions before us (1) Is the Mahatma serious about this temple entry questions, or is it a mere gesture ? (2) Would the opening of temples alone raise the status of the Depressed Classes ? That Mr. Gandhi is not really serious about the question of temple entry is proved from his own confession that “he never enters these temples himself”. Indeed, Mr. M. K. Acharya, the great orthodox Hindu leader, reminded us last week in a speech at Surat that: Mr. Gandhi himself had never worshipped in any temple and he knew very little of the principles of rules and regulations of temple worship.” All orthodox Hindus like Mr. Acharya, who have faithfully supported Mr. Gandhi for 20 years, have now forsaken him and Congress.

Mr. Acharya has issued a challenge to Mr. Gandhi ; “Why does not Mr. Gandhi found temples of his own and see if all Hindus, including Untouchbles, will go and worship in them?” No one can say that Mr. Gandhi lacks moral

courage. But he cannot accept Mr. Acharya's challenge because the Mahatma is an astute politician. And this is a question of political strategy and not a purely religious question. Mr. Acharya forgets that the Mahatma has often told us: "Most religious men I have met are politicians in disguise. I, however, who wear the guise of a politician, am at heart a religious man. My religion is my politics (Autobiography). He has always subordinated religion and principle to policy and politics. It is impossible to exaggerate the injury he has inflicted upon his country in general and upon Hinduism in particular. Look at the Poona Pact, entered into in haste; there is now a countrywide feeling that it was grossly unfair to Caste Hindus. Mr. Gandhi stampeded the country into an unjust settlement. He is now again trying to stampede the country to do something for *Harijans* which they do not really want."

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¹: Source Material, Vol. 1 Pp. 107-108.

APPENDIX -VII
DR. AMBEDKAR WANTED AN EXTENSION
IN AMERICA

Bhimrao Ramji Ambedkar

January 16, 1915

35. *Vide paragraph 1103 of 1913—S. B.,* Bombay, January 16th—The Censor writes :* The following letter passed through from Minister of Education, Baroda. d/o No. 509, dated 8th January 1915, to B.R. Ambedkar. Esquire B. A., 554 West 114th Street, New York :—

“Inform him that ‘proposals will be submitted to His Highness the Maharaja Saheb to grant you an extension in continuation of the one already sanctioned,’ and that the result will be communicated.”

Bhimrao Ramji Ambedkar

January 30, 1915

81. *Vide paragraph 35 Baroda, January 25th—The Assistant Resident writes :* “Bhimrao Ramji Ambedkar is a Parwari **a resident of Bombay who was sent by the Gaekwad to America to study Finance and Sociology. He figures in the Baroda Service List as a Military Probationer, but has done no military training and was apparently appointed in order to draw pay. He was sent to America in June 1913 and it is believed that he is still there. A certificate of identity was given to him.”

Bhimrao Ramji Ambedkar

February 13, 1915

107. *Vide paragraph 81 Bombay, February 8th—*Bhimrao Ramji Ambedkar is a Mahar by caste, native of Ambed, Taluka Dapoli, District Ratnagiri. He is a graduate of the Bombay University having passed his B. A. Examination from the Elphinstone College. He then joined the Baroda State Service and in 1913 was sent to America by the Baroda State to study Economics. He left Bombay per S. S. Sardegna on the 15th June 1913.

It appears that Ambedkar had asked for an extension of his stay in America for two years more within which time he expects to finish his studies.

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*Abbreviations : S. B.—Special Branch.

** For the meaning of the word ‘Parwari’ see article by Dr. B. R. Ambedkar under the title ‘The Mahar : who were they and how they became the Untouchables.’ on Pp. 137—150 in Part II of this Volume.—Editors.

APPENDIX -VIII

FOR THE PRESENT DR. AMBEDKAR MUST WORK AS A PROBATIONER IN ACCOUNTS DEPARTMENT

LETTER FROM GOVERNMENT OF BARODA

“Government of Baroda,

No. 744

Huzur Cutchery

Baroda, 7th June 1918.

My dear Sir Narayanrao,

In reply to your letter of the 5th ultimo, enclosing Mr. Ambedkar's, I write this to say that the papers were submitted to His Highness the Maharaja Sahab and he has been pleased to order that Mr. Ambedkar should join Baroda service on the salary that was agreed to be given to him when he left for America. If that is inadequate, his request for improved salary will be considered after a while. *For the present.* In view of his conduct which His Highness is constrained to remark has not proved worthy of his education or trust reposed in him. His Highness is not disposed to give him more liberal terms. His Highness has always been taking a (good) deal of interest in the welfare of Mr. Ambedkar's community and has spent large sums of money on Mr. Ambedkar himself. Could not be under these circumstances have set an example of probability and straight-forwardness even at some loss and discomfort to himself, particularly when he was promised better prospects in course of time?

As regards his request for professional work in the College, His Highness will consider the question when there is a vacancy provided he is found fit for those duties. For the present, he must work as a Probationer in the Accounts Department.

Since Mr. Ambedkar is not in a position to furnish requisite security for repayment of the money spent over his education in the event of his relinquishing service, he will have to submit for a period of 5 years to a deduction of 15 p.c. of his pay which will be

kept as deposit under the rules with the liability of forfeiture, if he left service again. But as a special case, His Highness has ordered that so long as this deduction reduction reduces his emoluments to less than the contracted initial salary, he may be given a proportionate increase from the date of his joining.

Lastly, as a special case the Maharaja Sahab has permitted Mr. Ambedkar to stay in the Guest House for the present and has asked for plan Estimates at an early date for a house to be built for him.

Your Sincerly,
Manubhai Mehta.

Sir H. G. Chandawarkar,
Redder (Peddar) Road,
Malabar Hill, Bombay.”¹

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¹: Rattu : Little known facts of Dr. Ambedkar, Pp. 230-231.

APPENDIX -IX

TAKE EARLY ACTION TO REPAY YOUR DEBT

“K. E. D. S.F. No. 43 No. 8088 of 1919-20
TELEGRAPHIC ADDRESS Office of the Educational
 Commissioner,
“EDUCATION, BARODA”. Baroda, 13th/14th May 1920
From
A. B. Clarke, esquire, B. A. (Cantab),
The Educational Commissioner,
Baroda State, Baroda.
To,
Dr. B.R. Ambedkar,
The Sydenham College of
Commerce and Economics, Bombay.
Subject: Repayment of debts.

Sir, I have the honour to invite your attention to my letter No. 4675, dated 24th January 1920* and a subsequent reminder No. 6121, dated 18th March 1920* on the subject quoted above and to request that you will be good enough to expedite the matter and to take early action to repay your debt to the State.

I have the honour to be.
Sir,
Your most obedient servant,
A.B.Clarke.

Commissioner of Education,
Baroda State”¹

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*Letter not available—Editors.

¹: Rattu : Little known facts of Dr. Ambedkar, P. 232.

APPENDIX - X

REACTIONS ON THE STATEMENT DATED 19-6-1936 ISSUED BY DR. B. R. AMBEDKAR ON CONVERSION

I

Dr. Moonje's Letter to Mr. Rajah

Dr. Moonje wrote the following letter dated. New Delhi 30th June 1936 to Rao Bahadur M. C. Rajah :—

“Dear Sir,

On urgent calls from Bombay friends and also from Shreeman Seth Jugal Kishore Birla with the concurrence of Dr. Ambedkar, I had occasion to go to Bombay on the 18th instant. There Dr. Ambedkar had long conversations with me for three days. Eventually a formula for amicable settlement of his revolt against Hinduism was drafted. Dr. Ambedkar entirely agrees with it.

The formula is as follows :—

“If Dr. Ambedkar were to announce his decision that he and his followers are prepared to embrace Sikhism in preference to Islam and Christianity and that he shall honestly and sincerely co-operate with the Hindus and the Sikhs in propagating their culture and in counteracting the Muslim movement for drawing the Depressed Classes into the Muslim fold, the Hindu Mahasabha will be prepared, in view of their having agreed to remain within the Hindu Culture, to make an announcement that it will not object:—

- (1) To the conversion of the Depressed Classes to Sikhism;
- (2) To the inclusion of the Neo-Sikhs in the list of the Scheduled Castes; and
- (3) To the enjoyment by the Depressed Classes of the political rights of the Poona Pact by free competition between the Non-Sikhs and the Neo-Sikh Depressed Classes as provided for under the Poona Pact.”

From Bombay I have come here just this morning for consultation on it with friends before formally putting it before the Hindu Mahasabha for its consideration. I am trying to see Pandit Malaviyaji and if possible also H. H. the Maharaja of Patiala. It is a very delicate matter. I have, therefore, to request you to kindly think over it and let me have your opinion in the matter. Until we decide one way or the other, the matter will be kept strictly private and confidential.

Awaiting your reply.

Yours Sincerely,
(Sd./—) B. S. Moonje.

P. S.—“I am enclosing also a copy of the statement of his case handed over to me by Dr. Ambedkar for your perusal. Please let me have your reply to my Nagpur address.”¹

II

“Mr, Rajah’s Reply to Dr. Moonje

I have already expressed my view about Dr. Ambedkar’s proposal that the Depressed Classes should give up Hinduism and embrace some other religion. I make a distinction between conversion—which is a spiritual change and migration from one community to another for social, economic and political reasons.

Dear Dr. Moonje, you will excuse my saying that you view the whole problem of Depressed Classes, in view of Dr. Ambedkar’s proposal, as one of the communal migration and not as a religious problem. One would expect the President of the Hindu Mahasabha to view it as a religious problem and not merely as a political problem, without even looking at it as a social and economic problem. One can understand your concern if as President of the Hindu Mahasabha you placed the spiritual welfare of the Depressed Classes first and foremost and thought of the social and economic welfare next and lastly thought of them as a political factor. Your solicitude for the place of the Depressed Classes in the political scheme not only exposes the interested

¹: The Bombay Chronicle, dated 8th August 1936.

nature of your concern for these classes, but is like placing the cart before the horse. One would expect you as President of the Hindu Mahasabha to ameliorate the social condition of the Depressed Classes by removing civic and social disabilities of these classes, not to speak of securing for them the right of worship in Hindu temples on an equal footing with other worshippers, and to further the Harijan movement started by Gandhiji all over the country. Instead of doing this, what is it, that you are doing? You are dissecting the Depressed Classes and affiliating them religiously to the Sikhs while retaining them politically as Hindus.

The whole thing seems to me not to be conceived in the interest of the Depressed Classes but on the other hand to be planned in the communal interests of the Hindus and the Sikhs. We are not sheep and cattle to be bartered away in this fashion, driven from one political fold to another as a result of a bargain between the leaders of different communities. We want to remain so solid community moving of our own accord in the direction of progress and this we can best do by not throwing away our birth rights as Hindus but by remaining within Hinduism and changing it so as to make it more comfortable not only to our communities which are suffering from similar liabilities, though our hardships are greater and more palpable. It is not our purpose to weaken the Hindu community but to strengthen it by reforming it from within. We do not wish to be pawns in the game of communal conflicts and competition.

Your proposal involves of electoral fortunes of Hindus, Sikhs and Muslims. If you want us to shift religion from the Hindu fold, we shall have to choose religion between the Sikhs and the Muslims who are the bidders for our communal migration, wrongly called conversion. Why should we antagonise and stand arrayed against Muslims? They are our brothers as much as the Sikhs and the Hindus. If the Depressed Classes all to become Sikhs and call themselves Neo-Sikhs, it will create all over the India a Sikh-Hindu-Muslim problem, as in the Punjab, made move complicated by the fact that the so-called Neo-Sikh belongs to the Depressed Class even among Sikhs.

This question of conversion or the communal migration as a move of the political chess board does not disturb us much in South India. We are content to work under the Poona Pact, partly as a separate electorate and partly with a joint electorate preserving our status with the Hindus both religiously and politically. I would therefore be no party even to the political manipulations which are proposed in your letter. I would urge the Hindu Mahasabha to address itself to the task of making easy for the Depressed Classes to stay within Hinduism and Hindu Society instead of arranging for the ticket for entering them to some far off destination. As the question you raise is likely to rouse a lot of discussion. I reserve to myself the right to publish my reply when the occasion arises.

III

Rajah Backed

Mr. C. Rajagopalchari writing to Rao Bahadur Rajah said :—

“I have your note and enclosures. I read through the Correspondence. I would not be too strong language to call the whole thing a diabolical proposal. I am glad, you have sent the correspondence to Mahatmaji. I am glad, you have replied in the terms you have done and summarily rejected the Idea.”¹

IV

RAJBHOJ REPLIES TO DR. AMBEDKAR

Poona Pact Benefits not for Runaways from Hinduism

“The Poona Pact does not make any provision for converts from Hinduism, and even if some of the Harijan community embraced Sikhism or any other religion in a body, it is not within the power of the Poona Pact signatories to retain for those converts any of the advantages secured under it,” says Mr. P. N. Rajbhoj, Harijan leader and Secretary of the All India Depressed Classes league, in a statement on Dr. Moonje’s plan. Mr. Rajbhoj adds that the Poona Pact was specially intended to give the utmost concession to

¹: The Bombay Chronicle, dated 8th August 1936.

the members of the Depressed Classes, so that they remained an integral part of the Hindu-fold. There was no question of applying it to those that left or were leaving the *Hindu-fold*.

Dr. Ambedkar never once raised the question of conversion at the time of the Pact. I think the cry is now raised to secure more concessions, says he.

Logical Absurdity

Proceeding, Mr. Rajbhoj asks if new converts from Hinduism are to be given the benefits derived under the Poona Pact why not the old converts who may for political, if not religious, reasons want them? He says that there are large number of Depressed Classes who have embraced other faiths, but have not been able to throw off the disabilities attached to the Harijan Community, and mentions the case of the Christians in some parts of Madras. Why should concessions and benefits obtained by those who laboured under disadvantages and difficulties be given to those who did not want those disadvantages, but only the benefits of the labours of others.

The Poona leader adds, "the formula is a vicious formula and will lead to more complications and endless trouble. It should not be accepted by the Hindus or by anybody. We are Hindus or not Hindus. If we elect to remain within the Hindu-fold, we are entitled to our right and privileges as Hindus, and once we leave the Fold, we can have no claim."

Refuting the statement that the Hindus have not made any sacrifice by accepting the Poona Pact, Mr. Rajbhoj says that instead of the 71 seats given to the Depressed Classes under the Communal Award, the Pact gave them 148 seats. Concluding Mr. Rajbhoj asserts that the conversion idea has no universal appeal among the Harjijan community. Even in Maharashtra only the Mahars favoured such a view, but the Chamars were solidly opposed to any conversion. There was no support to the idea in other provinces and he was surprised how the Hindu leaders were involved into it."¹

¹: The Bombay Chronicle, dated 15th August 1936.

V

Mahatma Gandhi's Views

Mahatma Gandhi's letter to Mr. Rajah dated 26th July 1936:—

'I have no difficulty about giving general endorsement to your letter to Dr. Moonje. I do not at all understand Dr. Moonje's or Dr. Ambedkar's position. For me removal of Untouchability stands on a footing all its own. It is to me a deeply religious question. The very existence of our religion depends on its voluntary removal by *Savarna* Hindu in the spirit of repentance. It can never be a question of barter to me. And I am glad you take nearly the same position that I do' (The Annual Register, Vol. II, July—December 1936, page 276-279)."¹

VI

Telegram from Pandit—M. M. Malaviya, dated 30th July 1936 to Rao Bahadur M. C. Rajah:— "Thanks for the copy of your letter to Dr. Moonje. I agree with you."—A. P.²

VII

The Munje—Rajah Pact³**Splitting Depressed Classes**

Sir, though Dr. Munje⁴ and the Hindu Mahasabha have been unable to wipe out the blot of Untouchability from Hinduism and thus to make the Hindu Organisation strong and compact, they have succeeded in trapping a leader of the Depressed Classes with a view to causing a split in the ranks of those classes. The Munje-Rajah Pact is being boosted by the Congress and Mahasabha organs, and it is being represented to the gullible public that the pact is being

¹ Khairmode, Vol. 6, Pp. 191—193.

² The Bombay Chronicle—8th August 1936.

³ **The Munje-Rajah Pact**—Rao Bahadur M. C. Rajah, a Depressed Classes leader from Madras and Dr. B. S. Munje, President of Hindu Mahasabha had discussions on the basis of reserved seats and Joint Electorates in Delhi. They made a pact which is known as The Moonje-Rajah Pact.

⁴ **Dr. B. S. Munje**—He was President of Hindu Mahasabha, Delegate, Indian Round Table Conference.

supported by the majority of the Depressed Class people. In fact, the Munje-Rajah Pact is being strongly denounced by all most all the accredited leaders and leading organisations of the Depressed Classes in the country. The Congress and Mahasabha organs have, however, made a conspiracy to suppress all news about the vehement opposition, the pact is evoking,

It was Rao Bahadur M. C. Rajah,¹ who was strongly in favour of separate electorates when Dr. Ambedkar was advocating joint electorates and reserved seats, and it was through pressure from Mr. Rajah and the Depressed Class Organisation in the Madras Presidency, that Dr. Ambedkar had to set his personal views aside and to make a demand for separate representation at the Round Table Conference. He received support in his demand from Mr. Rajah, who in a speech only some weeks back gave his opinion that the salvation of the Depressed Classes lay only in Separate Electorates. His latest somersault was a surprise to all. He entered in to a Pact for joint electorates and reserved seats with the leader of Hindu Mahasabha without consulting the other leaders and the responsible organisations in the Depressed Classes in the different provinces. Nor, has he given any reason justifying his new policy. The fact Dr. Ambedkar was greeted with a rousing reception and was supported in his demand for separate representation by thousands of people recently at Madras itself, is sufficient to prove that Rao Bahadur Rajah lacks support even in his own Presidency. The evidence which is being given before the Franchise Committee also proves beyond dispute that an overwhelming majority of the Depressed Classes is in favour of Separate Electorates.

The Bombay Congress and Mahasabha organs have given out that Mr. B. J. Deorukhkar has sent a memorandum to the Franchise Committee signed by over five thousand people belonging to the Depressed Classes in support of the Munje-Rajah Pact. It has,

¹ **Rao Bahadur M. C. Rajah**—A Depressed Classes leader from Madras. President of All India Depressed Classes Association. Member of Madras Legislative Council. Member in the Central Assembly.

however, been discovered that, this is nothing but fiction. The fact is that a few set replies to the questionnaire issued by the Franchise Committee have been forwarded in the name of certain insignificant bodies, the numerical strength of which is quite negligible. Mr. Deorukhkar represent himself and at the most some people belonging to his sub-section of the Chambhar Community *viz.* the Dabholi Chambhars, who constitute but a small fraction of the so-called Untouchable community in Maharashtra.

We challenge the Congress and Mahasabha people and their friends in the Depressed Classes to prove their majority in a public meeting especially held for the purpose. So long as they are not prepared to do this the claims of the Congress and Mahasabha organs should be treated with the contempt they deserve.

Divakar Pagare (Mahar)
K.G. Chandorkar (Chambhar)¹

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¹: Surwade, Vol. 1 Pp. 143—144.

DR. BABASAHEB AMBEDKAR

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***Dr. BABASAHEB AMBEDKAR
WRITINGS AND SPEECHES***

“Whatever may be the metaphysical basis of a religion those religious principles upon which depend the ethical system and the social practices of a people must be considered to be the principal element of that religion. Though Hinduism is based on the conception of Absolute Brahma the practices of the Hindu community as a whole are founded on the doctrines of inequality as pronounced in 'Manusmriti'. Some people think that religion is not essential to society. I do not hold this view. I consider the foundation of religion to be essential to the life and practices of society. At the root of the Hindu Social System lies Dharma as prescribed in 'Manusmriti'. Such being the case I do not think it possible to abolish inequality in the Hindu society unless the existing foundation of the 'Smriti' religion is removed and a better one laid in its place. I, however, despair of the Hindu Society being able to reconstruct on such a better foundation.”-(P. No. 236)

-Dr. B. R. Ambedkar

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